

A HISTORY OF THE DURHAM MINERS' ASSOCIATION 1870-1904

BY

ALDERMAN JOHN WILSON, J.P.

*Corresponding Secretary to the Association, Chairman of Durham
County Council, and Member of Parliament for
Mid-Durham Division*

“A tale should be judicious, clear, succinct ;
The language plain, and incidents well link'd ;
Tell not as new what everybody knows,
And, new or old, still hasten to a close.”

COWPER.

Durham

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J. H. VEITCH & SONS, 24 AND 25 NORTH ROAD
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PRICE THREE SHILLINGS AND SIXPENCE

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Title: A History of the Durham Miner's Association 1870-1904

Author: John Wilson

Release date: May 10, 2015 [eBook #48925]

Most recently updated: October 24, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/48925

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THE DURHAM MINER'S ASSOCIATION 1870-1904 ***

A HISTORY OF THE
DURHAM MINERS' ASSOCIATION
1870-1904



Frontispiece

THE MINERS' HALL, DURHAM

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To

MY COLLEAGUES THE MINERS
OF DURHAM

this outline of their associated history is respectfully dedicated by one who knows the hardships and dangers of their lives, who understands their character and esteems it, who has been with them in their struggles for freedom, equality, and a better life, whose greatest pride is that from early youth he has been (and still is) one of them, whose highest honour is that he is trusted by them to take part in the varied and important duties of their association, and whose hope is, that avenues of greater good may by their united and individual efforts be opened out to them.

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PREFATORY EXPLANATION

It is necessary that I should set forth the reason why this attempt has been made to place on record, in a compact form, the rise and progress of our Association, with the changes which have taken place in our position. The inception lies in a letter received from one of our lodges, and addressed to the Executive Committee:

"Seeing that matters of a definite nature relating to the history of the Trade Union movement in the county of Durham, in its social, political, and industrial aspects, are difficult to obtain, we would suggest to our Executive that it would be opportune at this juncture to ask Mr Wilson, on behalf of the Association, to write a short, concise history of the movement in the county, giving the social and industrial changes that have followed its progress, and that the Executive issue the same free or at cost price to lodges for distribution amongst the members."

This was considered by the Committee. It met with their approval so far as the history was concerned, but they, with very generous feelings, remembered the many things I have on hand. They felt confident that such a work would be appreciated by our members, but they were loath to impose more work upon me. Their desire that I should prepare such a work was expressed in such a kind and considerate manner—not as a Committee dictating business to its Secretary—that I could not have refrained from taking the task, even if it had been irksome; but the request was in harmony with my own desire, and therefore, if the labour had been more arduous, it would still have been one of pure love and pleasure.

Yet, although it is pleasant, it is well to recognise a difficulty which meets us at the start. It arises from the fact that at the commencement of our Association no records were kept, or, if kept, have been lost. The first Minutes that can be found commence with 1874, and even the Minutes for the years 1874-1875 are not all in existence, and some which are, have been mutilated by portions of them, and circulars, being cut out. In the period

referred to we were in the same position as other similar bodies or nations. At the rise of these there is always the vague and uncertain period where tradition plays the part of accurate historical record. In the struggle for a position there is no time for systematic book-keeping, or, if books are kept, there is no care in preserving them. This is borne out fully in our inception and our early existence, and therefore for facts in relation to our commencement and the first few years of our existence as a Trades Union body we must depend upon outside sources wherever such are available. In this some little assistance will come from "Fynes' History," which, of course, cannot supply much, as it deals with matters largely anterior to our commencement. If we turn to the files of newspapers we by diligent and close search can gather from published reports of meetings and proceedings of that time useful information. There is another source of information—viz. the books of the employers.

In respect to this matter I cannot too strongly express my thanks to the proprietors and editor of *The Durham Chronicle* for the kind and ready manner in which they placed at my disposal the whole of the files of their paper, commencing with 1869, and allowed me to have them for use in our office. They have very largely helped me to fill in the hiatus up to 1876. My thanks and yours are due to the employers and Mr Guthrie for the free access they gave me to their books at any time and in the fullest manner. They have not only allowed me facilities for examination, but Mr Guthrie has assisted me in my search, and has copied out portions which I deemed necessary for our purpose.

The difficulty has therefore been lessened, and the work lightened by the help mentioned, but if this had not been so the work would still have been commenced, as the object lies near my heart, for two reasons—first, because to me there is no dearer or more attractive institution in the whole country than our Association. I will not say it is superior to all others, but I will assert it has none, or not many equals. From very small beginnings, from very unlikely conditions, and in the face of bitter and opposing circumstances and forces, there has been reared not merely a strong Trades Union as strong as any extant, but one as beneficial as it is strong. The second reason is the usefulness of the record. If, as Pope says, the "proper study of mankind is man," then, if on a slightly lower plane, it must be an

important matter for a man to know the history of the class to which he belongs and of any institution of which he is a member.

It is useful, too, in showing our young men the condition we have come from, the toil and anxiety those who were the initiators had to face, and the large amount of unremunerative labour they had to perform. Our present position has been bought with a price, the amount of which is unknown to this generation, many of whom are like the prodigal, who inheriting a fortune and knowing nothing of the hardships involved in the accumulation, squanders with indifference that which has cost bitter years and much hardship.

Let me conclude this preface by saying I offer no plea for inability. That is too well known, by myself at least. If he is a wise man who knows his own limits and failings, then I am a very wise man. But one other thing I know as well: I have a full knowledge of your toleration, and that you are ready to give full credit for good intentions. The history shall be the best that I can do, keeping in view all the circumstances. I remember that we do not want a mere comment upon our history; that I could make from my experience, but it might not be accepted as reliable, and therefore what we must aim at (even if it be tedious) is a matter-of-fact statement, because that is all we desire.

I fear the history will not be very concise; but that, like all other words, is relative. If it is not as short as some would desire, it shall not be verbose. We will waste no words nor use any useless verbal padding; we will "nothing extenuate nor write down aught in malice." Each general event shall have its place and mention.

This note may be added, that at the commencement of the Association it was embrative of all sections of labour in and about the mines. Before we had been long in existence there was a desire for the formation of separate organisations, as it was felt that there were certain peculiarities connected with the other occupations which the miners could not technically deal with. The first to leave were the enginemen, then followed the mechanics, and then the cokemen at the end of 1874. With this notice it will be understood that I deal with the miners alone, only mentioning the others as they come into play with us, and especially after the Federation was

formed. I propose to deal with the work with regard to the chronological order of the events rather more than in symmetrical chapters, and therefore after we get the Association formed we will take a year or more, just as the business is great or small, as a definite period.

HISTORY OF DURHAM MINERS' ASSOCIATION

THE PREPARATION

The Association was not a sudden and startling phenomenon, but was a pure evolution. It was no growth of a day like Jonah's gourd, but it was the outcome and the harvest of a long, painful sowing-time. In our Hall we have two busts. These are no doubt looked upon (if noticed at all) with casual indifference. Few of us regard them as expressions of important periods in our struggle for Right and Equality, and as part of the preparatory process, the consummation of which is our grand Institution, of which we are justly proud, for our history fully illustrates the sentiment:

"Truth struck to earth will rise again."

It is not my intention to take a long and detailed retrospect, but just to enumerate a few of the events happening after 1860, all of which were assisting in clearing the ground, and inciting our formation and preparing men's minds gradually for, such an institution. These I will place in chronological order. First, there was the Mines Act which came into force in July 1861, which amongst other important provisions provided that no boy should go down the mine under twelve unless he could produce a certificate that he could read and write; that boys under twelve should go to school five hours per day; that minerals should be weighed, and that the workmen should be at liberty to appoint a checkweighman.

Another of the series was the Hartley calamity on the 16th of January 1862—a calamity which is unique in the history of mining disasters, which moved the heart of the nation, and turned the minds of men everywhere to two very important matters—first, the sinking of two shafts to every mine; and second, to the provision for the relatives of those who lose their lives, or for the workmen who are injured. And thus it has ever been: our industry has offered up its human sacrifices before necessary reforms have been introduced. Death has in many instances opened the gateway to life and blessing. It is sad, but yet true.

Then we had two very notable strikes—one at the Brancepeth Collieries, which is known as the "Rocking Strike." The name arose from the custom

which obtained of setting out the tubs if they were not level full when they came to bank. In order that this might be attained the hewer used to walk around the tub and strike it with his "mell," or rock and shake it so that the jolting on the road out-by might not lower the coals below the rim of the tub, and thus result in the forfeiture of the entire contents. This system was enforced even after the Act of 1861, and in such a glaring manner, that the master's weighman was paid a commission upon every light tub he found. The demands of the workmen were payment by weight and an advance in wages. Those whose memory goes back to that period will remember the meetings that were held, and especially one not far from Mr Love's (the owner of the collieries) house, just outside Durham city, then called Mount Beulah, now by the more earthly name of Springwell Hall.

At that meeting on the platform was a working model of a miner rocking a tub, and a song composed by a local poet (Mr Cooke of Trimdon Grange) was sung. Part of the refrain was, as near as I can remember, as follows:—

"The rocking so shocking long, long we have bore,
Farewell to the rocking, we will rock them no more."

The second strike took place at Wearmouth, and was the real, although not formal, starting-point of our Union.

This strike commenced about the middle of April 1869, and arose out of the conditions contained in the "Bond" of that year, which was brought out as usual in the month of March, when the hewers were told that, owing to the depressed condition of trade, there would have to be a considerable reduction in prices. In one instance the score price was reduced from 7s. to 5s. 10d., and the yard price from 1s. to 8d. There was no opposition offered at the time, as the men were willing to give the lower rate a fair trial. Afterwards they found they were not able to make a fair day's wage. They worked on until the 18th of May, when after going into the pit they all came out, and held a meeting on the green, and appointed a deputation of six to wait upon the manager and Mr Stobart. No concession being made the report was given, when the men declared it was impossible to maintain their families, and resolved that they would not resume work until the previous prices were paid. It is not part of my purpose to enter into all the phases of the strike, but one thing I will set forth, as it shows the method adopted to

break the ranks of the workmen. The manager of the colliery was a man well-known in the North of England Coal Trade, Mr R. Heckles. He, believing there was great power in the beer jug, when the strike had continued for a fortnight sent six notes for fifty men each to get a quart of ale per man. These were placed before a meeting of 250 men. "On the offer of the beer being announced the men replied that the notes were to be sent back, as the day had gone by when the men were to be bought with beer, but that beef and bread would be better, and a resolution was carried not to resume work except at last year's prices."

The breaking of the bond brought the workmen into collision with the law, and four of them were summoned to appear at the Sunderland Court, on the 21st of June 1869. They were charged under the Masters and Servants Act. One of the cases, that of Thomas Fenwick, was taken. The magistrates were told they could impose a fine of £20, or commit to prison for three months. The defence was conducted by Mr Roberts, the "Pitmen's Attorney-General." The Bench decided that the defendant should give sureties of £20 to return to work, or be committed to prison for one month. Mr Roberts took objection, and pointed out that there was no attesting witness to the signing of the contract, and asked for a case to the Queen's Bench on the point. On that being raised the case was adjourned for a fortnight.

On the 6th of July the case again came up for hearing. The objection raised by Mr Roberts was then gone into. It was to the effect that the defendant was a marksman (that is, made his mark and did not sign his name), and that the bond was never read over to him. The matter was contested for a considerable time. Eventually Mr Roberts said he had "been told by the most influential men among the workmen that they wanted to be free from the villainous and iniquitous bond, and they would undertake to leave the houses within nine days." On that promise being made and accepted by the solicitor for the owners the bond by mutual consent was cancelled.

The men immediately arranged for vacating the houses and handing in their lamps. In one instance this was done in a unique and striking manner. The men formed in procession, over 300 in number, each man carrying his lamp and a copy of the colliery rules. Marching to the colliery they handed in their lamps, and returned the rules to the overman. The effect of the trial was speedily seen in the solidifying of the whole of the workmen at

Wearmouth, as the deputies and others (while passively remaining from work, had never taken active part in the strike) now threw themselves into the struggle, and made common cause with the hewers, and the further effect was the impetus given to the cause of unionism throughout the county until it consummated in the Durham Miners' Union.

Another element assisting our formation was the desire for association which was burning in the breast of a few men whose ardour could not be damped by repeated failures or retarded by opposition or hardship. The last of the series of these attempts was in 1863, the meeting being held in the Victoria Hotel, Newcastle. There were 30 delegates present—27 from Northumberland, and only 3 from Durham, Whitworth, Washington, and Usworth, the membership being slightly over 4000. We are told by Fynes in his history that it was resolved to hold meetings in Durham "with the view of moving the men of this county to join them." At the next meeting Mr Crawford was appointed agent and secretary, with Mr Joseph Sheldon as a colleague. In that capacity the writer first saw Mr Crawford. He was the principal speaker at a meeting held on Sherburn Hill. He was on his way from the Leeds National Conference, and we find by reference to the report of that meeting that he was Chairman of the Committee on Law. This union of the two counties continued until the Northumberland men felt that to them it was like being connected with a body of death, and they realised that the connection would in the end be fatal, and in 1865 resolved to separate. This resolution was carried into effect, and county organisations were formed. The two agents were allotted as follows:—Mr Crawford being kept in Northumberland, and Mr Sheldon became the agent in Durham. His term of office was very short, as the Union here very soon died out. At the united meeting, embracing the two counties, held on November 21st, E. Rhymer was the only delegate, and he delivered a very characteristic speech, of which the following is a portion:—

"With respect to the county of Durham he was sorry that they appeared as a black spot in England respecting the Miners' Association. They numbered about 1000, but there were only 74 represented at that meeting. The hours of the men were eight hours working. The average wage being from 4s. to 4s. 6d. The hours of the boys upon an average were fourteen per day. The system with respect to the boys was the most wretched in the civilised world. They never saw the light of the

blessed sun from Sabbath to Sabbath. He had authority to tell them that the district which he represented begged of them through him to send help to save them from starvation and misery."

These are very strong words and true, for the state throughout was deplorable. Here and there small societies existed having no federal connection, but they were of no earthly use. They only showed in darker colours the disorganisation which had set in. To use Milton's illustration, they made the darkness more visible. Still, there were some brave spirits who not only deplored the condition, but, as Fynes says, "set themselves the almost Herculean task of revising the Union and substituting harmony for the discord which then prevailed." For that purpose meetings were held in various parts of the county. The speakers who attended them oftentimes found themselves sleeping in a room whose walls were the horizon and the roof studded with the stars of heaven. Prominent we find the names of W. Crake and J. Richardson (two men who were sacrificed as the result of the Wearmouth strike), W. Patterson, T. Ramsey, and N. Wilkinson. Not only were there local men at these meetings, but strangers were sent from other districts, seeking to infuse new life into the apathetical and indifferent men of Durham. The most notable of these meetings was held at Thornley on Saturday, the 25th of September 1869. Amongst the speeches delivered I find two given at great length in *The Durham Chronicle* of the 1st of October by Mr T. Burt and Mr W. Brown, who was then residing in Yorkshire, but who afterwards became the agent for the North Staffordshire miners. The chair was occupied by Mr W. Patterson (our Patterson), and there were about 1000 men in attendance. If it were convenient I would place on record in this history those speeches in full, as they were worthy of the men and the occasion. One or two sentences may be quoted from Mr Burt's speech. He urged that "there were many reasons why men should be united: wages, better conditions, and safety at work." Their wages were not so high as they ought to be, neither was their social condition what it might have been, and he would candidly confess that the miners themselves were most to blame that such was the state of affairs. Had they worked together and exercised confidence where they displayed little else but petty jealousy, had they not spent their money for naught, their position might have been different that day. If proof were needed let them look at other classes and districts. "If the miners of the county of Durham compared their condition

with any of the great combined bodies of English workmen they would at once see how different their position might have been had they been united. If they compared non-Union districts with Union districts they would contrast the rate of wages paid in Lancashire, Wales, Yorkshire, and Northumberland; and they would see a striking example of the effects of Union and non-Union." These remarks suggest a curious contrast between our relative position compared with other districts now and then, and the comparison proves the force and wisdom of Mr Burt's exhortation.

In this connection I find a letter from Mr Crawford bearing on the same subject, and published in *The Durham Chronicle* of the 15th of October 1869, which I insert in full.

Sir,—Seeing that the Durham miners are again trying to form amongst themselves an organisation for mutual protection, you will perhaps allow me to say a few words, having had some experience in connection with their last one some six years ago. Many of your readers will remember the strenuous efforts then made to organise the whole county, and at least the partial success which attended that undertaking. A great portion of the county did become united, and at one time promised satisfactory success. But those who expected such an accomplishment were doomed to be disappointed. After a short time the whole fabric collapsed, and miners were again subjected to all those difficulties and impositions which necessarily follow in the train of disorganisation. Since that time my mind has often been occupied in trying to ascertain the cause or causes of that disastrous downfall, and I have long since concluded that the following were the main if not the only causes which led to such a direful result:—

1st. Yearly hirings. For years before the Union began, these had existed in the county, and their baneful effects had been to reduce the wages of the miners from fifteen to thirty per cent. The coal was no better to get, and its market value ranged about the same. What, then, was the cause of men being reduced in some instances from 13s. 6d. to 9s. per score? It may be truly attributed to disorganisation and yearly hirings. When the Union began these still continued, and hence the impossibility of men gradually recovering that which they had lost. These yearly hirings had brought the county to the lowest possible social condition,

and when brought, kept it there, rendering organisation difficult, and when attained making its continuance more difficult still. They have been the curse, the withering blighting curse, of thousands of miners in that county.

Again, the county is too wide and extensive for one association. To make the work not only practical, but effective, it ought to be divided into three, or perhaps four separate districts. These districts ought to be thoroughly independent of each other; not only doing their own business, but being self-supporting. Of course, in many instances, one district would find its interests best furthered by rendering assistance to a neighbouring one. In such cases let relief be unsparingly given. The more mutual support and sympathy there existed between the districts, the greater the chance of permanent success. Yet, in their working, collecting, and distribution of their finances, let an entire separation exist. We have not space to go fully into this matter here; but if the past will prove anything, it will prove what I have just said. And, if an instance is wanted, it will be found in the two *distinct*, but *successful* associations, which for years have existed in Yorkshire. Other causes operated to make short the existence of the last organisation; but these were unquestionably the main ones, and ought, therefore, to be avoided this time, especially the latter, that power being now with themselves, to put into immediate effect, while the former must be a work of time, at least for a few months.

The present condition of the Durham miners calls aloud for a change, and the power to effect that change is with themselves. Let them bestir, set to work in right earnest, and if that work be characterised by prudence and determination, I doubt not but that ultimate and entire success will crown their efforts.

WILLIAM CRAWFORD.

Bedlington, Northumberland,
October 11th, 1869.

LAYING THE FOUNDATION

Currently with these meetings arising out of the Wearmouth strike, and the other matters mentioned, the young Union was gathering strength. Delegate meetings were being held, the machinery of the Association was taking shape, and the constitution outlined. The first of these was held on Saturday the 3rd of July 1869, the chairman being Mr J. Richardson of Wearmouth. In his opening remarks he said: "They had met not as delegates of an organised body of miners, but as representatives of collieries not yet united, to devise means whereby an organisation could be established throughout the county of Durham." No attempt was made to transact any business, but a number of addresses were delivered. The speakers were Mr Lynney of Wearmouth, Mr B. Irving and Mr Scranghann of Houghton, Mr Noull, Windy Nook, and Mr G. Parker of Spennymoor. All spoke of the deplorable condition of the county, and expressed their firm belief that nothing but union would bring about an amelioration.

The next meeting was held in the Market Hotel, Durham. I again quote from *The Durham Chronicle* report:

At the hour named there was only a limited attendance of delegates and, no others coming up as time passed on, no business was done, and the delegates present merely contented themselves with discussing the project of a county Union, to which the delegates from Thornley and Houghton stated the men in their respective districts gave perfect accordance, uniting with the Union in both cases the scheme of a benefit society. Mr Richardson of Wearmouth thought they ought to form their Union first, and leave the question of benefit and emigration societies in connection with it to a future time. A resolution that Wearmouth, Thornley, and Houghton form the nucleus of an organisation or union among the miners of the county, and that a paid agent be appointed to explain to the men the aim, object, and principles of the proposed association, was then passed. The following is the district set out for the lecturer to visit:—Ryhope, Seaton (and Seaham), Hetton, South Hetton, Haswell, Shotton, Castle Eden, Wingate, Trimdon, Fire Houses (Trimdon Grange), and Thornley. The agitation of the proposed organisation to be directed against the yearly bond.

The next account available is that of a meeting held at the half-way house near Thornley on the 23rd of September. It was held in connection with the demonstration referred to above, at which Mr Burt and Mr Brown spoke. The following are the names of the delegates who answered the roll, with the collieries represented:—

W. Crake, Wearmouth.	R. Bousfield, Houghton.
H. Robson, Ryhope.	J. Colledge, Murton.
W. H. Patterson, Heworth.	A. Cairns, Thornley.
T. Ramsey, Trimdon.	N. Wilkinson, Trimdon Grange.
J. Wylde, Quarrington Hill.	C. Flynn, Shiny Row.
E. Furneal, Felling.	C. Nichlson, Seaham.

This meeting was the most ambitious of any held, as a properly arranged business programme was before the delegates. The items discussed were the wages and expenses of the agent. The point discussed was not merely the amount per week, but whether he should be charged for stamps and all cost of correspondence. The meeting was equally divided, when the question was remitted to the lodges.

Next came the "Formation of a Central Fund." In this matter there was great fear as to the permanency of the movement. The predominant feeling was that it was better to wait until the roll of members reached a few thousands. Mr Patterson was among those who hesitated, and expressed himself in the following terms:—

"They had several times tried to form a Union, but had failed, the men appearing somehow to have little confidence in them." The Wearmouth delegate was more optimistic. He did not think it was necessary that they should have 5000 members before the fund was formed. Mr Patterson had hinted the Union might fail, but there was not the least fear in his mind that such would be the case. Following these came the persons to attend the delegate meetings (whether strangers should be admitted), the pay for attending (this was fixed at 6s. 6d. and third-class fare), the appointment of a committee to draw up rules, the adoption of a "Pass Card" as a guarantee of membership, the collieries for the agent to visit, and the appointment of an Agent, Secretary, and Treasurer. These offices were filled as follows:—

Mr J. Richardson, Agent for three weeks; Mr Isaac Parks, Secretary; and Mr N. Wilkinson, Treasurer for three months.

The next meeting was held on Saturday, 20th November. It is important that we should note this meeting, as it was the real beginning of the Association. The following is the full report from *The Durham Chronicle*:—

DURHAM MINERS' MUTUAL ASSOCIATION

"A meeting of the delegates of this Association was held in the Market Hotel in this city on Saturday, when the delegates present represented 4328 members. The following resolutions were passed:—(1) Resolved that Stanley be exempted from paying any contributions this day. (2) That all members receive rules free. (3) That each delegate speak in rotation as on the list, and not to speak more than five minutes each time. (4) The following were appointed trustees:—Alan Murray, W. Crake, Isaac Parks, W. Patterson, R. Carr, W. Wilson, John Armstrong, and T. Noble. (5) That each delegate have one vote. (6) That Mr John Richardson be Agent and Secretary, and be paid 32s. per week, and allowed third-class railway fare when on the business of the Association when such business calls him more than four miles from his residence, the delegates to decide his place of residence. (7) That the delegates should manage the business at present, and that in future a president should be chosen at each meeting of delegates who shall have a casting vote. (8) That each delegate be prepared with security for the person proposed by his district for the office of treasurer. (9) That all suggestions be sent in at least seven days before the meeting. (10) That the miners of the county of Durham have their attention called to the objects contemplated by the Association by hand-bills, and that 500 be printed. (11) That the agent go into the Crook and Spennymoor districts and explain the advantages of the society."

Here we have the Union for the whole county fairly established on a weak foundation. Sufficient to dishearten, looking from our present proud position, but it must be remembered that there were giants in those days—brave, hopeful men, who were not to be turned from their purpose by any hindrance. They felt that united effort was the breath of our life, and they kept their eyes on that goal. A united Durham was their battle-cry and

inspiration. If there had been any possibility of diverting them, the next meeting, which was held on 18th December 1869, was sufficient. That meeting was held again in the Market Hotel. There were delegates from only 19 collieries, representing 1964½ members. The outlay for the previous fortnight was £8, 11s. 5d., and there was a saving of £50, 11s. 1½d. Mr N. Wilkinson was appointed treasurer. Rules were submitted from various collieries. The agent was instructed to visit the Derwent District, and a very wise provision was made that no suggestion should be put on the programme that infringed the general rules. It was a little anticipatory, seeing the rules were not formed, but those men knew well that without order and law it was impossible to have any useful progress. Later experience proves the wisdom of their provision.

REARING THE BUILDING

The end of 1869 saw the foundation of the structure laid. The beginning of 1870 found the builders hard at work raising it. The first move made was to hold fortnightly delegate meetings. These appear to have been of the nature of Committee and Council Meetings combined, and were usually held in the Market Hotel, Durham. The first in the year was held on Saturday, 1st January. The first business, even in this early stage, was to deal with that permanent disease of Trades Unionism, the unfinancial member; for from the origin of things there have been men who were ready to take all and give nothing. Various schemes were suggested for dealing with such people, many of which were crude, but in the end the means most favoured by the delegates was analogous to, but somewhat more drastic than, the rule at present in operation for compelling members to keep themselves straight on the books. The other questions dealt with were the proposed formation of a sick fund, with sundry minor or local matters.

Passing over the meeting held on January 15th, except to note that the number of men represented was 2500, and the fortnightly contributions amounted to £48, 18s. 1½d., we come to an important one held on the 29th. The numbers in union were the same as a fortnight before. The meeting was important, because it is the first time we find the yearly bond as part of the business of the council. There was a very lengthy discussion upon, or rather expression of condemnation of, the bond. The most noteworthy portion of

the proceedings was a letter from Mr A. Macdonald, as President of the Miners' National Association. The letter is worthy of note, because it is the first recorded instance of his official connection with Durham, and because of its opposition to the system of yearly bindings. He was desirous to ascertain what were the views of the miners in the county upon it. The Government were pledged to bring in a Mines Regulation Bill during the next session of Parliament, and it was necessary that their views should be expressed with a view to insert a clause in the new Bill to provide for fortnightly or monthly agreements. In Mr Macdonald's opinion, as in that of other leading gentlemen connected with the organised coal districts in Great Britain, it was useless to attempt to better the condition of the miners in Durham so long as that system existed.

The unanimous agreement of the meeting upon the subject was "that Mr Macdonald should be informed that the miners of the county of Durham considered the bond to be a great evil, and would hail with the greatest gratification any legislative enactment providing for its abolition."

At the meeting held on 12th February a much more satisfactory report was presented. The membership had increased to 3537½, and the contributions to £80, 4s. 8d. There had been a deposit of £70, making the banking account £288. In addition to this large increase in funds and numbers encouraging reports were given by the delegates as to the requests which were made from unorganised collieries for someone to attend to assist in inducing the men to join. In connection with this desire there came a question from Mr Macdonald and Mr Burt asking whether the young Association would take an active part in arranging for meetings, passing of resolutions, and getting up petitions in furtherance of the Mines Bill about to be introduced into Parliament. These gentlemen were extremely desirous that a series of meetings should be held, and they were willing to attend them if arranged. The result of the request was an agreement to hold three meetings at Sunderland, Bishop Auckland, and Durham, and the appointment of a committee to make the necessary arrangements.

At this meeting we have the first mention of an entrance fee, which was to be 6d. for a month, the payment of delegates out of the local funds, the attendance of trustees at every delegate meeting, and the most important appointment of President and Executive Committee. The custom had been

to appoint a president from each delegate meeting *pro tem.*, but now it was deemed advisable to elect for a longer period. The appointments were as follows:—

President

W. Crake, Monkwearmouth.

Committee

Christopher Nicholson, Seaham.

Isaac Parks, Trimdon.

Martin Thompson, Murton.

John Jackson, Thornley.

Mr Allonby, South Hetton.

W. H. Patterson, Heworth.

W. Anderson, Murton.

These with the treasurer formed the committee. It was further arranged that the delegate meetings should be held once a month, and that the contributions be forwarded fortnightly to the general treasurer.

As a result of the arrangements for holding mass meetings in the county, two were held: on the 25th of February at Bishop Auckland, and on the 26th at Sunderland. These were addressed by Messrs Burt and Macdonald. Both meetings were very well attended; the object was to discuss the proposed new Mines Bill. Strong speeches were made against it. "It was too narrow in its application. It would permit a boy to be employed for 14 hours in the mine, and he would have to work a length of time equal to 62 days in the year, more than the child in the factory. There was a deficiency with regard to weighing. That they demanded should be remedied, because the system of measuring and gauging simply meant robbery and double robbery. In some districts the arithmetical tables had been altered to make a ton equal to 25 and even 28 cwt. Then there was a great need for more inspectors and for properly trained managers, for the absence of competent men had been a fruitful source of colliery accidents. Deputies and overlookers were not chosen, as they all knew, because of their excellence and skill, or their high moral qualities, but more because they were sycophants and tyrants in the hands of those who owned the mines."

There came a powerful appeal from Mr Burt on behalf of the Union. "Every great movement in the world was carried on by combined efforts. Single individuals had never been able to accomplish much. In all parts of the world one heard the declaration made that workmen were doing too much work, and receiving too little remuneration, and it needed but the organisation of this great army to gain for themselves justice. If they joined that army they would have education, temperance, prudence, and virtue rising up in the place of moral degradation; happiness in the place of misery; and comfort in every home where wretchedness now only prevailed."

At the monthly meeting held on the 12th of March 1870 there were delegates from 28 collieries, with a membership of 3650, being an increase for the month of over 100. The monthly income was £138, 17s. 3d. Of that sum £57 was paid for collecting the signatures for the petition to Parliament *re* the Mines Bill, and a balance of £70 was added to the banking account. Two petitions were in evidence, one being 35 and the other 36 yards long—the cost in the former case being over £12, and in the latter over £4. A deputation attended this meeting from Yorkshire soliciting subscriptions for a colliery on strike in that county. In response to the appeal £10 was sent, so that very early in its history the young society was learning the luxury that comes from doing good to your neighbour—a lesson it has not forgotten in its older and stronger days. The next monthly meeting was held on the 9th of April. There was a sad falling off in the membership represented. The chairman was able to "congratulate the meeting on the fact that the bindings had passed off so satisfactorily, and that a slight increase in price had been secured."

There were only 25 collieries represented, with a membership of 2898. The variation in the number of delegates may be accounted for by the system of paying the delegates, it being borne by the lodges, and not as at present. A complaint was made by the delegates in regard to the dismissal of men at the late bindings. It was said that there were 30 at Trimdon Grange who had been treated in that manner. The owners had shifted 16 of them, but a claim was made for removal allowance from the Union at the rate of 5s. for the first mile and 1s. per mile afterwards.

The meeting held on the 23rd of April had a very full programme of business. The county was called upon to deal with another serious strike at Wearmouth, and the support of the men severely taxed the energies of the Union. A great deal depended upon the result of that contest. The business part of the meeting, apart from Wearmouth, was the appointment of a secretary and extra agents. The points under consideration were the number to be appointed, whether they should be in districts or be centralised, and what should be the salary. The decision was there should be two agents, and the salary 27s. 6d. per week, with house and firing. With respect to the secretary, it was resolved to appoint one—the choice in this, as in the agents, being left to a subsequent meeting.

On the 7th of May a full detailed list of the collieries and members was given, which it may be interesting to set forth.

Name of Colliery	Number of Members	Income for Month		
Trimdon	165½	£8	5	6
Trimdon Grange	64½	3	4	6
Shiney Row	62	3	2	0
Philadelphia	40	2	0	0
Murton	342½	17	4	6
Ludworth	32	0	16	0
South Hetton	90	3	18	0
Whitworth	107	5	7	0
Addison	120	5	12	0
Norwood	33	1	11	0
Evenwood	63	2	1	0
Sildon Lodge	41	2	1	0
Page Bank	28	0	14	0
Black Boy	77	5	3	0
Tudhoe	120	6	0	0
Adelaide	90	4	15	0
Thornley	230	11	10	0
Heworth	70	3	10	0
Seaham	150	4	3	0

Felling	20	1	0	0
Quarrington Hill and Coxhoe	52	2	11	6
Derwent	174	4	7	0

The appointment of agents and secretary was then taken, the following being the result:—

As agents, Mr Munson, Philadelphia; Mr Crawford Bedlington, and Mr J. Richardson; the secretary being A. Cairns, Thornley. Mr Richardson was assigned to North East, Mr Crawford, Central, and Mr Munson, South-West. Each district to have a sub-delegate meeting, Birtley, Thornley and Bishop Auckland being the places of meeting.

Mr Crawford was not long in the county before he began to make himself felt, and let the people know he was around, as the Yankee would say. In *The Durham Chronicle* for the 3rd of June 1870 there is a very striking letter in his best style. Those of us who knew him are well aware what his best meant in 1870. He was writing in defence of Trades Unions—some writers had been speaking about the "terrible tyranny" of these unions. He turned on them, and showed that, "if there were tyranny anywhere, it lay on the side of the employers, and that the workmen were at all times inclined to act in a right and courteous manner. Still, while they so act, they have to be utterly and fiercely condemned, and the employing class applauded and eulogised for acting in a manner diametrically opposite, and about as near an approximation to truth and right, as are the North and South Poles. This seems a most anomalous condition of things, that with one class right should be called wrong, while with an opposite class that which is really wrong should be called right. But I have no hesitation in saying that, if the doings of working men's associations be closely and impartially sought into, it will be found that, instead of any of their members receiving full licence to do as they like, every action is closely watched, and not over-considerately examined, and that, if there be a fault, it often is in the executive power pressing rather too hardly any portion of their fellows who may wish to seek for an amelioration of their wrongs. Let the general public examine both the origin and mode of conducting our trade disputes, and, as a rule, it will be found that, instead of the toiling population deserving their unsparing contumely, the employing class are alone the undivided cause of

these struggles, and the course they generally afterwards pursue ought to call forth the bitterest indignation, and often does beget in the heart of the working men a feeling of dislike and disregard not unmixed with contempt."

At the meeting held on the 4th of June a fourth district was formed. It was called the South-Western, and Mr Patterson was appointed agent to it. As a further consequence of this additional district the Executive Committee was increased from seven to nine, the wages of the agents being fixed at 25s. 6d. and expenses. At this meeting we have the first safeguarding rule against collieries striking illegally:

"That any colliery coming out on strike in an unconstitutional way be not allowed any support from the Central Fund, or have their case considered at the Central Board."

The next delegate meeting was held on the 30th of July. There was an attendance of thirty-two delegates. The only matters needing a place in our history were the appointment of another agent or assistant, and an increase in the wages of the agents. It was decided to appoint "Tommy Ramsey," and his wage to be 28s. per week. The wage of the other agents was fixed at 25s. per week, with 10s. travelling expenses and 5s. per week house rent. These sums to include all expenses within their respective districts.



N. WILKINSON

The first Annual Meeting was held on December 3rd, 1870, in the Market Hotel, Durham, and the proceedings and programme occupy three columns of *The Durham Chronicle*.

The reason arises out of the dual nature of the meeting, it being council and committee. The secretary's report showed that there were 1891 financial

members on the books, and the total worth of the Society was 7s. 1½d. per member. Our purpose will be met if we select the main points, leaving those of a local and temporary character. First, in that general category we have a request for Durham to join the Amalgamated Association of Miners. This was not acceded to, but copies of the rules were written for. Second, the appointment of treasurer and his payment. Mr N. Wilkinson was appointed, and his salary was to be 25s. per quarter (much less than many of our local treasurers receive now). Yet Mr Wilkinson felt proud of the office, and promised to merit their confidence during the year. Third, the question of sending a delegate to the Miners' National Conference, and the business, which was to discuss the Mines Bill. It is very obvious that the county was feeling its way very carefully, and with great regard to economy, for one delegate said it would take one-twelfth of the income to send a representative, independently of the entrance fee. It was finally agreed to send Mr Crawford. Fourth, the question of cumulative voting was brought forward by Murton as follows:—"That each delegate have an additional vote for every 100 members he represented." The proposal, however, was lost by fourteen to eight. Fifth, the appointment of the officers for the year. These were elected as follows:—

Secretary, A. Cairns; Treasurer, N. Wilkinson; President, W. Crawford; Vice-President, W. H. Patterson; the Committee being Mr Munson, T. Mitcheson, M. Thompson, M'Mann, J. Jackson, W. Coulthard, and I. Perks.

A very fitting finish to the year 1870 will be a reference to another letter by Mr Crawford. The object of his attack was the Rev. Mr Blagdon, Newbottle. This gentleman had said he hated and detested unions, and this roused the temper of Crawford, and plainly he talked to him. He reminded the parson of the condition of the miner, and he pointed to the contrast between his conduct and that of Christ.

"But I suppose," said Crawford, "things are changed. Of course, we live in an age of progression, and we ought to leave behind us those old and antiquated practices of practical philanthropy. Christ always spoke the truth too. When He made a promise it was always kept."

Then he asks:

"What wrong are the workmen doing? Our only aim is the establishment of common justice amongst mankind. We have myriads of men, women, and children who but seldom receive an approximate sufficiency of the commonest necessities of life. And it is a self-evident fact that nothing will render human existence so miserable and short as social destitution, bringing, as a matter of consequence, mental pressure or anxiety of mind. Even comparative want is prejudicial to physical health. This brings care and anxiety. They act and react on each other, often doing their deadly work ere men have passed half their allotted threescore years and ten. That these things exist are incontrovertible facts. And does their removal by moral and philosophical means not *in part* pertain to the work which this gentleman has chosen for himself in life? History and observation alike teach that, where a people are socially depressed, moral culture is a most difficult matter, and, where moral cultivation is no easy task, to spiritualise is next to an utter impossibility. So that in reality, when rightly viewed, there is a very near kinship, and ought to be, in working a very close connection between the Union to which the Philadelphia Society belongs and the work in which this reverend gentleman is engaged. Whether or not Mr Blagdon will endorse these sentiments I cannot say; however, be that as it may, when in future he makes a promise let him keep it, and likewise cease to give utterance to such vehement expressions as hating and detesting that about which he seems to understand but little indeed. By pursuing such a course he will in future save himself the merited contempt of his parishioners."

This quotation will serve a twofold purpose: it will give an example of Mr Crawford's vigorous style of writing when roused and at his best, and it will indicate the kind of opposition the young Association was met with at this very delicate and important period of its existence. Those who should have welcomed all effort towards better things should have assisted instead of thwarting and maligning.

The year 1871 found the builders of the Association untiring in their efforts, but still meeting great discouragements. These came mainly from the apathy of the people whom they were trying to help. Like Nehemiah they had their Sanballats, who did their best to prevent the work; but, inspired by the belief in the power of a united people to better their own condition, they

fought and built, making headway but slowly. In the early part of January a Miners' Conference was held in Manchester to consider the Mines Regulation Bill, the Trades Union Bill, the Truck Bill, and kindred subjects. The delegate from Durham was Mr W. Crawford, and the number he represented was 18,000.

Before proceeding further with the account of the building we will place on record the first collective action taken by the young Association. This was in relation to the inundation which happened at Wheatley Hill on Thursday, the 19th of January 1871. The colliery had been in operation about six months; there were thirteen hewers, five putters, and three helpers up, with the necessary deputies and others, at the time it occurred. There were five lives lost, and others had a very narrow escape. There is no need to describe in detail the whole circumstances. It will be sufficient to say that a man named Roberts was in a place which was being driven in the main coal at Thornley for the purpose of tapping some water which was lying on the Thornley side in order that it might be run to the other colliery which lies to the "dip." In addition to those who lost their lives, other two were rescued after being in the mine fifty-four hours.

The Miners' Association was not slow in taking part in the subsequent proceedings, and at the inquest which opened on the 25th at the Colliery Office, Wheatley Hill, by Mr Crofton Maynard (whose able services are still given to inquiries into the sad accidents in the Easington Ward), the Association was represented by Mr W. Crawford. On his application that witnesses should be summoned on behalf of the workmen the Coroner readily consented to an adjournment until Wednesday, the 8th of February. The adjourned inquest was held at Wingate Grange, when Mr A. Cairns, Secretary, and Mr W. Crawford, Agent, were present on behalf of the Association, with Mr Kewney, Solicitor, of North Shields, to watch the proceedings. After a very long and exhaustive inquiry the verdict was "that the deceased were killed on the 19th of January by a burst of water in the Wheatley Hill pit, through the gross negligence of W. Spencer, head viewer, W. Hay, resident viewer, and Thomas Watson, overman; and that the said W. Spencer, W. Hay, and T. Watson did kill and slay the five deceased previously mentioned by neglecting to put in proper bore holes for the safe working of the mine." On that verdict the Coroner committed the accused for trial at the Assizes on a charge of manslaughter.

The trial took place at the March Assizes before Baron Martin. The counsel for the Association were Mr Herschell (afterwards Lord Chancellor) and Mr J. Edge. The writer of this history was in court, and heard the trial, and the able speech made by Mr Herschell, whose object was to show that there had been a violation of the Mines Act of 1860, the fifteenth rule of which was to the effect "that bore holes should be kept in advance, and if necessary on both sides, on approaching places likely to contain a large quantity of water." The Grand Jury had thrown out the Bill, but the case was still proceeded with. It was clear the judge was against the proceedings after the throwing out of the Bill; and eventually the workmen's counsel withdrew the case, because the judge was of the opinion that Roberts (the hewer in whose place the water broke away) should have known as well as the manager how near the water was to them, and because, on the technical point, it was quite clear how the judge would direct the jury. The accused were therefore acquitted. One little piece of funny puzzling of the judge is very vividly remembered. Roberts was not a native of the county, but was doing his best to train himself in the peculiarities of a dialect which, when spoken by a Durham man, is to a stranger difficult to understand, but more so when it comes from a Welsh tongue. At one part of the proceedings the judge asked Roberts what he was doing when the water broke in. The reply was: "Aw hed gotten me jud korved, and the hole marked off, and was gannen back for the drills." With surprise the judge repeated the question, and received the same answer. Perplexed, but not enlightened, a second query was put: "What did you do then?" "Aw run doon the board and up the stenton." Innocently the judge put a supplementary question: "Was it a wide plank you ran along?" thinking the word board meant a piece of timber laid for Roberts to walk on. Upon an explanation being given he confessed that, in the whole of his experience, he had never been so much puzzled before.

In our review of the building of the Association it will not be necessary to mention the work in the county except so far as it relates to the object we are dealing with: the raising and strengthening of the organisation and the changes in policy and procedure. The first Council in 1871 was held on March 25th. The attendance of delegates was moderate, and Mr Crawford, the President of the Association, was called to the chair.

At this meeting we have the first mention of the Yearly Demonstration. It was moved "that the Council take into consideration the desirability of

holding a general meeting of miners in the central district, the expenses of such to be paid from the Central Fund." The time named was shortly after Easter. It was likewise arranged for the agents to live in Durham. Mr Crawford at that time was residing in Sunderland, and Mr Patterson in Bishop Auckland. This, it was felt, interfered very much with the necessary consultation and arranging of work. A series of resolutions was brought forward by Mr Crawford. First, that "minerals be weighed only, seeing that measuring and gauging are sources of endless losses to the hewers." Second, "that miners ought to be allowed to place on the pit bank as checkweighman a man of their own choice, whether such person be one of the workmen or not." Third, the appointment of an additional number of inspectors or sub-inspectors is required—the number of pits in 1869 in the whole country being 3206, and only 12 inspectors, which gave an average of 267 pits each. The following resolution was carried:—

"We believe that to make inspection thoroughly effective, mines ought to be inspected at intervals not exceeding three months."

The fourth resolution was "that no boy should be allowed to work more than ten hours a day." The Murton delegate seconded the resolution, and said: "Miners were often referred to as an ignorant set of men, but if they received more attention than they did in the seed-time of life perhaps better fruit would be received. At present their boys went to work at half-past four in the morning, and did not leave the mine till half-past five in the evening. By the time they got home, washed themselves, and had a little refreshment it was seven o'clock. Certainly night schools were provided for the boys, but he could not see the utility of them, as the minds of the lads after being so many hours in the pit were incapable of receiving instruction. Providing schools under these circumstances for pit lads was like preparing food for persons who had no appetite." That speech is worth quoting and remembering, because it gives us so clearly the condition in that year and shows so graphically the change since then. The young men at least will do well to ponder the lesson. To them it means much, and tells them the benefit they have (in this alone) received from the labours of those men who so unselfishly toiled in the early days.

At this time a question arose which evoked great feeling in the Thornley district in particular, and throughout the county in general. This was the

refusal by Mr Cooper, the manager at Thornley, to bind Mr A. Cairns, the Secretary of the Association, who was checkweighman, and Mr J. Jackson, one of the Executive Committee. At that time, it should be remembered, a man to be a checkweighman must be, and remain, a workman on the colliery, and therefore be "bound" as all other men were. The situation is interesting for two points—first, because it was productive of some very strong letter writing by Mr Crawford in defence of the two men; and second, because it is the first recorded instance of an offer from the men to apply arbitration as a means of settling disputes between employers and workmen under this Association. The offer was contained in a resolution passed at a special Council held in the Market Hotel, Durham, on 8th April. The following is a portion of the resolution:—

"This meeting strongly urges on the Thornley workmen the propriety of offering to submit the whole case to arbitration, the members of the Board chosen to be composed of an equal number from both sides; the arbitrators to elect an umpire whose decision shall be final."

I quote two sentences from one of Mr Crawford's letters:

"The entire transactions both on the part of the masters, and these perfidious hirelings [certain blacklegs] is contemptible in the extreme, clearly showing to working men that where they have not, by combination, the power to protect themselves they will only be endured so long as they are passive slaves in the hands of grasping greediness. Men need to arise, and by an active concentration of organised power frustrate that intolerance so rampant among them, an intolerance diametrically opposed to the spirit of the age, and one that will not hesitate to build its own advancement on the spoliation and desolation, and if necessary the damnation, of myriads of immortal beings."

OUR FIRST GALA

The first in the long series of meetings was held in Wharton's Park, Durham, on Saturday, the 12th of August 1871. For some time prior district meetings had been held in different parts of the county, and great efforts

made to secure a good gathering. In addition, a "sum amounting to £20 was offered in three prizes for a Band Contest, and liberal money prizes for various athletic sports." There was a charge for admission, and it was estimated that between 4000 and 5000 paid for admission. The speakers outside the Association were A. Macdonald, W. Brown, Staffordshire, and John Normansell, Yorkshire. The local speakers were Mr W. H. Patterson, Mr Hendry, Addison Colliery; Mr T. Ramsey, Mr N. Wilkinson, Mr Allens, Mr Young, Addison Colliery; and Mr Ferguson, Edmondsley. The platform was decorated with the Thornley banner, and in the arena was a banner bearing the inscription: "A fair day's wage for a fair day's work." The chairman was Mr W. Crawford. His first words were: "This is the first great Gala Day of the Durham Miner's Mutual Confident Association, and I only pray that it will not be the last." He reminded them that he and his colleagues had only been trying to organise the county. They had met with great difficulties, but they were still alive, and more likely to continue alive than ever. "I can assure you," he said, "that on this, the 12th day of August 1871, the Durham Miners' Association was never in a more healthy position; never more healthy with regard to its feeling and determination to carry on its great work of organising the county; never more healthy with respect to its funds; and never more healthy in reference to the general progressive tendency of its operations, since the first day the Association was established." To quote the speeches would be foreign to the purpose of this history. The speakers were men who did great work in the Trades Union movement in the period with which we are now dealing. William Brown had peculiar methods, partaking more of a religious revivalist. He oftentimes at home opened his meetings with prayer, and had a small collection of songs (entitled melodies and poems), from which he would sing before he commenced to speak (and he was a singer). For some months it was the privilege of the writer to be engaged as a lecturer in the Midlands by the Miners' National Union in 1878, three weeks of which were spent with Brown in North Stafford, and therefore there was a good opportunity of judging. At this first Gala Brown sang two of these songs, and recited the following poem:—

WORKING MEN

"Think what power lies within you,
For what triumphs you are formed;
Think, but not alone of living
Like the horse from day to day;
Think, but not alone of giving
Health for pelf, and soul for pay.
Think, oh! be machines no longer,
Engines made of flesh and blood;
Thought will make you fresher, stronger,
Link you to the great and good;
Thought is a wand of power,
Power to make oppression shrink,
Grasp ye then the precious dower,
Poise it, wield it, work and think."

These men, heroes of the highest order, who inaugurated one of the finest series of labour meetings ever held in this or any other county, who saw the possibilities which lay within us, and who spoke such words of hope, have all passed to the reward which awaits the good and the true who battle for the right in whatever clime or sphere of life. Their spirits still live and move and have being in many to-day, bearing testimony that "the good men do lives after them."

A delegate meeting was held on the 9th of September 1871, Mr Crawford presiding, at which three general matters were transacted. It was decided to retain a solicitor to transact the legal business of the Association and act as adviser. Arrangements were to be made to open a proper banking account, and it was resolved to join the Miners' National Association.

The next delegate meeting of importance was held in the Shakespeare Hall, North Road, Durham. Mr J. Forman was now chairman (although still continuing to live at Roddymoor)—Mr Crawford being appointed secretary, Mr Wilkinson treasurer, and Mr Patterson agent. The matter under discussion was the wage settlement, some dissatisfaction being manifested at the difference between the men underground and those at bank, and a report was made of the first case settled by arbitration. This was at the Lizzie Colliery, the arbitrators being T. Taylor-Smith and Mr W. Crawford.

THE LEADERS

With the Council meeting held on Tuesday, March 26th, 1872, by the election of Mr Forman as president and Mr Crawford as secretary, and the regular meetings with the employers being recognised, we have the Association fully and solidly established. Before we proceed further it will be in natural order if we take a short glance at the men who were at the head of it. There is no need to enlarge upon them; a bare outline will be sufficient. The first in prominence and force was Mr W. Crawford. When appointed he was outside the county, but owing to his having been secretary of the combined counties he was known to the Durham men as an able and forcible Trades Unionist. When the separation between the two counties took place he was engaged as secretary of the Northumberland Association. This post, says Fynes in his history, he filled "with great ability until June 1865, and made himself a great favourite in Northumberland, but he then left the Association in order to take the secretaryship of the Cowpen Co-operative Store at Blyth." Mr Burt was elected to succeed him. In 1870, when Mr Crawford applied for the position of agent in Durham, he was selected from a number of candidates. It was at this time that the writer had the pleasure of making his acquaintance, and had large opportunities of forming an estimate of his ability. Never had any man more force of character or more executive power. His individuality was very large. He had no love for platform work, and the love for that sphere lessened as he grew older; but he had no superior and few equals in his grasp of, and power to find a solution of, the peculiar difficulties and complications which arise in an occupation like the miners. He was a solver of difficulty and a manager of men, and in every way fitted for the post of secretary of a trades organisation. From his appointment to his death he filled it with a skill few men can command.

N. Wilkinson, the first treasurer of the Association, had worked at Trimdon Grange as a fireman. At the date of his appointment he was earning a living by tea selling, having lost his employment on account of his Trades Union principles. His first appointment was temporary, and when elected permanently he was living at Coxhoe. As soon as the Union was fairly started he was made treasurer permanently, and so acted till 1882. As a speaker he was of a blunt, straightforward order. As Othello says: "His was

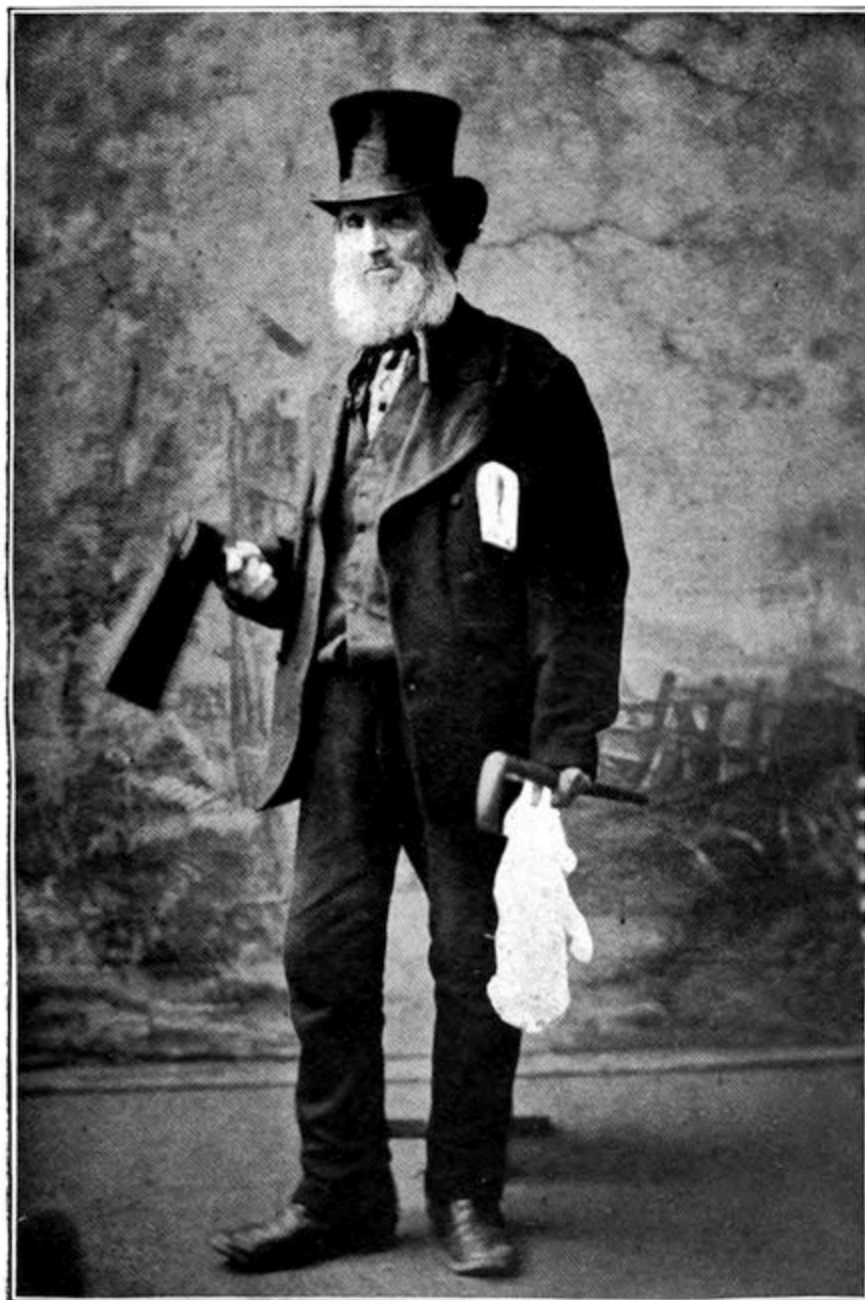
a round unvarnished tale and he told it right on." At the commencement, when announced on the bills it was as "Nicky Wilkinson," and no man could be in the least doubt but that when he spoke to them on the Union and its usefulness it was from the heart. As a man in those stern and trying times he was, as those who were his colleagues would testify, a man upon whom they could depend in any testing circumstances.

Mr J. Forman.—He was the first regular chairman. At the time of his appointment he was checkweighman at Roddymoor, and when spoken of it was as "Forman of Roddymoor." He came from Northumberland to Annfield Plain when a young man. He acted as president of the Association for a time, and followed his occupation as checkweighman; then in 1874 he was appointed a permanent official, and removed to Durham. He continued in that position until his death on the 2nd of September 1900, at the age of seventy-seven. He was an ideal president. It is not saying too much—his superior could not be found. The fact of his appointment to that position indicated the prominent part he took in the formation of the Union. He was more of an adviser than a platform speaker. He preferred a quiet, retiring life in which he could be useful rather than ornamental. Although shunning public notoriety he was no shirker when danger demanded the presence of men, for in all the explosions which happened during the term of his office he was one of the foremost; and almost single-handed he stood out for the dust theory when men of noted scientific knowledge were against him.

W. H. Patterson.—His life's work, from start to finish, was the most conclusive testimony as to the sincerity of his purpose. There were men then, as now, whose motive is the loaves and fishes, willing to gather where they strew not and reap where they have not sown; but Patterson was not one of these. From the time when, but a mere boy living at Windy Nook, he threw himself into the work, with earnestness and energy, until his death, when a comparatively young man, he devoted himself and the best he could give to the establishment of and care for the Union. When it prospered no man was more cheerful, and when dark times came upon it his sorrow was genuine and large. He was not a Crawford (few were), yet for persistent plodding he was equal to any. With youthful buoyancy, and a heart full of desire and determination, he was the very man for the position in which he was placed. It would have been a useful addition to our own literature if he had placed on record the hardships he, with "Tommy Ramsey" endured in

1870-72. They lodged many a time in a room the walls of which were the horizon and the lamps the stars above them. Money was not plentiful, and it was not every person who dared to take an agitator in to lodge. It was in many quarters considered a crime almost deserving of capital punishment.

"*Tommy Ramsey*."—What can be said of "Tommy"? He was a most perfect type of an old school miner, and a sound Trades Unionist, one of the heroes of '44. There are numbers of men in the county who will remember the rugged old warrior in the noble cause, just as the picture hanging in the Hall describes him—a rough but true diamond of the first water. With bills under his arm and crake in hand he went from row to row announcing the meetings and urging the men to attend. His words were few, but forcible; not polished, but very pointed—and they went home. Like Longfellow's arrow shot in the air, they found a resting-place. He had one speech, the peroration of which was something like the following:—"Lads, unite and better your condition. When eggs are scarce, eggs are dear; when men are scarce, men are dear." It was impossible to miss the meaning in those words. Their simplicity was their greatest eloquence. His work was far from pleasant or safe. The writer of this was witness of a brutal attack on the old man by a bully who would disgrace any place in which he lived. This antipodes of a man, to curry favour with the manager, and to please those who bought him body and what soul he had, ill used Ramsey, and burnt his crake. At the subsequent meeting Crawford was wild in his denunciations. The words still ring in my ears. Brave old "Tommy" cared not; he got a new crake, and turned it with more emphasis. Grand old Ramsey, you are right now; if not, many of us have a poor chance. You in your way, in accordance with your ability, tried to open the prison doors to those who were bound, and to stir up a love of freedom in the breast of those who were in willing slavery.



T. RAMSEY

THE OPPOSITION TO THE BUILDING

This was fourfold, and it may be interesting to look at these *seriatim*. The first was not in the least unexpected. At that time Capital and Labour were looked upon as being natural enemies, and all their relations were on that principle. We see now how foolish is that idea. Then conflict and doubt

formed the atmosphere which surrounded the two great parties in the industrial world. If men having common interest joined themselves, in order that they might act for the common welfare, the leaders were to be dealt with harshly, and if necessary banished. It was no infrequent occurrence, when the spirit of Union was abroad, for men to be driven away from localities they loved and from associations endeared by years of enjoyment. This was done with the view that terror might be struck into the hearts of others. The principle was: Drive away the shepherd and the sheep will flee. So much was that spirit abroad that in many places the establishment of the Permanent Relief Fund was treated coldly, obstacles thrown in its way, if not bitterly opposed, because it was regarded as the thin edge of the Union wedge. What more natural than for fierce opposition to rear itself, with threats for the braver spirits, and bribes and allurements for those whose nature was susceptible to such influences? Ale-houses were used as a means for preventing Unionism taking root and spreading. The sorrow of it is there have always been spirits who are ready to act meanly when required.

This opposition was, therefore, to meet and bear down and convince that a trades organisation was not an institution prone to evil, and set up for no other purpose. The men who are alive to-day, and who took part in that opposition, would, we may assert with confidence, confess their mistake if they were interviewed on the subject.



J. H. VEITCH.

Then the law was against the Trades Unionists. We complain now, but they had more reason in those days. We must lift ourselves into the condition of things prior to the 1875 Act, which did a great deal towards equalising the positions of the employer and employed. The Master and Servants Act, with all its one-sided applications, was in force. For a long time an agitation was carried on for its repeal, but after twenty years the only result was the

appointment of a select committee to inquire into the operation of the law. The law was very unequal. It had been framed on the principle that the workman alone was inclined to do wrong, and therefore wanted hedging in and punishing. In the year 1865 there were 1100 arrests under the Act in the country. Eight hundred of the accused were sent to prison. An Amending Act was passed in 1867, but between that time and 1875, 774 were convicted. "The state of the law was simply infamous. Its provisions made it a criminal act if a workman broke a contract, even under the most justifiable circumstances. He was arrested by warrant, and if the breach of contract was proved the magistrate was bound to inflict the punishment of imprisonment with hard labour. If, on the other hand, the employer broke the contract, ever so flagrantly, he could only be summoned by a civil process, and his punishment was simply a fine."

Then they were hindered by a system of boycotting before the word became proverbial. It was not merely difficult, but impossible in some places to get a meeting-place. The writer knows of one colliery where a place could not be got. Even the co-operative hall was closed against the Union, and the Union money had to be taken in the corner of a field. Beyond this, in Durham the printers refused to do the Union printing—all except Mr J. H. Veitch, who dared almost social ostracism and took the work, and the connection then formed has continued up till now. The refusal arose from two reasons—first, there was a fear that the Union would not be able to pay for the printing; and second, Trades Unions were in bad odour in the county generally, and none the less in Durham. There was none of the respectability about the institutions there is now, and little hope of them. Broadheadism at Sheffield, with its destructive policy, had filled men's minds with fear. The form of reasoning was: "Trades Unions are guilty of these evil things; this is a Trades Union, therefore it will be guilty of doing evil." Just as logical as if a man had said: "Murder is committed in England; these people are English, therefore they will commit murder." Mr J. H. Veitch (all honour to him) had none of those fears, nor that false logic. He took the work when social ostracism was in the air. We cannot forget the act nor the man.

Another great obstacle against which they had to contend was a host of anonymous writers, who wrote behind a variety of *nom de plumes*—such as "Geordie Close," which covered W. P. Shield, and "Jacky Close," but none

under their own names. These writers used the most scurrilous and slanderous language about, and attributed the vilest motives to the men who were at the head of the movement. The situation was a complete analogue to that when Nehemiah commenced to build the walls of Jerusalem. Sanballat and Tobiah and Geshem laughed him to scorn, and despised him, and said: "What is this thing that ye do; will ye rebel against the king?" But as those sneerers in the far-off Jewish times had no effect on the builders of that day, so in those days the founders of our Association, the builders of our broken walls, heeded not those snarlers of thirty-six years ago, and the result is an all-round benefit.

The greatest of all the species of opposition they had to meet arose from the apathy and indifference of the people. Although the condition was bad in the extreme, yet often the earnest spirits and others scattered about the county had to ask each other, in the query of the prophet: "Who hath believed our report?" The state of apathy was quite natural. It was not because there was no real love of Union; it was the outcome of repeated failures. "Hope deferred maketh the heart sick." There had been spasmodic attempts at associated effort. The result was a feeling of hopelessness. Like men of whom we read in waterlogged ships or analogous situations on land, having tried oft to save themselves, they give up in despair, and say "Kismet," like an Eastern fatalist. The hold this feeling had on the mind is seen in the small results for a considerable time after the Association commenced. A thousand or two was their whole membership, their council was their committee as well, and the numbers so small that a room in an ordinary hotel could with ease contain them. At their meetings, sparse in attendance, they were often insulted and sometimes maltreated by the men they had come to help.

In this alone there was sufficient to deter them, and to lead men of talent and energy (such as they were) to turn themselves to other objects in life; but they loved their class, and, while they had aspirations for better conditions, they desired to raise their fellows with themselves. Any one of them could have made a position in other directions if their aims had been selfish; but they were men of different mould, and they were inspired by the love of the cause, and confident in its ultimate success if once they could clear away the dark pessimism which had fixed itself in the minds of the workmen. For this they endured the hardship and faced the opposition, until

finally men saw the solidity and permanency of their work, with the result that the institution they founded occupies a rightly deserved foremost place among Trades Unions.

1872

The Coal Owners' Association—The Abolition of the Bond—First general Advance—Formation of the Joint Committee—First Gala—Mines Regulation Act—Second Advance

The Coal Owners' Association.—One of the results of the formation of the organisation was the commencement of the Durham Coal Owners' Association. There had been an association under the name of "The North of England United Coal Trade Association," but its functions were vastly different from those of the present organisation. Then the sphere of operations was parliamentary and legal, but the new body was formed for trade purposes. The first meeting to consider such a step was held on February 1st, 1872. There was an adjournment for a fortnight, when a set of rules was submitted setting forth the conditions of membership, contributions, the assistance to be rendered, and the appointment of officers. The chairman and vice-chairman were respectively Hugh Taylor and W. Stobart, and the secretary was T. W. Bunning. No sooner was the Association formed than communications were opened with the Miners' Association, as the following letter will show:—

Neville Hall, Coal Trade Office,
Newcastle-on-Tyne, *Feb. 5th, 1872.*

Mr Crawford, my dear Sir,—I am directed to inform you that, at a large meeting of the representatives of the household coal collieries, held here last Saturday, it was resolved—

That it is considered desirable that a meeting should be held between the coal owners and a deputation of the representatives of the workmen, at one o'clock on Saturday, the 17th instant, at the Coal Trade Office, to discuss the various questions now in agitation by the workmen, with a view to their adjustment, and that a copy of this resolution be forwarded to Mr Crawford.

Will you be as kind as to acknowledge the receipt of this letter, and let me have the names of the deputation who will attend.

I beg to remain, dear Sir, very respectfully yours,

THEO. WOOD BUNNING.



(Back Row).—N. WILKINSON. W. H. PATTERSON. M. THOMPSON. T. RAMSEY. G. JACKSON. J. FORMAN.
(*Treasurer.*) (*Vice-President.*)
(Front Row).—W. ASKEW. W. CRAWFORD. J. HANDY. T. MITCHESON.
(*President and Secretary.*)

The First Deputation from the Durham Miners' Association to the Coal Trade Office,
Newcastle-upon-Tyne, February 17, 1872

There were about a score of representatives of the employers present during the meeting, while ten delegates, representing 20,000 workmen, took part in the conference on the latter's behalf.

Mr Hugh Taylor occupied the chair, and the delegates were introduced by Mr Crawford. The first question for discussion by the conference was then brought forward—viz. the yearly bindings.

At the outset the employers intimated that they were perfectly willing to abolish the bond, and establish in its place either monthly or fortnightly agreements, giving preference to the former. The workmen's delegates at

once intimated their readiness to abolish the yearly bond, and thanked the masters most kindly for the manner in which they had met them on that question. The men proposed in the place of the yearly bond to establish a fortnightly agreement, and it was ultimately decided to discuss the terms of the agreement at a second meeting to be held shortly.

The next matter was the question of the hours of boy labour, but after a short conversation it was also agreed to allow this question to stand over until the second meeting. The next question was with reference to an advance of wages. On this point the owners admitted that the men ought to share the present prosperous condition of the trade, the only difference of opinion that arose being what that share ought to be. The employers were of opinion that they and the men ought to meet as two associations—the combined masters on the one side and the combined workmen on the other—and discuss the question as to what would be fair to both parties. It was suggested at the same time that any advance asked or conceded should be based on prices in force at bound and unbound collieries of the county of Durham in April 1871. On the part of the employers it was pointed out that a great many collieries had at the present time presented petitions for an advance of wages, and in some cases they had intimated their decision of laying the pits idle in case their demands were not conceded, and it was now suggested that the delegates from the workmen present should do their utmost to get the petitions placed in abeyance until the next conference was held. This was readily agreed to, and the meeting then terminated.

It is satisfactory to note that during the continuance of the conference a most pleasant and amicable feeling prevailed on both sides.

The Association being formed and officered preparation was made for the removal of grievances. The first to which attention was turned was the abolition of the "Yearly Bond." For a long time there had been a protest against the system of partial slavery implied in a contract covering a year. The system was as follows:—On a Saturday near the 20th of March the whole of the workmen were called to the colliery office, and there the manager would read over (nearly always in tones inaudible to all except those who were close to him) the conditions of labour for the next twelve months. There was usually a balancing of the prices. As an inducement to the men there was, say, a sovereign given to the first man bound, ten

shillings to the second, five shillings to the third, and then two shillings and sixpence to every man after. The crush to secure the first place was generally so great that the manager was fortunate if he were not carried off his feet. As a preparation for this rush certain men would be bribed to incite, and thus induce men to act in an unthinking manner.

This bare outline will suffice to show the evil of the "Bond," and that it was a wise step on the part of the newly-formed organisation to attempt to substitute a shorter term of contract. The first meeting for that purpose between the employers and workmen was held on February 17th, 1872. As this was the first united meeting in a series which has been for the benefit of all concerned it will be interesting to place on record the letter from the employers inviting the representatives of the Miners' Association to meet them. Of course, the employers were made aware of the desire amongst the people for this and other reforms, and that knowledge induced them to arrange matters amicably if possible. Another thing was in favour of the workmen: not only was their Union gathering strength, but the state of trade was in their favour. One result of the war between France and Prussia was to increase the demand for British coal, the result being a coal famine and excessive prices. The old pit heaps even were sent away, and a common saying at the time was: "Anything black was sold for coal." A conflict, therefore, would have been a dangerous and destructive thing.

(First General Advance)

**IMPORTANT CONFERENCE OF COLLIERY OWNERS
AND MINERS' AGENTS IN NEWCASTLE**

(Durham Chronicle Account)

Agreeably to an arrangement made at the conference between the colliery owners and the miners' delegates held on the 17th inst. an adjourned meeting between the two bodies took place on Saturday at the Wood Memorial Hall, Newcastle. There was a large attendance of the masters, Mr Hugh Taylor, Chipchase, being in the chair. Mr W. Crawford, President of the Durham Miners' Mutual Confident Association, acted as principal spokesman for the miners' delegates, who were eight in number.

It will be remembered that at the last meeting the masters agreed to the abolition of the yearly bond, and the first question, therefore, taken into consideration at the present conference, was the nature of the future agreement between the masters and the men. On the one hand, the employers suggested monthly notices on both sides; but the men on the other hand were unanimous in the request for a fortnightly notice, with the option of either giving or receiving the same on any day except Sunday. After some discussion, the masters acceded to the wishes of the men on this point. The next question taken into consideration was the advance in pay demanded by the men.

A proposition for an increase of 35 per cent. on all prices paid in April last was submitted by the delegates, who, in answer to questions by the owners, admitted that the advance requested appeared to be a large one, but they urged that it was made in consequence of the low rate of remuneration received by the miners of the county at the time referred to.

To this advance the owners objected on the ground that it was excessive.

They also urged that for several years past coal had been low in the market, and the working of pits had been unremunerative, and submitted that it was unfair on the part of the workmen, when a slightly better price had been obtained, to make an exorbitant demand. They also pointed out that the advance asked for was greatly in excess of that obtained by the miners in other parts of the country. To this argument the delegates replied that they were of opinion that the advance asked for was not greater than the excessive profits of the masters would allow to pay; in fact they only wanted a reasonable ratio of the profits made by their labour, and they were also of opinion that the 35 per cent. advance would not place the miners of the county of Durham on an equality with the workmen of other counties. After some further discussion, the delegates intimated that they would be satisfied, if the owners did not feel disposed to give the increase asked for, with the average score price paid in Northumberland and South Yorkshire. They were willing, if the masters would divide the two last mentioned counties into four quarters each, and would select,

according to arrangement, two collieries from each of the eight quarters, to accept the averages of the prices paid at the sixteen collieries as the standard scale in the county of Durham. The owners, after hearing this proposition, asked the deputation if the average would be accepted by the men at those collieries in the county who were at present working for only 5 per cent. less than the proposed standard. The delegates replied that every such colliery would accept the average if the masters would give it to the men of those collieries who were at present working for 50 per cent. less than the average named.

After some further discussion the delegates retired. On being called back into the room they were informed by the chairman that the owners did not think it was desirable to go to either Northumberland or South Yorkshire for an average, as they were of opinion that they were quite competent to manage their own affairs; and that they had agreed, in a spirit of conciliation, to offer an advance of 20 per cent. on all prices over and above all consideration money paid on April last.

The deputation stated that they had no authority to accept the offer of the owners, but they would in due course communicate it to the general body of the men. The conference shortly afterwards broke up.

The day fixed for a meeting on this question was the 2nd of March. In the meantime a special Council meeting was held in the Town Hall, Durham, Mr W. Crawford, as President, occupying the chair. There were present 160 delegates, and the members represented were about 20,000. The business was the discussion of the matters to come before the employers and the appointment of a deputation to attend the meeting.

The adjourned conference was held on Thursday, March 21st, and for the purpose of giving a proper knowledge I herewith record the press report from *The Durham Chronicle*.

CONFERENCE BETWEEN DURHAM COAL OWNERS AND WORKMEN

Another conference between the Durham coal owners and a deputation of the workmen of the county took place on Thursday sennight in the Wood Memorial Hall, Newcastle. The chair was occupied by Mr J. B.

Simpson, Low Hedgefield, and there was a good attendance of the representatives of the owners, the deputation being, as at previous meetings, headed by Mr W. Crawford. Before proceeding to the disposal of the questions for which the conference had been convened, it was intimated to the deputation that Haswell Colliery was idle. It was explained that the workmen at that colliery had received an advance of 6d. per score on last April's prices in November last, and they now wanted an advance of 20 per cent. on that concession. A telegram was also produced which intimated that a strike on the same ground had occurred that morning at Castle Eden Colliery. The course adopted by these two collieries was utterly opposed to the arrangement which had been made between the two Associations of employers and workmen at their conference, and the representatives of the former body intimated that if such constant violations of the arrangements arrived at at these interviews were to continue, it would be better to break off all negotiations at once, and each side follow its own policy. The members of the deputation expressed their utter surprise and utter ignorance of the events that had occurred at the collieries named, the first intimation of which they had received was at that meeting, and they desired to be allowed a private consultation before they proceeded further. After a short consultation in private, the deputation drew up the following telegram, the substance of which they communicated to the employers:—

We regret to hear that Haswell and Castle Eden Collieries are idle.

You must know that you are wrong, and we strongly advise you to commence work to-morrow, otherwise steps will be taken to repudiate such reprehensible conduct, and if necessary the strongest action will be taken in the matter.

This was deemed satisfactory, and the conference then proceeded to the business which had drawn them together—viz. the remuneration of the offhanded men and boys. The employers stated that they had agreed to give all offhanded men and boys who work underground 20 per cent. advance on last April's prices, the same as they had conceded to the hewers. To the men who work above ground—viz. to the cinder drawers, joiners, blacksmiths, firemen, screenmen, and banksmen, and

all other men and boys, with the exception of the enginemen and a few rare cases of cinder drawers—they offered an advance of 12½ per cent. on last April's prices.

The deputation, while expressing their perfect satisfaction with the underground men and boys' advance, suggested the propriety of the same advance being extended to all those men, as enumerated, who work above bank. On the part of the employers, however, it was stated that the reason only 12½ per cent. was offered to the above-bank men was that a reduction of 8 per cent. in their working hours had been conceded; and further that their work was not of so risky and dangerous a nature as that of the underground men, and also that there was always a superabundance of men willing to work on the screens, and to do other work above bank. After a conversation, the terms offered by the employers for both descriptions of men were accepted.

The report of the interview was given to a delegate meeting, Mr Crawford again presiding. The number of delegates was very large. The points under discussion were the two offers contained in the report above. It was agreed that the offer of the owners should be accepted, with the understanding that it come into operation at once.

This was the whole of the important business discussed.

It will serve no useful purpose to deal with every local strike, they are incidental to the main course. Mention will only be made when any incident cognate to the general purpose be connected with them. With that idea in view I refer to the strike at Seaham. This strike commenced on Monday, 17th May. The main causes of the stoppage were the length of the hours of the hewers and the time when the shifts should be worked. The hours of the putters had been reduced from twelve to ten, the pit at the time being a single or day shift. With the reduction of the hours the employers wanted to arrange for two shifts of putters and three shifts of hewers. Against this the workmen not only protested, but stopped work without notice. Two things are noticeable, and of interest to us. We have the first breach of discipline, and the first instance of censure of the general officials, because, in accordance with the obligations of their office, they enforced the rules of the Association, and candidly and clearly told the men their opinion.

The cause of complaint with reference to Mr Crawford and the officials of the Union, was a telegram sent to the lodge, which, with slight verbal variation, has formed the model of all sent since under the same circumstances. It read as follows:—"Do go to work. You must know you are wrong. You will get no support. Liable to punishment. Do return." For sending that message Mr Crawford was subject to some very scurrilous remarks at the meetings which were held in connection with the strike. These remarks called forth a public reply. In the press of that day is found a letter which contains an unflinching and manly statement of the facts of the case: the cause of the strike, the illegal position of the men, and an extenuation of the action of himself and his colleagues. I quote the concluding words. After pointing out how expeditious the agents had been in their attendance to the matter in dispute, how they (the men) were striking against their own agreement, how he had been vilified, and how his views were still unchanged, he wrote:

The report of yesterday's proceedings at Seaham Colliery has not changed my views on this matter. I repeat it, the men are in the wrong, and even liable to punishment. A miner characterised the telegram as an insult to the men at that colliery. Of this I have not the slightest doubt. I have recently been accused of both insults and incivility; and why? Because, as in the case of Seaham, my opinion has been asked, or advice sought, and where such opinion or advice has been adverse to their own preconceived ideas of right or wrong, and they have been told so decisively but courteously, then I became uncivil! These are the men who can prate about liberty of speech and freedom of action, and yet, because they are supposed to subscribe their mite towards a person's maintenance,—every penny of which is doubly worked for,—would only allow his tongue to utter words in accordance with their own crude and contracted views, even though such words were a mere utterance of the most glaring untruths, and a flagrant violation of all the rules now in operation as between masters and servants in their respective relations to each other. I willingly admit that these are but a small minority among the 30,000 members now composing our Association. From the men I have received the utmost consideration, demonstrating by their conduct, that they will give to those whom they employ that treatment which they would like to receive from those by

whom they themselves are employed. I commenced my present agency amongst the miners of Durham on May 16th, 1870. From then, till now, I have done my utmost to protect and further their interests in a fair and equitable manner. Where I have deemed the doings of owners or agents to be wrong, I have not been slow to condemn them, and what I have done will do again; and where I have found the workmen to be wrong, I have pursued the same course, unhesitatingly making known my views without the slightest hesitation. If any man or number of men are mean and cowardly enough to think that I shall sit and become a mere machine of repetition, I beg to clearly intimate that they are sadly mistaken. I shall retain my individuality intact, holding myself free to unreservedly express my opinion of all matters which in any way may effect the welfare of our Association, being always willing to retrace my steps, if shown wherein I am wrong; but holding on, amid the folly of fools and the abuse of knaves, if convinced that I am right. And in conclusion, allow me to say that, if such doings are not in keeping with those of the men, the sooner I am replaced the better.

A Council meeting was held on the 25th of May in the Town Hall, Durham. The only thing of note was a proposition for the establishment of an institution for the benefit of old men. Nothing definite was done in the matter. After discussing it the Council decided to refer the matter to the Executive Committee, with instructions to draw up a plan or plans to be submitted to the county for acceptance or rejection. In this we have the germ which eventually developed, through the Permanent Relief Fund, into the Superannuation Fund, which has been such a blessing to hundreds of aged miners in the northern counties.

On Saturday, June 1st, an important conference was held between the coal owners and a deputation of representatives of the Association. The deputation consisted of J. Forman (President), W. Crawford (Secretary), W. H. Patterson (Agent), N. Wilkinson (Treasurer), T. Mitcheson, Coundon, M. Thompson, Murton, G. Jackson, and H. Davison, Thornley. The first question was the dispute at Seaham and the night shift in general. There was a long discussion, and eventually the employers promised not to commence any more night-shift pits unless it were a case of absolute necessity. The conference next turned its attention to the first rank for pony putters. The

proposal of the men was that the distance should be 100 yards. It will be as well to say here that afterwards the distance was fixed at that number of yards.

The next subject was as to how many tubs should constitute a score. There was no uniformity in the county. Although twenty of anything is generally reckoned a score, yet at some collieries it was as high as twenty-five. The object was to reduce it to twenty, and the deputation was willing to rearrange the prices wherever the number was reduced. The owners thought it unwise to alter the arrangements, and suggested an adjournment, which was agreed to.

The last question was the arrangement of a uniform time for the foreshift men to go down. The custom varied; at some places it was as early as one or two in the morning. The hour named by the representatives of the workmen was from four o'clock. The employers had no very strong objection, except that of interfering with other classes of labour—such as cokemen, waiters-on, and others who would have to commence later, and therefore be later at work. The deputation replied by instancing the Peases firm, where the system had been introduced and was working satisfactorily. The employers asked for time to consult the trade, and promised to inform the coal trade how emphatic the workmen were in their desire for the change.

THE FIRST GALA ON THE RACE-COURSE, DURHAM

Beyond this gala, which may be truly classed as the first, there will not be any need to mention the yearly gatherings in this history. Its importance compels notice. Important it was, for two reasons—first, its place in the series; and second, because of the public feeling, and in many quarters fear, which was felt as to the consequence of bringing such a large number of the miners and massing them in the city. As showing the state of feeling I will insert a portion of an article which appeared in *The Durham Chronicle* for Friday, June 14th, 1872.

The coming demonstration has occasioned not a few timid residents much uneasiness during the past few days, on account, as they imagine, of the extreme likelihood of the affair resulting in a scene of

riot and disorder, and two or three nervous females in business in the town have so far given way to their fears that they have actually consulted their friends as to the propriety of closing their shops in order to protect their persons and property from "those horrid pitmen!" Even the borough magistrates, too, seem to have had an idea that the dog-fighting and pitch-and-toss portion of the mining community was going to be introduced into the city by the approaching gathering, for they declined when first requested to grant the usual licences to the proprietors of the refreshment booths. A full meeting of the borough magistrates was, however, subsequently held, and the Bench after hearing a statement from Mr Crawford, the principal agent of the Durham Miners' Association, relative to the object of the miners in assembling together agreed to issue the required certificates. For our own part, we have not the slightest doubt of the proceedings being characterised by anything but the best of feeling and order on the part of the men taking part in the demonstration, which we are sure is intended to partake more of the character of a monster "outing" of a class of men whose only desire is to discuss amongst themselves the best means of improving, in a rational and legal manner, their condition, rather than an assemblage of either political or social conspirators and agitators. Almost the worst contingency, however, has been anticipated, as there will be a force of 40 policemen on the ground, the expense of the attendance of 20 of whom will be borne by the Miners' Association, whilst the remuneration of the remaining 20 will be defrayed from the funds of the borough watch rate.

In addition to this, many tradesmen barricaded their shop windows, and an urgent request was made to the Mayor to have soldiers in readiness. Mr J. Fowler stood in defence. His reply was characteristic, but correct: "I know the pitmen better than you, and there is no fear." He was borne out by the proceedings, which were in the highest degree satisfactory. The first part of the procession came in at 7.30 A.M., and from first to last the most complete good order obtained. There were in all 180 collieries present—the membership of the Association being 32,000. The speakers were A. M'Donald, then President of the National Association of Miners; W. Brown, Stafford; and T. Burt, Northumberland. The local speakers were W. Crawford, W. H. Patterson, H. Davison (Thornley), N. Wilkinson, T.

Mitcheson, G. ("General") Jackson, T. Ramsey, and W. Askew. The following resolutions were submitted:—

1. The change which during the past twelve months has taken place in the position of the Durham Miners' Association, both numerically and financially, ought to be encouraging to all who take an interest in its welfare. During that period differences, as in other places, have arisen; but, so far, they have been managed without a single pit having been stopped, or the loss of any work whatever. This is a condition of things which, taken all together, ought to give the utmost satisfaction to all parties concerned.
2. This meeting begs to utter its indignant protest against the action of the Select Committee in the way they have amended the Payment of Wages Bill. It at the same time most earnestly calls upon Government to restore it to its original form by amendment whilst it is under the consideration of the committee of the whole House. It further begs to state that no measure will be satisfactory to the miners of the county of Durham that does not contain payment of wages weekly without any reduction whatever.
3. That this meeting also has learnt with surprise that it has been stated that the miners of Durham do not want weekly payment of their wages, and that they are not aggrieved with the present reduction. They beg to give the statement, by whomsoever made, an unqualified denial.
4. This meeting likewise looks upon the Criminal Law Amendment Act of 1871 as an insult to the working classes of this country. It at the same time pledges itself to every legal means to have the law repealed or so modified as that all classes in the country will be alike in the eye of the law.
5. That this meeting regards arbitration as a logical way of settling those differences which in trade necessarily arise between employers and employed. Arbitration recognises the right of both parties to put forth views, and leads to examination or investigation, which tends to avoid strikes and lockouts, with all their commercial ruin and social misery. It has now for a short time been in operation amongst the miners of Durham, and we are able to speak to beneficial results; and

we most heartily wish to have a continuance and extension of the principle.

6. That a copy of the foregoing resolutions be sent to the Prime Minister and Home Secretary.

With this all too brief reference we must leave this, our first race-course gathering. If anyone be desirous of reading a very full description of the collieries attending, with their numbers on the books, the banners with their inscriptions and designs, and the speeches, let him refer to *The Durham Chronicle* for June 21st of that year. Suffice it here to say that the day was all that could be desired. The old city was enlivened and its trade enhanced. The great crowd came and went in good order. The fears of the fearful were shown to be groundless, and the good behaviour initiated that day, amid the firing of the cannons in Wharton Park, has never varied up to the last of this series of gatherings. The cannons were fired at the expense of T. Ramsey.

THE SECOND ADVANCE IN WAGES

On Friday, the 12th of July 1872, a meeting took place between the employers' and workmen's representatives. The meeting was arranged in response to a request for an advance of fifteen per cent. on the rate of wages. Mr H. Taylor occupied the chair. The deputation was headed by Mr W. Crawford. At the outset of the meeting the owners complained that the men were neglecting work to a very great extent, causing a diminution in the output of not less than twenty per cent. as compared with the previous twelve months. Statistics showed that the average working time of the hewers was not more than eight days per fortnight. That entailed heavy loss on the owners, and while such neglect of work continued they could not grant the advance asked for, and they suggested the propriety of having a clause inserted in all agreements, that the men should be compelled to work at least thirty-five hours per week before claiming the highest price paid at the colliery. That meant the system of bonus money paid at many collieries, and the deputation emphatically refused it, and said they were not asking because of the state of trade only, but because of the very low condition of their wages which had obtained in Durham for so long, and which they

hoped to raise, even if trade became depressed. The deputation was asked to retire, and on their return were handed the following resolution:—

The Association [Owners'] has decided to give 10 per cent. advance to all underground workmen, including banking-out men; but excepting pony putters, who are to be dealt with after the putting question has been settled in Northumberland; and 7½ per cent. to the whole of the above-ground labour; enginemen, both above and below ground, to be excepted. This advance to be on present prices, and to date from the pay commencing nearest the first day of August.

This offer was brought before a special Council meeting held on Saturday, the 13th, Mr John Forman presiding. The report of the meeting with the employers was given by Mr Crawford, who went very fully into the reasons why the advance of fifteen per cent. was claimed. The Council adopted the following series of resolutions:—

1. That in the opinion of this meeting we are more than justified in asking the 15 per cent. on present prices, which is being sought by our Association. There never was a time when the price of coals approximated to what they are at the present time, and in justice we believe that we ought to fully share in that increase and increasing prosperity. On the 8th day of the present month the following are quotations from the London Coal Market:—Kelloe, 26s. 3d.; South Hetton and Lambton, 27s.; and Hetton, 27s. 6d.

Having seen coals sold in the same market for as little as 13s. per ton, or more than cent. per cent. less than now, we certainly conclude that we are more than justified in seeking 6d. or even 1s. out of 14s. or 15s. This being so, we abide by the 15 per cent. now being asked for all classes of workmen, above and below ground.

2. That the owners be requested to meet our deputation on Friday next for the purpose of reconsidering the 15 per cent. advance, or if possible on a more early day.

3. That this meeting deplores the oft-repeated statement of coal owners and others relative to the amount of work at present lost by the miners in the county of Durham. We cannot with our present knowledge admit

the accuracy of these statements, but believe, on the contrary, that such statements are very greatly overdrawn, and thus an entire false impression is being conveyed to the public mind, and a positive injury done to a large body of men. We have again and again declared that in our opinion men ought to attend their work as regularly as possible, believing that to do so is for the benefit of themselves as well as the employers, and we again urge our members to be as regular as possible in their attendance at work, so as alike to benefit themselves and deprive all parties from so maligning them.

The adjourned meeting with the owners took place on Friday, July 19th, when Mr H. Taylor again occupied the chair. The owners repeated their complaint about the loss of work, and asked whether the deputation were willing to give any guarantee that the men would in future work more regularly. They could not give such a guarantee, but said their Council meeting had agreed to recommend the men to work as regularly as possible. With this assurance the owners then handed the following resolution to the deputation:—

We have decided to give 15 per cent. advance to all underground workmen—including banking-out men—except pony putters (who are to be dealt with after the putting question has been settled in Northumberland), and 10 per cent. to the whole of the above-ground workmen, enginemen (both above and below) excepted. This advance to be on present prices, and to date from pays commencing nearest to Monday the 22nd and Monday the 29th of July.

The deputation were not satisfied with the reservation as to the putters, and after some further discussion it was agreed to make the advance applicable to them as to the other underground workmen.

FORMATION OF JOINT COMMITTEE

It will be interesting to give this important step in detail. It was first mentioned in connection with certain meetings which were held mainly on the wages question or the abolition of the yearly bond. While discussing these matters Mr Crawford, on behalf of the deputation, mentioned the

advisability of forming a committee of six on either side to consider local disputes and changes in wages. The first formal action taken by the employers was on July 12th, 1872, when the following resolution was adopted at their meeting:—

JOINT COMMITTEE.—Mr Crawford was also informed that on the motion of Mr Lindsay Wood, seconded by Mr Hunter, a Committee consisting of the following gentlemen:—Hugh Taylor, W. Stobart, W. Hunter, C. Berkley, R. F. Matthews and Lindsay Wood had been appointed to meet a Committee from the Miners' Union, to draw up rules for guiding the Association in receiving demands from the workmen.

It was arranged with Mr Crawford, that the Committee from the Miners' Union should meet the above-formed Committee at 10.30 on Friday, the 19th inst.

The suggested meeting was held on 19th July, when the following recommendation was agreed to:—

JOINT COMMITTEE.—It was agreed to recommend—That six members of each Association should meet every fortnight and discuss all demands except cases of consideration in temporary bad places, the consideration to be given in such places to be settled from fortnight to fortnight by the agents of the collieries affected. All demands to come through Mr Crawford, who is to give the agents of the colliery and the Secretary of this Association, at least three clear days' notice of the nature of the demands that it is intended to prefer at the next meeting.

As a result of this recommendation a meeting was held on the 2nd of August, and the first code of rules was arranged. The names of the parties at the meeting are in the following list:—

<i>Owners</i>	<i>Workmen</i>
Hugh Taylor.	W. Crawford.
W. Stobart.	W. H. Patterson.
Lindsay Wood.	N. Wilkinson.
John Taylor.	J. Jackson.
J. B. Simpson.	J. Forman.

C. Berkley. T. Mitcheson.
P. Cooper.
W. Hunter.
R. F. Matthews.
T. T. Smith.

R. B. Sanderson occupied the chair. The following rules were agreed to:—

The object of the Committee shall be to arbitrate, appoint arbitrators, or otherwise settle all questions (except such as may be termed county questions or questions affecting the general trade) relating to matters of wages, practices or working, or any other subject which may arise from time to time at any particular colliery, and which shall be referred to the consideration of the Committee by the parties concerned. The Committee shall have full power to settle all disputes, and their decision shall be final and binding upon all parties in such manner as the Committee may direct.

The Committee shall consist of six representatives chosen by the Miners' Union and six representatives chosen by the Coal Owners' Association.

At meetings of this Committee it shall be deemed that there shall be no quorum unless at least three members of each Association be present.

Each meeting shall nominate its own chairman, who shall have no casting vote. In case of equality of votes upon any question, it shall be referred to two arbitrators, one to be chosen by the members of each Association present at the meeting. These arbitrators to appoint an umpire in the usual way.

Each party to pay its own expenses. The expenses of the umpire to be borne equally by the two Associations.

Should any alteration of or addition to these rules be desired, notice of such change shall be given at the meeting previous to its discussion.

If any member of the Committee is directly interested in any question under discussion, he shall abstain from voting, and a member of the

opposite party shall also abstain from voting.

When any subject is to be considered by the Committee, the Secretary of the Association by whom it is brought forward shall give notice thereof to the Secretary of the other Association, at least three clear days before the meeting at which it is to be considered.

The Committee to meet every alternate Friday at half-past eleven o'clock.

The first meeting of Joint Committee was held on 16th August. The members were:

<i>Owners</i>	<i>Workmen</i>
R. B. Sanderson, Chairman.	W. Crawford.
C. Berkley.	W. H. Patterson.
J. B. Simpson.	J. Forman.
J. Taylor.	N. Wilkinson.
P. Cooper.	J. Jackson.
R. F. Matthews.	T. Mitcheson.

There were in all six cases, which, with their decisions, are as follows:—

August 16th, 1872.

MURTON (*Stonemen*).—Demand for an advance of from 6d. to 8d. per day. To stand over for a fortnight to ascertain the average wages of the district.

OAKENSHAW.—Demand for 1s. per score on the broken and a sliding scale similar to that in the whole. The 1s. per score in the broken was granted to date from (uncertain?).

The sliding scale was waived by Mr Crawford and his Committee.

SEAHAM.—Mr Matthews' report objected to,—referred, together with a question of removing bottom coal (Mr T. Taylor was chosen arbitrator by the Association); any concessions made by the arbitrators to date from Monday the 19th August.

ETHERLEY.—Complaint that the banksmen and others have not received the different advances granted by the Association. Mr Lishman was desired to carry out the resolutions of the Association in their entirety.

SOUTH DERWENT.—Complaint that the deputies have not got the 20 per cent. advance. Mr Dickenson, having stated the circumstances of the case and the wages paid, the complaint was withdrawn; it being considered that the deputies are fully in the receipt of the advances decided upon.

WARDLEY.—Longwall skirting.—This turned upon the question as to whether it was intended by the arbitrators to include skirting in their award of the 25th March 1872, but it was decided that it was not so included, and that 8d. per yard extra should be given for skirting.

SHIFTERS' WAGES.—Demand withdrawn.

RAMBLE.—To be considered at the next meeting.

It was agreed that full particulars of subjects to be discussed before the meeting should be given at least three clear days before the meeting.

THE MINES REGULATION ACT

In the session of 1871 a Mines Bill was under discussion, but was not carried through its various stages. It was again introduced in the session of 1872, and for a long time its fate was uncertain. Men from all the districts were up lobbying on behalf of the Bill. Mr Crawford was sent from Durham. A Council meeting was held on Saturday, 27th July. While the meeting was in progress a telegram was received from Mr Crawford as follows:—

Crawford, London, to Mr John Forman, Town Hall, Durham.—Many hours in the Lords last night. Happily disappointed. Bill passed satisfactory. Weighing clause safe. Boys ten hours from bank to bank.

A vote of thanks was carried to Mr Crawford, the Government, and to the Home Secretary for the able manner in which he had conducted the Bill through Parliament.

CLAIM FOR ADVANCE OF FIFTEEN PER CENT.

At the ordinary Council meeting held on Saturday, 7th September, the number of members reported was 35,000. Mr Crawford gave the result of a conference which had taken place with the coal owners with respect to another advance of fifteen per cent. Nothing definite had been done, as the employers were indisposed to comply with the request, and it was adjourned for a fortnight. That meeting was held on Friday, September 27th, in Newcastle. The deputation was informed that the subject had been fully considered. Coals were falling in price, the demand was declining, and the commercial prospects were assuming a more unfavourable aspect, and therefore they could not give any further advance in wages. The meeting terminated, but the deputation expressed their dissatisfaction with the result, and they were supported in their objection by a Council which was held on Saturday, September 28th, and they were instructed to again meet the employers.

1873

The Mines Act—The third Advance—Death of "Tommy" Ramsey—The drawing Hours—The second Gala—Advance in Wages

On January 1st the new Mines Act came into force. It is no part of this history to enter into all the changes made by the new measure, but there are three portions of it which deserve a brief notice—these are the weighing of minerals, the position of the checkweighman, and the hours of the boys.

The weighing of minerals clause was to provide against the "Rocking" customs such as had obtained at the Brancepeth Collieries, and which had caused the "Rocking" strike. The new Act set forth that:

Where the amount of wages paid to any of the persons employed in a mine to which this Act applies depends on the amount of mineral gotten by them, such persons shall, after the first day of August one thousand eight hundred and seventy-three, unless the mine is exempted by a Secretary of State, be paid according to the weight of the mineral gotten by them, and such mineral shall be truly weighed accordingly.

The clause further provided for deductions and for exemptions by the Secretary of State from the weighing clause if it were proved that the exigencies of the mine warranted it. In a note to this section Mr Maskell W. Peace, Solicitor to the Mining Association of Great Britain, warned the employers that: "This is an entirely new enactment. Care must be taken to provide the necessary machines for carrying out the provisions by the 1st of August 1872."

The portion of the Act relating to the appointment of the checkweighman was a great advance in the direction of freedom of choice. Prior to this the choice of the workmen was confined to those employed on the colliery subject to the confirmation of the manager, and the man chosen was as liable to be discharged as any other of the workmen for any reason. The new Act provided that one of the workmen could be chosen either from the mine or under the firm. He need not be sanctioned by the manager, and could only be removed "on the ground that such checkweigher has impeded or interfered with the working of the mine, or interfered with the weighing or has otherwise misconducted himself." The last provision gave rise to some very glaring removals for acts done away from the mine. These anomalies were corrected by the Act of 1887.

THE HOURS OF BOYS

There were two provisions in the new Act relating to the hours of boys. One was for those between the ages of ten and twelve, and they were for the purpose of employment in thin seams; their time was to be for only "six hours in any one day." The other provision (which still exists) was for boys between twelve and sixteen years. The weekly hours were fixed at fifty-four. This latter provision was the cause of some confusion, seeing the hours of drawing coal were twelve, and the difficulty was to bring these boys away without interfering with that.

A very important Council was held in the Town Hall, Durham. There were two questions before the meeting—first, the demand for fifteen per cent. advance; and second, the working hours under the new Mines Regulation Act. As stated in the review of the previous year, meetings had been held on the advance in September, but the employers would not give way, and asked

us to wait. In consequence there was a very strong feeling in the county which found expression at the Council. There was some complaint that the Executive Committee had not been so energetic in the matter as they ought to have been. Mr Crawford defended the Committee. An attempt was made to increase the amount claimed to thirty-five per cent., but in the end the original request was confirmed. The question of the number of hours the pits should draw coal was next considered. The employers were asking for eleven hours, but this was felt to be difficult because of the Act in its application to the boys under sixteen. There was a desire on the part of many delegates that the coal drawing should be limited to ten. During the discussion Mr Crawford said:

No more important question could occupy their attention than that before the meeting. Not even the question of an advance exceeded it in importance, because whether or not that was given a great deal depended on how they settled the question of the hours. He might hold views very different to what were entertained by many in that room, but he was bound to state them. The question had occupied his attention, and he was of the opinion that the owners would be unable to keep the men fully employed for eleven hours. They had, however, requested to be allowed to work those hours, and they had a perfect right to do so if they could employ the men. At the same time, he did not believe they could keep the men employed during the last hour after the lads had gone to bank.

Eventually it was resolved that the employers should have the unreserved right to draw coal eleven hours per day, providing they did not violate the Mines Act relative to the boys under sixteen, nor keep the men in the pit the last hour doing nothing.

The meeting with the employers on the advance was held on February 8th, Mr Hugh Taylor presiding. In a very long statement he reviewed the state of the coal trade. He reminded the deputation that, although there had been delay, there had not been any breach of faith. He brought before them the question of short time, which was an evil not only to those engaged in the coal trade, but to the country at large. He urged again the request of the employers that there should be an agreement binding men to work so many hours at the coal face. The Mines Act had been passed. It did not satisfy

anyone. All they asked was that the men should do their duty. In the face of these difficulties, but in the hope that the men would help them, they had decided on an all-round advance of fifteen per cent.

There were some of the lodges who refused to carry out the eleven hours' arrangement, and with a view to induce them to do so the following circular was issued:—

TO THE MEMBERS OF THE DURHAM MINERS' ASSOCIATION

Fellow-workmen,—In the inauguration of any new system, difficulties always occur; whether these difficulties are easily overcome, or otherwise, will much depend on the manner and extent to which men, or classes, are affected thereby. As a matter of consequence, we have found these difficulties amongst ourselves in putting into operation the new "Mines Regulation Bill."

These have arisen from various causes.

We have, first, a very erroneous impression gone forth, to the effect, that after the commencement of the new Mines Bill, on the first day of the present year, no pit, or no person in a pit, must work more than 10 hours per day, or 54 hours in any one week. In the Minutes of Committee Meeting, held on the 4th inst., we clearly and distinctly stated that this view was a wrong one. We again beg to emphatically state that the law, in this particular, affects only boys under 16 years of age, and that so far as regards all parties above this age, matters remain identically as they have been. It would appear, however, that in the face of this intimation, some collieries of men are still insisting on the general adoption of the 10 hours per day, and 54 hours per week. In addition to this, we have existing at many collieries, both where men work two and three shifts per day, difficulties as to what the working hours ought to be.

Under these circumstances, the owners asked your deputation to meet them last week, for the purpose of discussing, and if possible arranging, some understood mode of action. This meeting took place, at Newcastle, on Friday last.

The first question asked was, what objection we had to owners working their pits 11 hours per day, and 11 or 12 days per fortnight as usual, so long as they did not violate the Act of Parliament relative to boys under 16 years of age? After talking over the matter for a long time, we retired, and in consulting among ourselves, failed to see any reason why pits should not draw coals 11 hours per day as heretofore they had done. We returned and told them that we could see nothing to prevent them from working the pits 11 hours per day, if they thought desirable to do so, and they could find men or boys to bring the coals to bank; but that, in trying to carry this into effect, they must not keep men laying at their work for the last hour doing absolutely nothing, as, if such cases did occur, they would most certainly be complained of, and a remedy sought by an appeal to the Joint Committee, in which case they would be exposed to the entire county throughout.

Respecting boys being brought into the pit an hour or two after work commences, or sent home an hour or two before the pit is done at night, we cannot see that any difficulties should exist. The question was asked, should a boy be sent home for the first 5 days, having worked less by far than the allotted 10 hours' per day, and such boy should purposely remain at home on the Saturday, would such boy claim his 5 days' pay, remembering that for 5 days he had worked short time for the very purpose of going to work on the Saturday? To this the owners demurred, when we suggested the desirability of seeing boys, or their parents, and making with them necessary arrangements.

We may be told that the boys are sent home to suit the owner's convenience, but we must not forget, for whatever purpose sent home, that while they worked short time they were paid full hours, and we certainly cannot see the wisdom of preventing boys from receiving 6 days' pay for working 54 hours, when, but a short time ago, they worked 66 hours for the same money.

The employers, by Act of Parliament, are compelled to reduce the working hours of boys under 16 years of age, but we cannot expect them to reduce the hours of all datal men, if work can be found for them for the ordinary time. We must not lose sight of one very important fact, viz., that a reduction of working hours to those who are

paid a datal wage means an advance of price, a reduction of hours, from 11 to 10 per day, is equal to 9 per cent., which practically means 9 per cent. advance, seeing that the productive powers are lessened by so much. In this manner it must be seen too, that no boy under 16 years of age is allowed to be in the pit more than 10 hours in any one single day, or 54 hours in any one week. If this is strictly seen to, a great work has been accomplished, and don't let us spoil that which is really good by trying to accomplish too much.

Those lodges who object to the pit drawing coal 11 hours per day, ought to bear in mind that a reduction to 10 hours is a very serious curtailment in the drawing or producing powers of the pit, and as such only tends to lessen the power of owners to pay good wages. The profits arising from the produce of any article are up to a given quantity consumed in paying current expenses; and, therefore, the more the produce is restricted, the less means are there at command wherewith to pay all classes of workmen. The disadvantages arising from the operation of the new Mines Act must necessarily tell heavily on the mine owners in the two Northern Counties, where the double-shift system is worked, and it would be an act of imprudence—not to say injustice—and materially militate against our own interests, to increase drawbacks beyond an absolutely necessary point. We would, therefore, strongly urge on all our associated collieries to allow the employers (1) to work their pits 11 hours per day, where they can find men or boys to keep them going that time, without, of course, infringing the law, relative to boys under 16 years of age. And (2) to allow boys to be sent home on one or more days, so as to make up six nine-hour shifts in the week. By this plan no workman can lose, while the boys would materially gain thereby.

We have so far worked successfully, but that success has been greatly, if not altogether, owing to the caution we have exercised, and the general reasonableness of our requests, having at all times a respect for the right, while we have tried to bring into active operation the duties of capitalists. Let us not then mar that success by an imprudent or forward act of ours, particularly at a time when a change which must tell very severely on the interests of mine owners, and which,

moreover, is of our own seeking, is just being introduced amongst us, and from which boys at least must gain immense advantages.

By order of the Committee,
Wm. Crawford, *Secretary*.

Offices—16 North Road, Durham.

Jan. 20th, 1873.

While these questions were claiming and received the attention of Mr Crawford and his colleagues a foul attack was made upon him by G. ("General") Jackson of Nettlesworth. He published a number of letters, which were not very choice in language, but prolific in the lowest form of abuse. He spoke of "that fellow Crawford," "that bully" who was feathering his nest by defrauding. This went on until the Executive came to the defence of Mr Crawford. They published a circular, pointing out the false charges which had been made, and that Jackson was a member of the Committee during the period in which he alleged the misappropriation of money had taken place. They reminded him of the neglect of duty implied in his not exposing such things before, and ended the circular by saying: "Further this Committee begs respectfully to say that they have the greatest esteem for their secretary, Mr Crawford, and are fully convinced that he has always acted in harmony with the highest principles of moral rectitude."

On Thursday, 8th of May, the first of the pioneers who crossed the border line, "Tommy" Ramsey, died at the house of his brother at Blaydon at the age of sixty-two. He was buried in the cemetery at Blaydon on Monday, the 12th. The number of people attending his funeral was a proof of the high esteem in which he was held. According to the account there were fifty of the Trimdon miners, where he worked last, present, while from collieries around Durham large numbers also attended. The procession was headed by the Blaydon Main banner. We have made a note about him, as one of the leaders, but we may add a few words from an obituary which was published at the time of his death.

"Old Tommy," as his brother miners of every degree loved to call him, was chiefly known to the pitmen at large as a Unionist. With a face furrowed with care and the hardships of his laborious calling, and scarred by many an

accident in the pits, he was never afraid to stand up before his brethren and agitate for that amelioration in the condition of the working pitmen which has at length been conceded. His style of oratory, if it were not strictly grammatical, was gifted with a warmth of expression that told forcibly on his hearers of his own class, and his perfect knowledge of the one subject he engaged upon—the danger and the excessive toil of the miner's life—caused him to be held in respect by masters and men alike. In every movement that had for its object the freedom from the bondage the miner was held in, Ramsey was always to the front, and none mourned in bygone years more sincerely than he did the failure to establish on a firm and lasting basis the Union, by which alone he maintained were they likely to obtain their rights as workmen. When the present Association was started, amongst the dozen delegates or so who assembled at the Market Hall, Durham, bent if they could on forming a union, was "Old Tommy"; and there he attended every meeting, when to be identified as a delegate was to almost sign his own death warrant so far as employment was concerned. "Men and brothers," he said, addressing a public meeting near Thornley a few weeks after the Association was formed, "I've been a Unionist all my days, and with the help of God I will remain one to the end of the chapter."

At the Council meeting held on 31st May we have the first mention of a hall for the use of the Association, with offices and agents' houses. After a lengthy discussion the project was endorsed, the money to be taken from the general funds, and the Executive were appointed a Building Committee. The Committee immediately commenced operations by purchasing a block of houses known as Monks Buildings, the site of the Hall and houses, and offering a premium of £25 for the best design for hall and offices. This was won by Mr T. Oliver, Architect, of Newcastle.

The other important question was the eleven hours' drawing of coals. The system received general condemnation. At the conclusion of the consideration a very long resolution was adopted. It set forth that when the Mines Act came into operation the workmen did not think it right to curtail the producing powers of the pits, and they, therefore, fell in with the views of the owners. Having tried the system they had no hesitation in pronouncing it an utter failure on the following grounds:—

"1. Because of the great difficulty, if not impossibility, of working the pits full time on both the first and last hour of the day, thus inflicting a positive injustice on large bodies of men. We have the testimony of Lindsay Wood, Esq., in his evidence before the Coal Committee that the system of eleven hours' work entails great danger on the boys going and coming out of the mine while the pit is at full work. We regret to say that this system has already borne fruit in the slaughter of one or more boys in going and coming out of the mine during the day. This being so we now find ourselves compelled to make an emphatic appeal to the mine owners of the county to work their pits only ten hours per diem in order to obviate both this injustice and danger."

As I have said, it will not assist the history we have on hand if we dwell upon the whole series of our galas, and therefore we will only make a reference to the second one in the series. It was held on Saturday, the 14th of June, and the gathering was larger than the year prior. There were three platforms. The chairmen were J. Cowen, J. Laverick, and J. Fowler. The speakers outside were P. Casey, Yorkshire; A. M'Donald, Scotland; B. Pickard, Yorkshire; Lloyd Jones, London; J. Shepherd, Cleveland; T. Burt, Northumberland; and R. Fynes, Blyth, with the addition of the Executive Committee. The speeches need not be referred to beyond the references by Mr Crawford, as indicating the progress of the Association during the year. They had added 5000 to their numbers, bringing the membership up to 40,000, and they had increased their funds from £12,000 to £34,000. They had proved their leading principle was amicability. "That principle had been not to get a thing because they had the power, but first of all to ask the question was it right that they ought to have it."

The ordinary Council meeting was held in the Town Hall on July 26th. It is important because of the attempt that was made to censure Mr Crawford. For some weeks a personal controversy had been taking place between Mr E. Rhymer and Mr Crawford. Mr Rhymer had complained that, although the miners had invited him to the demonstration, yet Mr Crawford had stood in his way. This was denied very strongly, and some very curious epithets were applied to him (Mr Crawford) for making the statement. At the Council a resolution was on the programme from Ushaw Moor as follows:—

"That Mr Crawford receive three months' notice from next delegates' meeting, for his behaviour to E. Rhymer and also the Bearpark men."

In a note he sent out with the programme he said "he was prepared to account for all he had done in open day, and after that, if the Association was so minded, he was prepared to leave them not in three months, but in three days or three hours." The result of the discussion was the withdrawal of the Ushaw Moor resolution and the carrying of one from Hetton which not only exonerated him, but expressed their high approval of his conduct and work in the county.

On the 4th of October a Council meeting was held. The object of the meeting was to consider the advisability of applying for a twenty per cent. advance. In the end the resolution was carried, and Mr Crawford was instructed to arrange for a meeting with the employers. This meeting was held on October 17th, but was refused by the owners, and in refusing they intimated that, as the state of trade was, they would shortly be making a claim for a reduction. The refusal was reported to a special Council, when the deputation was again instructed to meet the employers. The second meeting was held on November 14th. After the question had been discussed the following resolution was handed the deputation:—

"This Association cannot accede to the application of the Durham Miners' Association for an advance in wages, but is prepared to refer to arbitration the question of whether since the last settlement of wages in February 1873 there has been such a change in the condition of the Durham coal trade as to call for an alteration in the wages now paid, and if so whether by way of advance or reduction and the amount in either case."

This offer was discussed at a Council meeting, when the arbitration was agreed to; but the submission was disapproved of, and the Executive Committee instructed to draw up a counter proposal, to be submitted to a subsequent meeting for approval.

Another meeting with the employers was held on Friday, the 12th of December. At the conclusion of the meeting the employers intimated that they would send their decision to Mr Crawford. On the 13th a Council

meeting was held. A letter was read from the employers, in which they objected to accede to the request of the workmen for an alteration of the submission they had proposed. After a further discussion the following resolution was proposed:—

"Having fully considered the objections of the employers to our suggested basis for arbitration we fail to see the soundness of such objections. Nevertheless in order that no difficulties may arise in carrying out this matter, we are willing to alter that basis by leaving the question entirely open. Allowing both parties to bring forward all relevant matter which may bear upon their respective positions, leaving it to the arbitrator to say whether any advance ought to be given and that the Durham Coal Owners' Association be urgently requested to consider this matter on the earliest day possible."

There are two matters which deserve a brief notice here, although not essentially part of the Association. These were the Royal Commission to inquire into the coal supply and the causes of the high prices, and the rise of the Franchise Association. The former of these was appointed on 21st February 1873 by the following resolution of the House of Commons:—

"That a Select Committee be appointed to inquire into the causes of the present dearness and duration of coal, and report thereon to the House."

This Committee examined a large number of witnesses, including all classes connected with the coal trade. The following is a portion of their report:—

"1. Considering the great extent of the coal fields in Great Britain, the number of collieries at work, and the variety of coals produced, which though primarily used for particular purposes, will, at certain prices, be used for others, your Committee, notwithstanding intermittent and startling fluctuations in price due to temporary causes, do not believe that any combination either of employers or workmen can by artificial means succeed in permanently affecting the ordinary results of the relations of demand and supply in adjusting the quantity of coal produced to the demand, or can permanently affect the price resulting

from the state of the market; nor do your Committee believe that the interference of Parliament with the course of industry and trade in coal could produce any useful or beneficial result to the public beyond what has been arrived at in recent legislation, namely, the prevention of injury to the health and morals of young children and young persons, and the prevention of accidents from wilful neglect of recognised precautions.

"2. Much evidence has however been given to show the great increase in the rate of wages, and the earnings of the working miners; but whilst it is true that in some cases the earnings have enormously increased, and have been improvidently spent, your Committee conclude that in general the condition of the workmen has been much improved, and that the rise in the rate of wages has not, under the exceptional circumstances, been unreasonable, nor been unattended with considerable benefit to the workers; indeed in some cases the workmen have preferred improving the conditions under which they work to increasing the amount of their wages in money.

"3. It is clearly shown that the real order of events has been the rise in the price of iron, the rise in the price of coal, and the rise in the rate of wages. The increased payment per ton for labour employed in getting the coal cannot therefore be considered as the primary cause of the large increase in the price of coal; a rise in wages followed upon rather than preceded a rise in the price of coal. To the extent to which increased rates of wages have induced workmen to labour for a shorter number of hours than heretofore, resulting in a reduced output per man, a higher payment for labour has contributed indirectly in an important degree to maintain the high price of coal, but having regard to the great danger to which coal miners are exposed, and the character of their labour, the average rate of wages in collieries has not been more than sufficient to attract the requisite labour to the mine. The workmen, like all others connected with coal mining, should only regard their present earnings as a temporary profit, which may, at no distant day, approach towards former rates."

With respect to the Franchise Association, during the year there was a strong agitation in favour of an extension of the Franchise to the

householders in the county, as such had been done by the Act of 1868 to those in the borough. The spirit of reform found ready response in the minds of the Durham miners, and a very active Association was formed. Although incidental to the labour organisation, and with a voluntary contribution, it was managed by the leading men in that Association. The names found prominently in one are found in the other. A Council meeting of the Miners' Association was held in November of this year, at which it was proposed that Mr Crawford should be nominated for one of the county divisions, and the matter was remitted to the Franchise Association. There were but two of these divisions at that time—the North and South, each having two members. There was a General Election in prospect, and it was deemed advisable to run Mr Crawford as a Liberal candidate. To anticipate a little, he was duly put forward on Wednesday, the 28th of January 1874. His candidature was publicly announced, but on Friday, the 30th, at a meeting of the ex-Committee, he withdrew. His aim in so doing was to avoid a division of the Liberal forces. There were two Tories in the field and three Liberals, and it was highly necessary that this should be avoided. This decision was reported to a Council held on the 31st. There was a general consensus of opinion that he had acted wisely, although the delegates regretted the necessity. Some of them had brought money—as much as £30 in one instance—towards the election expenses. A resolution was adopted which had for its object the formation of an election fund with the view to strengthen the hands of the Franchise Association, and it was agreed that whenever there was a vacancy in the county, where there was a chance of success, he should be at once brought forward.

1874

The first Reduction—Co-operative Colliery—The Strike of 1874—The Wheatley Hill Revolt and Evictions—Second Reduction—First Arbitration

We finished 1873 with a demand for an advance and a difference as to the submission for a reference to arbitration. During the interval the trade had declined to such an extent that the employers sent a claim for a reduction, and thus the young Society was beginning to find itself entering its first dark cloud of depression. Up to that moment the booming times arising out

of the Franco-Prussian War had been with it, but now the relapse which generally follows a fever in trade had set in, and the demand for coals had fallen off seriously; and whereas a month or two previously they had expected another advance, it was felt by Mr Crawford and his colleagues that it would not be possible to stave off a reduction.

Before coming to the consideration of the first reduction let us, for the sake of chronological order, note one or two matters of some importance. The first of these is the demand for men being trained before being left to themselves in a mine. At the Council meeting held on Saturday, 21st March, the following resolution was carried:—

"We have again to protest against the introduction of strangers into our mines—men to whom mining with all its dangers is thoroughly unknown, whereby the limbs and lives of other men are constantly endangered. We therefore emphatically ask the owners to put such men under the care of some practical miner for a period of not less than six months, who will be responsible for any danger arising from such person's ignorance of mines."

Another point worthy of note was the resolve to join in the movement to form a co-operative mining company. At the Council meeting on 4th April it was resolved:

"That we take £5000 out of the General Fund, and invest it in the Co-operative Mining Co., as we believe productive co-operation to be the only solution to the many difficulties that exist between Capital and Labour."

At the same Council a copy of the owners' request for a reduction was read. It conveyed the decision of their full meeting: "That the state of the Durham Coal Trade imperatively calls for a reduction of twenty per cent. in all colliery wages, both above and below ground, to take effect from the 18th of next month." A meeting was held between the two Associations on the 16th of April, when the employers stated the reasons for their demand. They held "(1) that there was no connection between profit and wages, and the workmen had, therefore, no legitimate right to interfere in such a matter; (2) that trade was vastly more dull, and prices materially less, than was

supposed; (3) that in various parts of our own country and also in Germany, reductions had taken place, in the latter 25 per cent., and having to compete in the same markets with firms and districts so brought down, they had no choice but to enforce the reduction."

This was brought before a Council meeting on April 25th, but the delegates refused to discuss it then, and referred the question to a special meeting to be held on the 29th. Steps were taken to prepare for a stop should a reduction take place, and men were arranged to visit various districts. Those going to Ireland and Scotland had £30 each. The owners had in the meantime given notice at certain collieries, and the workmen were told to remain at their own collieries. On the 27th the Executive Committee issued the following circular:—

April 27th, 1874.

Fellow Workmen,—According to arrangement, Messrs Patterson, Wilkinson and Crawford, saw Messrs Burt and Nixon yesterday, and from information received it appears that the 10 per cent., or a reduction from 50 to 40, has to affect ALL, both above and below ground.

We cannot but call your attention to our present position. The adjoining county, much more compact than ours, and many years older in organisation,—two elements of strength and power,—have just accepted a reduction of wages. Miners, immediately south of us,—West Yorkshire,—have expressed their willingness to accept a reduction of 12½ per cent. on wages all round. This, however, the owners refused to accept. They seek a reduction of 25 per cent., and the matter is, therefore, going to arbitration. With these facts before us, is it possible that we can, at the present time, by any means, which we might adopt, altogether stave off a reduction, more or less, without referring it to arbitration, in some way or other? We will not attempt to point out all the terrible effects which must arise from anything like a general strike. Many of you experimentally know the direful effect and heartrending destitution which has arisen from partial strikes amongst ourselves. Suppose a general stop now ensues, what are the probabilities of success? Can we make our efforts successful? Suppose

we should strike against a receding market, and a surplus number of men, and lose, what would be the consequences? These are questions worthy your earnest consideration, because on them depend your WEAL or WOE for years to come.

We have to-day very fully thought over the matter, and considering everything, we think it wise, if not absolutely necessary, to make some advances, with a view to a settlement of this important question. We, therefore, strongly advise that an offer of 10 per cent. reduction be made to the owners; and should they refuse this, let the whole matter go to arbitration. If arbitration be offered and accepted, we would suggest the appointment of two men on both sides, and let these four men find a basis or starting-point for arbitration. Should they fail to agree as to what such basis ought to be, let the matter go to an umpire, appointed by the four arbitrators.

Let no one regard this as in the slightest degree dictatorial. We have too much respect for your collective judgment to attempt anything of the kind. But we think it our duty to point out that, if not careful, we may drift amongst shoals and quicksands, which may endanger the very existence of our Association. And if this should come to pass, we need not name—not our probable, but certain condition, for years to come.

On the 29th of April the special Council was held, which approved of the Committee's circular by offering a reduction of ten per cent. This decision was conveyed by telegram to Mr Bunning, the employers' secretary. No sooner was it known in the county than a general protest was made, not only by the miners, but by the mechanics and enginemen. They objected to being included in the reduction. These bodies held meetings in Durham on the race-course on May 2nd, and passed resolutions not to accept any reduction. The spirit of revolt was rampant in the county amongst the members of the Miners' Association. Meetings to protest against it were held throughout the county. Circulars were sent out by District Councils, in which the Executive Committee was held up to ridicule. To these the agents replied, boldly pointing out the danger of the course which was being adopted and the disaster which would assuredly follow if more moderate action were not taken. Some of the members of the Executive Committee

were found amongst the protestors and the loudest in their condemnation of Mr Crawford, who came in for a large share of abuse. It was calculated that at one of those meetings in Houghton there were 10,000 people present. On May 5th the coal owners held a meeting. The resolutions dealt mainly with the action of the enginemen. From these the employers offered to accept five per cent. if acceded promptly, but no man should be allowed to work for less reduction than that offer. During the owners' meeting a telegram was read from Mr Crawford as follows:—

"For reasons previously given both to the Standing Committee and full meeting of owners, we shall begin on Monday to work five days per week or pits be laid idle on Saturday, so far as the working and drawing of coal is concerned."

To that telegram the owners sent the following reply:—

"The Provisional Committee give notice to the Durham Miners' Association that unless the Owners' Association receive before the end of the week a satisfactory assurance that collieries will continue to work the same number of days per fortnight, as heretofore, they will advise the Coal Owners' Association to insist upon the full twenty per cent.—first demanded; such demand only having been withdrawn on the condition that no change whatever was to be made in the usual mode of working."

On the 7th of May a Council meeting was held, when the ten per cent. was under consideration. By a majority of 15 the delegates decided in favour of the ten per cent., 112 voting for it and 97 against. This brought the dispute to an end so far as the wages were concerned.

The strike, if it could be called such, was of the most desultory kind, there being a division as to the acceptance of the ten per cent. reduction. It is generally known as the "Week's Strike"; but even the Executive were in ignorance of the time off, and sent out a slip asking the lodges to tell them "what number of days they were off, when they stopped, and when they resumed work and the reasons why they were off." The returns show that there were none off more than a week. None of them were entitled to strike pay seeing that a colliery had to be off a fortnight before they could claim.

The Executive by their Minute of June 5th, 1874, said the strike commenced on May 8th and ended on the 14th.

The strike being settled generally, all the collieries commenced work except Wheatley Hill, Thornley, and Ludworth. These were in a peculiar position. For some time they had been ten-day collieries, and at Wheatley Hill the hours of stonemen, shifters, and wastemen had been six every day. When the strike ended the Executive Committee sent word out to the county that work should be resumed under the same conditions as obtained before the strike. The workmen at the three collieries claimed they should work the ten days. That position the following Minute of the Executive Committee bears out:—

"We have again had the case of Thornley, Ludworth and Wheatley Hill brought before us, and beg to give the following statement: As will be understood by all lodges, before the stop these places were working ten days under protest. After the settlement of the working days matter at our Council, the question arose between the manager and men whether these were ten or eleven day collieries, the men holding to the former, while the manager held to the latter. On Friday, May 15th, Mr Bunning telegraphed, stating that the owners still held these to be eleven-day places. We replied that they had been working ten days under protest, and that in some way or other they ought to recommence on the same conditions."

The three collieries, on the strength of the notice to resume work, corroborated by the above Minute, refused to start except as ten-day collieries. The owners offered arbitration, but conditioned it by asking for the men to work eleven days, and suspended the Joint Committee until the case was settled. The letter from Mr Bunning contained the words: "The action of the Thornley etc. men renders the resumption of the Joint Committee impossible," and asked whether the Executive were supporting them or not. The men were willing to go to arbitration, but asked to be allowed to start at the ten days. The Executive ordered them to work on the employers' terms, summoned a representative from each colliery to the Committee, and sent out large deputations to attend meetings. Still the men stood firm. On Monday, June 1st, the evicting of the men from the houses commenced. A very large contingent of "Candyman" were imported, and a

force of seventy or eighty policemen, in charge of Superintendent Scott, to maintain order. There never was an occasion where better humour prevailed throughout and where there was so little need of police. It would afford a break in this dry matter-of-fact history if some of the incidents were related: how a Jew who had come to gather his fortnightly instalments wrung his hands, and, Shylock-like, cried about his "monish"; how some of the women were to carry out in arm-chairs, and one of them stuck hat pins in the Candyman, to the hilarity of all but themselves; how once in a while a "Candyman," sick of the work, broke through the crowd, and ran off, chased by the police and the cheers of the crowd; and how the people dwelt in tents for three weeks, having continuous sunshine by day and jollity by night, making a continual round of "picnicking."

We must, however, leave the pleasurable for the historical. The lodge made an attempt at Council to get strike pay on an appeal against the Committee. The merits of the case were with them, but their case was prejudiced by the temper of the delegate, Mr J. Wood. During the discussion of the question some contention rose as to Wood (who could write shorthand) taking notes. Mr Wilkinson (the treasurer) expressed himself in doubt as to Wood's honesty, and the latter struck at the treasurer on the platform—the consequence being the Council decided against, and the men were left to their own resources.

An attempt was made to settle the strike by the Rev. W. Mayor of Thornley. He called upon some of the leading men, and asked them to meet Mr Cooper, the manager, who with Mr Bunning agreed to allow the pit to resume work on the old conditions with regard to the number of days, and that the dispute should be left to the two Associations. The arrangement was come to on the Monday, and on the Tuesday the horses and ponies were sent down, and about 100 men commenced. It then transpired that Mr Cooper objected to three of the leading men, and the men alleged that there had been some reduction in prices. The result was the stoppage again. The dispute was as to the submission for the arbitration. The difference lay in this: the owners wanted the men to start as an eleven-hour colliery, and then arbitrate. The workmen were willing to start as at ten hours, and arbitrate. In the end that was accepted. The arbitrators decided that the men were right in considering their collieries ten-day collieries and refusing to resume work except as such; but they concluded that the collieries should work eleven

days, "although at the same time we strongly censure the conduct of Mr Cooper, the manager, throughout the entire struggle." They further awarded that the whole expense of the arbitration should be borne by the owners, thus proving the men to be right in their contention as to starting.



WILLIAM CRAWFORD, M.P.

We now come to the second claim for a reduction in wages. On July 17th Mr Crawford read to the Committee a resolution he had received from the employers making a claim for a reduction:

"That the Durham Coal Miners' Association, through Mr Crawford, be informed that the associated Coal Owners consider that it is necessary to reduce wages substantially and promptly. That the amount of such reduction, as well as the date of the commencement, will be considered by the owners on the 7th day of August next, and that in the meantime the Association will be ready to give their best consideration to anything the representatives of the workmen may desire to lay before it."

To this request the Executive Committee could not accede, and on 7th August the employers sent another claim for a reduction of twenty per cent. They said "that the best policy to pursue in the exigencies of the trade, and to restore the activity of the coal and iron trades, was for the men to submit to a twenty per cent. reduction." In the event of the workmen not agreeing to such a reduction the owners would be prepared to leave the whole case to the arbitration of any gentleman mutually appointed, each party being left free to produce such evidence as they may think fit and satisfactory, arrangement being made for prompt decision, and for securing the operation of the arbitrator's award from the 29th of this month.

Mr Crawford was instructed by the Executive Committee to inform the employers that, while they did not offer any opinion on the reduction, they would call the attention of the owners to the last portion of their resolution, wherein the date of the reduction was fixed, and said:

"In seeking advances we never yet fixed a date, even when coal was going up in an unparalleled manner and certainly very much more rapidly than ever it has come down. Both in March last and now you wish to fix the date in what seems to us rather an arbitrary manner. Had we in seeking advances pursued this course, you would have been more than justified in doing the same thing, but having pursued a course diametrically opposite, we fail to see the grounds of your justification for the course you are at present pursuing."

A Council meeting was held on August 22nd, when the first question discussed was the owners' application for the twenty per cent. reduction. The following resolution was carried:—

(1) We cannot see where in the Cleveland, or the Coasting, or other markets the prices of coal and coke are down sufficiently low to warrant a further reduction of wages. (2) The stacking of coal and coke may be made to have—but ought not to have—any very material effect on the workmen's wages, seeing that, if too much is being produced, we have no objection to be put on short time, or any other fair process whereby a reduction of wages can be averted.

We fail to see why the employers ought to seek arbitration. We are now in the same position which they were in during the last two and a half years. They were at that time so fully certain that trade would not give any further advance that arbitration was pointedly refused. We are now so sure that the present, as compared with past prices of coal and coke, does not warrant any further reduction, that we think arbitration is only an unnecessary waste of time and money, causing no end of annoyance without any good resulting therefrom.

This resolution was sent, accompanied by a demand for fifteen per cent. advance, to the employers, who held a meeting on 28th August, under the presidency of Mr Stobart, for the purpose of considering it and what action they should take. After considerable discussion a resolution was passed to enforce the twenty per cent. reduction and to give the men fourteen days' notice, to expire on the 19th of September, seeing that their claim and arbitration had been refused. The notices were issued in keeping with that resolve, but not to all men alike. The form of notice was as follows:—

On behalf of—— Colliery I do hereby give you notice to determine your existing hiring on the nineteenth day of September eighteen hundred and seventy-four, and that the wages and prices heretofore paid at this colliery will from that date be reduced to the rate of twenty per cent. and that if your service be continued, it must be on these terms.

In these circumstances the Executive Committee issued a circular and called a special Council. The lodges were asked to send their delegates prepared to discuss and decide upon three questions:

"1. Ought bankmen, horsekeepers, furnacemen, etc., to give in their notices?

"2. Ought collieries of men (hewers included) who have not received any notice to give in their notices?

"3. The matter of arbitration."

We will quote a portion or two of the circular. It is very serious and impressive:

"It must be clear to all that we are passing through the most important crisis which has marked the history of the present organisation on the need or otherwise of a further reduction; we here offer no opinion, that being a matter which will take the collective wisdom of the county to determine. We wish, however, to point out what seems to us to be one of two ultimatums to the present unpleasant condition of matters in the county. If a stolid and unreasoning resistance be persevered in, a strike is inevitable. We feel certain that nothing can or will prevent a stop. How long such struggle might continue it is impossible to say. But whether it might be for a longer or a shorter period an immense amount of suffering would be entailed. We want you therefore to very carefully consider the whole matter. View the entire position with an unbiased mind, not from the standpoint of mere abstract justice, but from that of probabilities or even possibilities. We are offered arbitration. If we refuse, the press and public will most assuredly say that our position is untenable. If we persistently refuse to submit the entire matter to arbitration, we must prepare to cope with the following difficulties in conducting a struggle.

"(1) The strongest combination of employers the North of England ever saw.

"(2) Stacks of coal and coke laid up in every direction of the county.

"(3) Coal and coke brought from other districts to supply what we may be short of supplying from our own heaps.

"(4) The press and public opinion would be against us."

The dispute was brought to an amicable settlement by the whole question being referred to open arbitration. By that decision the Association passed out of the era of negotiations into that of arbitration re underground wages. As that was the first step in the path of conciliation it may be useful to give in detail the proceedings. The inquirer after further information may very usefully consult the printed proceedings of the case. There were for arbitrators Mr G. Leeman and Mr D. Dale acting for the owners, and Mr L. Jones and Mr T. Burt for the workmen. The case was conducted by Mr W. Armstrong and Mr L. Wood (now Sir Lindsay Wood) on behalf of the employers. Mr W. Crawford and Mr J. Forman were for the employed. There were with these arbitrators and conductors other gentlemen, whose names we can find no record of either in the press, the owners' books, or in ours.

The first meeting was held on Tuesday, 13th October, in the Queen's Head Hotel (now the Liberal Club), Newcastle. After a long sitting the case was adjourned until the 15th, when Mr Forman on behalf of the workmen, and because there had not been sufficient time to prepare a reply to the employers' case, asked for an adjournment. Mr Crawford said they had "sat twenty-eight consecutive hours, and never moved the whole of the time." It was therefore decided to adjourn until the 16th. During the discussion Mr Crawford made the request that the owners should produce their books in order that both costs of production and the selling prices of coal might be obtained. The fourth day's proceedings was held on the 19th. The arbitrators met on the 26th in London. Failing to agree, they agreed to refer the question to the Right Hon. Russell Gurney, M.P., whom they met on the 30th in the Abbey Hotel, Malvern. On November 3rd he gave his award. Without giving the whole of the award it will be explained by a quotation from a circular sent out by Mr Crawford: "The reduction is as follows:—At present time our advances amount to 43 per cent. over 1871 prices. This by Mr Gurney's award is reduced to 30. That is a reduction of 9 per cent. on the gross wages and will take effect from Monday, November 2nd."

At that time the attention of the county was turned to the sanitary condition of the mining villages. The Committee took a return in which they asked eleven questions:

"What is the size of your best houses? What size are the rooms, and how many to a house? Size of single houses? Is there attached to your houses or on the colliery any private accommodation? Are there any channels or underground sewers to take away the dirty water and other refuse made in the houses? Are the houses damp and incompatible with health, or dry and healthy? Are there many of the members who have houses of their own? What number of double and single houses have you? Have you a good or bad supply of water and whence supplied? What is your school accommodation, national or colliery? Have you a Mechanics' Institute? Is it colliery or private property? Are there any gardens to the houses?"



W. GOLIGHTLY

On Saturday, November 7th, the owners made a claim for a reduction from all the men at bank. This was before the Executive Committee. They by resolution expressed their surprise, and their opinion that they had not been treated fairly, as the employers ought to have dealt with the classes now to be affected in the arbitration just concluded. They considered that "such a mode of procedure cannot but have an injurious effect on that good and

desirable understanding which has so long existed between the two Associations." The owners gave the surface men notice to terminate their engagement on 12th December. A special Council meeting was called. The questions to be decided were—first, should the Miners' Committee act for the cokemen, seeing those men were forming an association of their own, and over two-thirds of that class had joined it? Of the other classes three questions were asked: "Ought these men to follow Russell Gurney's award? Ought the reduction to be resisted or ought arbitration to be sought?" The Council decided on Saturday, December 5th, that the Cokemen's Association meet the employers themselves, but "that the members of the Joint Committee should meet them on the banksmen, screeners, labourers, etc." The arrangement come to by the Joint Committee was:

"The banking-out men having been generally classed with the underground men, should in all cases be dealt with strictly according to the terms of Mr Gurney's award, that is, remain 30 per cent. in excess of March 1871 and it was recommended that the case of men earning less than 3s. per diem be left to the consideration of individual owners."

There are two matters not dealt with in the general statement of this year. These are the appointment of Mr Forman as permanent president on 2nd May and the appointment of the first clerk. The first was Mr A. Hall Shotton; but his stay was short, and he was succeeded by Mr W. Golightly, who was in the office for over thirty-one years.

1875

The third Reduction—Co-operative Colliery—The demand for better Houses—The fourth Reduction

EARLY in the year the Association was called upon to face another reduction in wages. The Executive Committee had sent some requests with respect to hewers putting in the foreshifts and working hard places. The owners sent a reply on January 15th refusing the requests, and at the same time saying, such things being asked of them in depressed times were offensive, and would not have to be repeated. In the same letter Mr Crawford was told that the employers had that day "unanimously decided to ask for a reduction in

the wages of all men employed about coal mines and that the Standing (Joint) Committee be instructed to discuss the matter of such reductions and the date when it should commence."

To this the Executive Committee replied that they would pass over the question of reduction as it was premature to interfere with it, but they complained of the tone of the letter sent to them, which was very unbecoming, to say the least. They had a perfect right to send the requests. No doubt they were annoying. "But however annoying a request properly made may be, it ought, in keeping with the common courtesies of life, to be denied without imperiousness. It was annoying to them as workmen to receive an application for a reduction."

The response to that reached Mr Crawford on the 30th. It informed him that they (the owners) felt it needful to claim such reduction as will leave the wages of both underground and surface men ten per cent. in excess of 1871, to take effect from the pay ending 13th March. Mr Bunning added: "As it is our usual custom not to carry out a resolution of this nature without first having a consultation with you, I am requested to ask you to make such arrangements with your clients as may enable you to meet our Committee at an early date to decide."

A special Council meeting was called for the 6th of February to consider whether a deputation should meet the employers; if so, how many and whom they should be. The Council decided that as a deputation the members of the Joint Committee should meet the employers, and Mr Crawford was deputed to go to South Wales to inquire into the condition of things amongst the miners there.

At an adjourned Council held on February 10th it was again considered, and the following resolution carried:—

In looking at the last reduction, and the undue advantage the coal owners have taken on us in making a call on the bankmen so soon after the arbitration case, that we in future entertain no more reductions on one separate class of workmen, without knowing their intentions as to the rest of the workmen in our Association.

The meeting with the employers took place on 16th February, when six reasons were given by them why the reduction was needed: Many collieries were working at ruinous losses; a terribly increased cost of production; at many collieries the men were restricting their work; a greatly increased number of men were needed; the increased cost owing to the great decrease in the working hours; and the fact that Mr Gurney's award was delayed two months.

The employers again issued notices, but not to all men or all collieries. The Committee immediately called a Council, and drew the attention of the lodges to two resolutions which were passed on April 21st and December 5th, 1874.

That in future when there are notices given for a reduction of wages throughout the county, and where a colliery or collieries of men do not get their notices, they be requested to give them in.

Where men who are members of our Association and who have not received notice should these refuse to give in their notices, their names be struck from our books and never again re-entered.

In addition to this the Committee issued a circular in which they reviewed the condition of trade, and pointed out that in many districts life and death struggles were taking place. These men were being supported by voluntary contributions from other mining districts and the public. If Durham came out large support would be cut off, and the state here rendered more dangerous. In Northumberland and Cleveland arbitrations were proceeding. There was only two weeks' money in the funds, therefore the best policy was to accept arbitration. Facing these circumstances they advised the acceptance of arbitration. The employers would be compelled to show sufficient reasons for a reduction. If this were not done no umpire would reduce the wages. This advice was accepted at the Council on 8th March, and it was resolved to refer the whole matter to arbitration on the prices and wages ruling at hearing of the last case, that Mr L. Jones and W. Crawford be arbitrators, and the preparing and conducting of the case be left to the Executive Committee. On March 10th they met the employers, and made arrangements for the proceedings and the withdrawal of the notices, and

they informed the members that in every case where the workmen had given notices they must at once be withdrawn.

The first meeting on the arbitration case was held on April 15th in the Queen's Head Hotel, Newcastle. The Right Hon. W. E. Forster, M.P., was the umpire. The arbitrators for the employers were Mr W. Armstrong and Mr D. Dale; for the workmen Mr L. Jones and Mr W. Crawford. The case was a dual one, a combination of the Miners' and Cokemen's Associations. The latter agreed to accept the statement made by the employers in the miners' case and then put in a separate reply. The following was the order of the procedure:—The employers stated their case. Then the miners replied on the first day. Second day, the owners' reply to the miners, the miners' rejoinder; the cokemen's reply to the employers, then their reply to the cokemen. The third day's sitting was taken up by the cokemen's rejoinder. The same arbitrators acted in both cases, but Mr Jackson Wilson presented the cokemen's case. The umpire gave his award on the 23rd of April—the reduction being five per cent. from the underground wages and four per cent. from those of the surface men.

At the Council meeting held on May 4th a resolution was carried urging upon the Miners' National Association to use their influence to have established an important Board of Arbitration, such Board to say: "First, what amount of interest ought to be claimed for capital invested in coal-mining operations; secondly, whether or not the books showing the profit and loss accounts of the employers ought to be laid before the Arbitrators in deciding a matter in dispute as to the rise or fall of the wages of their workmen; and thirdly, what portion of the profits ought to go to the capitalist and what portion to the labourer."

The programme for a Council meeting held on 21st August 1875 contained a resolution dealing with the providing of a better class of houses.

"That we appeal to the owners to have better houses right throughout the county for the members of the Durham Miners' Association, and not to make such difference between brakesmen and members of the Association. We believe that one man has the same right to a good house as another."

In the balance sheet for the first quarter of the year is found an item relating to the Coop Colliery—3100 shares in the Coop Mining Company, £15,500. For some time, and especially during 1874, the idea of a co-operative mine had been agitating the two northern counties. Meetings were held in various parts, addressed chiefly by gentlemen from Northumberland. The idea fell upon good ground in Durham, for from time to time it was found on the Council programme, and, so far as the Association is concerned, bore fruit in the shares mentioned. The fruit was not merely collective, but on every hand those who could took out shares, even to the extent of all their savings. The Committee of management were:

Dr J. H. Rutherford, Mr W. Crawford.
Chairman.

Mr T. Burt, M.P. Mr J. Forman.

Mr J. Nixon. Mr W. H. Patterson.

Mr R. Young. Mr J. Byson.

Mr J. Brown. Mr G. Fryer.

Mr R. Cramon. E. Lowther, Secretary.

—all good men, and, if it could have been established, would have been. They were all tried co-operators and ardent believers in productive co-operation. But the enterprise was doomed from the first. The name of the colliery was Monkwood, near Chesterfield, Derbyshire.

On the 25th of September 1875 the Committee submitted a balance sheet for the year ending 30th June. The auditors were Benson, Eland & Co. They informed the members that after depreciation as per rule the net loss up to date was £10,863, 15s. 8d. The Committee in presenting the balance sheet said it had arisen from circumstances over which they had no control. The output of the colliery had never reached to their anticipations. The cost of production, and the unsatisfactory state in which the Society found the colliery, had occasioned the loss. The vendor had not truthfully represented the output. They had filed a Bill in Chancery against him for the rescission of the contract and the return of the purchase money. The loss to Durham was £15,500.

On 6th November the ex-Committee was called upon to face the fourth reduction. They received a letter on that date from the employers conveying

to them a demand for twenty per cent. reduction from all underground earnings, including banksmen, and twelve and a half per cent. off all above-ground labour, to take effect from the 27th. The Committee replied protesting against the imperative way in which the demand was made, and resolved to ask the county whether a deputation should attend Newcastle to hear the reasons assigned for the reduction. The county agreed to send a deputation and offer open arbitration, the deputation being the Joint Committee, and that a Council meeting be held on the 27th to hear the report. The Committee met the owners on Monday, the 22nd, and the offer of open arbitration was accepted, the Court to consist of four arbitrators and an umpire.

1876

Death of Burdon Sanderson—Appointment of Mr Meynell—The third Arbitration—The General Treasurer and Executive—The new Hall—Deputies' Association

JOINT COMMITTEE CHAIRMAN

In January 1876 the Joint Committee chairman, Mr R. B. Sanderson, was in a serious railway collision on the Great Northern Railway at Abbots Ripton. He was not killed outright, but was so seriously injured that he died shortly afterwards. He was the first chairman, and sat all through the meetings up to his death. The Joint Committee at their meeting on January 28th passed a resolution paying high respect to his character and to his ability and impartiality in his decisions. From that time until 11th September the chairman was selected from the meeting *pro tem*. On that date Mr Meynell was appointed, and from that time until his death in 1900 he occupied that position to his credit and with fairness to everyone concerned. It would be incorrect to say that no fault was ever found with him; but it is well known that at his death all who had been at the Joint Committee regretted it, and he has been sorely missed, because he had years of experience—experience which is worth a great deal in that position.

The proceedings in the arbitration did not proceed further in 1875, but rested over until January 1876. The arbitrators were the same as in the

previous case, and the umpire chosen by them was C. H. Hopwood, M.P. The advocates for the owners were Mr H. T. Morton, Mr Lindsay Wood, and Mr T. Wood Bunning, the Secretary of the Owners' Association, and for the workmen Mr J. Forman and Mr W. H. Patterson. The names of the Committee who assisted were:

N. Wilkinson. J. Holliday.
M. Thompson. W. Prentice.
G. Parker. J. Cummings.
C. Kidd. C. Cooper.
J. Crowther. F. Smith.
G. Jackson. J. Day.
G. Newton.

The first meeting was held on Tuesday, 18th January 1876, in the Queen's Head Hotel, Newcastle. There were two days' sittings. At the close of the sittings in Newcastle the arbitrators and umpire held a meeting in London on 16th February, when the umpire gave his award that there should be a reduction of seven per cent. underground and four per cent. on the surface.

Out of this case and the meeting in London there arose a serious disturbance. The treasurer (Mr Wilkinson) refused to pay the Committee for going to London. He alleged that they went without authority. They went on the vote of seven out of seventeen members of the Committee, the rest being either absent or lying neutral. Their going, he said, was a waste of public money. He finally showed there had been an extravagant expenditure and charges for unnecessary meetings. Along with his explanation he sent out a detailed statement in which it is shown that for one fortnight they had received sums varying from £7, 1s. 9d. to £11, 15s. 7d., or an average of £8, 14s. 11d. per man. For another fortnight the average worked out at £12, 12s. each. To this the Committee made a long reply, but all unavailing, for at the Council meeting held on March 4th, 1876, the following resolution was carried:—

"That the members of Executive Committee who went to London be expelled, and that they have no payment for going."

By another resolution the number of the Committee was reduced to nine.

The result was to leave only three Committee men to transact the business until a new Committee was elected. A word of explanation may be necessary. At the election of Committee in December 1875 three new men were elected. These were C. Simpson, W. Gordon, and J. Wilson. As the arbitration was proceeding when the election of 1875 took place the Executive Committee asked the members whether they should be allowed to continue in office until it was finished. This was granted, and as a consequence the newly elected members did not take their places until the decision was given. The Durham Miners' Triumvirate ruled until May 4th, when the full Committee was elected.

As a further result of the dispute between the treasurer and Committee certain rules were suggested by the Executive Committee and approved by Council on 29th April.

- (1) That in future there be no night sittings of the Committee.
- (2) For a long time, a custom has existed of the Committee, asking questions on their reassembling after dinner hours. These questions were put on paper during the forenoon and handed in to be read after dinner. It will be seen, that this practice can be abused, and made to lengthen out Committee meetings to any extent. That this practice be entirely abolished unless it be a mere asking a question from the Secretary. The question and answer to be printed on the Minutes; but no discussion whatever to be held on the matter.
- (3) That the General Secretary alone have the power both to call and disperse Committee meetings.
- (4) That the Committee have no power to either shorten their hours or alter modes of payment.

In a letter bearing date May 19th the employers made another demand for a considerable reduction of wages both above and below ground, and fixing Saturday, the 27th, as the date for a meeting upon the matter. On that date nothing definite was done, and an adjournment took place until 13th June. A special Council was called for June 17th, when lodges were asked to

instruct their representatives what should be done in the matter. In the meantime the Committee issued a circular, giving an account of the meeting with the employers, and informing the members that the owners' demand was for fifteen per cent. off underground labour and ten per cent. off surface labour, or they were willing to refer the whole question to arbitration in order to avoid a stoppage of work. They (the Committee) then urged the acceptance of arbitration at once. To refuse it would be to run counter to the efforts of working men in the past who "had fought some of their most severe struggles in trying to enforce arbitration as a means of settling their trade disputes." Many hundreds of thousands of pounds had to be spent before the employers would even recognise the right of the workmen to the merest inquiry in advances or reductions of wages. The employers claimed the right to be the sole judges in matters of that kind.

"When the employers arrogated to themselves the right to judge both for them and us, we were not slow in applying the words tyranny, despotism, and even villainy to their actions. Don't let us then be guilty of an imprudence, both by a repudiation of our own principles and going into a battle when everything is against us."

The Committee supported that bold and candid statement by drawing attention to the success which had attended the arbitration in the past. "If ever a body of men ought to be satisfied with a means of adjusting differences we ought with arbitration. It has in every instance so far immensely reduced the application of the owners. There is no other means by which we could have fared better. On every occasion the owners complained about the insufficient amount awarded them." The alternative to arbitration was a strike. That course would be madness. There was a complete stagnation in trade, nowhere more felt than in Durham. Pits were working half time, and there were hundreds of men who could not find an hour's work. To strike would be to jeopardise "an organisation which in the very short space of time has done more for its members than any other trades' organisation that ever existed." They urged other reasons in as forcible a manner, and concluded by saying, if arbitration were refused and a struggle entered upon, there could be but one end, "that of utter and terrible defeat for the miners of this county."

Towards the end of May preparations were being made for opening the new Hall, and a return was taken as to the mode of procedure. The place of meetings had been on a movable plan. At first the Committee meetings were held in 58 North Road, Durham. Then both Councils and Committees were held in the Market Hall. As the organisation increased the Councils alternated between the Shakespeare Hall and the Town Hall, and the Committees in the Western Hotel, Western Hill, Durham. The opening of the Hall took place on Saturday, June 3rd, the occasion being the consideration of a ten per cent. reduction at a special Council meeting. The cost of the buildings was £6000, and the architect, Mr T. Oliver, Newcastle—the council-room fifty-two feet by thirty-four; the tower thirty feet above the body of the Hall. The clock cost £130. The arrangements as to the lighting of the clock are: the city authorities pay for the gas, while the miners keep the clock in repair. For some time the City Council refused to bear the charge for lighting, and at first only agreed for six months as a trial.

There was no opening ceremony beyond a few words from the president, Mr Forman. The delegates took their places as per number of seat. Mr Forman then said he was glad to welcome them to their new Hall.

"The noble building had been built with the money of the working miners of the county of Durham. It was a great example of their forethought, their economy, industry, enterprise and unity, and he hoped that it would be one more link that would bind them together in the cause of mutual help and mutual endeavour, and be another great supporting prop to the noble edifice they had reared in their Association. He was sorry that the first business at the opening was to be the unpleasant one of discussing a ten per cent. reduction."

The first Council meeting was held in the new Hall on 17th June, and the first resolution was "that we refuse to send the reduction question to arbitration." The spirit of war was in the air, at least among the men who attended the lodge meeting to consider the subject at first. During the next week, however, a ballot of the members was taken, the result of which was declared at a special Council meeting—the voting being for arbitration, 20,190; against, 16,435; majority for, 3,755. There were resolutions passed to remit the question to open arbitration: That the Committee get up the case, but "if any person has to accompany the arbitrators out of the county,

only the two men who conduct the case do so." At the same meeting Mr N. Thompson and T. Mitcheson (two of the London Committee) were removed from the trusteeship, and their places filled by John Wilson, Wheatley Hill, and W. Gordon, Ravensworth.

The arbitration commenced on 29th August in the Queen's Head Hotel, Newcastle, the umpire being G. J. Shaw-Lefevre, M.P. The arbitrators for the employers were Mr W. Armstrong and H. T. Morton, Mr L. Jones and Mr W. Crawford acting again for the workmen. The advocates on the owners' side were Mr Lindsay Wood and Mr J. B. Simpson and Mr T. W. Bunning; for the workmen were Mr J. Forman and Mr N. Wilkinson. There were two sittings. There is no need to review the arguments or facts in these cases, as that would extend our work too much, but there is one interesting point advanced by the employers in their rejoinder to the workmen's case. It refers to the cost of production at that time over 1871. The increase was thirty-seven or thirty-five per cent. higher than 1871—the items being, wages 14.68 per cent., and the effect of the Mines Bill 22.67 per cent. Assuming that the cost arising from the operation of the mines was divided between employers and workmen—eleven per cent. to each—there was still 26.35 per cent. to the disadvantage of the employer. On the credit side coal was only 5½ or 8.8 per cent. higher than in 1871, and therefore their conclusion was that the claim for fifteen and ten per cent. reduction was amply justified. At the conclusion of the two days' sitting it was agreed that the arbitrators should meet on the 16th of September, and if they failed to agree the umpire would decide. That meeting took place, and the umpire was asked to decide, which he did on September 25th, and awarded a reduction of six per cent. in the wages underground and four per cent. in the wages paid to surface men.

No sooner was the arbitration finished than the Association found itself face to face with a difficulty of a different but yet perplexing nature. The employers conceived the idea of separating the deputies from the miners. Their reasons for taking this step are stated in a subsequent letter. The mode of procedure they adopted was to exempt the deputies from the six per cent. reduction, providing a majority of the deputies on any colliery would leave the Miners' Association. The employers said their action was in response to a request by some of the deputies. The action drew from the Executive Committee a strong remonstrance. They pleaded with the deputies and

protested against the action of the owners. The circular they issued was a lengthy one. Our object will be served if we quote a few portions. Addressing the deputies, they said:

"It appears in response to some application made by some of you the Owners' Committee have agreed that where a majority of deputies on any colliery are not members of ours, they will recommend that such deputies be freed from the recent reduction. Call this offer by what name you will it is neither more nor less than a special kind of bribery held out to you and we regret to hear, that some of you have been imprudent enough to accept it. Why make this difference between those who belong and those who do not belong to our Association? It is not because they respect the one party more than the other, or that the party who have left us are any better workmen or in any way more useful to the owners than those deputies who still belong to our Association. The most unknown amongst you as to your past history, or the most casual observer of present doings, ought to know that the motive which has induced the Owners' Committee to make this offer is not respect for you as a class, is not because they think your responsibilities are increased more than heretofore, neither is it because they think you underpaid, but it is because they want to induce you to sever your connection with an Association which has hitherto been able to gain many advantages for members and for none more than for your class. They offer you an inch now in order that they may take from you a foot hereafter. Most of you can remember the time (only five years ago) when your wages varied from 3s. 4d. to 3s. 8d. per day of eight hours' working, while with the recent reduction of six per cent. your wages are now 4s. 8d. for 7½ hours' working, or an advance in time and money of 39.58 per cent."

The circular then draws attention to a portion of a letter from the deputies who had left the miners to those of another colliery, and to the resolution of the Owners' Association. The portion of the deputies' letter said:

"If any member of our [the Deputies'] Association leaves and starts to hew, and has to go back to the Hewers' Association, the two pounds' entrance fee will be paid out of the Deputies' Association."

The resolution of the Owners read:

That this Association thinks that deputies, like overmen, should be the agents of the masters, and that under these circumstances it is imperative that they should not be restricted by any Trades Union resolutions.

In relation to these the Committee point out that they (the deputies) could not honestly be members even of the Deputies' Association, for by the stipulation of the employers they were not to be restricted by any Trade Union regulations. "It will thus be seen that if you do this, you sell your birthright, your independence, your manhood, your all, not even for a necessitous 'mess of pottage' but for an insignificant present advantage, in order that you may bring upon yourselves a future permanent and great evil."

Some of the deputies were desirous of serving two masters: they wanted to remain in the Miners' and at the same time enter the Deputies' Association for the sake of the six per cent. At the Council held on Saturday, 30th September, a resolution was carried declaring "that the Deputies be not allowed to remain in our Association and also become members of what is called the Deputies' Association." At the same time a sharp correspondence took place between the Owners' Association and the Miners', in which Mr Bunning sent a letter, bearing date 3rd November, which contained a protest and an extenuation.

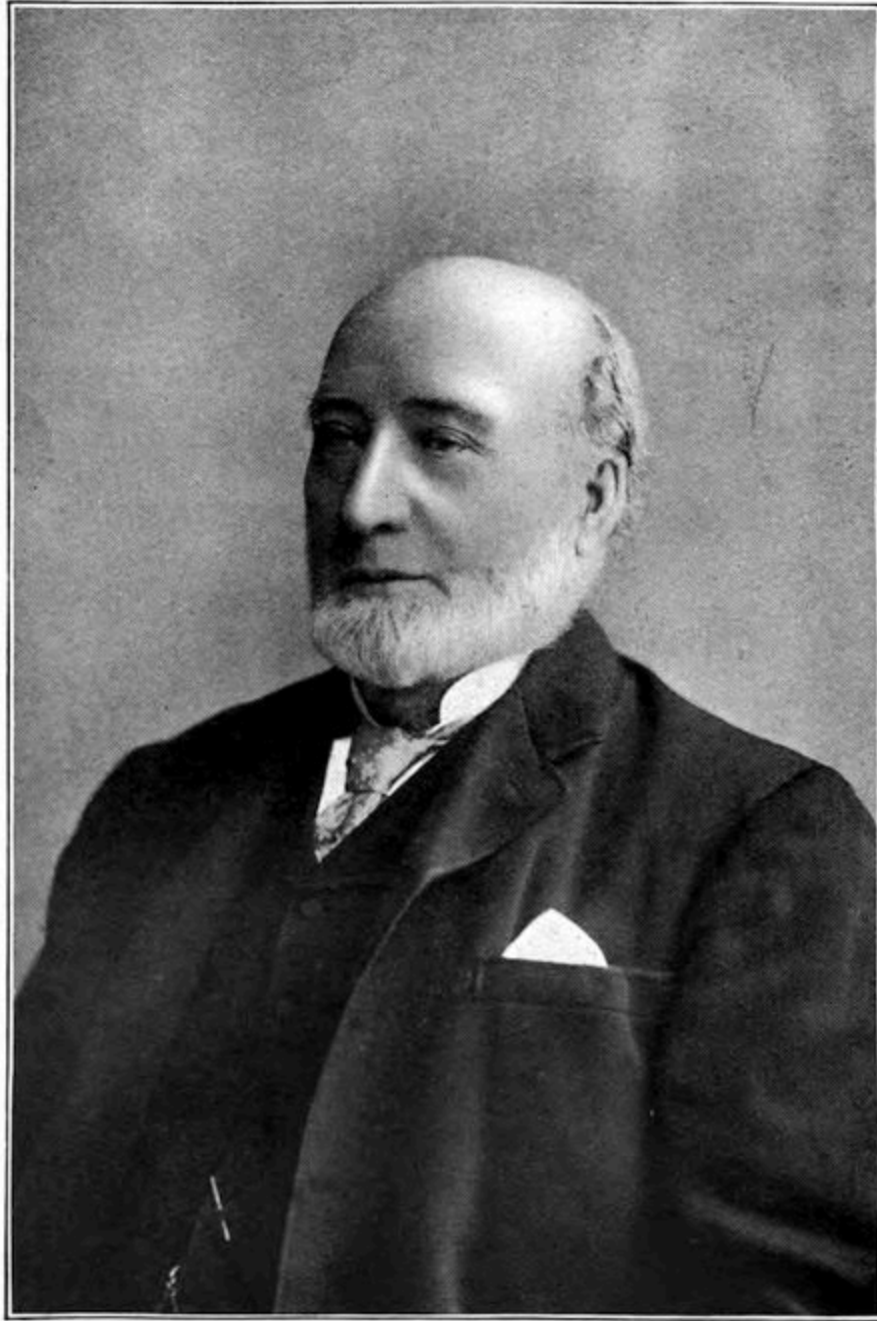
November 3rd, 1876.

RESOLUTION OF COAL OWNERS

The members of this Association regret that the Representatives of the Miners' Association after five years' amicable correspondence, should have thought it necessary to communicate to them so uncourteous and offensive a document as that bearing date 24th October 1876, and relating to the resolution passed respecting the deputies, on October 11th, 1876. And, as this resolution was arrived at after mature deliberation, and from the conviction that both the safety of the mine, and discipline of the pits, are seriously endangered, by having the deputies subject to the restrictions imposed by the Miners' Union, no

good can possibly arise from any discussion of the subject at a meeting of the two Associations.

The reply sent by the Executive repudiated all intention to be uncourteous or offensive in language, but at the same time they repeated the charge of bribery, for, said they, "viewed from the most favourable standpoint, your action in the matter can only be characterised as that of holding out a manifestly unfair inducement to the deputies." They asked what the employers would have thought, if, having the power, the Miners' Association had held out inducements to charge men? They reminded the owners that they asked for a reduction off all wages, and the award of six per cent. applied to all underground labour. Considering these facts they could not but look upon the action as a covert attack on the Association.



JOHN FORMAN

The Executive acting on instruction from Council took a return, which resulted as follows:—

Total number of Deputies—2557.

Total number in our Association—936.

Total number in Deputies' Association—1621.

Total number paid old wage—1449.
Total number paid reduced wage—1044.

1877

Deputies—Sliding Scale—Relief Fund—Emigration

The dispute about the deputies opened the year. A very lengthy correspondence took place on the subject between the Employers' and Miners' Associations. On January 23rd the whole of it was sent to the lodges. They were informed that the Committee had done all they could to avert a conflict on the question. In keeping with a resolution of Council, the owners had been offered arbitration, which they had refused. The resolution referred to contained the alternative of giving the whole of the notices providing arbitration was refused. Now, to carry out the instructions contained in that resolution the Committee forwarded the ballot tickets for the purpose of taking the vote in accordance with the rule. They concluded by saying: "Whatever the result may be arising out of this case the entire onus of blame must rest with the owners themselves." A resolution was placed on the programme for Council on February 3rd by the ex-Committee asking "that the deputies who are still with us be paid the 6 per cent. out of the General Fund of the Association," but it lost. In addition, the subject was laid before the Central Board of the Miners' National Union. They expressed regret and surprise at the action of the employers in paying one portion of the deputies more than the others, and were of the opinion "that there can only be one object in view in this policy, the disruption of the Miners' Union. The Board earnestly appeal to the mine owners to withdraw from the position they have taken up. Should they fail to do this the Board will feel called upon to ask the members of the National Union to yield all the support to the Durham Miners' Association they can under the circumstances." Nothing further was done in the matter during 1877 except an occasional Council resolution. We shall, however, meet the same question in a few years.

THE FIRST SLIDING SCALE

Early in the year the Association was entering seriously into a new phase of our industrial relation with the employers and taking another step in the path of amicability by the arrangement of the sliding scale. For some time there had been an inclination in that direction. By the Minutes of the Executive Committee members were informed that negotiations were proceeding with a view to establishing a scale, and at the Council meeting held on December 9th, 1876, the following resolution was on the programme:—"Seeing that coals are up, we ask for 25 per cent. advance." The decision was that the question rest over until the sliding scale question is settled.

On February 16th a letter was received from the employers containing the following resolution:—

"This Association having anxiously considered the further serious depression in the Durham coal trade and the necessity for endeavouring to avert in some prompt and thorough manner the complete collapse which has set in to the ruin of many owners, and the casting adrift of large bodies of men, feels compelled to ask the Miners' Association to concur in a further reduction in wages and readjustment of hours."

The Executive Committee met the owners on Thursday, February 22nd, when they were informed that the depressed trade and lower prices demanded a reduction of ten per cent. from underground and six per cent. from the bank workmen, "coupled with an increase in the working hours which would, in a great measure, compensate the men for the reduction in their wages." The Committee could neither see the necessity for a reduction nor could they see the compensation in the lengthening of hours. They, however, arranged another meeting for Friday, 9th March, when they would further discuss the sliding scale, and, failing that, the reduction. In the statement explaining these proceedings the Committee placed before the members two scales—one proposed by them and the other by the owners. It will be interesting and instructive to give these scales.

December 22nd, 1876.

SLIDING SCALE PROPOSED BY THE DURHAM COAL OWNERS

<i>Price</i>	<i>Per cent.</i>	<i>Wage</i>
s. d.		s. d.
5 2	0	4 8.0
5 10	5	4 10.8
6 6	10	5 1.6
7 2	15	5 4.4
7 10	20	5 7.2
8 6	25	5 10.0
9 2	30	6 0.8
9 10	35	6 3.6
10 6	40	6 6.4
11 2	45	6 9.2
11 10	50	7 0.0
12 6	55	7 2.8
13 2	60	7 5.6

January 2nd, 1877.

SLIDING SCALE AS PROPOSED BY THE DURHAM MINERS' ASSOCIATION

<i>Price</i>	<i>Per cent.</i>	<i>Wage</i>
s. d.		s. d.
5 6	0	5 0
6 2	5	5 3
6 10	10	5 6
7 6	15	5 9
8 2	20	6 0
8 10	25	6 3
9 6	30	6 6
10 2	35	6 9
10 10	40	7 0
11 6	45	7 3
12 2	50	7 6
12 10	55	7 9
13 6	60	8 0

In the explanation sent out it was shown that each scale would carry a minimum wage. Theirs would be five shillings, while the employers' would be 4s. 8d. The wages in the scale were for coal hewers only. The reduction the employers were asking for would bring the wages down twopence per man below the lowest wages offered in the owners' scale. They asked the members to leave the question entirely in their hands, as in their opinion a better settlement would be got than by any other way. A special Council was called for the 8th of March, and two subjects were sent out for discussion—(1) Should a sliding scale be adopted; if so, under what condition? (2) Should the owners be offered arbitration? The result was that the arranging of the scale was placed in the hands of the Committee, and on 14th March the first sliding scale was signed for two years.

THE FIRST SCALE

The following scale shall regulate the wages of hewers and labour below ground:—

SCALE

Price		Wage
at and above	but below	
	5 4	7½ per cent. reduction
5 4	5 8	5 " "
5 8	6 4	Present Rate
6 4	7 0	5 per cent. advance
7 0	7 8	10 " "
7 8	8 4	15 " "
8 4	9 0	20 " "
9 0	9 8	25 " "
9 8	10 4	30 " "
10 4	11 0	35 " "
11 0	11 8	40 " "
11 8	12 4	45 " "
12 4	13 0	50 " "
13 0	13 8	55 " "
13 8		60 " "

And so on.

It will be observed that the grades were eightpence, and for that amount the change in wages was four per cent. Next, there was to be a minimum wage of 4s. 8½d. per day. This is worthy of special notice in the light of subsequent events, especially during the time the minimum existed, which was until 1879, and especially in view of the desire of many people to have a minimum established again. Another point was the amount of reduction, which would depend upon an ascertainment by accountants. Messrs Monkhouse, Goddard & Miller acted for the owners, and Messrs Benson, Eland & Co. for the workmen. The ascertainment was made known on the 31st of March, the average net price realised being certified at 5s. 3.97d. The Committee accompanied the ascertainment with a short circular, and informed the members "that a reduction of 7½ per cent. on underground men and boys and 'banksmen' wages and 6 per cent. on 'bankmen's' wages will take place on the pays commencing April 2nd and April 9th."

THE FIRST RELIEF FUND

As a consequence of the depressed state of trade very large numbers of men were thrown out of work, and the rules of the Association made no provision for them. Opinion had been ripening for some months, and the Committee realising that the time was opportune, and acting on a Council resolution, suggested the formation of a Relief Fund. In furtherance of the object they sent out the following:—

SUGGESTIONS FOR RELIEF FUND

Fellow Workmen,—At last Council meeting, you put into the hands of the Committee, the work of suggesting some plan to relieve the numbers of men now idle at various collieries in the county. After mature consideration, they suggest the following as a means of forming a Relief Fund:—

1. To take from the General Fund the sum of five thousand pounds to form the nucleus of such Relief Fund.

2. That this Fund be afterwards kept up by the payment of a levy, or extra contribution, of 2d. per member per fortnight.

These two are the basis of their suggestions, details can be discussed and arranged afterwards. But to make these suggestions—and especially the second one—a success, the Committee believe that the county will require to have brought before them our exact position. The best, if not the only, means of doing this is to hold a series of public meetings at the various lodges and districts in the county, grouping lodges together where such can be done. What they now ask is, can they have your consent to assist the agents in attending such a series of public meetings? It is the only means of rendering successful the getting of necessary means and would not cost more than an ordinary Council meeting.

In support of their proposals they adopted two modes of advocacy—first, to issue a circular, and second, to hold a series of meetings at all the lodges. This latter step they considered most essential, as they would thus be enabled to state the matter more clearly by speech and answer to the members. This view they placed before the lodges, and received sanction with very little objection; and, acting upon it, they arranged themselves into deputations of two each, and for about three weeks either addressed lodge meetings or groups of collieries where convenient, and as a consequence the Relief Fund was formed on the lines suggested. While it existed it proved itself a very useful institution for that period, which was the darkest through which the Association had to pass.

The amount paid, although small, was useful to the public as well as the members—to the latter by easing off the pinch of poverty, and to the former by the help to the rates, which would assuredly have been much more heavily weighted if the fund had not existed. It only existed a year, however, for the Committee placed a statement before the county on November 2nd which showed that, while there had only been £4144 contributed to the Relief Fund, the expenditure had been £9695, and that, adding the £5000 grant from the General Fund, the expenditure had exceeded by £551 the whole amount paid into it.

During 1876 and up to July 1877 the agents had acted as emigration agents, and had been very useful in their advice to people who were inclined to emigrate by giving them advice upon points and matters of importance to them. All they did was done free of charge, and only with the view to help those who were members of the Association; but as in every movement there are men of the "viler sort," whose envy prompts them to attribute ill motives to those they envy, so in this case there were some who, instead of giving the agents credit for good motives, were not slow to charge them with selfishness and exploiting the volume of emigration for their own benefit. The agents bore this until the Council meeting held on July 21st, when Mr Crawford and his colleagues resolved to give it up. In doing so they gave their reasons in the following circular:—

EMIGRATION AGENCY

To the Members.

Gentlemen,—As announced at Council Meeting on Saturday last, we intend to give up the agency. It was taken with two objects—(1) To have ourselves well posted up in emigration news, so that we might be able to give the best advice possible; (2) to aid our members by allowing them the commission money, which is a very important item indeed. It was not taken with the view of making one penny of profit, but solely to assist our members by advice and also an abatement of their fares. But as some poltroon fellows, who are directly interested in getting emigrants in order that they may get the commission money, are causing some stir, and as, further, some of our lodges are listening to their statements, we think it necessary to give it up. You will be the only losers by it, but remember that it is amongst our own members that the real grumblers are found.

1878

The Hours Arbitration—Position of the Association—Federation Board

The first item of interest in 1878 was initiated on 15th March by a letter received from the employers *re* the lengthening of the coal-drawing hours. It was addressed to Mr Crawford as follows:—

Dear Sir,—I am desired to inform you that the present state of the coal trade in Durham seems to render it imperative to extend the hours of work and increase the facilities for drawing coal. And that the members of this Association would be glad to discuss the matter with you and your Committee with a view to arriving at some decision on the subject.

Could you fix Thursday next, the 21st, at two o'clock to meet our Committee here? An answer at your earliest convenience will oblige.

The Executive met the employers as requested, and found that the change was to increase from ten hours to eleven all the collieries working ten hours, that drawing time being the outcome of an arrangement. The owners were reminded that it was inconsistent with the sliding scale, and the demand should be withdrawn. They replied by quoting a portion of the scale: "Both parties shall remain at liberty to raise any question not inconsistent with the maintenance of the sliding scale." "Should any dispute arise as to the carrying out of these arrangements the question in dispute shall be submitted to the chairman of the Joint Committee, who, if he cannot act, shall appoint some other umpire to act in his place. The award in either case to be final." These were discussed at great length; finally three proposals suggested by the Executive Committee, subject to the approval of their members, were agreed to:

1st. Is it consistent with the sliding scale to even discuss a lengthening of the hours?

2nd. If it is consistent with the sliding scale to discuss the matter, is it necessary to lengthen such hours?

3rd. If the hours are lengthened, should there follow any increase in wages, and if so, how much?

The Committee were not sure whether the full body of owners would agree to them, as those present at the meeting objected to No. 2 being a question of reference. They informed the lodges that Mr Meynell had fixed 9th April for the hearing of the case. They were convinced that the employers could make the demand under the arrangements, and therefore all that was necessary was to say how many persons should attend and who they should

be. The question was eventually placed in the hands of the members of Joint Committee to make the best settlement they could. On 15th April Mr Meynell gave the following award:—

COAL DRAWING

(Award)

Whereas the Durham Coal Owners' Association, being of opinion, that it is absolutely necessary that the working hours of all men and boys above 16 years of age should be increased, if they thought fit to place it before me, and to leave me to decide the question. And whereas it was also agreed that the following questions should be left to me for my decision:—

1st. Is it consistent with the sliding scale to discuss a lengthening of the hours?

2nd. If it is consistent with the sliding scale to discuss the matter, is it necessary to lengthen such hours?

3rd. If the hours are lengthened, should there follow any increase in wages, and, if so, how much?

Now, having heard and carefully considered the arguments on each side, I award, decide, and determine that it is not inconsistent with the sliding scale to discuss the question of lengthening the working hours; 2nd. that it is necessary to lengthen such hours; 3rd. that there should be an increase in the wages where the hours are lengthened.

I award and decide that the working hours of all men and boys above 16 years of age shall, or may be increased in accordance with my award, that the minimum wage to be paid to the hewers shall be, when the pit works 10½ hours, 4s. 10½d.; and when the pit works 11 hours, 5s. 0½d.; and that the wages of the datal men shall be increased in strict arithmetical proportion to the wages they are earning at the time of such increase in the hours. I determine that the increased hours shall or may commence on and after the first pays after the date of this my award.

As witness my hand, this 15th day of April 1878.

E. J. MEYNELL.

There immediately arose some dispute as to the application of the award, and he was called upon to define it, which he did in a decision given at Joint Committee on May 10th.

May 10th, 1878.

"I further award and decide that where the working hours shall be increased in accordance with my award, that the minimum wages to be paid to the miners shall be where the pit works 10 hours and a half, 4s. 10½d. and where the pit works 11 hours, 5s. 0½d. is intended to mean—that where the hewers are increased one quarter hour per shift, the county average wage shall, in that case, be considered as 4s. 10½d. instead of 4s. 8½d. as hithertofore; and where their hours are increased half-an-hour per shift, the county average wage shall be 5s. 0½d. instead of the present average of 4s. 8½d.

It is also intended that the working hours of any or all classes of workmen may be increased on the payment to them of proportionate increased rates as set out in the award; and that the maximum working hours for drawing coals be 11 hours per day in day-shift pits, and double shifts proportionately."

The employers then asked that there should be an allowance for the time taken by boys under age descending and ascending. With the ten hours the boys under sixteen came out after coal drawing was done, but under the eleven hours some were taken in at six A.M. and "rode" at four P.M. Some were taken at seven A.M. and came out at five P.M., when the coal drawing finished. There was, therefore, a loss of time at either seven or at four, and this should be allowed for. The matter was arranged on the following principle:—Whatever time was taken either at seven to send the under-age boys down, or at four to bring them up, should be added to the eleven hours. If it took ten minutes, then the coal drawing would be from six A.M. to five-ten P.M., but in no case was the time allowed to be more than a quarter of an hour.

POSITION OF THE ASSOCIATION

As the year progressed the trade became more depressed. Pits were being laid in or batches of men were being discharged. The price of coals was rushing down; the ascertainment for the four months ending November showed the average was 4s. 7.65d. per ton, a reduction of 8.32d. per ton since the scale was established without any reduction in wages. The evil of this was seen in the numbers of men being discharged and in the sad falling away in the membership. The extent of this may be gathered by a reference to the Executive Committee Minutes for May 13th. Without mentioning names here, suffice it to say that at one large colliery a deputation was sent from the Executive with power to "appoint someone to act as checkweighman and secretary and to guarantee his wages for six months," and that if the men at that colliery wished "the President attend as either steward or treasurer." The state of the county was growing so desperate that the Committee issued two circulars, the object being to place it clearly before the members. In the first they dealt with the Relief Fund. They commenced by saying:

"We are passing through a crisis in the coal trade, and during its continuance every step we take requires careful watching. We may even find it necessary to retrace our steps, by undoing what we have hitherto done. We are well aware, that to many men this kind of conduct seems to portray a want of stability and necessary perseverance. Perseverance in a good and successful cause is highly commendable, but to persevere in a course of conduct, where perseverance means ultimate ruin is neither wise nor commendable. A renowned writer has said that "while fools persevere in their ways, wise men change their opinions and course of conduct." A body of men who either cannot or will not adapt themselves to existing exigencies must not expect success to attend their efforts."

Passing from these calm, wise words of warning they bring before the members the position of the Relief Fund. A year prior they (the Committee) had asked them to subscribe to assist those thrown out of employment by the bad condition of trade. To this there had been a response of twopence per fortnight. That had not been adequate to meet the demand, and the

twopence had been increased to fivepence. Still the income did not keep pace with the outlay. For the six weeks previous there had been a loss of £2145. There was not only this monetary loss, but there was the more serious one, its effect on the membership.

Thousands of members are refusing to pay the fivepence per fortnight, and great numbers of men have left the Association, so that we are not only losing the fivepence but their ordinary labour contributions. This being our position, we would strongly advise you to at once abolish the payment of the Relief Fund levy.

While this was their opinion they would continue the benefits for three months. At the Council held on 15th June it was decided "that the benefits of the Relief Fund be continued for 12 weeks longer, but the contributions cease forthwith and the money required to meet the demands thereof be taken from the General Fund." This was done in order that the men in receipt of relief should not suddenly have their small resources cut off, but should have a little time to look round.

The second circular dealt with the General Fund in its relation to the demands upon it. As a preface to their suggested alteration they said:

The history of Trades Unions during the last 30 years would form a very curious chapter in the annals of our country. The vicissitudes which have happened to organised bodies of workmen have been manifold, and varied; but the disastrous consequences which have so often overtaken them have generally been the result of a want of policy, prudence, and forethought, on the part of those who have composed such Associations. It is just as much the study of those who have the more direct management of Associations like ours to look facts fully in the face before it is too late, as it is that of the head of a household to weigh his position and measure his stores both present and prospective, before he rushes into irretrievable ruin. Believing this to be our duty we now place before you our position both present and prospective.

They then point out that the expenditure was just double the income. During the previous nine months there had been £20,000 drawn from the deposit

account. In the face of these facts there needed to be retrenchment. They then show that in 1869 the contribution was fixed at 6d. per fortnight, while the strike and breakage allowance was 10s. per week (and a colliery must be off two weeks before receiving anything), and the sacrificed allowance was 13s. per week, with 1s. per week for each child. These benefits continued until 1872, when work was plentiful and wages good. Then the strike and breakage allowance was raised to 15s. (and only to be off a week before being entitled), and the sacrificed allowance was made 20s., with 2s. 6d. for each child, per week. They therefore suggested a reversion to the original payment (except in the case of the week) and the reduction of the death legacy for children from £3 to £2, and they wound up by saying:

"It is not now a matter of choice, but one of positive compulsion. An Association wanting money is like a ship wanting a rudder in a boisterous sea. We would soon find ourselves driven on to the rocks of discontent, disaffection, and disunion, and in all probability shattered to pieces in the struggle. To pursue longer the course we are now pursuing must shortly leave us in that pitiable and helpless condition."

A special Council meeting was held on 11th October which gave sanction to the whole of the Committee's recommendation.

FORMATION OF THE FEDERATION BOARD

As soon as the other sections of labour had formed themselves into separate organisations in 1873-4, there sprang up a desire for a federation of forces, and from time to time there appeared resolutions on the Council programme all aiming at that end. In this year it took a more definite shape. On the Committee Minutes for January 28th there is a resolution as follows:—

That a deputation of three agents attend a meeting of cokemen, mechanics and enginemen as to the amalgamation of all those Associations.

In October a meeting was held at which a set of rules was drawn up and sent out to the county with an explanation. The members were informed that the suggestions were not unalterable, but in their crude form were

submitted subject to their approval or amendment. And they were informed that:

"The Federation was formed to protect their joint interests. There might have been divisions but these must be forgotten. The workmen were unconnected, whilst acting against a thoroughly organised body of owners. There had been no cohesion, nor the remotest understanding, while at the same time they were dealing with the same combined body of capitalists. It must be clear to everyone that while in our present divided condition and negotiating with owners who act as one body we must be placed at a very serious disadvantage."

The county approved of the idea, and on November 13th the rules were issued to the county. At the Annual Meeting held on 6th December the first members of the Board were elected. Their names were J. Forman, W. Crawford, W. H. Patterson, N. Wilkinson, J. Wilson, and W. Johnson. Slightly anticipating the events happening in 1879, and for the purpose of keeping ourselves in as close sequence as possible, it may be stated here that the first meeting of the Board was held on January 28th, 1879, when Mr Crawford was appointed secretary, and Mr J. Dover (mechanic) treasurer. With respect to the chairman, it was decided to appoint an independent one for six months. He should only have a casting vote, and be paid 21s. per day and expenses. At the meeting held on February 7th Mr John Coward of Durham was elected to that position, and occupied it for some months, and during the strike of 1879, assisted by his counsel. By being unaffected in wage by that stoppage he was able to bring a cool and dispassionate feeling to bear upon the questions in dispute. It is due to him to say he took no remuneration for his services.

1879

Demand for Reduction—Strike of 1879—Dual Arbitration—Renewal of Sliding Scale

The Board was just formed when it was called upon to face one of the most serious crises in our history. At the Council meeting held on December 7th, 1878, it was decided that the average wages in the county should be taken, and that the formation of another scale should be remitted to the

Committee, with power to renew it. The Committee were not satisfied with that indefinite resolution, and asked for more explicit instructions. There were certain alterations required, and therefore they asked for "full and uncontrolled power." They knew that in adopting that course they would risk a large amount of unpleasantness, but they were willing to risk it if they were assured of the confidence of the majority of the members. Further, they asked that the retiring members of the Committee should be allowed to remain in office until the scale was arranged and the crisis over. These requests as to power and suggestion as to the Committee were both accepted. The formation of the Federation Board, however, somewhat altered, and at first complicated, the situation, for the result was a complex and dual authority. The Board was not then, as now, the sole conductor of the wages disputes, but the various Committees acted collaterally, the Miners' Committee taking the leading part in the negotiations. The demands made by the employers were handed to the Miners' Committee on February 4th. The conditions were as under:

- (1) That a reduction of 20 per cent. on present underground wages is a condition precedent to the re-establishment of a sliding scale.
- (2) That a reduction of 12½ per cent. should be made in surface labour, but so that the wages of able-bodied men be not brought below 2s. 6d. per day.
- (3) In the event of a scale being established, it shall have no limit upward or downward, and shall be subject to termination on 12 months' notice.

The Committee could not grant the request, but at once made an offer of seven and a half per cent., to take effect on Monday, the 10th, or they would submit the entire matter to arbitration. These offers were refused by the owners, and as a consequence the meeting was adjourned until the 20th. The Committee called a Council for the 15th of February. On the 7th the Federation Board met, and passed the following resolution:—

This Board feels that the position of the county in reference to wages is anomalous. The owners having as a body demanded a reduction of wages, and as such reduction includes all classes of labour in

connection with collieries, we recommend that each Association call a Council meeting to discuss the advisability of adjusting a sliding scale for the regulation of wages, consistent with all our interests.

That the Secretary write and ask that at the meeting on the 20th inst. all the four Associations be represented.

The Miners' Council decided against the seven and a half per cent., but by the following resolution offered arbitration:—

"That having heard the report of the Committee on their interview with the owners on the reduction now asked by the latter, this meeting is of opinion that the best means of settling the difficulty is, to refer it to open arbitration as heretofore."

The owners refused to meet the Federation Board as a whole, and as a consequence the Miners' Committee met them on the 20th, in keeping with the Board Minute, on February 18th. At that meeting the owners modified their demand.

OWNERS' MODIFIED OFFER

February 22nd, 1879.

"1. That a reduction of 10 per cent. in underground, and 7½ per cent. in surface labour, be brought into operation in the first pay beginning March next.

2. That the additional 10 per cent. in underground, and 5 per cent. in surface labour, claimed by the owners in their Minute of January 11th, be referred to arbitration in the following manner, viz.:—

Representatives of the two Associations to meet within the first week of March, and if they can agree on a sole arbitrator, the matter to be forthwith referred to him; and if they cannot so agree, each side to appoint an arbitrator, which two arbitrators shall forthwith appoint an umpire, and if they fail to do so by March 15th, such umpire shall, on the application of either arbitrator, be appointed by Mr Meynell, County Court Judge of Durham.

In the event of there being two arbitrators and an umpire, they shall sit together to hear the case; and the award shall take effect in the first pay in April.

3. The expediency of re-establishing a sliding scale, to be left for consideration after the award has been given."

This was submitted to the Federation Board, who met the modification by the following:—

FEDERATION BOARD'S OFFER

March 6th, 1879.

1st. To offer the owners the 10 per cent. for underground workmen, and 7½ per cent. for bank workmen as a settlement of the whole question.

2nd. To offer them 7½ per cent. from underground, and 6 per cent. from above-bank workmen, and to refer any further claim they might make to arbitration.

The Miners' Committee supported the Board, and did this in a circular which contained some very plain and urgent statements.

"At best, the lookout is but a gloomy one, and we must try to bridge over the difficulty as best we can, and if possible, without the pits being stopped. We have no wish to descant on the generally depressed condition of trade, or the evil effects producible by a large surplus number of men. At the present time, both these things are operating amongst us, and the owners know this, and seem determined to use them in this crisis. Looking at the general condition of things, we would very strongly advise you to adopt one of the suggestions contained in this circular. They are the best we can get at the present time, and a refusal of one of the methods suggested cannot result in better terms for the great body of our members. You must remember that these are times when prudent men do the best, and get the most they can without running all the risks which always attend a stoppage

of the pits when trade is paralysed and men both suffering and disorganised."

Immediately these offers were made known there arose a fierce agitation in the county, and on every hand mass meetings were held protesting against the terms. As is the case in matters of this kind, orators vehement if not polished sprang up from every quarter, whose stock-in-trade consisted of foul epithets which they hurled at the Committee and Federation Board. So desperate was the situation that certain of the Committee were in fear, and came into public view as little as possible. A personal incident may be excused here. A mass meeting was held on the sands in Durham. The writer, as chairman of the Wheatley Hill Lodge, marched to it. The first words heard were: "There's one of the——; let us put him in the river." The crowd surged and rocked. What the consequence might have been it is hard to tell, but just when the feeling ran highest and he was most in danger a man was knocked back over on to a drum which stood end up, and it went off with a loud report, and the cry was: "They are firing guns." In a moment a panic seized the people, and, as is recorded of the battle of Stanhope over the moor hen, "those who ran fastest got soonest out of town." There was a low wall (low on one side, high on the other) over which hundreds fell head foremost, and a good, kind lady who had come from Wheatley Hill to take care of her husband (the man whose presence was the cause of all the hubbub) was carried away by the crowd, and was so rushed along by the panic-stricken stream of humanity that she was with twenty others landed in a stable, the door of which stood invitingly open like a city of refuge. And so the result was the meeting was disturbed, and the culprit, one of the malodorous Committee, was left unhurt, Providence in the shape of a drum being the means of saving him.

Apart from the ludicrous incident of the bursting drum the feeling manifested towards the Committee there was only on a par with that found everywhere throughout the county. If one of those at the head of affairs appeared in the street and passed a group of men insult was rampant—slander, being cowardly, feels safe in a crowd. Still the Committee were not to be driven from their task. They regretted the action of the employers in refusing open arbitration, and who, knowing the condition of the Union, were determined to force their full demand; and they were sorry for the opposition of their members, but they knew they were moved by sheer

desperation, and played upon by designing men who cared more for popularity, even if it were fleeting, than the welfare of the Union, and who would not hesitate to bring ruin if perchance small gain would come to them from it.

The Committee prepared for the struggle which they saw was inevitable if the employers did not move from the position they had taken up. Knowing this they set themselves to ascertain the true state of affairs in the county. They took the actual average of the hewers and reductions which at each colliery had been suffered at Joint Committee, or had been forced upon them since March 1877, with the hewing prices. It was found that while there was a nominal minimum wage of 4s. 8½d. where the drawing hours were ten, 4s. 10½d. where the hours were ten and a half, and 5s. 0½d. where the eleven hours prevailed, the actual average of the hewers throughout the entire county was only 4s. 6¾d. It was therefore about 5d. per day or seven per cent. below the theoretical minimum. This is worth considering when we are desirous of establishing it again. It may work in the summer of trade, but not in the winter of depression.

This state of things was brought about as the result of local reductions. There were well-known instances where whole collieries of men petitioned the Executive Committee to be allowed to work at twenty per cent. below the minimum wage. In the final arbitration of 1879, before Lord Derby, the employers admitted the actual average was only 4s. 6¾d. This they had taken just prior to the strike. They likewise stated in their case that many and considerable reductions were privately agreed to, and particularly where the owners possessed little capital or worked inferior or costly seams. The average taken by the Committee harmonised with the 4s. 6¾d.

Quotation from Owners' Case

34. At 43 separate pits arrangements for abatements of wages were made in the working of 65 different seams, varying from 2½ per cent. to 20 per cent. and upwards, and this state of things continued up to the close of the period to which the sliding scale applied, when negotiations for a general reduction of wages were entered into by the two Associations which eventually ended in the strike.

35. These local arrangements, as we have stated, were private, and between the individual worker owner and his workmen, and without the official knowledge of the Owners' Association.

It is believed that, if not in every case, certainly very many of the private agreements had the approval of the Miners' Executive, for some of these negotiations were conducted personally by their staff, who had the strong motive in thus keeping their constituents employed at the best wages they could obtain for them, of saving the Union funds from supporting every man, who, under the rules of the Association, was entitled to support when thrown out of employment.

The Committee in their reply before Lord Derby acknowledged that these reductions took place, but to strengthen their case they charged the whole blame on the employers. They said:

Sometimes this was done by threatening to stop the pits and sometimes by the more reprehensible practice of dismissing portions of men, in proof of which we can testify that men were personally canvassed, and if not found pliable were threatened and coerced. That reductions took place, and, as the owners state, in some cases they amounted to 20 per cent., is correct, thus making the wages of numerous bodies of hewers (in place of reaching the owners asserted 4s. 8d. or 5s. per day) fall far below even 4s. per day and proving what we have all along stated, that the average wages of the best paid class of men in the county, viz.—the hewers, are at least 10 per cent. and even more below the rate named by the owners. This proves the inability of our men to suffer any further reduction.

In their rejoinder the employers returned to the subject. They asserted that for two years the great bulk of the owners had kept faith with the workmen, at a loss to themselves when the selling price fell below the scale. In the cases where arrangements had been made they had been assisted and concurred in by the Miners' Executive. "We assert and challenge contradiction that the Executive were parties, if not to every abatement of wage in 1878-79, most certainly they were parties to many, and hence the folly of accusing the owners of conniving at the reductions when the

Executive were straining every nerve to assist them, with the object, as we again assert, of saving their Union funds."

In addition to the general poverty of the workmen through low wages and slack work the Committee had to face a serious disorganisation. At some very large collieries the numbers had decreased very much. This fact was as well known to the owners as the Committee, for it was brought out very prominently at the meeting with the employers, when the Committee made the offer of ten and seven and a half per cent. as a full settlement. One of the employers, urging the acceptance of their claim, said: "There are a large number of men outside the Union, and these are not with you. The logic of events will decide the issue." The reply of one of the Executive was: "You mean the logic of circumstances, the logic of the cupboard. You have a good ally in our poverty."

Then there was a sadly depleted fund, which in itself was sufficient to fill them with pessimism, for every man deserving of being at the head of Trade Unions is bound to feel when faced by these circumstances—not in a cowardly manner, but a feeling evolved out of the dark background of poverty and hunger, not of men, but of the children. There was only £22,688 in property and bank. From this was to be deducted £4861 as money invested in the Industrial Bank and Houghton and Shotton Workmen's Hall, which was not available for strike purposes; therefore the war chest was very small, especially to enter upon a struggle such as lay before them.

In the face of these adverse circumstances—owners persistent in their demands, wages very low, partial disorganisation, small resources, and an angry people—the Committee stood firm. Their attitude was unflinching, and their advice fearless and clear, as witness the following quotation from a circular:—

The time has now come when there must be unmistakably plain speaking. It is now clear, beyond a doubt, that if you persist in your adherence to open arbitration alone, the owners will allow the sliding scale to run out without further interference or negotiation and at the end of that time they will take all that they can get, either along the whole line or piecemeal, whichever course may best suit their purpose,

by enabling them to punish you by lowering wages and reintroducing pernicious practices. To attempt to fight at the present time without offering the terms which we shall further on advise you to offer, would be suicidal. Look around you, and what do you find? On every hand you can count idle men by hundreds and thousands. Many of these men have been idle for weeks and months. All their means have long since been spent, and they are waiting for work, begging for work, and cannot find it. We have spent in two years over strikes amongst our own members, at large and small collieries, nearly one hundred thousand pounds and there is not a single strike, either of large or small dimensions, where we have not signally failed.

The offer mentioned in the above was a ten per cent. off underground men and seven and a half per cent. off surface men as a final settlement, or seven and a half per cent. off underground wages and six per cent. off surface wages, and any further claim referred to open arbitration. The circular was submitted to a Council, and refused, but Mr Crawford was instructed to offer open arbitration on the whole question. This was done by telegram:

To T. W. Bunning, Coal Trade Hall, Newcastle.

Open arbitration having for many years been resorted to by your Association and ours in the settlement of wages questions, our members again wish to have recourse to it in the settlement of your present demand for a further reduction of wages.

On the same day a reply was received:

W. Crawford, 16 North Road, Durham.

The following resolution was passed by a full meeting of the Employers' Association before the receipt of your telegram and has since been unanimously confirmed—At a meeting of this body held to-day arrangements were made for giving notice to expire on April 5th to all men whose wages have been hitherto regulated by the Durham Miners' sliding scale, that from that date underground wages will be reduced fifteen and surface wages ten per cent.

It will be seen the offer of the owners confines it to the miners, as they alone were in the scale. This modification of demand and threat of notice was sent out in a circular on the 17th of March. They reviewed the whole situation both at home and in other counties. At home, within the previous six days, four collieries had received notice for depression of trade. In South Wales heavy reductions had taken place. In Scotland nearly the whole of the notices had been served for further reductions, while wages were as low as 2s. 6d. per day. In other parts of the country a similar state of things existed. In stating these matters there was no attempt to terrify. It was a simple statement of facts. It would require the pen of a master to place before them a true picture of "all the comparative and positive destitution to be found in the houses of thousands of men at the present time. With this dreadfully adverse condition of things is it possible to go into a struggle with a body of men, strong in their own cause, determined to fight, and who have every possible advantage on their side? To do so can only end in results the most damaging to our organisation and ruinous to ourselves and families. True valour is not shown in reckless and heedless action, but by waiting until a foe can be met on at least equal terms." It was no use offering arbitration, for the owners had persistently refused that. They urged the whole matter should be left in the hands of somebody chosen by themselves to make the best settlement they could. The voting at the Council was taken on the two questions: the Committee's suggestion or arbitration. The result was 118 for the former and 155 for the latter—being a majority of 37 for open arbitration on the whole question.

It will be obvious that the tendency of the owners' offer only being made to the miners would be to disintegrate. It would not be right to say such was the intention, yet that was assuredly the bias. The justification lies in this, the miners were the only parties to the scale at its formation. None of the other sections were parties to it, and therefore the negotiations only applied to them. The terms of the requests were very embracive: they are "underground wages" and "surface wages." This is certain, that no division took place. The action, right or wrong, was as solid as could be expected.

The voting on the questions, Committee suggestion or arbitration, did not give a satisfactory decision, and a second ballot was taken on the questions: "Strike" or "Owners' terms," with a result that the workmen refused the terms. The strike was entered upon, the notices terminating on 5th April.

Some of the managers threatened to withhold the wages until the houses were vacant, and it was feared that this might provoke disturbance. Notice was sent out by the Committee, in which the action of such managers was condemned as "not only an illegal, but also an inhuman act." "But whatever course they may adopt, either in this or any other matter, be very careful not to be guilty of any breach of the law. Let nothing induce you to pursue a course which at all times is to be deplored, but which just now would be aggravated into the most heinous of crimes." As a result the conduct during the strike was most commendable, the only persons suffering being the Committee and Federation Board.

There were certain collieries to whom notice was not given, and the Committee felt it necessary to ask whether these should continue working or give in their notices. The returns of the voting were 224 for stopping the whole of the collieries and only 7 for working on. They were, therefore, ordered to give in their notices, and instructions were sent out as to the mode of procedure. That vote was taken on April 22nd, but on the 30th at a special Council meeting it was qualified by the following resolution:—

"This meeting deems it highly necessary that all those firms ought to be allowed to work their pits who will agree to arbitration as a settlement of their difficulties, or who will agree to a continuation of present prices without being affected by any county change."

An offer was made to the enginemen, which their representative brought before the Federation Board. At the meeting on April 21st they were advised "to only take such a reduction as the sliding scale would have warranted them in asking, had it been operative downwards as well as upwards. Should this be refused by the owners, this board would further recommend the enginemen, mechanics and cokemen who are yet employed to give in their notices and thus legally terminate their agreement."

The Board met again on the 28th of April, when the enginemen reported a change in their position, and the following resolution was passed:—

This meeting has heard with satisfaction that the owners on Saturday last offered the enginemen open arbitration in the settlement of their present wages difficulty. But it cannot but express its surprise at the

conduct of the owners in so determinedly refusing to adopt the same principle in the settlement of the wages difficulty now existing between the miners and them. If the adoption of arbitration in the enginemen's case would have been a right and equitable way of settling, it surely must be right also in the case of the miners.

So the strike proceeded. The Committee were formed into a Strike Committee, with full power to manage it. They were called upon to defend themselves in the press. Every effort was made to get help from other districts. On the 4th of May a communication was received from the owners.

COPY OF A RESOLUTION UNANIMOUSLY PASSED AT A MEETING OF THE DURHAM COAL OWNERS' ASSOCIATION, May 3rd, 1879

The Durham Coal Owners' Association recognising

- (1) That the public, as well as private interests, so seriously prejudiced by the strike, render it a duty to adopt a course most likely to bring about a settlement;
- (2) That the proposition for each side appointing a Committee with the full powers seems to have met with general approval;
- (3) That such Committee would undoubtedly provide the means by which difficult negotiations can be most successfully conducted;

Resolves:

That a Committee of 14 members of this Association be and are hereby appointed to meet a similar Committee, if such should be appointed by the Miners' Association, with full power to settle the matter at issue.

That the foregoing Resolution be communicated to the Miners' Association, and they be invited to adopt a similar course.

The Committee in response to that Resolution met the Owners' Committee on Saturday, the 10th of May, but failed to come to any agreement, and the meeting was adjourned until the 14th. The county was informed of the failure, and told to remain as they were until they heard from the

Committee again. Mr Forman and Mr Crawford met Mr L. Wood and Mr D. Dale on the 14th. No settlement was come to as to amount of reduction, but it was arranged there should be a *pro tem.* arbitration, with Mr Bradshaw, County Court Judge, as umpire. The arrangement was that there should be an arbitration to say how the collieries should commence, and a second case after work was resumed to decide what further reduction should be granted. The preliminary case was heard on May 15th, and Judge Bradshaw, after passing in review the various stages of the dispute, decided "that there should be an absolute reduction in wages of $8\frac{3}{4}$ per cent. on underground and of $6\frac{3}{4}$ per cent. on surface labour, to take effect from that date, and the question whether any further reduction should be made be left to a future arbitration."

AWARD

In the matter of disputes relating to wages between the coal owners, members of the Durham Coal Owners' Association, and their workmen, members of the Durham Miners' Association:

Whereas the owners claimed a considerable reduction of wages, to take effect from the fifth day of April last, and the miners refusing to accept such reductions the collieries in the county of Durham have for some time been, and still are idle.

And whereas, with a view of settling the matter in difference between them, the Owners' Association appointed a Committee of 14 persons, and the Miners' Committee appointed a Committee of like number, with full power to determine the question at issue.

And whereas, after long negotiations, the Owners' Committee deputed to Messrs Lindsay Wood and David Dale, and the Miners' Committee deputed to Messrs William Crawford and John Forman, their respective powers.

And whereas, the said Lindsay Wood, David Dale, William Crawford, and John Forman having applied to me, the undersigned, for my advice and decision in the premises, and have laid before me the following statements, which are admitted by the parties on both sides, namely:—

1. That on February 20th last, the owners offered to accept an absolute reduction in wages of 10 per cent. on underground, and $7\frac{1}{2}$ per cent. on surface labour, and to leave to arbitration the question whether any, and what further reduction should be made.

2. That on April 2nd last, the Miners' Association offered to concede an absolute reduction in wages of $7\frac{1}{2}$ per cent. on underground, and 6 per cent. on surface labour, and to leave to arbitration the question, whether any, and what further reduction should be made.

3. That on the 10th inst., the Owners' Committee offered to accept an absolute reduction in wages of $8\frac{3}{4}$ per cent. on underground and $6\frac{3}{4}$ per cent. on surface labour, and to leave to arbitration the question, whether any, and what further reduction should be made.

4. That on the 10th inst., the Miners' Committee offered to concede an absolute reduction in wages of $6\frac{1}{4}$ per cent. on underground, and 5 per cent. on surface labour, and to leave to arbitration whether any, and what further reduction should be made.

Now, I, the undersigned, having duly weighed and considered the foregoing statement, and what has been alleged before me by the respective parties, *Do Decide and Award*, that there be an absolute reduction in wages of $8\frac{3}{4}$ per cent. on underground, and of $6\frac{3}{4}$ per cent. on surface labour, to take effect from the date of these presents; and the question, whether any, and what further reduction should be made, be left to future arbitration.

In witness whereof, I have hereunto set my hand, in duplicate, this fifteenth day of May, one thousand eight hundred and seventy-nine.

THOS. BRADSHAW.

Then there arose a dispute as to whether it were competent for the men to show cause before the future arbitrator why there should be a rebatement of the eight and three quarters and six and three quarters per cent. It was again referred to the umpire. He decided that the contention of the workmen's representatives could not be sustained. The employers accepted his decision as an instalment of their claim, and to get the pits to work, but they in no

way waived or relinquished their right to refer to arbitration, whether or not they were entitled to any, and if any, what further reduction over and above the absolute reduction by his award.

That definition the Committee accepted. Immediately the spirit of revolt ran through the county, and for a few days some lodges objected to resume work. Whenever the Executive appeared they were greeted with cries of "Judge Bradshaw" and "Eight and three quarters." Gradually the resumption of work became universal, and on the 22nd of July the arbitration was opened, with Lord Derby as umpire, in 12 Great George Street, London. Mr W. Armstrong and Mr D. Dale were arbitrators for the employers, with Mr L. Jones and Mr W. Crawford for the workmen. Advocates for the owners were H. T. Morton, L. Wood, and W. T. Bunning; for the employees J. Forman, N. Wilkinson, and W. H. Patterson. The names of the Executive Committee were:

W. Johnson.	W. Robinson.
G. Newton.	W. Longstaff.
J. Scott.	G. Parker.
J. Bell.	W. Gordon.
W. R. Fairley.	J. Wilson.

There were two days' sittings, and on the 28th of July Lord Derby gave his award. He said it was agreed that the award should apply to all underground and surface men, except enginemen, firemen, joiners, smiths, masons, labourers, and cokemen. He awarded a reduction of one and a quarter per cent. in the present rate of wages paid to underground and surface men affected by his award.

Thus ended a stoppage of work—it is a misnomer to call it a strike—which should never have taken place. The men from the first were ready to appeal to reason, and the final decision proved the Executive Committee right in their offer. There is a closer spirit abroad now. The county has been in an atmosphere of amicability. May that better state take full possession and the day of strikes be gone for ever.



W. H. PATTERSON

The strike ended, the Committee set themselves to work to repair the broken places and put the Association on to a solid foundation again. They found themselves financially insolvent and shattered numerically. They were unable to meet the benefits provided by rule, and there was a great cry of distress from those who were out of work owing to depression of trade. A return was taken as to a levy to meet the latter class, but it was very

unsatisfactory, not one half of the votes being cast, and the suggestions included levies varying from 2d. up to 1s. They therefore decided to call a special Council, warning the members that these people could not be paid from the General Fund. They had been compelled to pay those who were on the funds short allowance. The position was so desperate that "either the contributions must be increased or the benefits reduced," and at the Council the two questions were—first, the general question of contributions and outlay; second, the men idle from depression: how to raise money for their support and how much should they be paid? The Council acting on the advice of the Committee decided that the benefits for strike, lockout, and breakage should be 6s. and 3s. per week for members and half members respectively, and that these payments should only be paid for six months, when they should cease without appeal, the sacrificed allowance being reduced to 10s. per week without a reduction in time.

Their next difficulty was the unconstitutional district meetings which were held. At these the wildest statements were made, and as a consequence the minds of the members (as will always be the case when these meetings are in vogue) became unsettled, and disunion followed. Amid the natural difficulties of the situation the Committee were called upon to defend themselves. A circular was sent out which, after renewing the argument of the promoters of the meetings, said:

"If you determine to let those men go on, doing their endeavours to undermine your Association, then be prepared to accept with that choice all the evil consequences which must arise therefrom. These are the men who would "*rather rule in hell than serve in heaven!*" They have yet to learn the most important of all attainments—viz. how to rule themselves, before presuming to guide the thousands of people in this county. If complaints are to be made, let them be made regularly and right. If reformatations are needed, let them be sought in keeping with the constitution."

History is apt to repeat itself in this mode of procedure as in others. Nothing but evil can result. We are not in Russia; we are a democracy, and have a free tribunal.

There were other four questions calling for arrangement: the fixing of the county average; the arranging for official recognition and the operation of the Federation Board; the rearrangement of the sliding scale; and the resumption of the Joint Committee. A dispute as to the average for hewers arose in reference to the figures from which the eight and three quarters per cent. and one and a quarter per cent. should be taken. The employers contended they should be deducted from the actual wage of the county for the three pays prior to the strike, which was found to be 4s. 6¾d. The Committee contended they should be deducted from the nominal minimum wage of 5s. 0½d. for the eleven-hour pits and 4s. 8½d. for the ten-hour pits. These were the wages from which the reductions were sought. If they were averaged as per the number of pits at each it worked out at 4s. 11d. It was therefore obvious that there would be a great difference in the result. If the two reductions were taken from the 4s. 11d. the average would be 4s. 5.16d.; if from the 4s. 6¾d. it would be 4s. 1.33d., or 3.83d. of a difference. It was finally agreed that the average for hewers should be 4s. 5d. for the eleven and 4s. 2d. for the ten hour pits.

The official recognition of the Federation Board was at first objected to by the employers. At a meeting of the Board held on the 23rd of September the details of the sliding scale were discussed. They were in doubt as to whether the owners would discuss it with them, or the miners alone. Eventually a joint meeting was held, and the second sliding scale was arranged on October 11th. The date of its commencement was fixed for December.

SLIDING SCALE, 1879

There shall be made the following
percentage additions to, or
deductions from, the now prevailing
tonnage rates and wages

When the Net Average Selling Price of Coal

Reaches	But does not reach	Additions	Deductions
s. d.	s. d.		
4 2	4 6	None	None
4 6	4 10	2½ per cent.	"
4 10	5 2	5 "	"

5 2	5 6	7½ "	"
5 6	5 10	10 "	"
5 10	6 2	15 "	"
6 2	6 6	17½ "	"
6 6	6 10	20 "	"

And so on upwards, 2½ per cent. for each 4d.; the 5 per cent. variation for the 4d. range in price between 5s. 10d. and 6s. 2d. being limited to that special range.

s.	d.	s.	d.	Deductions.
3	10	4	2	2½ per cent.
3	6	3	10	"

And so on downwards.

The difference between this and the previous one consists in the lessened grades. The 8d. grade was reduced to 4d. for two and a half per cent. change in underground wages and two per cent. in surface wages. Another variation was the giving up of the minimum wage. All parties were agreed on this point, as all had felt the evil arising from the operation of it during the two years of its existence. Long may it be before such another condition arises here, for the days were dark indeed; as witness the first ascertainment, which showed the average selling price of coal to be 4s. 3.3d. per ton. The accountants were, as now (1906), E. Spark, and Monkhouse, Goddard & Co.

The Joint Committee was suspended at the commencement of the strike on April 5th, and did not resume its sittings until December 12th. During the time intervening the rules were revised. A special Committee (which might be called an interregnum Committee) met, and transacted business of the same nature as that within the purview of the Joint Committee.

Before leaving the strike and the consequences it may be of interest to quote from Mr Crawford's first monthly circular his estimate of it.

The strike which took place in the months of April and May last will ever remain an epoch in the history of the Association. A more complete success never took place. At its beginning, strong doubts were expressed and great fears entertained as to what would be the ultimate consequences of such a step.

I was amongst those who doubted, but did not despair, and the end more than justified the expectations of the most sanguine. If we take the entire history of trade disputes, it will be found that not one ever commanded so much public sympathy. We had justice and right on our sides, and we took the only wise course—viz. to let the public know it. We deplore strikes as much as anyone can do, but there are times when they become necessary and such a climax had we arrived at in April 1879. Numbers of men who were outside our Association then came forward and joined with us and fought the battle side by side. There never was a more complete stoppage of work or one which to the workmen, at least, ended more satisfactorily.

We may fittingly close the year by a reference to the strong tide of emigration that was running. A miners' conference to consider a scheme to assist prospective emigrants and draw up a code of rules was called in Manchester in November. Such a scheme was formulated and the rules suggested, but nothing ever came of it. In connection with this large volume of emigration from the mining districts Mr Crawford took a trip to America in one of the Inman liners, and wrote an account of it in a pamphlet entitled "In the Steerage." A report was circulated in the press describing what purported to be the foul condition of the accommodation provided for the third-class passengers. With a desire to ascertain the truth or otherwise of these statements Mr Crawford went to New York in one of the Inman boats, and completely exposed the untruthfulness of it, and did a great deal towards easing the minds of many of the miners who were preparing for leaving the country.

Violations of Scale—Restriction of Labour—Working Hours Arbitration— Deputies' Wage Arbitration—Employers' Liability

By the end of 1879 the consequence of the strike, as seen in disarranged collective machinery, had been reconstructed. One beneficial effect of the stoppage was the great number of men who joined the Union. When the notices terminated there were collieries where the numbers were few; but these men, as if moved by the instinct of self-preservation, ceased work, and to a very large extent became members, remaining until this day. It was the greatest piece of missionary effort ever seen. Instead of disunion and isolated action there were manifest loyal adherence and solidarity.

There were sure to be exceptions to this as to all rules, and early in the year the Federation Board was called upon to meet a class of trouble which was entirely illegal, and which arises occasionally now. Without specifying places (but dealing generally) it will suffice to say that in a few instances notices were given for advances beyond what the sliding scale gave. The employers requested the Board to meet them. This they did, and two resolutions, one dealing with the cokemen and the other with the miners at one colliery, were unanimously carried. The workmen were told that they had violated the rules of the Federation Board and sliding scale agreement. They were told (by a circular sent out by the Federation Board) that they were parties to the arrangement, and yet had given in their notices for an advance in direct contravention of its provisions. Having been parties to the scale they ought not to violate it with impunity. If this individual or lodge action were allowed it would end in disruption, and therefore it must be checked. The wisdom of that advice is obvious, and not only in that day, but for the present time. If agreements are made for men they should be adhered to. To violate them is lawlessness, which in the end is hurtful beyond the immediate act. If conditions are forced upon people it is right to repudiate, but for the last thirty-four years in this county there has been freedom and equality.

RESTRICTION OF LABOUR

At the Council meeting held on January 17th it was decided that there should be a restriction, and that no coal hewer should make more than 4s.

5d. or 4s. 2d. per shift, but this was never carried out in any general manner. On March 13th the Council again dealt with it, and declared all lodges unfinancial where it was not put in force. In furtherance of that resolution the Seaham Lodge put a notice on the pit heap to inform the members "that the restriction had commenced, and that a list be drawn up stating the number of tubs each man had to fill in his respective district or flat, no man to make more than the county average in any one day." To that notice the Owners' Association took objection. A letter was sent to Mr Crawford asking him whether the workmen had determined to enforce restriction, and if so, were they then acting on it. These questions Mr Crawford did not answer, but brought them before the Committee. As a result a circular was issued reviewing the whole case. They pointed out that when the Council carried it very few of the lodges put it in force, and the few who did soon left off, and that at the Council to enforce it the voting was 145 for, 126 against. They reminded the majority that "surely a minority so strong ought to have led to a reconsideration of a matter not only so vitally important, but which has at all times been found so very difficult to carry out in practice." Lodges were sending in resolutions refusing to carry out the Council resolution. That resolution said those lodges should be expelled. The position would be that whole collieries of men would be cut off from the Association because they were determined to abide by the scale agreement. In view of these facts, they resolved to call a special Council. They pointed out that one or two lodges had sent in motions of censure because advice had been given, and they met the censures by saying:

One or two lodges have sent motions seeking to pass a vote of censure on us for issuing the last circular. It would seem that these lodges would like to see us sit and do nothing, even though we were certain that an impending evil was threatening our very existence. We cannot regard this as our province. What we did was for the preservation of the Association. The moment we see that our efforts have not ended more satisfactorily we have called a special Council meeting to further consider the matter. Take our advice, and inasmuch as we have only done our duty, spare your censures. We have quite enough to do at present without wasting our energies in useless and pernicious quarrelling amongst ourselves.

The result of the special meeting proved the Committee right. A tabulated vote was taken—the voting being against restriction 130, for 117; majority against, 13. Thus ended the only county attempt to carry out a uniformity in piecework. It ended as all such will end. Human nature is too strong for such arrangements.

WORKING HOURS ARBITRATION

This case arose out of the hewers' hours at some of the collieries. Amongst them were Gurney Pit, Leasingthorne, Letch, and Wingate. These were eleven-hour pits, but during the depression of 1877-79 the hewers had been induced or coerced to go in at three A.M. instead of four A.M. The Executive Committee in their negotiations contended that this was a violation of Mr Meynell's award, and therefore ought not to exist. On the employers' side it was held that the award named only dealt with the coal drawing. After attempts to settle it was finally agreed to refer it to arbitration, with Lord Rowton as umpire. The arbitrators on the owners' side were Mr R. F. Mathews and Mr W. T. Hall, and for the workmen Mr L. Jones and Mr W. Crawford. There were two days' sitting in the Westminster Palace Hotel, London. On the 20th of August the umpire decided that the hours complained of should remain as they were.

THE DEPUTIES' ARBITRATION

This question of the deputies being paid a higher wage if they were not in the Miners' Association came up in a renewed application for uniformity of wage. This was sent to the owners amongst a number of other requests. The reply was that they were strongly of the opinion that the deputies should not be members of the Miners' Association. The Executive could not accept that reply. They had never asked about the Associations, but a just wage, and they considered the reply was an insult. They recommended to their members that it should be sent to the Federation Board. This was done, and on the 19th of March the Board offered to submit the matter to arbitration. The offer was refused by the following resolution:—

MINERS' REQUEST AND REPLY FORWARDED TO MR CRAWFORD

June 17th, 1880.

Deputies.—That deputies who are not members of the Deputies' Association be paid the same wages as those who are.

Considering the position in which the deputies stand to the hewers and other workmen, any change in the present arrangement is undesirable.

On the receipt of this the Board notified the county, and resolved to call a joint meeting of the four Associations. Their advice was that the whole of the notices be given in, and work to cease until the claim was conceded or arbitration granted. The meeting was held on August 26th. Negotiations proceeded, and in November the employers agreed to accept arbitration. The case was not heard until February 1881. The umpire on that occasion was Mr I. Hinde Palmer, M.P.; the advocates were Mr L. Wood, Mr W. Armstrong, Mr L. Jones, and Mr W. Crawford. The hearing lasted two days, and was held in the Westminster Hotel, London. The umpire decided upon two points:

- (1) That it is competent under the sliding scale agreement of October 1879 for the deputies who are members of the Miners' Association to require that their wages be advanced.
- (2) That the advance shall be such a sum as will make the amount of their wages respectively the same as the wages paid to those deputies who are not members of the Miners' Association.

THE EMPLOYERS' LIABILITY ACT

It is not intended to review the introduction and passing of Acts of Parliament, but mention may be made of the Employers' Liability of 1880, not with a view to explain its provisions, but to indicate steps which were taken towards contraction out of it. In Lancashire contracting out was made one of the conditions of hiring, and a strike took place in an attempt to resist it. With us in the north (for the two counties worked together) the same end was sought, but by different means. The aim of the employers here was to avoid litigation if possible, and, with that end in view, would have increased their contributions to the Permanent Relief Fund. The officials of that fund

were desirous of bringing an arrangement about, believing it would strengthen their position. There were a few men outside the ranks of those officials who advised the miners to enter into a contract. At a meeting of the Permanent Fund Committee it was just on the point of being carried when a suggestion was made to the effect "that it was not a matter pertaining to the fund, but belonged to the Workmen's Associations, and that a joint meeting should be held." Such did take place, with the result that the proposal was defeated. The leaders of the Associations were very strong against it. Among the strongest was Mr Crawford, whose monthly circular for December contained some very clear and explicit reasons in opposition to the idea. There were threats from some employers as to smart money and subscriptions to the Permanent Relief Fund, but still the workmen refused to give way.

1881-82

Deputies' Wage again—Third Sliding Scale—Death of Mr Macdonald—
Change in the Treasurership

In February this question was again in evidence. By reference to the award as given above it will be seen that the umpire decided clearly in the workmen's favour, but there arose a complication in the mode of application adopted by the owners. The mode of calculation was skilful and peculiar. The dispute arose in 1876 when, as an inducement for the deputies to form an organisation of their own, they were to be exempt from the six per cent. reduction; therefore, said the employers, we will give those deputies who are in the Miners' Union the six per cent. given in 1876, and then deduct all the reductions since, by this process bringing them to 4s. 1½d. per day. They seemed to forget that the deputies' arbitration was for the difference between the actual wages at that time—the difference being 6d. or 8d. per day. The anomaly was that two men might be doing the same work with equal responsibilities (in some cases the lower paid the best workman) and yet one have a much higher wage than the other.

Mr Bunning (on behalf of the owners) sent a copy of the instructions to the managers to Mr Crawford, asking him if they met with his approval. The answer was sharp. Instead of agreeing with them he considered them a clear violation of Mr Palmer's award. It was not based upon Shaw Lefevre's

award, but upon the existing difference in the wages. And he informed the owners, that they would demand the higher wages. The negotiations continued until May, when the umpire by joint letter was asked to meet Mr L. Wood and Mr Crawford. He informed them he would write each of them an explanation, and save the journey. This he did, and said the award was clear and intelligible, and that he meant those who were in the Miners' Association to be paid the highest wages. On the strength of that interpretation the owners paid the wage, with everything kept off since the award.

THIRD SLIDING SCALE

As the two years for which the sliding scale was definitely fixed drew near completion it was obvious that there was a strong feeling against it. The circumstances were against it. Introduced at the conclusion of a very disastrous strike the whole of its operation was in the worst times—trade bad, wages low. There was no wonder that the men had little love for it. Recognising the opposition the Committee placed a motion on the Council programme suggesting that notice be given to terminate it at the end of the two years. This was adopted, and notice given at the proper time. In the meantime the miners generally were turning their attention to the question. A sliding scale conference was held on April 20th, 1881, in the Midland Hotel, Birmingham. The conference affirmed "that the principle of sliding scales is an equitable mode of settling wages questions, if rightly worked out in detail: That the best mode of taking out the selling price will generally be to take the price of coal sold, but that no coals should be taken which were sold on contract; only those sold at the current market price." In the matter of leaving firms out each district was left to its own option. It was considered desirable that the accountants should have more freedom in regard to the matters they were permitted to divulge. A second conference on the same question was called for October 19th in Birmingham, with a programme on very similar lines.

A Council meeting was held, and two delegates selected to represent Durham. Certain instructions were given them: sliding scales were the best arrangements for regulating wages; the open markets were preferable to the existing mode of ascertainment, with others of a kindred nature. On January

18th the Federation Board had under discussion a proposal from the employers. It was not accepted, but they were told the Board was ready to meet them at any time. At a special Council held on 25th February 1882 the situation was complicated by the miners deciding to ask for an advance of twenty per cent. if the owners refused the sliding scale drawn up by the Federation Board, and that body was instructed to meet the employers. The meeting took place on March 13th on the two questions, when the owners gave the Board the following:—

OWNERS' OFFER

March 13th, 1882.

The Durham Coal Owners' Association is unable to accept either of the propositions suggested in the Federation Board Minutes of February 25th, that is to say,—

1. The Association cannot regard "the sliding scale drawn up by the Federation Board as just and equitable," and consequently cannot adopt it.
2. The Association cannot grant "an immediate advance of 20 per cent. in the wages of all men and boys," nor admit "that trade warrants such an application," or any advance at all.

Having regard to the difference of view between the Owners' Association and the Federation Board, the Association can only suggest that the question whether wages shall be varied, and if so, to what extent, and in what direction, shall be left to open arbitration.

The Miners' Council then decided to take a ballot on the twenty per cent. If the question were not carried by a two-thirds majority, to arbitrate on the advance. When this was sent to the owners they replied that the advance could not be granted, but they were quite ready to leave it to open arbitration. The Federation Board as a whole considered itself in an anomalous position if any section were allowed to act as the miners were doing. If this were allowed to proceed, then on wage questions there was an end to all usefulness. Either the power must be taken away altogether, or they must unreservedly trust them. As the position was, they were in a

crippled condition. "This renders our work on general questions nil, and the Federation instead of being a tower of strength is a source of weakness, inasmuch as it exposes to the owners our want of agreement and diversity of thought and action." They had, therefore, come to the conclusion to take a vote, with the view to have the matter settled. The response of the county was in favour of the Board by a large majority. Immediately they decided to ask for a scale with a minimum wage, and that the variations should be two and one and a half per cent.

A meeting between the Board and the owners was held on April 17th, when the workmen asked for an advance of seven and a half per cent. To this the employers objected, but said they would pay a wage as if the coals had reached 4s. 8d., which was equal to an advance of three and three quarters per cent., and would be an advantage of two and a half per cent., during the continuance of the scale. The Board strongly urged the acceptance of the offer, which in their opinion was preferable to arbitration. The workmen accepted their advice, and the following scale was signed on April 29th:—

THIRD SLIDING SCALE

There shall be made the following
percentage additions to, or
deductions from, the now prevailing
When the Net Average Selling Price of tonnage rates and wages, being those
of Coal prevailing at November 1879

Reaches	But does not reach	Additions	Deductions
s. d.	s. d.		
3 10	4 0	None	None
4 0	4 2	1¼	"
4 2	4 4	2½	"
4 4	4 6	3¾	"
4 6	4 8	5	"
4 8	4 10	6¼	"
4 10	5 0	7½	"
5 0	5 2	8¾	"
5 2	5 4	10	"

5 4	5 6	11¼	"
5 6	5 8	12½	"
5 8	5 10	13¾	"
5 10	6 0	16¼	"
6 0	6 2	18¾	"
6 2	6 4	20	"
6 4	6 6	21¼	"
6 6	6 8	22½	"

And so on upwards, 1¼ per cent. for each 2d., the 2½ per cent. variations for the two ranges of 2d. each in price between 5s. 10d. and 6s. 2d. being limited to those special ranges.

3 8	3 10	—	1¼
3 6	3 8	—	2½

And so on downwards.

It had to continue in force until 30th June 1883, to be terminated by six months' notice given any time after that date.

It will be of interest if we insert the scales proposed by the owners and Board before the agreement.

OWNERS' SCALE

There shall be made the following
percentage additions to, or
deductions from, the now prevailing

When the Net Average Selling Price of Coal tonnage rates and wages, being those
prevailing at November 1879

Reaches	But does not reach	Additions	Deductions
s. d.	s. d.		
4 2	4 4	None	None
4 4	4 6	1¼	"
4 6	4 8	2½	"
4 8	4 10	3¾	"
4 10	5 0	5	"
5 0	5 2	6¼	"
5 2	5 4	7½	"
5 4	5 6	8¾	"
5 6	5 8	10	"
5 8	5 10	11¼	"
5 10	6 0	13¾	"
6 0	6 2	16¼	"
6 2	6 4	17½	"
6 4	6 6	18¾	"
6 6	6 8	20	"

And so on upwards, 1¼ per cent. for each 2d., the 2½ per cent. variations for the two ranges of 2d. each in price between 5s. 10d. and 6s. 2d. being limited to those special ranges.

4 0	4 2	—	1¼
3 10	4 0	—	2½
3 8	3 10	—	3¾
3 6	3 8	—	5

And so on downwards.

WORKMEN'S SCALE

When the Net Average Selling Price of Coal reaches the following percentage additions to, or deductions from, the now prevailing rates and wages, being those prevailing at November 1879

Reaches	But does not reach	Additions	
s. d.	s. d.	(5s minimum wage)	
4 8	4 10	2½	"
4 10	5 0	5	"
5 0	5 2	7½	"
5 2	5 4	10	"
5 4	5 6	12½	"
5 6	5 8	15	"
5 8	6 0	17½	"
6 0	6 2	20	"
6 2	6 4	22½	"
6 4	6 6	25	"
6 6	6 8	27½	"
6 8	6 10	30	"
6 10	7 0		"

And so on upwards, 2½ per cent. for each 2d.

It will be obvious that the difference between the two is very wide. The workmen sought to renew the minimum wage, although but two years had intervened since the dark experience of 1877-79, and when it was impossible for the condition to have been forgotten.

DEATH OF MR MACDONALD

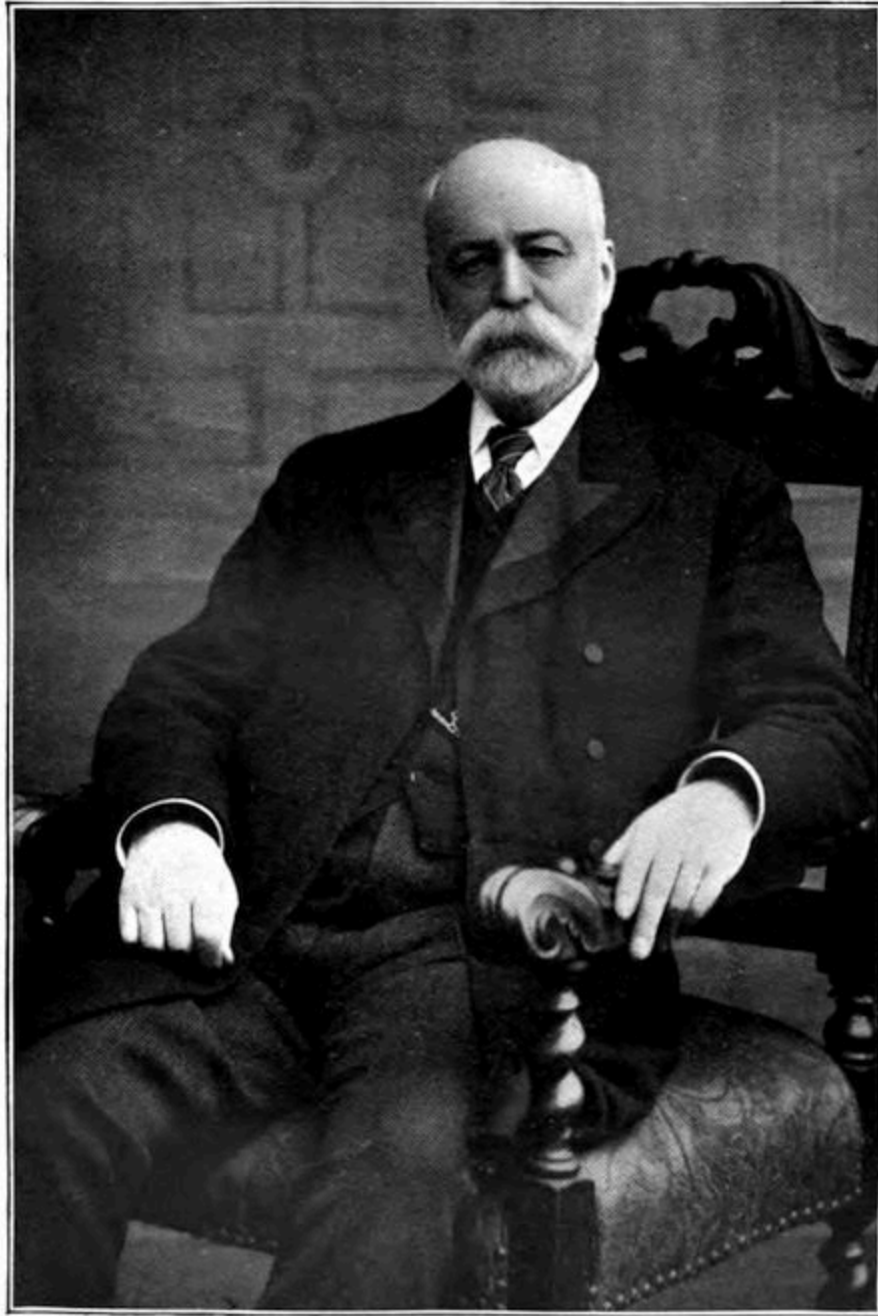
On October 31st, 1881, Mr Macdonald, M.P., died at Wellhall, near Hamilton, Scotland. He was the ablest leader the miners of Scotland had, and one of the first Labour representatives in the House, being elected with our good friend Mr Burt in 1874. He was often called the "Miners' Friend."

Although not a Durham man he was so intimately and closely connected with our early history and progress up to his death that there would be a great hiatus if no mention were made of him. The Executive Committee was represented at his funeral, and the first Council meeting after his death passed a resolution expressing deep sorrow at his death, and regarding it as an irreparable loss and national calamity to the mining population of England, Scotland, and Wales. His self-sacrificing efforts for a number of years on their behalf cannot be fully known, but his memory will ever be held dear by a grateful people. A movement was immediately started to commemorate his work, the result of which was the statue which is in front of the Hall in Durham. As Mr Crawford said, "It is the last tribute of respect we can pay to one who through good and evil report kept steadily in view the one object of his life—viz. to reduce the misery, and alleviate the sorrows of the mining population, while following their hazardous occupation."

It will be interesting to place on record an outline of his life. He was born in the year 1821, and began work at eight years of age. When he was born the condition of the mining population was dreadful. There was no law to protect the miner, and there was little regard for health or life. The hours were fearfully long. Women worked in the mines under the most debasing conditions. In the midst of this he set himself the uphill task of self-education—uphill now, but how much more so then! In early life he left the mines, and became a teacher. The knowledge he acquired he determined to devote to bettering the condition of the miners. Between 1850 and 1855 he was assiduous in procuring amended Miners' Acts, and those of 1855 and 1860 were mainly due to his efforts. From that time until his death he was earnestly working in efforts to ameliorate the conditions of the life he knew so well, and at his death was busily engaged in further amending the Mines Act. He was a sample of men who have been endowed with splendid powers, and who might have made a fortune if they had followed commercial pursuits as eagerly as they followed after reform and better temporal conditions for others, but who, when there was nothing to gain, counted it their highest good if they could in any way assist their class on to a higher platform and into brighter conditions of life. They chose rather to suffer with the people in their affliction, and help those who needed it, than to make for themselves monetary positions. When he died a truly great man

left the ranks of reformers, and to the honour of Englishmen be it said, they honoured him in death as they appreciated him in life, as witness the splendid statue which was unveiled on 17th November 1883 by his colleague in Union and Labour representation in Parliament, Mr T. Burt.

In the beginning of 1882 a matter arose which, were it not for the fact that it would leave an incompleteness in our record, might have been passed over unnoticed. Some doubts were felt as to the state of the accounts, and it was resolved to have a thorough inquiry into and examination of the books. Mr John Staton, the accountant, was employed for the purpose. His report was to the effect that the treasurer was indebted to the Association to the amount of £282, 11s. 1d. This examination covered the period commencing with December 1876. He not only described the amount, but he suggested a system of book-keeping. The result of the affair was the suspension of the treasurer (Mr Forman acting *pro tem.*), and his removal on the 6th of May, and the appointment of Mr J. Wilson. The whole circumstance was unfortunate. There were many (the writer among them) who doubted if there had been any defrauding, and who were convinced he had only been careless. He was an earnest worker in the Association.



ALDERMAN JOHN WILSON, J.P., M.P.

1883-84

Five Days per Week Movement—Fourth Sliding Scale—Second Relief
Fund—Wheatley Hill "Putt Pay"

The question of restriction of the output was again brought under discussion at the beginning of the year. It was not peculiar to nor spontaneous in Durham, but was of extraneous suggestion. It was the result of a miners' conference in Leeds, and was set forth under two phases: the reduction in the hours per day and the days per week to five—all the pits being off on the Saturday. The members were told plainly by Mr Crawford what the real issue was and what was the condition of the mining districts. While in other districts the hours had to be reduced, in Durham they would remain, but the days per week would apply to all alike. He, however, pointed out that there was only one-sixth of the miners of the county represented. A special Council was called, and the matter placed before it, when it was decided "that pits ought to work not more than five days per week and draw coal not more than ten hours per day—each and every pit being idle every Saturday, irrespective of how many of the preceding days of the week have been worked."

A Second National Conference was held on the question. A report was issued by the representatives, Messrs Crawford and Wilson, which showed the fallacy of attempting any national movement. The conference was called to hear how far the decision had been carried out. The report showed that there were only 81,000 paying members in the districts represented, the total number employed being about 379,000; that there were only 9500 persons who had adopted the Leeds Resolution of Restriction, and some districts positively refused to carry it out. In the face of these facts the conference reaffirmed the restriction resolution, and resolved that the ballot should be taken in each district, and that there should be an adjournment to hear the result.

In the meantime a meeting was held between the Executive Committee in Durham and the owners. The Committee stated their reasons for requesting the meeting, and hoped the owners would assist them to carry the conference decisions into effect. The reply was that the question was so important to both employers and employed that it would require serious consideration. Could the workmen point out any probable good which would result? How far it had been carried out? Unless it were generally adopted it would mean ruin to those districts attempting it. They were willing to take part in a national conference for the purpose of discussing the subject. The matter was again brought before a conference in

Birmingham on April 10th. There were twenty-seven delegates present from districts where 229,000 men were employed. The only item of business was the appointment of a Committee to meet the Mine Owners' National Association, each district to appoint its own representative on the Committee. Mr Crawford was afterwards appointed to act for Durham. The request for a meeting was sent to Mr Maskell W. Peace, the owners' secretary. It was refused, as they considered it outside their province. Beyond the disorganisation in the other districts it was found in Durham to be incompatible with the sliding scale, and as a consequence the attempt at a national regulation of labour proved abortive. That which oft looks easy when at a distance is often found impracticable when we are brought face to face with it. If a national restriction be ever carried out it will need solid unions, and all men of one mind, or it will fail at the start.

THE FOURTH SLIDING SCALE

As the period approached when the definite year of the scale would end there were growing signs that the requisite six months' notice would be given. At a meeting of the Federation Board held on May 23rd it was decided to give such notice to terminate the scale at the end of the year, and the Board prepared to meet the emergency, and if possible renew the scale or modify it. A resolution was come to at their meeting in October, expressive of their opinion that "a sliding scale is the best mode of adjusting the wages questions." They further resolved that each section should meet the owners for the purpose of discussing any alteration peculiar to themselves. Acting on that arrangement the Executive Committee sent out a circular urging the maintenance of the principle. In addition they called a special Council, and asked for suggested amendments. In response there were seventy-seven suggestions returned, embracing every kind of alteration or grievance, to be considered before the scale was re-established. These were sent to the employers, who replied by sending a counter list containing (if not as many) a very large number of questions. The Federation Board asked why they were making so many claims. These reasons were supplied, each section being taken *seriatim*. The various Committees and the Federation Board were doing their best to get the settlement placed in the hands of some body of men, so that the scale might be rearranged. This advice was not accepted, for at a special Council the

power to settle was retained by the county so far as the miners were concerned.

The reasons assigned by the owners in support of their claims were unacceptable to the Board. They felt justified, they said, in refusing, but were willing to meet to discuss the respective alterations. The meeting took place, but it was found that the representatives of the miners could not proceed, as their Council had refused to accept the scale until all the notices of men who were discharged for depression of trade were withdrawn and all the pits recommenced. "The owners said that such a thing was an impossibility, seeing that a want of trade was the only cause of pits being stopped and men dismissed. If the pits could be worked they would work them, but this they could not do in consequence of the terrible depression of trade. It was nonsense to say that the pits were stopped by an arrangement among the owners. That was a monstrous absurdity." These remarks were sent out to the miners with a most earnest appeal not to delay the matter any longer, because it could only result in danger. A form accompanied the circular upon which the lodges were asked to vote whether they would place the question of a sliding scale in the hands of the Federation Board. This appeal was successful, and the Board was instructed to proceed with it by a majority of 104. At the earliest possible moment a meeting was arranged, and the scale agreed to on the lines of the previous one, to commence on 1st August 1884, and to continue for two years certain, subject to two calendar months' notice. But such notice was to be given on a date to permit of a termination on the 31st of July. This fourth sliding scale was similar to the third one, which appears on page 177, so we need not reproduce it.

SECOND RELIEF FUND

The formation of the Second Relief Fund was forced upon the county by the fact that there were so many men out of work, and their poverty was a peril to those who were in employment. Men's necessities are a strong force, oft compelling them to do things they would otherwise shrink from. It was thought, therefore, it would be sound economy to ease off the poverty, if luxury could not be afforded, and thus save men from overcrowding the labour market, or at least from accepting conditions which, if once

established, would prove a general injury. Then there was a feeling of sympathy for the distress seen on all hands, and a desire to alleviate, if not obliterate it; for the miners of Durham may have little, but they never hesitate to share it. They are not the men "who, seeing their brother in distress, shut up their bowels of compassion against him." The sight of distress, or a knowledge that someone is in danger, never appeals in vain.

The Council meeting held on May 3rd, 1884, dealt with the question of providing for the relief of those men who were discharged through depression of trade. It decided that a special Council should be called on the 7th for the purpose of discussing the best means, and in the meantime suggestions might be sent in—"motions of all kinds, including levies, to be admissible." Without describing these in detail, suffice it to say that there were eighty-eight in number, covering all phases of the subject, both as to means of raising money and amount of benefit. The Council decided for a levy of 3d. per full and 1½d. per half member per fortnight. That £2000 should be advanced from the General Fund, to be redeemed by the levy, and "that the amount of money the levy will bring be equally divided by the Executive Committee amongst the men idle or who may be idle." It was soon found that the income from the levy would not give anything near 10s., and often it was found to run as low as 5s., per week.

WHEATLEY HILL "PUTT PAY"

As this, although belonging to an individual colliery, is yet of a peculiar character, it will be well to note it here. On the pay Friday falling on April 4th it was found that the company had become bankrupt, and the wages of the workmen were not forthcoming. This being the second occasion at these collieries, and only half the amount for the previous occasion having been paid, there was great consternation, and the presence of an agent was urgently requested. The treasurer immediately went out, and found the people ready for a riot. This, of course, was to be expected. Mr Ramsay, the agent of the colliery, desirous to meet in part the wants of the people, sold a branch engine, but when the N.E.R. engine came to take it away men, women, and children commenced and pulled the rails up, thus keeping both engines as it were in "pound." It was arranged that there should be a mass meeting the next day (Saturday), and the treasurer was to attend to persuade

the men to allow the sale to proceed, and accept the money as an instalment of their wages. The meeting was held in a field. The day was fine, there was a large crowd, and the treasurer was in his most eloquent mood, when a very laughable incident occurred. There was a pigeon-flying match from Newcastle to Thornley. It was about the time when the birds were expected. Some of the men were watching the heavens more closely than they were listening to the speaker or at the time thinking about their wages. Just when the orator was in the midst of one of his best sentences a voice was heard (which was the descent from the sublime to the ridiculous): "Haud thee hand till th' 'Slate Cock' comes in." In a moment speaker and occasion were lost, and the gathering generally watched the bird, hero of the hour, as, like an arrow shot from some great bow, he came right on to his "ducket." Then in deliberate manner the same voice was heard exclaiming: "There, he's landed; thoo can gan on wi' thee speech." But rhetoric and reason were both ineffective after the "Slate Cock" had landed.

The Executive Committee, however, were quick in their action, and put in men as bailiffs at each colliery to prevent anything being taken away. After a year had been taken up by the process of law, and £1000 spent in money, the entire wages, slightly over £4724, with the colliery pay sheets, were handed over to the treasurer. That sum included the wages of Union and non-Union men alike, and was paid to all with this difference, that the members got their money free of cost, but the non-members were charged 7s. each towards the cost incurred in procuring the money. This sum was all paid out as per the pay sheets. The last man to turn up was five years after.

1885

Industrial Remuneration Conference—Extension of the Franchise—Labour Representation—Lloyd Jones

In January 1884 a peculiar but very useful conference was held in London. It was, and is, known as the "Industrial Remuneration Conference." In the preface to the proceedings, which were published, we are told why the conference was called.

"In the spring of 1884, a gentleman of Edinburgh determined to devote a considerable sum of money to the purpose of keeping before the

public mind this vital question, viz.: What are the best means, consistent with justice and equity, for bringing about equal division of the daily products of industry between Capital and Labour, so that it may become possible for all to enjoy a fair share of material comfort and intellectual culture, and possible for all to lead a dignified life, and less difficult for all to lead a good life?"

For the purpose indicated he gave £1000, vested in seven trustees, Mr T. Burt being one of them. To the trustees there was a Committee added, and Mr Crawford was, by the consent of the Miners' Council, amongst the number. That Committee considered that the best means of carrying out the trust was by organising a conference and inviting all sorts and conditions of opinion. There were two main branches of inquiry: "Is the present system or manner whereby the products of industry are distributed between the various persons and classes of the community satisfactory; or if not, are there any means by which that system could be improved?" These general propositions were divided into many branches. The purpose of this historical outline is served by mentioning the connecting link being Mr Crawford's appointment on the Committee. The chairman of the conference was Sir C. Dilke.

While these important industrial matters were taking place the political affairs had not been neglected. The Franchise Association had kept up a close and instructive agitation not only at home, but outside the county, pressing the demand for an assimilation of county to borough. They urged that it was a glaring anomaly for a man to be eligible to vote in a borough, and because he passed over an arbitrary line (yet in all respects the same man in trade and duties of citizenship) he was not permitted to do so. At the Trades Union Congress held in Nottingham in 1883 the following resolution was proposed by the representatives from Durham:—

That, without accepting an equalisation of the county with the borough franchise as a final solution of the great question of Parliamentary Reform, this congress is of opinion that the Government should lose no time in introducing their promised measure, and calls upon the organised trades of the country to assist by every means in their power in promoting the popular movement in support of this long-expected reform, and authorises the Parliamentary Committee to join with the

Durham Franchise Association and other Associations of all kinds in the proposed deputation to the Prime Minister.

The result of this resolution was the reception by Mr Gladstone of a very large deputation, representative of all the Trades Unions in the country, on January 3rd, 1884. Three speakers—J. Arch, A. Wilkie, and J. Wilson—were selected, and they received the assurance that the Government would introduce the Bill. It was introduced, and occupied nearly the whole of the session; was carried through the Commons, but was defeated by the Lords, or as Mr Gladstone said, they put "an effectual stoppage on the Bill; or in other words, they did practically reject it." The Liberals, however, were determined that the matter should be settled, and for that purpose summoned an autumn session. By the tact and eloquence of the Prime Minister the great measure was carried in spite of the most bitter opposition, in which constitutional means were stretched to their utmost limit, and the deepest depths of vulgarity were ransacked for the foulest epithets to use against the working classes, some of whom appear to have very short memories, as they forget this and other great acts done for them by the Liberals.

The passing of the Act did not take the miners of Durham or their colleagues over the Tyne by surprise, but found them expectant, and ready to use their newly acquired power. The twelve years of the teaching of the Franchise Association bore fruit at once. During the summer of 1884 numerous district meetings were held. The Miners' Executive and the Committee of the Franchise worked together. The two great questions were the political right withheld and the action of the irresponsible House of Lords in thwarting the will of the nation as expressed by the duly elected representatives of the people. The 4th of October was the appointed day to hold district meetings simultaneously all over the county. The people were urged to make them a success. The Committee was appointed to take charge, and the owners were notified that all the collieries would be off on that day. The whole county was in a political fever. John Morley had uttered his memorable words, which have passed into one of our epigrams: "End them or mend them." The political creed of the progressives was "Down with the Lords" and "Faith in Gladstone." One sentence may be quoted from Mr Crawford's circular of that time:

Mr Gladstone and the Government deserve the highest praise for their action in this matter, and with the support of the people they will yet carry the Bill against the organised and determined opposition of a class of men who have amassed immense wealth by, in past times, taking that which belonged to the people.

The practical effect of the Act in Durham was seen on January 24th, 1885, when the Federation Board called a special Council to consider the following programme:—

PROGRAMME, 1885

- (1) Shall there be Labour Representatives?
- (2) If so, how many?
- (3) If it be decided to have Labour Representatives, who shall he or they be?
- (4) The ways and means of supporting such person or persons from the Associations.
- (5) What should the salary of such man or men be?
- (6) Should we nominate men other than Labour Representatives? That is, men who hold similar views to ourselves, but who will pay their own costs, both in contesting and otherwise.
- (7) If this be done, who should they be?
- (8) The selection of divisions.

The resolutions come to were—(1) there should be Labour representatives; (2) there should be *bona fide* Labour candidates selected from the workmen, but run in connection with the Liberals; (3) the candidates should be J. Wilson, W. Crawford, and L. Trotter; (4) the ways and means should be left in the hands of the Federation Board, and that the salaries should be £500 per year. On the same day the Board met, and decided to select the Bishop Auckland, Mid-Durham, and Houghton-le-Spring divisions—Mr Trotter for Bishop Auckland; Mid-Durham, W. Crawford; Houghton-le-

Spring, J. Wilson. They further decided to inform the North and South Durham Liberal Associations what had been done, and asked them if they would co-operate with the Board.

A meeting between the representatives of the Liberal Associations, the Federation Board, and the Franchise Association was held in the County Hotel, Durham, when the following resolutions were agreed to:—

RESOLUTIONS, 1885

That it is highly desirable for all sections of the new electorate to arrange for the object of securing the return of Liberal Members at the next election, and that this meeting is prepared to give support to the persons nominated by the Miners' Federation Board, providing their candidature is endorsed by the Liberals in each division.

That this meeting requests the constituencies to form Liberal organisations, and that small committees from the South and North Durham Liberal Associations, the Federation Board, and the Miners' Franchise Association be appointed to aid such organisations.

January 24th, 1885.

So far as the Mid-Durham and the Houghton divisions were concerned, all went on smoothly. The candidates were accepted with complete unanimity, but in the Auckland division the feeling in some quarters was in strong opposition. The Board were asked to withdraw Mr Trotter, which they refused to do. There were other two gentlemen in nomination, and he was asked to put himself in competition with them, and if rejected retire. He refused, and they, the Board, approved of his refusal, and arranged a meeting of the lodges in the division for the purpose of explaining the situation. At this point there arose a complication of a different order. At their meeting on October 22nd, 1885, the Board decided "that each candidate must be responsible for the returning officer's fees in their respective divisions." Shortly after this was made known Mr Trotter withdrew, the reason assigned being the refusal of the Board to pay the returning officer's fees, although all the candidates were treated alike. As a consequence the division was vacant, and open to any candidate. This only need be added, that at the General Election in November Mr Crawford and

Mr Wilson were both returned by great majorities—the latter being defeated in 1886, but succeeding Mr Crawford in 1890 as the Member for Mid-Durham.

This may be a fitting place to try to remove a false impression, which has lingered in some minds unto this day, as to what they are pleased to call "the shameful treatment" of Mr Lloyd Jones, while in the Chester-le-Street division, by the Federation Board. There never was a grosser misstatement. The Board did nothing but what was fair and honourable throughout the whole proceedings, although they were made the object of a somewhat bitter attack by *The Newcastle Chronicle*, which attack was entirely founded upon a too slight knowledge of the facts. As mentioned above, an arrangement was made whereby the workmen were to have their divisions undisputed, and with the rest there was no claim for interferences set up. Mr J. (now Lord) Joicey was selected by the Liberals for the Chester-le-Street division, the Federation Board having no part or lot in the transaction. Mr Jones, who was an intimate friend of Mr J. Cowen, was brought out, it is well known, as Mr Cowen's nominee, and as such, contested the division. The Board, as such, did nothing in it in any way. If they had, their action would have been dishonourable in the light of the agreement. This, however, they did do: as soon as Mr Trotter withdrew from Bishop Auckland, they sent a deputation to interview Mr Jones and to make him an offer of that division. The writer was one of the deputation, and with the others did all possible to persuade him, but he refused. It was felt he was not free, or he would have accepted. This can be said without fear of contradiction: the Board as a whole regretted the refusal, for Mr Jones was a great orator, respected very much by the miners in Durham, as witness their continual choice of him for their arbitration cases, and he could have had a safe seat.

1887-89

In Dark Days—The Eight Hours—The Sliding Scale—Advance of Ten per Cent.—Second Advance of Ten per Cent.—Death of the Scale—The County Council

The year 1886 passed over uneventfully, and in a routine manner, except in the matter of trade, which continued very much depressed, and wages very low. At the beginning of 1887 the average selling price at the pit mouth was 4s. 5.56d. The Relief Fund (even with the principle of division of income) was in debt to the General Fund £3548, 4s. 11d. as per the balance sheet for quarter ending December 1886. The condition of trade was so bad generally that a Royal Commission was appointed to inquire into it, the present county court judge of Durham being one of the members. He differed from the majority report, and signed a minority report. This objection was in relation to the fragmentary character of the evidence. In the coal and iron industries the witnesses were entirely from the employers. Without stating the whole of his able report, dealing as it did with every phase of our industrial life, a portion may be mentioned. Four causes of depression and low wages upon which he laid emphasis, were the land question and the royalties, way leaves and dead rents. Those who hold the land, claim these from the employers and employed who risk their capital and their lives to get the mineral which he, as landlord, does nothing to assist. In the midst of the dark times the Executive Committee was compelled to face two evils: a small banking account, and a heavy expenditure. The banking account for the quarter ending December 1886 was £16,000, exclusive of the deposit and shares in the Industrial Bank, which amounted to £1841, but which were nominal and, so far as use was concerned, simply on paper. In addition, there was a sum nearing £900 invested in buildings. In a short circular the Committee placed the whole financial position before the members. For the year 1886 the income was £44,506, with an expenditure of £54,126. "You will thus see that we cannot exist long at the rate of £9620 on the wrong side of the ledger. Soon all our funds will be gone, and nothing left for the members who have paid so long." They were compelled by rule to keep £10,000 in the funds, and were therefore driven to consider two propositions: either to increase the subscription by 3d. a fortnight or reduce the benefits. For that purpose they proposed to call a special Council to consider the questions. The reductions suggested would reduce the expenditure by £1600 per quarter. At the Council meeting an all-round reduction of 2s. per week for sickness, breakage, strikes, and sacrificed allowance was made, and £1 off the death legacies, to take place from the rising of the Council, which was held on 9th April. Happily, however, the trade began to turn and the position of the Association to amend, for on

August 27th a slip was sent out informing the members "that the funds have so far recouped as to enable the Society to pay all benefits according to rule from Monday the 29th."

THE EIGHT HOURS—A RESTRICTION

On October 11th, 1887, and three following days a miners' conference was held in Edinburgh. The main purpose of the conference was the limitation of the output. There were a large number and variety of propositions discussed: five days per week, a week or fortnight's holiday, and the eight hours per day. Part of the resolution on the last question was in words that have become familiar to Durham in these later years: "That no miner be allowed to work more than eight hours in the twenty-four." The first resolution on the question did not appeal to the State, but on the fourth day it was brought forward containing an appeal to the legislature, and carried. The position of Durham was the same then as now (1906), and the opposition of to-day is based upon the thought of that day. Before the conference was held the Executive Committee gave their opinion upon the various questions on the programme of business.

On the eight hours they said:

EIGHT HOURS' RESOLUTION

Eight Hours.—This is to be sought for by Act of Parliament. To seek to fix the hours of men by Act of Parliament is, in the year 1887, a monstrous and illogical proceeding. If you fix the working hours by Act of Parliament, why not fix the rate of wages also? In the old feudal times wages were so fixed by Act of Parliament. Under such laws, men were serfs and slaves, and became as much the property of their employers as the horses that filled his stables. To demand eight hours, and even less, is in the hands of all men if they will only utilise their own organised power.

But if such an Act were passed, it would result in our own county in one of two ways, (1) the turning off of 10,000 or 15,000 hands; or (2) the adoption of two shifts of hewers, and two shifts of offhanded men and lads, and thus increase the hewers' hours by one hour, and, in

many cases, one and a half hours per day. Again, if you seek by Act of Parliament an Eight Hours' Bill, it logically follows that you regard eight hours as the number of hours men should work. In such a case, you endanger your own position, and would strongly tend to bring upon you an eight hours' system. But why is this sought? It is sought because men are indifferent, apathetic, and consequently disorganised. If this law passed to-morrow, it would be an inducement to indifference and disorganisation, and as such materially injure you.

In September 1887 the Trades Union Congress decided to take a ballot of all the unions on the general eight hours. The questions submitted were: Should an eight hours' day be sought; if so, by what means, by Trades Union effort or by law? Again the Executive Committee advised the members to vote against it, which they did. "If this became law to-morrow," they said, "you could not make it operative. To do so you must turn off some thousands of coal hewers, or have two shifts of offhanded men and boys, and draw coals sixteen hours per day instead of as now drawing them ten and eleven hours. If this be sought it follows by clear implication that the men voting for it regard eight hours as a normal and fair time to work per day." The Congress of 1888 decided in favour of eight hours by law.

The question came again before a miners' conference held in Birmingham on 8th October 1889. There were three items discussed: "The International Miners' Congress, an advance in wages, and the eight hours." The delegates from Durham, Mr J. Johnson and Mr J. Wilson, drew up a report of the proceedings, which was sent out to the members. They were sent to the conference with definite instructions from the Council: "That we don't take any part in the agitation for an eight hours' day for underground workmen." The representatives in the report say:

Beyond that we could not (nor desired to) go. When the conference came to discuss the question we laid our position before the meeting, and told them we could not take any part in the agitation. We make no remarks about the sarcastic reflections which were made by some of the delegates on our position. They were no doubt natural reflections, although their repetition was galling, and evoked from us replies which were not of the calmest order. We stood firm to our instructions, and abstained from either voting or speaking, except in self-defence.

The conference resolved that on the 1st of January all men and boys represented there should commence working eight hours from bank to bank. Northumberland and the Forest of Dean voted against, with Durham neutral. Then followed a resolution pledging all the districts to give in notices to terminate with the year. This placed the conference in a dilemma. They were ready to pass resolutions, but few were prepared to say their members would give their notices in for it. Then it was decided to take a ballot and hold another conference in November. At our Council meeting on November 9th it was decided not to be represented.

THE SLIDING SCALE

The programme for the Council to be held on February 2nd, 1889, contained a resolution asking for a ballot to be taken for or against the sliding scale. In their notes on the questions to be discussed the Committee strongly urged the maintenance of the scale. It steadied trade, made work and wages more regular than any other means. Where sliding scales existed the districts were in better condition. They (the Committee) were as much interested as the members. The gain or loss was alike. Having fully considered the question they were convinced that it was the most just and equitable way of fixing and settling wages. The resolution to ballot was carried. About the same time the mechanics decided to give notice to have the scale amended. The Federation Board not only found themselves called upon to consider the scale, but they had to deal with a demand for an advance in wages. A meeting was held on June 17th. The employers placed before the Board three propositions: arbitration, two and a half per cent. to commence on July 1st, and two and a half on September 1st. These advances would raise the wages to ten per cent. above the standard, or they were willing to arrange for a new scale. The Board were reminded that the scale would run until July 31st, and therefore their application was in violation of that agreement. These offers were recommended to the members, with a request that they, the Board, should be vested with full power to negotiate a settlement, which should be submitted to the county. The offer and request were refused, and another meeting took place on July 9th. The employers then modified their offer, and were willing to give five per cent. advance for the months of August, September, and October, and a further five per cent. for November, December, and January, or they would

refer it to open arbitration. Again the question was submitted to the members. The Board said: "There were three courses to pursue: accept the owners' offer, go to arbitration, or ballot the county." Of the three they strongly preferred the offer, as to take the ballot was a repudiation of arbitration as a means of settlement. Arbitration was a lingering and uncertain course. It would last three months, and they would thus lose for that time a clear five per cent., or something like from four to five thousand pounds per week in wages. "Remembering all the difficulties which now surround us, and looking at all the facts, we would very strongly advise you, as men alike interested with yourselves, to accept the offer the owners now make." The reply of the county was to demand twenty per cent. advance. The Federation Board was driven to take the ballot. The result of the ballot was for pressing the demand, and the Miners' Executive made preparation for giving in the notices on August 1st. The employers made another offer: instead of giving two fifes they offered a full and immediate ten per cent.

DURHAM COAL OWNERS' ASSOCIATION

The Owners' Wages Committee is unable to recommend its Association to give an advance of 15 per cent.

The actual invoice price of coals and coke has not yet materially advanced. Recent contracts at high prices can only have a gradual and deferred influence. The owners have already given a special advance of 10 per cent., which has been in operation less than four months. Any advance which they now give must, like that previous advance, be in anticipation of the higher prices which will alone allow of higher wages being paid.

They are willing to stretch a point in this respect in the expectation that wages will be thereby settled for a period which will allow of equivalent prices being actually realised, but they are not prepared to do more than recommend a general advance of 10 per cent. on the basis rates, to take effect in the first pay commencing after the date of acceptance of this offer.

REGINALD GUTHRIE,
Secretary.

Newcastle-on-Tyne,
November 23rd, 1889.

The Federation Board urged the acceptance of that offer. "Everyone (unless it be the unobservant and inexperienced) must be fully alive to all the dangers to our social, and it may be our permanent condition, which always follows a strike, such as we should have in this county. It does not mean a few hands, but the entire county, comprising 500,000 folks laid commercially prostrate; and who can conceive the social and moral disaster arising from such a state of things." They felt confident that it would be for the good of the whole county, for they would reap an immediate and certain gain of from £8000 to £10,000 per week.

The ballot was taken. The miners' vote was in favour of a strike, but the whole vote of the Federation was in favour of accepting the ten per cent. Within three months of the acceptance the Miners' Council on September 14th decided that the Committee should demand a further advance of fifteen per cent., to commence on November 1st; if refused, the county to be balloted at once. That request was forwarded to the employers from the Federation Board. They were informed that, after very carefully considering the improved condition of trade and the increased prices at which coal and coke were sold in the open market, the Board considered that they had a just claim for an advance of fifteen per cent. The reply of the employers was contained in the following resolution:—

The Owners' Association, taking an account of the fact that the ascertained price of coal for the quarter just ended is only 5s. 2.93d. (or 4.44d. above the price of the previous quarter), is not prepared to give an advance approaching that which is asked, but is willing to appoint a Committee to confer with the Federation Board, having full authority to negotiate for a settlement of wages, to begin at such a date, and extend over such period, as may afford a reasonable opportunity of actually realising those higher prices which would alone allow higher wages to be paid.

The question arose whether the miners should seek the advances themselves or through the medium of the Federation Board, as that was the only regular and effective means. It was at the same time pointed out to the workmen

that their claim for the fifteen per cent. was in violation of the understanding that three months must elapse from the date of a previous change before a new application could be considered. The voting on the body to negotiate resulted in favour of the Board, but there was a further question to decide. What was to be the line of procedure? Had the Board to make the best settlement, or should they press for the full fifteen per cent., and, if refused, the members be balloted? The miners' special Council voted by a large majority for the full demand or strike, the voting being 297 for strike and 45 for placing the power in the hands of the Board. It was found that the other three sections had remitted the question absolutely to the Federation by large majorities, and the Miners' Executive naturally felt the advance was being delayed for weeks, whereas the Board might have settled it, and the workmen have got an early increase in wages. It was, therefore, felt imperative that the miners should be asked to reconsider their position, seeing that in the other sections there was unanimity. The Committee resolved to again submit it to a Council meeting, but there was no change, the instruction of the previous one being repeated, the majority being slightly decreased. That Council was held on November 14th. The Federation Board met the same night, and on the 15th Mr Crawford handed Mr R. Guthrie (who had been appointed secretary as successor to Mr Bunning, deceased) a request for a meeting. That was fixed for the 23rd of November. When the Board met the owners they were asked what power they had, and the reply was simply to ask for the fifteen per cent. Mr L. Wood, the owners' chairman, then said: "We only agreed to meet the Federation Board on condition that they had power to settle the entire matter. Have you that power?" The Board had to give the humiliating answer: "No." An adjournment for three hours took place, when an offer of ten per cent. was handed to the Board. They then resolved to take a ballot of the whole of the sections, the decision being to accept the offer.

There are two remarks necessary anent the industrial matters of 1889—first, the termination of the sliding scale, which happened on the 31st of July; several attempts were made to revive it again. The latest in the year was a new scale submitted by the Enginemen's Association. It was drawn up by Mr T. Hindmarsh, the treasurer of that Association (who was a very useful man), but it was never proceeded with. The scales had been in existence twelve years. The misfortune was that the trial of the system took place in a

series of years which covered the most unbroken period of depression within the experience of the Association. The ascertainment showed that prices never reached (except at the last stage) higher than 5s. per ton, being most of the time below 4s. 8d. We are so much inclined to judge from appearances and not righteous judgment that the blame for bad trade was thrown entirely upon the scale, as if its existence or non-existence could influence the coal markets and their prices. To the superficial observer the collateral conditions of the scale would appeal with force; but men who look at the fitness of things, and who do not measure that fitness by a small period or single phase of our industrial life, are fully aware that all kind of trade seasons are required to supply a proper test—these recognise that the scale, with proper adjustments, is bound to be an equitable means of adjusting wages. There was this coincidence which strengthened the position of the objector: the scale ended just when a boom in trade set in, and many men believed that it had been the incubus which had in an evil manner weighted the trade and kept wages down. "See," they said, "how the conditions have altered since its removal, and shall we not be foolish if we give it another lease of life?"

The second remark applied to the delay in securing the advance through not trusting those at the head to negotiate a settlement, and this in spite of urgent appeals. This remark applies not merely to the distrust of that day, but to all such occasions. The foolishness is not merely for a day, but for all time. It is a great check upon men's ardour to find themselves doubted, and it is a grand incitant and inspiration to feel they have the confidence of their people behind them. If a leader is not such as can be relied upon to do his best he is not fit to be in the position. Generals win battles most assuredly when the men trust them. There is always danger when with suspicion those in the ranks are watching the head.

THE COUNTY COUNCILS' ACT

For a considerable time prior to 1888 there had been a great desire amongst the people for a more active part in local affairs. This was running currently with the national and parliamentary idea. The opposition which reared itself against the national was found striving to prevent an extension of home affairs. It was in relation to this that the Marquis of Salisbury, "that master

of jeer and gibe," said what the people wanted was a circus, as they were more eager for that class of amusement than seriously taking part in the management of parish or county business. However, as in the parliamentary suffrage, so in the transferring of the local affairs from the parish magnates and the petty sessions to the people; the spirit of reform, the friends of freedom, and the trustees of the people were too strong. Those who were in power—the masters in the art of "grasping the skirts of happy chance"—those skilful plagiarisers of other people's ideas, calling them their original property, those who have always waited to be forced to do right, introduced and carried the "Local Government Act."

As the men of Durham were eager and expectant in 1885 with reference to the extension of the suffrage—not merely eager to receive, but to use—so in relation to the county affairs, they were earnestly desiring to receive the long withheld right and to put it into operation. In this matter they were and are unique. The system of political teaching carried on by their Franchise Association had not been in vain. While in other parts of the country men had been at fever heat until they were incorporated into the electorate, and then lapsed into indifference or misuse, in Durham the same keen zest was manifest after the passing of the Act as before. Between the Royal assent being given and the time of operation a serious preparation took place. A very large number of meetings were held, and in a business manner the election was prepared for, with the result that about one-fourth of the new-formed Council were working men, and fully seventy per cent. of the parish and district councillors were from their ranks. In this respect the county occupied a proud and peculiar position, for in no other county was any such use made of the Act. Instead of that, the lethargy seen in other counties was such as to justify the Salisburian jeer as to the circus. It may be said without fear of contradiction that no selfish or ill use was made of the power thus gained. No county anywhere more needed reform in matters pertaining to the home life of the people, for in matters of convenience and sanitation the condition of many parts was deplorable. There was a general idea that these working men when they were placed in this responsible and new position, with the public purse to draw upon, would act the part of prodigals, and run into all kinds of waste. Those who said that, based their reasoning on a very false position. They said (and no doubt believed) that the miners did not contribute to the rates, and therefore would rush into useless expenditure.

Some of the miners asked where the rates came from if not from them. The fear has been falsified. There was great need in the home surroundings for rushing, but with all that, gradual reforms were the order of the day, and no one suffered.

1890

Another Advance sought—Death of Mr Crawford—The Ten Hours' Drawing and Hewers' Hours—The second Advance—International Miners' Conference

This year opened with another claim for an advance. In the Federation Minutes for January 8th is the following:—

That the secretary write to the secretary of the Coal Owners' Association asking a meeting requesting an advance of 15 per cent. on all classes.

That motion was the outcome of a resolution passed at the Miners' Council on the 4th. Not merely was the amount of advance named, but the 1st of February was to be the date of its commencement, with the alternative that the ballot be taken if it were refused. The Board met the owners on the 21st of January, when they were given the following resolution:—

The Durham Coal Owners' Association is unable to make any further advance in wages unless, or until, a much higher invoice price of coal is realised than has yet been attained. The owners' accountants have ascertained the selling price for the last three months (ending December 31st, 1889) and they certify the net average invoice price to be 5s. 9.88d. This, according to the recent sliding scale agreement, would make wages $13\frac{3}{4}$ per cent. above the standard of 1879. Wages are, as a matter of fact, now 25 per cent. in advance of that standard brought up to this point, by the special advance of 10 per cent. given only 5 or 6 weeks ago, in anticipation, as the owners then declared, of higher prices yet to be got.

The owners invite the Federation Board to verify these figures, and to join in a further ascertainment for the first three months of this year,

with a view to thus determining whether any advance in wages is justified, either now or in April next.

The owners regard it as all-important that the men employed in the collieries in the county of Durham should be afforded, and should avail themselves of, an opportunity of correcting the serious misapprehension under which they labour from regarding the prices quoted in the newspapers for what is but a small proportion of the output as representing the entire volume of trade.

LINDSAY WOOD,
Chairman.

Coal Trade Office, Newcastle,
January 21st, 1890.

The Federation Board resolved to submit the question to a ballot, as it was found that the miners were not in favour of either joining the owners in an ascertainment, or allowing their representatives to meet the employers. The result of the miners' ballot was most perplexing. At that time there were only 48,500 full members, and of these only 25,807 voted for a strike, those against the strike and neutrals amounting to 22,708. Taking the Federation as a whole, the situation was unsatisfactory. For a strike there were 29,048, and against 26,696. There were more than 15,000 unrecorded votes. Under these circumstances they considered their best policy was to call sectional councils, to be held on February 13th. The voting at the Miners' Council was a very large majority for giving in the notices on the 24th. The Federation Board met on the same day, when it was found that the enginemen refused to give in their notices; but the Board decided that the other three sections should tender theirs, and the owners should be informed of the same. Great regret was shown at the refusal of the enginemen. Mr Crawford, acting on the instruction of the Board, at once notified the employers, and received from them a long reply. They were surprised to find no reference made, either in the letter or in the submission to the members, as to the joint ascertainment of the selling price of coal. They reaffirmed their statement that the average price did not warrant the advance. If a strike were entered upon, the responsibility would rest with the side which refused to avail themselves of the full opportunities offered

for ascertaining the condition and prospects of the trade. They were prepared to consider whether by arbitration, or by any other course, a strike might be averted, and they invited the Board to meet them again on February 22nd. At that meeting the owners offered an advance of five per cent., making the underground men thirty, and the surface men twenty-seven, per cent. above the standard of 1879. Another ballot was taken—(1) upon this offer; (2) open arbitration; (3) strike. The result of the ballot was to accept the offer of five per cent.

On the 9th of May another demand was made for fifteen per cent. advance. This meeting was in response to a letter sent by Mr Crawford from the Executive Committee notifying the employers of the demand. This they could not accede to. Their reasons were the serious reaction which had set in in the coal trade. Whether it would continue, or there would be a recovery, was uncertain. The most they could offer was to leave wages where they were, and reconsider them in a month. For some time there had been a growing desire for shorter hours, and it was felt by some of the leaders of the Union that instead of pressing for wages it would be better to devote all their attention to the shortening of the hours, and even going so far as giving up the advance. In keeping with that idea the question was introduced to the owners; but the Executive felt that these two subjects were too much for successful consideration at the same time, and they therefore asked the lodges to send delegates to a special Council on May 31st to say whether—(1) they had to press for the entire programme—viz. fifteen per cent., with ten hours' drawing and seven hours from bank to bank; (2) should the cases be separated; (3) which one should be preferred. Finally, it was agreed that the claim for an advance should be withdrawn and the whole attention of the county placed upon the shortening of the hours. A more beneficial decision has never been come to in the whole of our history. In this case time has meant money, and has proved the wisdom of applying the spirit of compromise and arrangement to these matters by men who know the technicalities of the trade.

DEATH OF MR CRAWFORD

We must stay our record of industrial changes to consider a serious blow which fell upon the Association in the death of Mr Crawford on July 1st

1890. It was a blow the force of which can only be realised by those who were intimately acquainted with him, and whose good fortune it was to be colleagues with him. Never yet had an Association a stronger or more capable leader. To see him at his best one had to be with him in a complex question and in a committee. He was not an eloquent orator, moving men's minds by speech, but he was a pilot skilful in guiding their affairs through the perilous times. No man was ever more attacked by men who were never able to reach his excellence in the sphere of life in which he was placed; but this was always certain, those who made the attack were sure to receive cent per cent. in return. His ability was only fully known by those who were in close contact with him. His temper was sudden, fierce for a short time, but soon burnt out. Ofttimes, therefore, he was apt to give offence. He had his failings. Is he to be for that condemned, for where is there a man without them? The Pecksniffs of life may pose as being pure, but *men* know how far they fall short of that state. Pure spirits are a terror to common mortals, and beyond their reach, and especially to men whose lives, like Crawford's, are cast amid the complexities and complications of an earnest Trades Union leader.

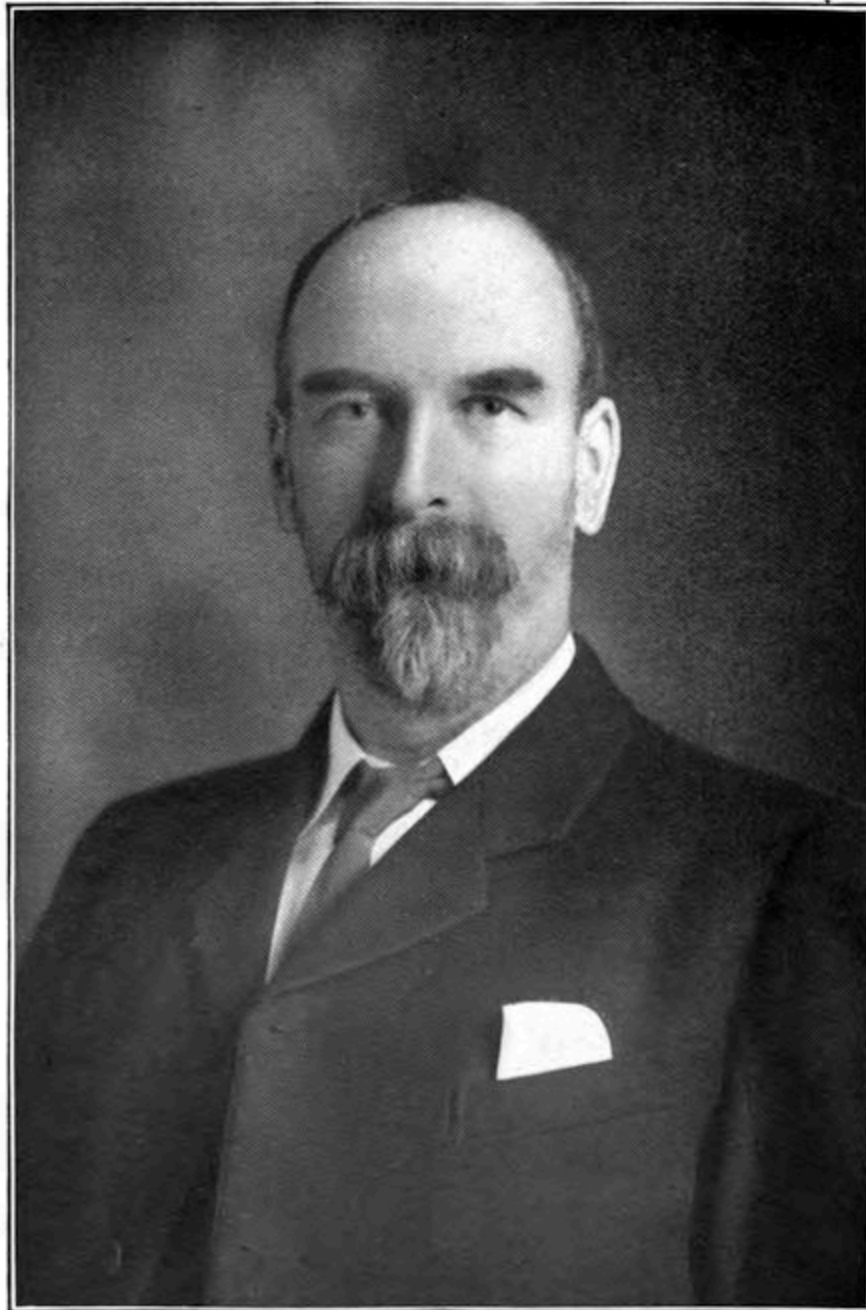
Let us place on record the opinion of his colleagues in the circular notifying the county of his death:

"It is our sorrowful duty to announce to you that Mr Crawford died this morning at 6 A.M. On this occasion our words will be few, but they must not be taken as the measure of our feelings. We are in a position which enables us to form an estimate of his worth to us as secretary of our Association, and we are therefore the more fully conscious of the loss sustained. He has died doing his duty—as he was at Newcastle at Joint Committee on Monday the 30th of June, and took part both in discussions inside and settling cases outside. He went to that meeting in opposition to the persuasions of his colleagues, who saw the delicate state of his health, and how dangerous it was for him to go to the meeting."

He died comparatively young, aged only fifty-eight. If any of the young men want to see his style let them turn to his circulars, which are scattered profusely through our documents. He had been feeble for some time before his death, but when in health he was ready and vigorous with his pen. He

passed from us, but his work still lives, and will live so long as the Durham Miners' organisation remains; and if the workmen in folly should allow it to fall, then the work he did for them will be their greatest condemnation.

The vacancies caused by his death were filled up by Mr Patterson becoming corresponding secretary, Mr Wilson being made financial secretary, and Mr Johnson being elected treasurer. The political vacancy was supplied by the nomination and election of Mr Wilson for Mid-Durham.



JOHN JOHNSON, M.P.

THE SHORTENING OF HOURS

At the Executive Committee meeting on July 3rd this matter was under discussion, and it was resolved to ask for a meeting with the owners "on the seven hours' and ten hours' drawing." The interview did not effect a settlement, and the Committee decided to ballot the county. It was

submitted as "Strike," "No strike," and the result was, for strike 30,484, with 2728 against. This result was sent to the employers, with a request for an early meeting. It was held on August 14th. The original request was a reversion to the hours worked prior to Mr Meynell's award:

"Foreshift men to go down at 4 A.M., back shift to be loosed to commence to ride at 4 P.M., and no colliery to draw coals more than ten hours per day, for two shifts of hewers. The drawing hours in the night-shift collieries to be in proportion to the day shift."

In that request there is no mention of the seven hours. This omission the Committee explained. If they had asked for seven hours they would have lengthened the hours of those men who were loosed by their marrows in the face. In their opinion the plain request of seven hours would have increased the hours in those cases on an average of at least half-an-hour per day, and would have compelled a system of overlapping in all such cases, because a signed agreement would supersede all customs. As a counter proposal the employers submitted the following:—

August 19th, 1890.

SEVEN HOURS' AND TEN HOURS' COAL DRAWING

The Owners' Committee offer as a settlement that hewers' shifts be on an average of foreshift, and back shift not more than seven hours, reckoned from the last cage descending to the first cage ascending, and from the last cage descending to the last cage ascending; the present coal-drawing arrangements remaining unchanged. The custom of shifts changing in the face to be maintained. Failing the acceptance of this offer, the Owners' Committee propose that the whole question of hours be referred to arbitration.

You, on the other hand, have urged that there should be simply a return to the drawing hours, and arrangements consequent thereon, prevailing prior to Mr Meynell's award in April 1878.

It will be the duty of the Owners' Committee to report this to a general meeting, but in order that that meeting may fully understand what such a proposal means, it is necessary to obtain information from each

colliery as to its hours and arrangements prior to April 1878. The Owners' Committee will proceed to ascertain this, and it suggests that your deputation meet the Owners' Committee on Friday, the 29th inst., at 1.30, for a further discussion prior to the owners' general meeting which will be called for this day fortnight.

Yours faithfully,
REGINALD GUTHRIE,
Secretary.

The whole subject was placed before a special meeting, and sundry questions were asked. Should the question stand adjourned as the owners requested? Should the seven hours be withdrawn? Should the owners' offer be accepted? Should arbitration be offered? Should the notices go in; if so, when? The conclusions of the Council were to wait for another meeting with the employers, and to withdraw the seven hours as a separate question.

At the meeting held on August 29th the employers placed before the Committee their proposals. Their chief objection lay in the serious loss of output which would follow a reduction of one hour in the coal-drawing time. In any case it would be impossible to bring the change into operation till the contract engagements could be adapted to new conditions; that the change should not take effect till the first pay in January; that if there were a reduction in hours there should be a proportionate reduction in wages; that the Committees of the two Associations should have full power to settle certain points: "Mode of reckoning the hours in ten and twenty hour pits; for coal drawing; for offhanded men and boys above and below ground; arrangements in cases of accidental stoppage; drawing hours on Saturdays; changing at the face; 'Led tubs'; travelling time in relation to distance; co-operation of miners in making the ten hours of coal drawing as full and effective as possible." The Council meeting before which these were placed decided to accept the owners' offer of ten hours, to operate on January 1st, 1891, and that the Executive Committee meet the owners, with full power to settle the conditions.

The appointment of the Committee resulted in the "Ten Hours' Agreement," which need not be inserted here, but a difference arose as to the number of hours the double-shift pits should draw coals. Finding they could not agree,

the Committees arranged to refer the matter to an umpire, and two on either side were appointed to place the case before him. The umpire chosen was Mr J. R. D. Lynn, coroner in Northumberland. He decided as follows on December 22nd, 1890:—

DURHAM COAL OWNERS' ASSOCIATION
AND THE
DURHAM MINERS' ASSOCIATION
re DRAWING HOURS OF DOUBLE-SHIFT PITS

Whereas, by an agreement between the Durham Miners' Association and the Durham Coal Owners' Association, the question of whether the coal-drawing hours of double-shift pits should be 19 or 20 hours per day was left to my decision; Mr Hall and Mr Parrington on behalf of the Owners' Association; and Mr Forman and Mr Patterson on behalf of the Miners' Association.

Now having taken upon myself the said reference, and heard what was alleged by Messrs Hall and Parrington and Messrs Forman and Patterson, on behalf of the said parties respectively, and having heard and considered all the evidence produced to me, and duly weighed and considered the terms of the request of the Miners' Association, contained in their resolution of August 14th, 1890—the terms of the offer of the owners—the terms of the agreement or qualified acceptance of the owners' offer by the Council of the Miners' Association—the agreed working hours of the datal men and boys—the time occupied by the different classes of men and boys descending and ascending the pits—the prevailing custom of the county and all the matters and things bearing upon the question referred to me—I am forced to the conclusion that the drawing hours of double-shift collieries can only be reduced in proportion to the agreed reduction of the drawing hours of the single-shift collieries, and not in proportion to the number of hewers' shifts; and now make and publish this, my award, in writing, as follows:—

I do Award and Determine that the coal-drawing hours of double-shift pits shall be twenty hours per day.

J. R. D. LYNN.

Dec. 22nd, 1890.

The negotiations were complicated and a settlement hindered by the action of the Wearmouth Lodge. It arose out of the seven hours' resolution. When the Council carried the resolution that the hewers' day should be seven hours, that lodge, without waiting for any general action on the question, commenced to put it into operation. We need not mention the circumstances beyond saying that the colliery was on strike, causing great friction between them and the Committee, and delaying a settlement of the general question, although they were told repeatedly that they were violating rule, and retarding progress.

Before the hours agreement was come to another advance was asked for. As usual, it emanated from the miners. The amount claimed was twenty per cent., and again the date was fixed for commencing, with the alternative of the ballot, and notices if refused. The resolution was brought before the Federation Board, accepted by them, and sent on to the owners, with a request for an early meeting. The discussion on the subject took place on October 27th, when the employers said: "As the application was based upon an alleged increase in the price of coal they must have time to verify the price by the accountants' ascertainment, and as soon as this was done they would meet the Board and give a definite answer."

The Federation Board, feeling the anomaly of their position, and being loath to meet the owners with restricted powers, resolved to ask their constituents to give them full power to negotiate as to the amount of the advance. The result of this voting was a large majority in favour of placing the whole matter in their hands. As soon as possible (November 14th) a meeting with the employers was held. The first question asked of the Board was what was the extent of their powers, and they, the owners, were informed the workmen had placed the matter entirely in the hands of the Board to settle. This, the owners said, cleared the ground and prepared for a settlement, as they had resolved not to make any offer if such had not been the case. It was, however, ultimately resolved to give an advance of five per cent., making the percentage above the standard of 1879 thirty-five for the underground workmen, banksmen, mechanics, enginemen, and cokemen,

and thirty-two per cent. for the surface workmen, the agreement to take effect with the pays commencing December 29th, 1890, and January 5th, 1891, according to the pays at the various collieries. By that arrangement the shortened hours and the increase in wages were simultaneous.

Before leaving 1890 we will notice a very important step taken by the miners of Great Britain—the holding of the first International Miners' Conference at Jolimont in Belgium. As this was the first of the series it will be interesting if we give the origin.

The first idea originated in 1889. In that year two Labour Congresses were held in Paris: the Marx or Socialist, and the Possibilist or Trades Unionist. To the latter the Northumberland miners sent Messrs Burt and Fenwick. Prior to the meeting of the Congress those gentlemen sent a joint letter inviting the miners' representatives attending either the Marx or Trades Union Congress to meet for the purpose of a friendly interchange of opinions on questions relating to the condition of the miners. Some eighteen delegates responded, and the meeting took place in a dingy coffee-house in a back street.

The interpreter on that occasion was Miss Edith Simcox. The result was the miners of Great Britain were requested to take the initiative in the formation of an International. This request was conveyed to the Central Board of the National Miners' Union (Mr Crawford being at that time secretary). The matter was brought forward at a subsequent miners' conference at Birmingham. The outcome was the Congress held at Jolimont in Belgium in 1890.

1891-1892

Silksworth Strike—Claim for a Reduction—The General Strike—
Aftermath of the Strike—The Eight Hours again

The year opened with a strike at Silksworth. It is mentioned here because of its being connected with, and being the last of, the disputes about the deputies. In order that there may be a proper understanding it will be necessary to retrace our steps a little. At the Miners' Council held on August 16th, 1890, a resolution was carried giving the Silksworth Lodge power "to

take the ballot with a view of giving in their notices to compel the deputies to join the Union." The ballot resulted in the notices being tendered. They expired on November 22nd, and on November 26th, at a Federation Board Meeting, it was reported that the dispute between the deputies and the lodge had been settled amongst themselves, and they were ready to return to work. This had been forwarded to the employers by Mr Patterson and Mr Forman, from whom they had received a reply acknowledging the receipt of the information. They having, however, been informed "that many of the deputies, non-members of the Miners' Association, have been compelled by coercion and violence to join that Association, are not prepared to take any further steps with regard to the strike until they have consulted a general meeting of the owners, and this they will take an early opportunity of doing." Mr Patterson and Mr Forman wrote denying all knowledge of any force, reminding the owners that in all previous cases, whether general or local, the withdrawal of notices had always been mutual, and that they had instructed the workmen to present themselves for work. This action produced a deadlock, and three meetings were held between the Federation Board and the owners—on November 29th in Durham, and on December 1st and 2nd in Newcastle. The owners said they were convinced that some of the deputies had been driven through fear to join the Miners' Association, and therefore they could not sanction the resumption of work at Silksworth until the Federation agreed to provide for the security and freedom of the deputies who refused to join the Miners' Association pending the consideration of the question "whether it is consistent with the duties and responsibilities of deputies to belong to the Miners' Association, and that the deputies at Silksworth should have the opportunity, under proper safeguards, of freely declaring whether they wished to remain in the Miners' Association."

To these the workmen made reply that the action of the owners was against all former arrangements made between the two Associations. "In every case that has taken place the men either before or after giving the notices have had to agree to resume work" before the Urgency Committee was appointed, and yet the employers were asking, in the Silksworth case, to reverse that well-established practice, and were demanding that the pit should stand until a settlement was come to. That course of action the Board repudiated, and expressed their willingness to join any body or committee

as soon as the pit started. The employers then modified the claim, and asked that a Joint Committee should be formed, and the deputies who had been compelled to join the miners should be allowed to appear before that Committee, and say whether they wanted to remain in such Association. With that understanding the pit should go to work as soon as got ready, and the Committee meet within the next three days, which would mean prior to work being resumed, except very partially. The Board was willing to agree to form the Committee. No settlement was come to, although strong endeavours were made. At last the employers decided to evict the men from the houses. The evictions commenced on February 19th, 1891, and in all there were 106 families turned out, many of whom found shelter with their friends and in the places of worship. To effect that purpose a very large contingent of police was drafted in from other parts of the country, with the usual accessories to these circumstances, the "candymen," to whom the occasion was a harvest, and just the kind of work their natures were akin to, and their minds eagerly desiring, and therefore ready to accept. There were most serious riots, and at one time a violent collision took place, between the crowd and the police. It was not the result of any action on the part of the Silksworth people, but was owing to the presence of strangers. It was customary for the police to escort the candymen out of the village to a large house a short distance off, which afterwards was given the name of "Candy Hall" because of the use it was put to. On a certain night when the escorting took place, the police and their charge were followed by a large concourse of people, some of whom threw stones and various kinds of missiles. In a few instances the officers were hurt. This they bore until they got outside the village, when suddenly wheeling they charged with their batons upon the crowd, many of whom were seriously injured. Before the whole of the people were evicted negotiations re-opened, and the proceedings stayed, which eventuated in the following agreement:—

It is agreed that the Owners' Committee advise the Silksworth deputies who joined the Durham Miners' Association after the notices were handed in to pay up at once their arrears of subscriptions to the present date, on the distinct understanding that they are to be at perfect liberty from this date to be members or non-members of the Miners' or any other Association pending the settlement of the general question of deputies between the two Associations.

On the arrears being paid work to be resumed at Silksworth, Seaham, and Rainton, all men being reinstated in the positions occupied by them before work ceased.

That ended the last of the privileges given to deputies.

THE CLAIM FOR A REDUCTION

In the beginning of July the Federation Board met the owners. The employers had made a claim for a reduction on April 25th which the Board met by asking for an advance. As this is the first of the series of events and negotiations which led up to the strike of 1892 it will enable us to better understand that occurrence if we record it in detail. At the meeting referred to, the employers said that as the Board had asserted that the state of trade did not warrant a reduction, but, on the contrary, an advance, they would officially ascertain present and prospective invoice prices, and would then ask the Board to meet and consider them. If that did not lead to an agreement they would ask that the question should be submitted to arbitration. The matter was delayed until November 27th, when another meeting took place. The following statement was handed to the Federation Board:—

OWNERS' STATEMENT

The Durham Coal Owners' Association feel that the time has come when they must press for a substantial reduction of wages. They are paying 35 per cent. above the standard rates, whilst the ascertainment of selling prices for the quarter ending September 30th last brought out results corresponding with wages only $23\frac{3}{4}$ per cent. above the standard. The excess measured in this manner is therefore $11\frac{1}{4}$ per cent.; but prices are continuing to decline, and this should also be taken into account in considering what reduction ought to be made. The last advance of 5 per cent. arranged in November 1890, to take effect from January 1st, 1891, was given in the expectation that prices were likely to rise; instead of this proving to be the case they have declined to an extent equivalent to a 5 per cent. reduction in wages,

thus placing the owners in a worse position to the extent of 10 per cent. as compared with this time last year.

This is the smallest amount of reduction that the owners feel ought to at once be conceded, and they are willing either to accept this as an instalment of the relief that the state of trade imperatively calls for, or to submit to open arbitration the question of what change in wages ought to be made.

LINDSAY WOOD,
Chairman.

Coal Trade Office,
November 27th, 1891.

The Board promised to place the statement before the members as soon as they had time to examine it, and at the same time they would send the employers a statement with regard to the application for an advance.

Nothing more was heard of the subject until the 19th of December, when the owners wrote to the Federation Board as follows:—

I am desired to ask you when the Owners' Association may expect the reply to the proposal as to the reduction of wages made to your Federation Board at the meeting on November 27th.

This was brought before the Board, when they suggested that the questions should lie in abeyance until the New Year, after which they would be prepared to arrange for an early meeting. On January 14th, 1892, the Board met the Owners' Wages Committee, when three propositions were handed to them—(1) An immediate reduction of ten per cent.; (2) to submit to open arbitration the question of what change in wages ought to be made; (3) to submit any proposal the Board might have to make to the Coal Owners' Association. Failing to receive an intimation from the Board at the earliest date that they accepted one of those propositions, then the Wage Committee must at once lay the position of affairs before their Association, and obtain instructions as to the steps to be taken to press for an immediate reduction.

These questions were at once placed before the workmen by the Board. They, in the first instance, said they did not consider they had the power to make any settlement, and therefore were compelled to take that course. Then they reminded their constituents that when the markets were advancing (and on sufficient reason being shown) the employers gave advances by mutual arrangement, and therefore that mutuality should be reciprocated. They hoped the members would not be rash nor doubtful, for these were dangerous and destructive to their interests. "We must meet these situations like business men. The greatest safeguard is confidence in each other, and, as in the past, we have done all we could to merit that confidence from you, so in this most critical period, if you entrust us with the care of this matter, we shall do all we can to bring about the greatest benefit for our various Associations."

There were three modes of settlement open to them: the first to grant the immediate reduction of ten per cent.—this they would not recommend; the second was arbitration; and the third to place the matter in the hands of the Board to negotiate the best settlement possible. They pointed to the last advance of five per cent., which was got so speedily by acting in the latter manner. Upon these three questions the ballot would be taken, the papers to be returned on or before February 3rd. The voting was: for accepting the ten per cent., 605; arbitration, 2050; Board to have power to settle, 7102; for refusing the whole, 41,887.

The Board then put in operation Rule 14, which gives them power to call the Committees of the four sections if they deem it necessary. They arranged for such a meeting, and laid before it an amended offer made by the employers: an immediate reduction of seven and a half per cent., or five per cent. immediate, and five per cent. on the first of May. If neither of these was accepted then notices would be given on February 27th. With these offers the united Committees sent out a circular. In it they supplemented the one sent out by the Board in January, prior to the last voting being taken, and they warned the county not to be deceived, because it was quite clear that the owners were in earnest, and resolved not to be put off any longer. The question had waited six months. If they accepted one of the alternatives the dispute would be arranged. If they chose a strike, then they must prepare for taking the consequences. On the 27th of February, the day upon which the notices were given, they met and decided:

"That all members of any of the four sections who have not received notice from the owners must put them in at once, except the collieries who are not associated with the Durham Coal Owners' Association, who must work on, providing their wages are not interfered with."

These instructions were altered three days after, and the members were informed that "all workmen, whether employed at associated or non-associated collieries, and who have not received notices, must give them in at once."

The voting on the amended proposals of the employers was largely in favour of a strike. For agreeing to the seven and a half per cent. 926 voted, for the two five per cents. 1153; for giving the Board full power 12,956, and for strike 40,468. It was then resolved to submit the two highest to another ballot. In the meantime the Board endeavoured to induce the owners to modify their demand still further. On the 10th of March, two days before the notices expired, numerous telegrams passed between the two parties. Those from the Board were urgent; those from the employers as if inspired by indifference, the last one reading: "Owners regret position, but have no suggestion to make."

The Board then turned their attention to the prevention of the filling of the coals that were stacked, and they promised that, if any man or men refused to fill at the pits in the county during the strike, they would see them reinstated into their former work. In some places the colliery officials interfered with the enginemen. The Committee of that Association entered their protest, and brought the matter before the Board, who decided:

That we endorse the action of the Enginemen's Association in the prompt means taken by them in reference to officials of collieries tampering with the enginemen, and should any action be taken against the enginemen they will have the protection of this Board.

On March 11th the Miners' Executive decided to call a special Council meeting of their members on the 12th to consider the situation, and informed the Federation Board of their decision. After a long discussion the Council decided against any reduction, and on the 16th the votes of the whole Federation as per ballot showed:

	Strike Federation to Settle	
Miners	39,390	8,473
Enginemen	664	821
Mechanics	1,875	1,122
Cokemen	1,127	1,440
	43,056	11,856

In spite of all these efforts to prevent the strike and induce the members to settle there were some who charged the leaders with not giving the members full information and not daring to put the matter as clearly and as forcibly as they should. In defence they asked the lodge secretaries to look at the circulars and minutes which had been sent to them, and they would find these people were speaking either without full knowledge of the facts or maliciously stating that which they knew was untrue. The Board had placed before the members the various offers, and had in an unequivocal manner advised them that the most beneficial mode of procedure was to give the Board power to settle.

"To this we still adhere, as the wisest, surest, and best course to be pursued, and we have no doubt that, were it adopted, a speedy settlement might be arrived at, and all the misery and hardships that are necessarily attached to a strike or lockout, whether it be long or short, would be obviated."

The question of the sick members was somewhat perplexing, for the members of the sick department who were not receiving anything beyond the small amount of strike pay, found they could not keep their payments up, and the question was brought before the Council, when the following resolution was carried:—

This meeting deems it advisable to let the sick members who are now on strike cease paying their contributions for the present, and at the same time they be not allowed to come on to the Sick Fund. But those who are now on the Sick Fund have their sick pay continued until they recover from such illness, and at the same time they will have to continue paying their contributions, but death benefits to be paid to all.

The banking account as per the balance sheet for December 1891 was £36,000. There was £15,834 in property in the various halls in the county, and there had been so much money spent in local strikes that it had been impossible to accumulate money to the extent they should have done. The members were informed that the amount available would only enable the Committee to pay 10s. to each full member and 5s. to each half member, for they were compelled by rule to reserve £10,000 for the Sick Fund.

The strike being fairly started the Federation Board found themselves in a position analogous to that of 1879. The best they did receive (from a large number of people) was slander and vile names, and all because they, realising the dangers of the situation, dared to advise the county and take an unpalatable but manly stand. Meetings were held everywhere, and the speeches delivered were interlarded with epithets of the lowest order; and if the estimate of the agents was even only approximately true they were fit for no place outside a prison, for the most corrupt motives were attributed to them. They were betrayers of their trust, and were selling the interest of the men for their own gain. The main spreaders of those untruths were men from the outside: sailors who loved to sail on land better than sea, and coal porters from London, who thought they knew more about the miners' affairs than the men of the county did. In addition, there were those who believed in brotherhood, and thought the most effective means to establish it was by sowing discord broadcast among a people engaged in an industrial death struggle. The severity of the struggle may be gathered from the fact that 10s. per member and 5s. per half member was all that was available in the funds, and after being off nearly eight weeks the money gathered in from helping friends amounted to 5s. and 2s. 6d. respectively. It took £1000 to give each member of the Federation 4d. each.

After being off work close upon eight weeks the Federation Board sought a meeting with the owners for the purpose of talking "over the situation with a view of putting before the members of the various Associations any suggestions that might arise." Three days after the parties met, when the whole question was fully discussed. The position taken up by the Board was that, according to Joint Committee rules, no question could be negotiated during a stoppage, and therefore the owners should open the pits, after which the men would consider their demands for a reduction. That offer was refused, and a reduction of 2s. in the £ was pressed. In connection with

it they suggested the formation of a Wage Board as a means of preventing the recurrence of a suspension of work. They were then asked if they would refer the question to arbitration. Their reply was very short and decisive: "No; thirteen and a half per cent. reduction must be conceded before we will agree to open the pits." When asked why they increased their demand they said they had done so because the stoppage of the pits had entailed a great loss upon them, and they thought the men should pay for it. In addition, they chided the Board with simply being message carriers instead of men of influence.

There were three results from the action of the owners. The first was to bring the Federation Board and Committees into closer relations with the people as a whole. There had been a tendency towards peace, when the employers took the false step. They had an idea that the workmen were beaten, and there is no doubt there would have been a much earlier settlement but for that mistake. Before, the leaders were doing their best to persuade their people to let them settle the dispute, but afterwards they were in determined opposition to the settlement on the lines of the increased demand.

The second result was to throw public sentiment against the owners. It was very clear that, so long as the employers stood by their original demand, there was at least a silent condemnation of the workmen for refusing to place confidence in their leaders, but after the thirteen and a half per cent. was asked for the public veered round to the side of the workmen.

The third result was to change the feeling of the miners in relation to their trust in the leaders. What persuasion could not do the extreme demand did. At a Miners' Council held on May 7th it was decided to leave the entire case in the hands of the Board. On the 9th, at a united meeting of the four Committees, the subject was discussed for a considerable time, when it was decided that the Board meet the owners, but the Committees to be in attendance. A telegram was sent to Mr Guthrie informing him that:

"The Federation Board having received full power to settle the wages question, can you fix a day as soon as possible for us to meet your Wages Committee? Board waiting reply."

To this Mr Guthrie replied that he would call a meeting for the 11th, and lay the message before their members. The meeting took place on the 13th of May. The owners stood firm to their thirteen and a half per cent. The united Committees offered to give five per cent. That offer was refused. The Committees then proposed the following:—

WORKMEN'S OFFER

May 13th, 1892.

That we, the united Committees, representing the four sections of the workmen employed in the county, cannot accede to the demands of the owners for a thirteen and a half per cent., but in order that we may end this dispute, with the consequent stoppage of trade and deprivation amongst the people, we are willing to accept an immediate reduction of seven and a half per cent. from the thirty-five per cent., leaving the wages twenty-seven and a half per cent. above the 1879 basis; and further, that we are willing at the earliest moment after the starting of work to recommend to our members the formation of a Wages Board for the settlement of all county wage questions in the future.

W. H. PATTERSON.

OWNERS' REPLY

The Owners' Wages Committee regrets that it is impossible to accept the offer of the united Committees for an immediate reduction of seven and a half per cent. only. In other respects the Committees' proposal is acceptable.

The Wages Committee must again point out that the ascertainment of selling price for the month of February showed that the owners are entitled—according to the relation of wages to prices that so long prevailed, and which the owners still regard as fairly and fully measuring the rates that can be afforded—to a reduction of fifteen per cent. from the standards. In asking for thirteen and a half per cent. only the owners feel that this is the smallest reduction that they would be justified in accepting. They believe, having regard to the deepening depression of trade, that any higher rate of wages than would be thus

established must lead to a serious diminution in the amount of employment that could be afforded.

REGINALD GUTHRIE.

These were sent out with a statement of the case, with three questions upon which the members were asked to vote: Should the owners' terms be accepted? Should the strike continue? What suggestion had they to offer? In the circular sent out four days after these questions the Federation Board pointed out the seriousness of the position. It was difficult to carry on the struggle much longer. Arbitration had been offered to the employers, the pits commencing at the old rate. That had been emphatically refused, although it might have been accepted, if agreed to at the first. One suggestion had come to them—viz. to offer to accept a reduction of ten per cent. This was sent out as from themselves, and was carried by a majority of nearly four to one. When forwarded to the owners it was refused. The following is the resolution:—

May 23rd, 1892.

RESOLUTION

That we, the united Committees, representing the four sections of the workmen employed in the county, adhere to our refusal to accede to the demand of the owners for a thirteen and a half per cent. reduction, but in order that we may end this dispute, with the consequent stoppage of trade and deprivation amongst the people, we are willing to accept ten per cent. reduction from the thirty-five per cent., leaving the wages twenty-five per cent. above the 1879 basis; and further, that we will at the earliest moment after the starting of work recommend to our members the formation of a Wages Board for the settlement of all county wage questions in the future.

Seeing the Owners' Committee have refused our offer of ten per cent. reduction, and press for their full claim of thirteen and a half per cent. in wages as a settlement of the present dispute, we offer to submit the whole question to open arbitration, providing the pits be opened out at once.

On the refusal of this offer it became clear to the workmen that they were being most harshly dealt with, and as a natural consequence there were a few outbursts of temper and disturbances. There were numbers of policemen imported into the county. Against this the united Committees protested, and pointed out that the massing of these men was likely to cause disturbance, where otherwise there would be peace. They likewise thought the rate-payers should demand the withdrawal of the policemen, as they were an unnecessary burden upon the county. At the same time they placed before the county a detailed account of the whole proceedings from the initiation of it. They showed that they had done all they could in the interests of peace. They had offered to submit to a reduction, the justice of which had never been sufficiently proved; in fact, they were willing to give two and a half more than the owners asked for when they came out, which was equal to the fullest demand before the stoppage. They concluded by saying:

The future of this awful struggle is with the owners. We have done our part. We cannot and do not ask you to accept the unjust and exorbitant demand made upon you. So far as we can see, the struggle must continue, that is, unless you are prepared to submit to the unjust demands of the owners. Are you prepared to do this?

We implore you to be patient under the strain placed upon you by the latest action of the owners, from which it is evident that they would crush you, and reduce your manhood to the level of serfdom. We urge you to be law-abiding and still continue to show, as you have done in the past, that the men of Durham are a credit, not only to Trade Unionism, but to the country at large.

The owners are aware that our ability to successfully resist their demands depends upon our being able to procure the necessities of life. It is a matter which they have no need to personally fear, but which they appear determined to use as a weapon to force us to accept their terms. We must all do our best to defeat their projects, and nothing shall be left undone that we can do to secure subscriptions in order that our people may have food. We are thankful to those friends who have helped us, and we hope that workmen and all lovers of justice will respond to our appeal.

As Committees, we tender our thanks to the leaders and friends at our local lodges, who have so untiringly and unceasingly given their labours for that purpose. They are in a good cause, and we are sure they will not weary in their well-doing. Their action is made more necessary by the determination of the owners.

The offer of the employers (thirteen and a half per cent.) was submitted to the county along with the alternative of strike, with the result that every section voted by large majorities for a continuance of the strike, the least majority of any section being near four to one, and in one section nine to one. The resources of the men were gone, but their spirit of determination was strong. The owners by a statement tried to put themselves right with the public, but the Board replied by a counter statement. Then some of the influential men in the county (including Bishop Westcott) thought it was time to interfere, and letters were written by them to the Board, for which thanks were sent in reply. Among the communications was one from N. Wood, Esq., M.P., in which he expressed his regret at the failure to settle and the great misery among the people, and suggested that the Board should make an offer of eleven and a half. A letter of thanks was sent to him, expressing surprise that he should make the suggestion, and informing him that they would feel glad if he would try to get the owners to see that they were preventing a settlement by their stubborn refusal to shift from their demand for thirteen and a half per cent. The good Bishop, however, was not satisfied, and persisted in his endeavours to get the parties together. He was told that as soon as the owners were willing the Board would meet, and an arrangement was made on June 1st at Auckland Castle. A very long joint meeting took place, and then each party met in a separate room, the Bishop passing from room to room, full of solicitude for a settlement. At nearly the final stage of the proceedings he tried his best to persuade the workmen to offer eleven per cent., and he was told that, while he had their most profound respect, and they were sorry to refuse him, yet if they thought ten and a half would settle the dispute they would refuse, and continue the strike. At that point the parties met jointly again, when the following resolution was handed to the workmen:—

OWNERS' OFFER

The Federation Board have offered explanations as to the establishment of a system of conciliation in the future, which the Bishop of Durham recommends the owners to accept as satisfactory, and the Bishop having strongly appealed to the owners—not on the ground of any judgment on his part of the reasonableness or otherwise of the owners' claim of 13½ per cent., but solely on the ground of consideration for the impoverished condition of the men and of the general prevailing distress—to reopen the pits at a present reduction of 10 per cent. (that is, from 35 to 25 above standard), with the full expectation that wages will hereafter be amicably settled by the system of conciliation contemplated, the owners yield to the Bishop's appeal on these grounds, and assent thereto.

Bishop Auckland,
June 1st, 1892.

It was thought desirable to settle certain details before work was resumed. Amongst these was the restarting of all men as they came out. Some of the owners demurred, and thereupon the meeting broke up, and adjourned until Friday, the 3rd. The workmen at that meeting asked for a plain statement that every man would be engaged at his own work. The proposal of the owners was as follows:—

OWNERS' RESOLUTION

1. The Owners' Association have decided that no person shall be refused employment in consequence of having taken part in the affairs of the Workmen's Associations during the strike; they cannot, however, give a pledge to re-employ all their workmen, but they will recommend their members to employ as large a number as possible, and that the re-engagement of hewers be as follows:—That the places in each pit be cavilled for according to the last cavilling sheet, and that men cavilled to the places not intended to commence again shall be the ones not to be employed, it being understood that one hewer in a family being cavilled to a place that is to work is equal to the engagement of the whole family. In cases where a whole seam is stopped, it having been previously cavilled separately, the men belonging to such seam shall not be entitled to have a cavil put in for

any other seam. This mode of re-engagement shall not be adopted as precedent in future cases, either in discharging or employing workmen.

2. That the owners are not prepared to discharge or remove the workmen whom they have employed during the strike for the purpose of reinstating other workmen who were previously employed, but will use their best endeavours to re-engage those previously employed as vacancies occur.

REGINALD GUTHRIE,
Secretary.

Durham Coal Owners' Association,
June 3rd, 1892.

The united Committees objected to the second portion, but were willing to accept the first. No definite agreement was come to, but there was an understanding that the matter would be allowed to adjust itself smoothly, which it did, and no disturbance whatever took place in the absence of an agreement. The united Committees guarded themselves by drawing up a resolution, in which they interpreted the owners' resolution to mean that every man would be re-employed as before the stoppage. At the same time they informed their members that if any case of refusal took place, then all the other men must refuse to work.

Thus ended one of the most memorable strikes in this or any other country, not on account of its length, but the circumstances which were connected with it. The workmen were poor in funds at the start, and the help (although generous from some quarters) was small per individual; the total benefit for the three months did not exceed 25s. each full member. With these poor resources and prospects they entered upon what was felt would be a strike of a very determined kind—this, too, with the minimum amount of friction. The only event of much importance happened at Castle Eden. The disturbance took place on May 7th. It arose in reference to a man named Stogdale, who would not abstain from working during the strike. Four of the workmen at Castle Eden were tried for intimidation. Their names were Michael Forbes, W. R. Robbins, T. Jones, and T. H. Cann. They were tried at the Durham Assizes in July 1892, before Judge Day. They were tried under the Intimidation Act. The judge summed up in a very strong manner

against all the men except Robbins, who was discharged, but the other three were sent to prison. The judge said they had been found guilty by the jury of the offence with which they were charged—namely, with the object of preventing a certain person from pursuing his legal occupation "you in a disorderly manner, with other people, followed him along the road." After making a long speech in a similar strain, to show how beneficent the law was in his opinion and what a trio of desperadoes they were, he sentenced Forbes to a month, Jones to six weeks, and Cann, because the judge thought he was the ringleader, to two months.

THE AFTERMATH OF THE STRIKE

If the strike was unique in its endurance and order it was none the less important in its lessons. In it, as in 1879, was seen the result that followed the lack of confidence. A strike is the harvest field of the agitator, who cares not what is destroyed so long as he prospers. What would have been the gain to the individual member and to the Association if the resolve taken in the last few weeks had been taken before the tools were brought to bank? The funds, such as they were, would have been kept intact instead of being wasted. The great loss in individual income would have been avoided; in that respect the savings banks and co-operative societies (which in many cases are the poor man's bank) could have told a tale of hardly saved stores used up which had been kept for a "rainy day" of unavoidable troubles. The unnecessary and destructive friction which is sure to arise in these matters, no matter how peaceably the struggle be conducted, would have been avoided. Two great bodies, such as the two great Associations in Durham, are two great armies, and in the struggle and strivings anger will arise, and regrettable things will be said in the heat of the moment. These have a more far-reaching effect than people are apt to credit.

Then the loss in wages. This was twofold. There was the three months' irredeemable loss and there was the lessening of the reduction. It was admitted on all hands that less than the ten per cent. would have kept the pits working if the Federation Board had been trusted with power to settle, even up to the eve of the strike. In saying this there is no intention of measuring the result of a strike by the money loss or gain. The world would not have been so far as it is in the path of reform and better life if the

forlorn hopes of labour had not been fought, but it would be a piece of false logic if we were to infer that strikes should, therefore, be entered upon at all times. And certainly no one who in 1892 was able to appreciate the situation then would say it was one of those necessities of our industrial life. It was far from that; the gain would have been greater by the avoidance of the quarrel. If in writing our history this is emphasised, it is not in the spirit of reflection, but rather that we may learn wisdom; for in these matters it cries aloud in the street, and we can from a remembrance of such events escape the like evils. If this be done, then the strike of that day will be useful in the greatest degree to those of us who are active in this. Using Longfellow's figure, it is part of our dead selves, of which we can make a ladder, by which we can rise to higher things.

Another part of the aftermath was the burden which was thrown upon the funds. This was twofold. There were the men who could not get started, in the first instance, because of the state some of the pits were in; and second, because of the dislocation of trade, which was sure to follow a stoppage of work for three months. Business connections are liable to break, and the difficulty is to heal them again. The consequence was that there were men out of work for a long time after the actual strike was settled, and these were to maintain for a considerable time, many of them so long that they had to be transferred to the Relief Fund. The money paid to them was the outcome of a levy, which pressed heavily on those at work.

Then there was another burden, the result of the strike, but which was not any portion of the obligations of rule, the payment of the back rent of those who were living in rented houses. There was one peculiar and pleasing feature in connection with that strike, as with that of 1879, there was no interference with the men who were living in the colliery houses. There was in one or two places some little talk of a rent obligation from such men, but it came to nothing. Perhaps it was never intended that it should. This much it is our duty to state, to the credit of the employers: the men who were in battle with them were allowed to live in their houses, and were not prevented from gathering coal wherever such was lying about. To the men who were in rented houses the case was vastly different. Every week off work added to their debt, which they were bound to pay when they resumed work. With a spirit of generosity which is not restricted the whole of the members recognised the debt of those men as belonging to the whole

county, and resolved to pay a levy for the purpose of paying the back rent. The resolution was carried at the Council meeting on June 18th, 1892:

"That a levy of 3d. per full member and 1½d. per half member throughout the county be made to help to pay the house rent of the members living in rented houses."

At the same meeting the present (1906) Relief Fund was formed, to support men who were out of work. The system adopted in paying rent was to cavil the collieries, and pay them as they were drawn, with this provision, that if any colliery were drawn, but had not paid the levy, no rent was allowed until the levy was paid.

THE EIGHT HOURS AGAIN

The only remaining subject in 1892 was the ballot on the legal eight hours. We have noted previously how and when this was first introduced, with some plain advice given by Mr Crawford—advice which has never been shown to be wrong. It was decided at the Council meeting held on August 13th "that the county be balloted for and against the eight hours." On September 21st the Committee took the ballot, and issued a circular setting forth their views on the subject. As we have now (1906) reached a crucial stage in the discussion, it will be useful to place on record what the Committee of that date thought of the question and the difficulties it involved. In their opinion there were two modes of procedure by which the hours of labour might be shortened: legal interference and Trades Union effort. The latter was the one they had adopted, and it had been successful. No man could think they were against short hours; any opportunity to shorten them would be welcomed. They referred the members to the action in 1890: how they had given up a claim for ten per cent. and accepted a shorter day. "We are not now to set up a show of weakness, and sacrifice our manhood and independence, by handing ourselves over to the supervision and control of the House of Commons, which is not acquainted with the peculiarities of our occupation."

If it were the function of the State to fix hours of labour, was it not logically its function to fix the wages of the workman? "It is said that some of the

organisations are weak, and therefore the State should protect." The reply was: "Where weak organisations exist low wages are found. It is therefore necessary for the State to fix the amount of wages men should be paid, for men require bread as well as hours." They then turned to the difficulty.

EIGHT HOURS

Those who favour legal eight hours must consider how it would work. There would be serious alteration needed in our present mode of working. We must either have two shifts of 8 hours, making 16 hours' coal drawing and 8 hours' shifts, increasing the hours of hewers by 1 to 1½ hours per diem, and deputies half hour per day. This would increase the output, and consequently the price of coal, and necessarily the wages of all men. The other alternative is an 8 hours' shift for all men and boys, which would throw into the labour market thousands of men. Consequently, competition amongst ourselves such as we experienced in '76 and '77 would arise, and thus we would have a repetition of the hardships we underwent in those disastrous times. Much is made of the hours of boys; these we will shorten at the earliest opportunity. Under our present system, and taking a number of years, we work less than we should do under eight hours by law.

We therefore strongly urge on you to vote to a man against any Parliament fixing the hours of labour, as in our opinion it would be injurious to the working classes generally, and to ourselves in particular. Do not be led away by the idea that the short hours we have obtained for the hewers will be maintained. The request is eight hours from bank to bank for all and every man who works down the pit. To this, it may be said, it is a maximum number of hours, and that, therefore, some might be allowed to work less. That will depend upon the arrangement. If the employers get the sanction of the law, and they require us to work eight hours, we shall be expected to so work.

There is another point which demands consideration. It is a question of wages. Let us suppose the Act passed, and those who work ten hours (both below and above ground) were reduced to eight, how much should the wages be reduced? If we shorten the hours by negotiation, it will be done gradually, and wages could be arranged.

The result of the ballot was: for parliamentary eight hours, 12,684; against it, 28,217.

1893

The Wages Board—The Miners' Federation

THE WAGES BOARD

During the negotiations for a settlement of the strike in 1892 the employers laid emphasis upon what they designated the Wages Board, but which afterwards was known as the Conciliation Board. Their idea (commendable in every point) was to bring the parties closer together, and avoid the recurrence of the stoppage, which they felt (as all must feel) had been a disaster to the whole of them. The question rested over until the beginning of the year, when the owners made application for a reduction in wages, and at the same time asked that the formation of the Board might be taken into consideration. The meeting took place, and on February 27th the Executive Committee issued a circular, putting the whole position before the members. The miners at the time were in a complicated position, being connected with the Durham Federation, and they had a short time before become members of the Miners' Federation of Great Britain. Under Rule 20 that Federation claimed to have control of the wages disputes in all the districts identified with them. In order that the position may be properly understood we will insert the rule.

20. That whenever any county, federation, or district is attacked on the wage question, or any action taken by a general conference, all members connected with the Society shall tender a notice to terminate their contracts, if approved by a conference called to consider the advisability of such action being taken.

The application of that rule to Durham, in the situation it was in, would have been to leave the whole matter in the hands of the Miners' Federation, which would have taken full charge of the question, and have told the Durham Association what they must do—whether to accept or reject. The complication arose from the fact that they were members of the home

Federation as well, and there would be confusion if two bodies, one in the county and the other at a distance, were to have supervision. It was impossible to go on in that state. One body was on the spot, and knew the whole bearings of the case; the other was at a distance, and therefore bound to be in comparative ignorance of the facts of the situation.

The Executive Committee felt they were compelled to put the position clearly before the Federation Board and the county, and inform them they were members of the Miners' Federation. In addition, they resolved to call a special Council, and place before it the plain issue. "Let us state the position to you," they said. "Prior to our becoming members of the Federation of Great Britain we acted on all general and wage questions with the Durham Federation Board. Our action was a whole one with the cokemen, mechanics, and enginemen, the last strike being the most recent and clearest illustration of that. You will remember with what loyalty the four sections worked together on that occasion."

If they were resolved to remain members of the Miners' Federation, and accept Rule 20, they must prepare for leaving the county Federation. That would result in sectional action in Durham, for the other sections would naturally seek to make the best of themselves they could. It was not reasonable to ask them to wait until the Miners' Federation had decided, as per Rule 20, for Durham to strike, and then ask the cokemen, mechanics, and enginemen to join in it. There was needed some definiteness on the point, and the Council would be asked to decide two questions: First, "Shall it be settled by the Federation of Great Britain?" Second, "Shall it be settled by the Durham Federation Board and the united Committees?" At the Council held on March 6th the decision was in favour of the latter question.

In accordance with that resolution the united Committees met the owners on March 13th, and asked them to reduce their demand for ten per cent. to five, and they (the Committee) would at once accept it. The employers accepted the offer, the following being their resolution:—

The Durham Coal Owners' Wages Committee feels the responsibility of accepting a less reduction than the 10 per cent. claimed, because upon an adequate reduction really depends the extent of employment that can be afforded. Whilst, therefore, the owners' judgment is that the

true interest of both parties lies in at once bringing into operation a reduction of at least 10 per cent., the owners, desiring to show a spirit of conciliation, accept the Federation Board's offer to submit to a reduction of 5 per cent., to come into operation from the next pay of each colliery; but in doing so the owners feel it their duty to point out that so small a reduction as 5 per cent. falls far short of meeting the urgent necessities of the trade, and can therefore be regarded only as a temporary settlement.

This reduction brought the percentage above the standard down to twenty. But the employers were not satisfied; they pressed upon the Board the formation of a Wages Board. On May 27th Mr Guthrie wrote to Mr Patterson as follows:—

I am directed by the Durham Coal Owners' Association to press strongly upon you the honourable obligation we come under to the Bishop of Durham, and to each other, to endeavour to establish a Wages Board which would secure by conciliation or arbitration the pacific settlement of all questions outside the jurisdiction of the Joint Committee. That honourable obligation has been more than once reaffirmed by your Federation Board, but no steps have been mutually taken to give effect to it, and my Association feels that such steps should not be longer delayed, and therefore instructs me to ask your Board to meet the Owners' Committee in order to advance the matter.

The members of the Federation Board were eager, as individuals, to come to an arrangement, but were not sure how the membership would receive it. It was a new but necessary departure in an industry such as the Durham coal trade, but in order that it might be acceptable they were desirous that some scheme (beyond a mere name) should be outlined at least, and placed before the various sections for consideration. They asked the owners, therefore, for certain information:

"(1) The allocation of the 3s. 10d. basis price of coal under the following heads:—wages, salaries, material, royalties, and profits. (2) The proportion of coal required to make a ton of coke in 1893 as compared with 1877. (3) The cost of producing a ton of coke in 1893 as compared with the same in 1877. (4) A statement setting forth the

various objects to which the 2d. per ton was allocated. (5) A statement showing the percentage of steam coal, gas coal, household coal, manufacturing coal, and coal converted into coke. (6) The average lengths of contracts, with the periods when they are ordinarily made."

A reply to these questions was received on December 7th. This was in conjunction with an application for an advance made by the Federation Board. They were informed that the Owners' Committee was willing to meet and discuss the question at the same meeting when the proposed Wages Board was considered. In reference to the list of questions the letter contained the following:—

"The meaning of some of your questions does not seem clear, and generally my Committee failed to understand how they bear on the expediency or otherwise of forming the proposed Board, or arise prior to its establishment, but the Committee accepts your suggestion that a meeting should be held to discuss your communication."

The meeting was held on December 19th. Nothing was done in relation to the Wages Board, but an arrangement was made with respect to the advance. The Owners' Committee were convinced that the tendency of prices was downward. These had been somewhat higher during the strike in the Midlands, but the effect of that was passing away, and they had very grave reasons to doubt whether the first quarter in 1894 would justify the rate of wages then paid. They had given a temporary advance in October for six pence only, and they were prepared to make that permanent, and bring the wages to twenty-five and twenty-two per cent. respectively above basis rates.

DURHAM AND THE MINERS' FEDERATION

In order that we may make the chronology of our history as close and sequential as possible, we will postpone the Wages Board until 1894, and take up a subject which is within the year we are dealing with. In the autumn of 1892 Durham decided to join the Miners' Federation of Great Britain. The membership continued without any difference (except that arising from the eight hours, and the case of the reduction in Durham

mentioned above) until the month of July 1893, when a demand was made upon the Miners' Federation for a reduction of twenty-five per cent. In connection therewith a conference was held in Birmingham (the proverbial Hen and Chickens' Conference) to consider the situation. Two delegates were sent from Durham (Mr J. Johnson and Mr J. Wilson). It was found that in some districts organisation was in a very poor condition. The delegates from Durham were sent to move the whole question be referred to arbitration, but when they brought it forward as the best mode of procedure, they were prevented for some time, but finally were permitted, with the result that, by a majority of four to one, they were outvoted. A resolution was carried pledging all the districts within the Federation area to give in notices. If they had suffered reductions within two years, then they had to apply for an advance equal to the amount lost, without regard to the state of trade or any other consideration. The absolute order was to give in notices, the aim being to bring all into the struggle which was impending, and these had to be given within a fortnight. When these proceedings were reported to the county a circular was sent out by the Executive Committee, in which they commented upon the situation, and asked the members what should be done. They said there were two questions for them to decide upon—first, the position in the south; and second, the demand they had to make for fifteen per cent. advance, as per the Birmingham resolution. These could have been sent out in a bald form, but it was their duty to give the county guidance, for if a Committee be appointed for anything at all, it is to watch, warn, and guide the members of the organisation. There could be no doubt but that Durham was in favour of arbitration, for the last vote taken on the instructions to the delegates proved that. This was refused, and instead they were ordered to make a demand for fifteen per cent. advance. The question which they must answer first was: Is trade favourable for such a demand? Unless trade is prosperous now, could they expect to succeed in such a claim? What support could they get? Their own funds were gone entirely. If the Federation strike took place, then there was no source of income anywhere.

There were at that moment 5000 men out of work, some of whom had never started since the late strike. The small support these men had been receiving would be cut off. They would have to commence a strike, not in comparative, but absolute poverty. Where, then, was the hope?

But suppose notice was not given in for an advance, then Durham must give in notice to terminate their engagement when they had no dispute with their employers. If they were asked "what they were striking about" what answer could be given, except the following:—"Nothing whatever in our own county; we have no difference." Further, if the employers were to offer a ten per cent. advance, it could not be taken without the leave of the Federation. Neither could they accept arbitration, for they had been told the No. 20 Rule of the Federation would not admit of it. Therefore they must strike, or be expelled from the Federation. But, said the Committee, "much as we desire national federation, and may regret our expulsion from that body, we cannot urge you to a course that would in our opinion be disastrous."

The questions involved were then placed before a special Council, when it was decided to ask for an advance of fifteen per cent., but that they would not join the Miners' Federation in the strike. The Council likewise resolved to ask the cokemen, mechanics, and enginemmen to join them in their demand for the fifteen per cent. If not, then the Miners' Executive should apply themselves. The Federation Board considered the decision of the miners. They regretted the circumstances which had led to the great dilemma in which they were found, but, having a desire to keep the solidity of the Board, they would accede to the request, and meet the owners, but if it were refused, it would be desirable to refer the question to their respective sections for further instructions, and at the same time they would ask the united Committees to accompany the Board. The owners could not accede to the request, and it was necessary that the will of the members should be ascertained by the miners. This was the position: they had been ordered by the Birmingham conference to make a demand for fifteen per cent., and if not conceded, to give in their notices. None of the other sections had received the same orders. The questions were: Should there be a strike to force the demand, or should they work on? But before that stage was reached, it was necessary that they should ascertain whether the ballot should be the whole of the Durham Federation, or simply the miners. The voting was: for the whole Federation Board, 267; for the miners' vote alone to decide, 167. It was then found that the other sections could not join the ballot until they had consulted their members, and the Executive Committee determined to take a ballot of their members alone. The result of the ballot was: for a strike, 20,782; against, 19,704. The rule, therefore, was against a

strike. The consequence of that vote was to place Durham in direct conflict with the Miners' Federation. That body had a conference arranged for August 22nd in London. Messrs Johnson and Wilson were sent to it by a nearly unanimous vote. The first business of the conference was to consider the action of Durham, and the following resolution was moved and carried with great unanimity:—

That we, the representatives of this Federation, cannot allow the Durham delegates to sit in this conference, seeing that this district through its officials has not carried out the resolution of the Birmingham conference.

There are two very notable things in the resolution and its setting. Durham was expelled from the Federation, and the officials of that organisation were charged with preventing the carrying out of the Birmingham resolution. The first of these is very clear, for on that point the motion is specific; but it will be seen the second is not correct when we consider the two votes recorded above—the first placing it in the hands of the Federation Board and the second by a ballot being against the strike. This is a history, and not a record of any man's opinion. It is necessary that the state of things that existed should be recorded, not a mere theory as to how things should be. The history would be incomplete if we were not to follow the sequence a little further. No sooner had the expulsion taken place than there was an introduction of speakers from the Miners' Federation, who came with the avowed object of trying to induce the county to continue its membership. The only complete illustration of that circumstance would be for a man to kick another out of his house, and the next minute go himself, or send some of his relations, to ask the man to come in again, doing his best to show that he who was kicked out was the offender, and ought to feel thankful for the usage he had received, and to supplicate to be taken in again. It was a curious mode of procedure, to say the least, and, most surprising of all, they were assisted by some of the people in the county, who did not feel the slightest ignobleness in the treatment they had received by the expulsion.

1894-95

The Conciliation Board—Lord Davey's Arbitration

The formation of a Conciliation Board was again brought forward by a request from Bishop Westcott to the Federation Board asking them to meet him for the purpose of discussing the subject. The Board acceded to his request, but did not appoint a definite deputation except the four secretaries, leaving any others to join them who thought proper. The result of the interview was the calling of the four Committees to discuss the proposal. The decision of the Miners' Council on March 10th was:

That the Committee meet the owners and discuss the advisability of forming a joint Board for fixing the correct selling price of coal, and the other sections of the Federation (county) be asked to join the negotiations and report to the county; that there be a Conciliation Board formed, to consist of members from the owners on the one part and members of the Durham Federation Board on the other part. The said Board shall be formed of equal representatives of the before-named parties, who shall meet on terms of absolute equality.

This resolution was brought before the Federation Board, when it was found that the other three sections had not been instructed by their members, and it was resolved that the question be deferred until "they had an opportunity of bringing the matter before their Associations, and that the Board recommend the acceptance of the principle for their adoption, and the four secretaries meet and draw up a code of rules for the guidance of the Conciliation Board." A difficulty arose from a resolution passed by the Cokemen's Association.

Dr R. S. Watson had given an award in a cokeman's case shortly before, which in the opinion of the cokemen was not being carried out by the owners, and therefore, while they were in favour of the principle of conciliation, they decided not to take any part in the formation until the owners brought the award into practical operation. The Federation Board regretted the action of the cokemen, as in their opinion "such a Board would be the most effective means of bringing a full recognition of that award. As, however, the other three sections were in favour of proceeding with the formation of the Board, we ask the employers for an early meeting, and we would urge upon the cokemen to reconsider their resolution of March 31st, and give their representatives power to proceed with us in that formation."

The owners were desirous that the Board should join them in meeting the Bishop, but they were informed that a previous understanding had been come to, by which it was arranged that each side should meet him separately, and then the joint meeting should take place. They had carried out their part of the bargain, and were ready to meet jointly as soon as his lordship should ask them, as they were very wishful not to throw any obstacle in the way of the formation of the Board. On July 27th the formalities were settled, and the rules were left to the four secretaries, with instructions to draw up a circular recommending such rules to the members.

PROPOSED CONCILIATION BOARD

Gentlemen,—We hereby desire your attention and consideration to the rules of the "Proposed Conciliation Board," which you instructed us to form. We have always told you that, however carefully we might draft such rules, the acceptance, amendment, or rejection thereof is with you. We were proud to receive the commission of the duty, and we place before you the result of our work, and are hopeful that great benefits will accrue to the trade of the county if these rules are adopted. We do not claim perfection for them, but we do assert that they are in advance of any method ever arranged here for the settlement of disputes.

We will not trouble you by any lengthy statement by way of urging you to accept the rules, for in our opinion their fitness is clear, but we will in as brief a manner as possible draw your attention to three of their leading features or principles. First, the scope of the operations of the Board; second, its duration; and third, the machinery by which it arrives at its decisions.

The scope of the Board is set forth under the headings of "Objects." We do not quote those objects, but ask you to refer to and consider them carefully. They are clear in their intention and comprehension. What can be more interesting and important to us than the prevention of disputes? We speak for you, as well as ourselves, and say we desire them not, and welcome any mode of settlement which will minimise friction, and help both employers and employed to avoid any irritating action, while it does not interfere with the right of and justice to either

party. You will observe that the Board is intended to be *more than a Wages Board*. It will take into its cognisance and decision any questions which may arise and for which the Joint Committee rules do not provide.

You know as well as we do the numerous cases that arise which have no standing at the Joint Committee, and you will, therefore, easily recognise the value and importance of any tribunal which will deal with such matters in a ready and expeditious manner. There is no need to enumerate those questions. We hope you will not merely glance at the latter portion of the "Objects," but give it your careful attention.

The duration is fixed by rule three. The limit is 1895, and, therefore, if the rules should fail to meet our views, we can terminate the existence of the Board in less than a year and a half from now, which is a short time in the history of our industrial relations. A shorter time than this will not give us the opportunity of testing the usefulness of the arrangement, neither is it long enough to allow any serious evil to arise therefrom.

The machinery or mode of operation is contained in rule four and subsequent rules. If you examine these rules you will see, that while they provide for the appointment of an umpire (which is necessary), yet his services are not to be called in until the Board have tried to settle by negotiation and conciliation. We recommend to your special notice the main features of this portion of the rules. These are the provisions for the play of conciliation and mutual confidence. Anything that will beget a feeling of trust and mutuality, that will remove the desire to overreach and withhold on the one hand, and of suspicion and doubt on the other, should be welcomed and tried, and if possible strengthened.

There were a number of suggested objects and provisions sent in, which were afterwards commented upon by the united Committees. Amongst these was a minimum wage. The Committees, in relation to that question, drew attention to the period between 1877-79, when, in little more than a year and a half, the miners spent £23,000 in the maintenance of men out of work; that, so severe was the pressure, they were compelled to abolish the

Relief Fund; that there were collieries where the men asked to be allowed to work at twenty per cent. below the minimum; and that the actual average went down to nearly 6d. per day below the minimum. The second suggestion was "a voice in the selling price of coals." This, the Committees thought, was a very good ideal, but it was yet a great way off. It implied more mutuality than was in existence, and it was a state which must evolve, rather than be fixed arbitrarily. "The voting to be by ballot at the Board meetings." This was thought to be unbusiness-like, as secret voting was a strange thing for a business meeting. Then it was thought by some lodges that the question of sacrificed men, and arranging for all men to be in the Associations, were matters to come within the purview of the Board, but it was found that they were not compatible with its objects. The rules as framed were not perfect, but were far in advance of any to be found in the country. "Many other districts and trades have adopted the principle, but we venture to say that in no instance has a Conciliation Board been formed which, for breadth of scope in its operation and dealing with questions that can arise, is in any way equal to that proposed for this county. We have had the opportunity of studying the rules of all the Boards already formed, we have watched the work of those, and we unhesitatingly declare that in no single instance have such equitable rules been found."

When these views were put before the four sections they were accepted by the other three, but the miners hesitated. The Executive pointed out to them that by a Council resolution the power had been given to the Board to arrange rules and conditions, and therefore theirs was an anomalous position for them to take up by their objection. Under the circumstances they had resolved to call a special Council, in order that the matter might be fully considered. They were confident that if the common good were the aim, and all were imbued by that idea, the Conciliation Board would be formed on the lines suggested by the united Committees. The result of the Council was the acceptance of the proposed constitution, with the alteration of the number of members from fifteen to eighteen on each side, and the owners were informed that the Federation Board was ready to meet and sign the rules. The rules were signed on the 18th of February 1895.

There is no need to insert the rules here, as they can at all times be seen in the office, if any person feels desirous of doing so. The election of the first

members took place on the 12th February 1895, the following persons being elected:—

J. Wilson. W. H. Patterson. S. Galbraith.
J. Johnson. T. H. Cann. W. House.
J. Forman. W. Golightly. H. Jemison.

At the first meeting of the Conciliation Board the employers asked for a reduction of wages. Many people thought they were in a hurry. Such a conclusion was hardly justifiable when we remember that they had been pressing for a reduction for some time, and the delay had arisen from the length of time taken in the negotiations to establish the Board.

The employers felt themselves injured by the delay, and therefore took the first opportunity of having their claim put forward and settled. The Federation Board in their circular on the situation acknowledged that, for they said:

We cannot but regret that the first meeting of the Board should have been convened to consider a reduction of wages, yet we feel confident that, however distasteful and unpleasant it may be to submit to a fall in percentage, all who have observed the condition of trade, taken note of the prices prevailing generally, and the serious lessening of the number of hands, during the past six months, could not be otherwise than prepared for a reduction in the rates of wages which were got when the condition of trade was different and prices higher.

While the Board were prepared for a demand for a reduction they were not prepared for the amount asked. The demand was for fifteen per cent., which would bring the wages down to a point to which the scale of 1889 would have brought them. The price of coal in 1889 was 4s. 8d., in 1895 it was 5s. 2d. Wages had risen thirty-five per cent., and therefore they had a claim (said the owners) for at least fifteen per cent. The arguments against that claim we need not state in full. The main one was that, taking the whole period since 1889, wages had been between seven and nine per cent. higher than the periodically quoted net selling prices would have given. That argument, as all are aware, was of great weight, and that it influenced the decision, there is not the slightest doubt. The decision of the umpire was a reduction of seven and a half per cent., but it left the wages higher by that amount than the old arrangement would have done. Under it 5s. 2d. per ton

would have given a wage ten per cent. above the standard; the award of Lord Davey in May 1895 left it seventeen and a half above the standard.

Although they had been called upon to suffer this reduction so early in the era of conciliation, the Federation Board did not lose faith in it as an advance in wage settlements. They said:

It may not be out of place to allude to a feature or two of the newly adopted method of dealing with wages regulations as disclosed by recent applications, and we may modestly, yet rightly, claim for it a superiority of character and practice over preceding modes. As already stated, it has by its earliest results confirmed the conviction previously held, that the standard relation of wages to prices governing previous methods was not correct, and established the increased average amount obtained by the negotiations of the past years.

At the next meeting of the Board the owners made another application for a reduction. When the July meeting took place the claim was brought forward. It was objected to at first, on the grounds that there had not been sufficient time, seeing the three months had not elapsed. The notice was withdrawn and renewed. The reasons assigned were the declension in the markets and the inadequacy of the previous reduction. These reasons were not accepted, and the umpire was again called in. His decision, after two days' hearing, was a reduction of two and a half per cent. In spite of this adverse circumstance the Federation Board were still strong in their belief in the utility of the system. They said:

We are not going to say that its course, so far as it has gone, has been pleasant, for there have been two reductions, but these do not shake our confidence in it. It is an unfortunate coincidence, the initiation of a new system when circumstances are unfavourable and its changes are downward. The true test of institutions, as of men, is their action in a variety of conditions. No arrangement can make trade prosperous. They are dreamers who think so, and are liable to a rude awakening. Wise men recognise the ever-recurring changes, and employ the means which are most expeditious, easy, and equitable in their responses. Friction between employer and employed is a foe to any trade, uncertainty is a sure and hurtful detriment, hastening and enlarging the

times of adversity. Our opinion is that, if we have not the best system, we have one which will ward off friction, allay uncertainty, and induce steadiness in the trade of the county.

That clear and bold statement of their confidence in the Board was not effective in maintaining it, for at the Miners' Council held on November 16th it was resolved to take a ballot to test its continuance. The Federation Board, on being informed of that action, resolved to take it of all the sections. They at the same time advised their members to keep it intact. They did not find fault with the decision to take the ballot. Their advice was therefore not prompted by a spirit of complaint. It was right that these matters should rest on the will of the members. Their duty, however, was to guide the members and advise, even on subjects that were unpalatable. In October they placed before them their views in as clear a manner as possible. Those views they adhered to, and did not swerve from their belief in conciliation as the best system yet tried. It was condemned, because there had been reductions. If advances had come there would have been loud praise. Would wages not have been reduced if the Board had never been formed?

"Without hesitation we tell you that, in our opinion, he is a foolish or a designing man, or ignorant of commercial relations, who attempts to teach such a doctrine. We have never told you such an absurdity. When we asked you in the spring of the year to adopt conciliation we never dreamt of it as a fixed, immovable machine. To us it was (and is) a more mutual, closer, and smoother principle than we have ever had, taking within its comprehension other and important matters outside wages."

In spite of this pleading on the part of the Federation Board the voting was: for the Conciliation Board, 11,974; against it, 29,000; neutrals, 17,000, as a result of the miners' vote. The whole Federation vote was: for, 14,894; against, 30,587; neutrals, 20,000.

On the strength of that vote notice was given to terminate the Conciliation Board in accordance with rule.

The Conciliation Board—Death of Mr Patterson

The Federation Board were still in hope that the decision to terminate the Conciliation Board might be reconsidered, and they again brought the question before the members. They asked what system was to be substituted for it. They were firm in their belief in conciliation, but, if the members still persisted in abolishing it, what other form was to be adopted?

"The situation in which we as a county find ourselves makes it imperative that we should address you. We do not refer to our own organisations, for these are strong, but to our relation with the employers and the settlement of our transactions with them. How are these to be managed in the future? Has our attitude to be one of repulsion or attraction? Have the employers and ourselves to act like two antagonistic forces, looking with suspicion upon each other, and ready to take every advantage, as if we were in a continual wrestling match on the catch-who-can principle, where those who get the hold win, whether their cause be righteous or not? If the members persisted in their resolve to have no Conciliation Board, or some substituted machinery, who would suffer most? If there were two parties before you of equal strength and similarly conditioned, then the issue would be uncertain, and the victory would depend upon some unforeseen circumstances.

Such is not the case with us. Given a solid organisation of labour, and the same of employers numerically—still the balance of the chances in a wear-and-tear and struggling policy will be on the side of the party who is the best ammunitioned and provisioned. In this case, which in your opinion is the advantage?"

They pointed out that they were mutual sufferers with the members, if there were suffering; that there was not time in the lodge meetings to discuss the utility of such a system; and that as a consequence they, as one of the obligations of their office, were bound to have a fuller knowledge of the subject than the members. It was an unfortunate circumstance that the system had been tried in a receding market, but the proper test was not by one condition of trade. If conciliation were tested by an increasing as well as a falling market it would then be seen how useful it was. Some people

seemed to charge the Conciliation Board with being the cause of the depression.

"There cannot be a greater fallacy. The causes of the reductions lie outside the purview of any system yet arranged, and the control of them is not within the possibility of an arrangement yet thought of. But the question that faces us now, and demands an answer from us, is, would they have come if the Board had never been formed? There needs no philosophical knowledge to satisfy the mind on that point, except it be the philosophy of matter-of-fact, everyday life, which in these matters is not an unsafe test. Let experience guide, and it will afford a sure refutation of the unfounded idea that it is possible to fix, firmly and permanently, wages by any scheme within the knowledge of man."

They were desirous of giving them another chance, as the ballot on the previous occasion was very unsatisfactory, and some of the sections had made a request for such to be done. And they were hopeful that, before the notice of termination ran out, the Conciliation Board would be reaffirmed, as "the hope of all true reformers is centred in the cultivation of amicability and friendly intercourse between employers and employed, with a conciliatory method of settling any difference that may arise, monetary or otherwise, and in the ultimate blending of the two forces—Capital and Labour—for the mutual and equal benefit of all concerned. Consider seriously every step we as an organisation take, and let all we do tend towards the attainment of the much-needed object." The result of the second ballot was against the Board, the numbers being in close similarity to the previous vote—the miners being very largely against, while the other three sections were in favour. We may add here that it terminated on August 4th, and for a short time the county entered the region of uncertainty again, which all must acknowledge is no help to trade or district.

DEATH OF MR PATTERSON

The month of July had been fatal to the organisation, for in it, in 1890, Mr Crawford died, and on July 16th of this year Mr Patterson passed away

from the labour to which he gave his youth and manhood. He had filled the position of agent and financial secretary for twenty-five years.

It will not be out of place if we insert a portion of the *Monthly Circular* for the month in which he died. It contains the sincere estimate of one who knew him intimately, who had the highest respect for him while he lived, and who now has pleasant recollections of his manly and reliable actions. He was no self-seeker or panderer for self-profit; he was the antipodes of that mean and despicable character. You might have difference of opinion with Patterson, but you could at all times depend upon the open honesty of his nature.

MONTHLY CIRCULAR

July 1896.

My first word must be a note of sorrow. July to us, as regards the agency, has been a fatal month. In it we lost Crawford, and now Patterson has joined the great majority. This is the common lot of all. Happy is the man who leaves this world for the next without regret, feeling that his life has been of some service to his kind, and that the people amongst whom he has lived express their recognition of his worth by their sorrow and appreciation of his labours. Such was our friend. If we, who stood by his bedside in the last moments of the final struggle, could have been cognisant of his thoughts there would have been no regret; for W. H. Patterson was the enemy of no living man, but the friend of all. We were not so privileged, but we were so glad to see the large crowd of people who gathered to pay a tribute to his memory. The gathering was diversified in its character, spontaneous in its gathering, and truly sympathetic in its manner and spirit.

But from our regret for his loss let us turn to the influence of his life. The true test of a man is his work. Our friend stood the test. The real measure of a man's life is its actions; he was full measure. He was not showy, but solid, and as such, being dead, yet speaketh—speaks in no uncertain sounds; let us turn no indifferent ear. The main work of his life, in conjunction with others, was the inception, promotion, and solidifying of our organisation. It will be the most real expression of our sorrow if we do our best to carry forward that upon which he set

his mind, and which he endeavoured on all occasions to enforce. Would it not be sham sorrow and unreal regret on the part of a son who on the death of a father ... a father who by the toil and care of his life had made a position ... if he were careless of that work, and had regard only to self-indulgence? Little as we may think of it, there has a fortune come to this generation and a position been gained for it by the labours of our friend and others which cannot be estimated in money. We are apt to test everything by a monetary standard, but in this case the test fails. Within the life of Mr Patterson there have been effected changes which he outside the range of wages, but which are none the less valuable to us. These are only known to those whose working life commenced anterior to thirty years ago. There are many who have not the experience, and who cannot, therefore, realise to the full, the contrast. Lightly as these may be inclined to look upon the changed conditions, and think because these conditions exist now they have always existed, there are numbers who know, and who are able to compare, and rejoice in the change made.

I would not say that all is attributable to the labours of our lost friend. No man would have protested more strongly against such an idea than himself; but he did what he could; he never devolved his share of work upon others.

He was earnest and determined at the foundation of the Society, and anxious for its welfare during the whole course of our existence. We shall best show our respect to his memory by doing what we can to preserve and perfect the Institution.

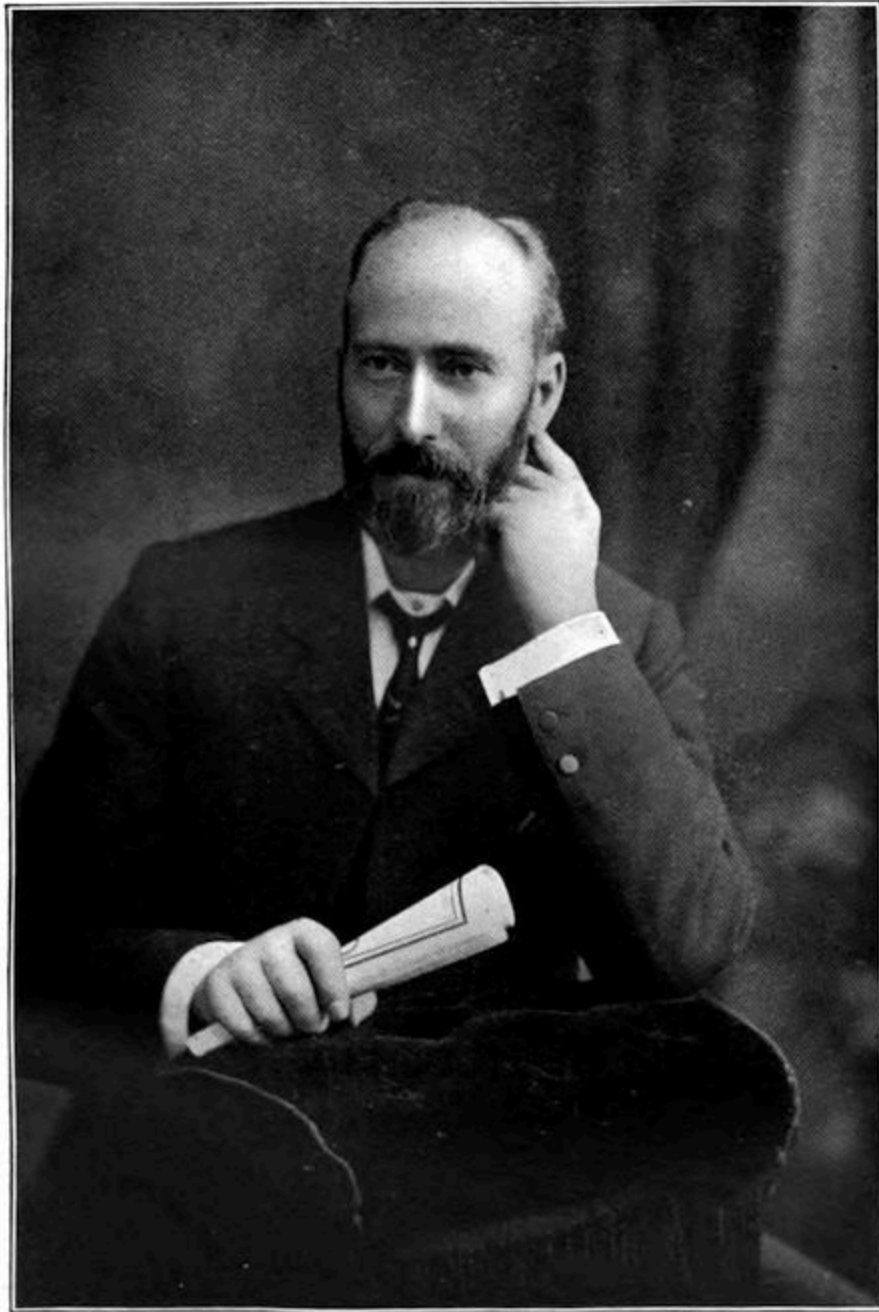
The loss of Mr Patterson was followed by the election of Mr T. H. Cann to the office of treasurer, Mr Wilson being appointed corresponding secretary, and Mr Johnson financial secretary. We will close our reference to our friend by placing on record the estimate placed upon him by the Committee who knew him.

COMMITTEE NOTICE

(Death of Mr W. H. Patterson)

Gentlemen,—It is with very great regret that we announce to you the death of Mr W. H. Patterson, which took place at 6-15 P.M. on July 16th. Our regrets on this occasion are not those of formality, but are prompted by a recognition of his worth as an official of our organisation and his character as a fellow-worker and a man. Never yet had any organisation a more earnest officer, nor any body of men a more willing colleague, nor any community a more upright, honest, and straightforward man, than our friend who has been taken from us. He has not lived the years allotted to man, but the best part, and by far the largest part, of his life has been spent in the cause of his fellows. He has gone to his rest at the age of forty-nine years. Twenty-eight of these have been spent in active, diligent service—and useful service. He was one of the band of men who twenty-seven years ago, in the face of difficulty, laid the foundation of our organisation; and since that time he has been watchful over its interests, consistent in his desire to benefit the members, and unwearied and uncomplaining in his endeavours to strengthen the structure he helped to rear. It was not his privilege "to die in harness," as we are confident it would have been his pleasure; but those of us who had the opportunity of judging know how anxious he was, so long as he could get about, to do and advise whenever he could. The name of W. H. Patterson is wove into the web of our Institution, and his life will be a blessing after he has gone from our midst. The good that he has done will live after him. Happy shall we be if the same be said of us when Death gathers us in.

July 17th, 1896.



T. H. CANN

1897

Miners' Federation—Washington Strike

The year 1897 was memorable for two things: the refusal of the Miners' Federation to accept Durham as a member unless the county would agree to

support a legislative Eight Hours' Bill, and the conflict between the Executive Committee and Washington Lodge, which settled the question once for all whether money could be paid if a colliery were stopped illegally, even if the Council decided to pay. These we will take in the order stated. Towards the end of 1896 it was decided to join the Miners' Federation. The information was sent to Mr Ashton, the secretary of the Federation, and the application was accepted. Then arose the question as to the meaning of Object 5:

"To seek and obtain an eight hours' day from bank to bank in all mines for all persons working underground."

In order that the intention might be made clear the Executive passed the following resolution:—

That Mr Ashton be written to, asking whether Object 5 in the Miners' Federation Rules means that the eight hours have to be obtained by State interference alone, or by organised efforts, and whether the districts have any option or choice in the matter.

Mr Ashton replied that Object 5 was to be brought about by organised effort or legislation, or both. As far as the district having option or choice was concerned all members were expected to be loyal to the Federation, to be guided by the rules, and assist in carrying out the resolutions passed at the conferences of the Federation. That was interpreted to mean that if Durham became a member, as all the other districts were voting for legislative action, it would be virtually bound to join in the demand for eight hours by State, and the Executive placed the question on the programme for the Council held on February 6th in the following form:—

That the county having decided to join the Miners' Federation, and we having been informed that we must agree to support a legislative eight hours as a condition of membership, and as we remember that the county has decided, by ballot in 1892 and by resolution in 1895, not to support such a measure, we cannot agree to accept that condition until the county alter the previous resolution on the question, either by Council, motion, or ballot.

Will delegates come prepared to say what shall be done in this matter?

(1) Shall we rescind the previous resolutions?

(2) Shall we support an Eight Hours' Bill?

(3) Shall a ballot be taken on the subject?

The Council passed a general resolution:

"We adhere to the resolutions now standing in the Association's minute-books—viz. that we do not go in for the parliamentary eight hours' day, and that there be no ballot taken on the question."

That decision was sent to Mr Ashton on February 10th, the following being the letter:—

At our Council meeting held on February 6th our members decided to abide by their previous resolution to oppose any State interference with the hours of labour. I am instructed by our Committee to inform you of this decision and to ask you to let us know whether under these conditions your Executive Committee accept us as members of the Miners' Federation of Great Britain. On the presumption that you will accept us as members on those conditions, I enclose you a cheque on the National Provincial Bank, value £59 (fifty-nine pounds), being our entrance fee at one pound per thousand members.—I am yours,

JOHN WILSON.

The receipt for the entrance fee not being sent the Executive Committee wrote again on February 18th:

If you do not send the receipt the inference on all sides must be that you do not accept us on the conditions stated (our opposition to State interference with hours). If you do send a receipt, then we shall conclude that you do accept us on the conditions, and there will be no need to repeal the resolution of exclusion of 1893.

Two days after that was sent Mr Ashton sent a receipt, and said:

I have no desire to delay the matter of your district becoming connected with the Federation. I enclose receipt for the entrance fee.

As this was written two days after the Committee placed the alternative before the Federation it was assumed that Durham was not to be bound to the legal eight hours. This impression was communicated to Mr Ashton on February 25th, and on the 27th the Committee was surprised to be told:

"In reply to your letter of yesterday, Durham has been accepted into the Federation as all other districts have been. Whatever resolutions you may pass on general questions in your Council or Committee meetings you must be governed by majorities at the Federation."

Then there arose a dispute about some contributions which were sent to Mr Ashton. The amount was £245, 16s. 8d. The dispute was as to the period which was covered by the payment. On June 30th, in a letter dealing with the disputed point, Mr Ashton said:

I think you will agree with me that the difference on the hours question is so great that until Durham can agree to withdraw their opposition to the Miners' Eight Hours' Bill, it is most unwise to keep their connection with the Federation.

And on July 10th the cheque for the £245, 16s. 8d. was returned to Durham, and the separation mentioned above was effected by the return of the contributions.

The Executive Committee then summarised the situation as follows:—

We decided to join the Federation. We then found that we had resolutions standing against the eight hours. By our own decision of February 6th we resolved to abide by those previous resolutions. We then informed Mr Ashton, as secretary of the Federation, that we had so resolved, and enclosed the cheque for our entrance fee, with the understanding that if the receipt were sent we were accepted on those conditions. Our Council again on May 29th reaffirmed our opposition to the eight hours, and we wrote to Mr Ashton and sent our quarter's contributions, and said we were desirous of remaining members on

wage questions. We were then asked to say whether we could pledge the county to come out on strike, which we could not do. The conclusion of the whole matter then is, because we could not give a pledge to come out on strike on every occasion when so ordered, and because we were resolved to oppose the eight hours by State interference, our contributions are returned, and we are told by actions—which speak louder than words—that we are not to be members. We are not to be allowed to judge of our own circumstances and peculiarities, but must submit the most important part of the conditions of our labour to those whose conditions are widely different from ours, and who, knowing nothing of our circumstances, would force us to be guided by the changes they require in the hours of labour.

THE WASHINGTON STRIKE

It will be observed that there has been no mention of local strikes except there be some peculiarity related to them. There is such in connection with this strike. It was of great importance to the Association and the maintenance of the rules. There had been numbers of illegal stoppages, and although the leaders and members at the lodges affected knew they were breaking the rule, yet they persisted, and were enabled to carry a vote in Council that they should be paid from the General Fund. It was felt that once and for all the question should be decided, and it should be shown that where the constitution of the Association was violated the violation should entail forfeiture of benefit, or else of what use was it to have rules or Committee of Management? To go on in such a loose manner was to make the rules a byword and a mockery. It was time they should have the seal of reality, and be placed on a sure foundation, so that order should be maintained, or at least those who with open eye did wrong should know that their action would not receive condonement, and they be paid the benefit of the Association, as if they had obeyed its provisions.

That was the question to be decided. Should the rule be the guide, and the Executive Committee have the management, or should lodges be allowed to stop their colliery in opposition to the constitution, and suffer none of the consequences? The Washington case afforded the opportunity for the settlement, and that is the reason why it is made part of this history. The

dispute arose about the application of an agreement made by themselves. The nature of the agreement is of no import now. The action of the lodge and its relation to the rule is what we have to consider. The manager put one interpretation on the agreement, the workmen another, and they were the signatories. Numbers of agreements had been disputed prior to that, and had been brought before Joint Committee or some other properly arranged tribunal, and managed by the agents, or Executive, in accordance with rule. Washington, however, set rule aside, disregarded the Committee, and stopped the pit on the 10th of August. On the 11th the corresponding secretary met their deputation in Newcastle, and told them they were acting illegally, and that they could not be paid from the funds. The deputation, however, were confident the Council would grant them strike pay, although they admitted they were breaking the rule. Other means were adopted to induce them to resume work. The lodge appealed to the Council for a grant; it was not put on the programme. The trustees objected to the treasurer paying the money. They had taken the opinion of Mr Atherley Jones previously. The question submitted to the Counsel was: "Supposing a lodge came out on strike in violation of the rule, without first having obtained the permission of the Committee or Council, would the fact that the Council, after the men came out on strike, approved of their action alter the position or liability of the trustees?"

The opinion was as follows:—

MR JONES' OPINION

August 30th, 1897.

With regard to the question raised, whether, under the circumstances described, the trustees have power to allow payments to be made to the men on strike who have violated Rule 50, I am of opinion that they have no such powers, and any payment so made would appear to be a direct breach of trust. Nor do I think the position or liability of the trustees would in any way be altered by the subsequent vote of the Council approving such payments. The wording of Rule 51 is quite clear:—

"Any lodge ceasing work" "under the circumstances which have happened" "shall forfeit all claims on this Association"; and even

though the whole Association were to vote in favour of strike pay being granted, I cannot see how the effect of that rule could be removed.

Standing upon that advice, the trustees refused to allow the money to be paid. The lodge requested the Executive to call a special Council to consider whether a grant should be given them. The request was refused, because, as the rules had been violated and the trustees had decided that no money should be paid, it was no use calling the Council, seeing, if the vote were given to pay, the decision could not be carried out. However, the question was brought forward at the conclusion of a Council, and the delegates decided to pay a grant equal to strike allowance, but the trustees refused to allow the money to be drawn from the bank.

The Executive then placed the position before the members. They said the giving of a grant was but a form of evading the provisions of the constitution. The decision of the Council placed the treasurer in a dilemma: either he had to refuse to pay, or face a prosecution in court for paying money contrary to rule. The Committee had, therefore, either to leave the treasurer to his own devices, or call the trustees together, and place the whole question before them. The meeting was held in the office of Dr R. S. Watson, who was one of the trustees. They decided to take the case to the Court of Chancery, and to inform the Washington Lodge of their intention, and give them the opportunity of being parties to the case. Mr Isaacs (the Association lawyer) was instructed to write the lodge, which he did. He said he was instructed to inquire whether they wished "to be a party to the proceedings, and if so, to kindly supply me with the name and address of any one of your members whom you may appoint to represent the lodge."

After some negotiations, and with the view to make the matter mutual, the Executive agreed to bear the cost of the trial for both sides. The hearing did not take place until the 8th of February 1900, but in order that we may keep it in close connection it will be well to consider it here. It was heard in the Chancery Court, before Justice Cozens Hardy. The Association was represented by Mr I. Isaacs, its legal adviser, and the lodge by Mr C. W. Newlands of South Shields. There were able barristers on both sides. The judge decided:

If these men came within Section 22 it must be because these particular men must be considered deserving, and also within the objects of the Association. He thought unless there was something to strike them out the argument on their behalf was well founded. The real question was whether, although the language of Rule 3 defining the objects of the Association included them, they had not by 51 been removed. He thought that was the case. He did not think he could limit the effect of that rule so as to make it mean that they should forfeit only the absolute right to have 10s. per week under Rule 52, which it was admitted they had lost. He thought the exclusion applied not merely to claims as of right, but to all protection from the Association, and they could not be deemed legally or properly objects of the benefits of the Association.

So far as the Executive and trustees were concerned that trial and decision were satisfactory, but the lodge said they wanted it taken to the Court of Appeal. So far as bearing the cost of the trial was concerned the pledge had been carried out, and the Committee were surprised when it was suggested to carry the case to a higher court. However, as they were desirous to have the case properly decided, and that there should be no room for doubt (the welfare of the Association being their great consideration), they agreed, and guaranteed the payment of the entire costs. The appeal was heard on November 11th and 12th, the Judges being Rigby, Romer, and Vaughan Williams.

A strong effort was made to reverse the decision. All the skill, plausibility, and sophistry of very able lawyers were used. The rules were purposely disparaged and travestied, in order that a prejudice might be created against them, but the judges unanimously agreed with the finding of the Court of Chancery.

This is a bare record of facts of a dispute and trial which was fraught with importance to the Association. It generated a great deal of bitterness. The leaders could have had no personal ends to serve. Their aim will be truly set forth by a quotation from the *Monthly Circular* for November 1900.

(The Lessons of the Trial)

The trial is over, and, so far as any personal feelings are concerned, the sooner it is forgotten the better it will be for our Association. To guard and strengthen that should be our first thought and care. But while it will be beneficial for us to forget any attribution of ill motives, and evil speaking or ruffled feelings consequential thereto, we shall be wise men if we gather up the lessons which come to us. This battle has been fought for one purpose only, and that is to support the authority of the rules. To that end, and that alone, have our efforts been devoted. The great question at this moment is:

Whether it is better to have a set of rules which requires that the Committee of picked men (responsible year by year to the will of the members) should have a knowledge of, and be called in to assist in, the settlement of disputes before a large colliery is stopped, and a serious expenditure thrown upon the Association; or whether a lodge shall have a free hand to stop a colliery at will, and then run a chance of creating a favourable feeling, and receiving large sums from the funds, when, if the Committee had been consulted, the matter might have been settled; or if not, a strike entered upon legally.

Another lesson is that, having received the sanction of the courts to our rules, and having lifted them out of the uncertainty by which they were surrounded, we shall do well to keep them in the certainty in which they have been placed. It is very clear that an attempt will be made to alter the rules which guide this matter. If so, a lax (and ruinous) state of things will be introduced. For the last two or three years the same attempts have been made, and again this year resolutions with the same object are sent in. The rules which place the affairs of the Association in the hands of the Committee (before a stoppage) have to be erased or mutilated, and rendered useless. Surely it is better, and more conducive to the welfare of the Society, to have our affairs placed on business lines, than to have a code of rules which will admit of loose procedure, and spending illegally large sums of money, which will be wanted whenever the depression of trade sets in.

My advice to you is to consider carefully every amendment which may come before you. Trades organisations will prosper most when they are founded upon, and guided by, business principles.

The Wages Question—The Compensation Act

The uncertainty which the Federation Board had pointed out as the inevitable result of the abolition of the Conciliation Board soon made itself manifest. There were continual demands being made upon the Federation Board to seek advances, but they felt how difficult it was to get reliable data upon which to found a claim. On March 22nd they gave the county an account of an interview they had with the employers on the 12th of that month. The suggestion as to the claim for an advance being made was not supported by any data, and when they met, the employers pointed out that the indications were in the direction of depression more than the expansion of trade, and therefore the Wage Committee could not recommend to the owners to concede an advance. That refusal the Board advised the workmen to accept until there was some better trade prospects.

"Like prudent men, and, acting upon the lines you would have us proceed upon, we are convinced it will be more hurtful than useful to initiate or press a demand for an advance unless the state of the markets warrant such a course."

Another meeting on the wages question was held on May 25th. A strike took place in South Wales in the beginning of April, the effect of which was felt in an increased demand for the class of coal produced in this district. Their supply being cut off consumers turned to other sources, and as a consequence there was a natural feeling of unrest in Durham among the workmen. They had the impression that the whole of the produce of the county would be affected by the demand, and therefore the increase in price would be an all-round one. The Federation Board met that "false impression which we fear rests in the minds of many of our members" in a statement they sent out on the 26th of May. They pointed out two very important considerations, which the generality of members would lose sight of. There was a large amount of coal sold under contract, which would not be affected by the temporarily increased price, even if all the output of Durham had been steam coal, but it must be remembered that only nine per cent. was of that class. They then gave a calculation to show how a rise on a small percentage would affect the whole. The steam coal being the only part

feeling the increase, and that class forming only nine per cent. of the total, what would be its universal effect?

"Without contending for the accuracy of the quantities let us give a calculation which may suggest a key to the position. Of the nine per cent. of steam coal let us suppose two-thirds of it was sold under contract at a normal market price. We should then have only three per cent. of the entire output getting a higher price. Let us further suppose that this three per cent. secured an advance in the abnormal state of the market of 6s. per ton during the strike; we should only have realised a general increase equal to, say, 2.16d. per ton over the whole of the coals produced."

Considering, then, the purely temporary nature of the rise in price the Board agreed to accept an advance of five per cent.—two and a half on basis rates under the usual conditions, and, with the view of meeting the exceptional circumstances, a temporary advance of two and a half for six pays. The advances were to date back for a fortnight in each case, the understanding being that if the prices fell at the end of the six pays the temporary two and a half would be discontinued. On July 22nd the Board met the employers, when the temporary advance was continued for other six pays. A subsequent meeting was held on October 29th. The employers offered to increase the temporary advance of two and a half to five for a further period of six pays. The Board was willing to take the five per cent. if it were considered a permanent advance. The settlement agreed to was an advance of two and a half, and a continuance of the temporary advance of two and a half for six pays more.

THE COMPENSATION ACT

During the Parliamentary session of 1897 the first Compensation Act was passed. The date of commencement was fixed for the 1st of July 1898. While the Act was under discussion the representative of the Durham Miners in Parliament urged strongly that, not only should facilities be given for the formation of Committees, but means should be adopted to induce employers and employed to take steps in that direction as a means of avoiding the friction and litigation which the new law involved. The idea of

a Compensation Committee was from the very commencement very favourably received by the members of the Association, and the employers were as desirous on their part to join in the endeavour. There was a natural desire on the part of the Permanent Fund officials to formulate a scheme to strengthen their fund. It was found that the attempt between the Trade Unions of Northumberland, the Federation Board, and the Permanent Relief Fund to arrange a Scheme was a failure. A number of meetings of Joint Committees and Sub-Committees, representative of the various Associations, and between those Sub-Committees and the Employers, were held. The failure arose from the character of the proposition—that there should be an Insurance Fund, which would take over all the liabilities of the owners, and insure all the workmen, which, said the employers, was the primary condition. The Miners' Executive in Durham could not accept such a scheme, and they turned to the formation of a Committee representative of their Association alone, and the owners. Negotiations went on with the owners, and finally the Executive Committee asked for full power on lines which they indicated. This the county agreed to give, and an agreement was come to in time for the commencement of the Act on July 1st. The system of class average obtaining in the county lent itself to the formation and working of such a Committee. This the men readily adopted, and it was another illustration of the hold mutuality and compromise had on the men of the county as a whole. Some men would have made above the average wage, and have worked more than the agreed number of days, and as a consequence their compensation would have been greater, but it would have entailed a large amount of labour if it had been on an individual basis. But by the Committee arrangement the system worked automatically. In the formation of the Compensation Committee Durham stood alone. There was nothing like it in any other district or trade, and its action was of the greatest benefit to employers and workmen alike.

1899

Election of Mr House—The Wages again—The second Conciliation Board
—The Aged Miners' Homes—Deputies' Basis Wage



ALDERMAN W. HOUSE

For some time there had been a growing desire for a further subdivision of the labour in connection with the agency. It was thought that it might be useful if, instead of the Joint Committee business being in the corresponding secretary's department, an agent was appointed, who should have sole charge of that Committee. This rearrangement was hastened by

the passing of the Compensation Act. The work thrown upon the organisation as a result of that measure was immense owing to the very great liability there is to accidents in the miners' occupation, and consequently the large number of delicate questions that were sure to arise in the application of a complex and complicated measure such as the new Act. The Executive Committee felt that it was imperative something should be done, and, acting on their suggestion, a new department was formed. Mr W. House was the gentleman selected to fill the new office. Mr House brought to the work a very essential qualification. His ability was unquestioned, but he was also experienced, having served on the Executive and Joint Committees for some years, and was thus thoroughly prepared for taking upon himself the duties of the new office.

THE WAGES AGAIN

In considering the wage negotiations for 1898 mention was made of a temporary advance of two and a half per cent., which was given for six pays, and then carried forward over two periods of the same duration, and extended into 1899. On the 14th of January the Federation Board met the owners, their errand being to get if possible the temporary advance (which would terminate on January 21st) incorporated into the ordinary percentage. That request the employers could not grant, as the ascertained price for October and November was less than for the three months previous.

"They are willing, however, to continue the temporary advance for a further period of six pays, or as an alternative they suggest that this meeting be adjourned until Saturday, the 28th inst., by which time the selling price for the quarter ending 31st of December will be ascertained."

The Federation Board chose the extension for a further six pays, as they believed it was the most beneficial course.

The next meeting was held on April 5th. Nothing was arranged, and there was an adjournment for three weeks. At that meeting the owners said there had been a declension in the prices. After a long discussion they offered an advance of three and three quarters, bringing the percentage above the

standard up to twenty-six and a quarter; and, in consideration of special circumstances, to give a temporary advance for three months of one and a quarter, and they were prepared to date it back a fortnight. The arrangement was a very unique one, and, said the Federation Board in their explanation to the members, "it arises from the operation of the two and a half temporary advance, and the fact that the adjourned meeting was not held until after the dates fixed for its termination."

THE SECOND CONCILIATION BOARD

The delay and uncertainty, both as to time for making application for, and the data upon which to found, the claim, turned the minds of the members to a renewal of the Conciliation Board, or some similar system by which wages could be regulated more smoothly and expeditiously than the policy they were pursuing. On the programme for the Council held on May 27th there appeared a resolution from Marley Hill:

"We move that the county be balloted for and against forming a Conciliation Board."

The Executive Committee in their note on that resolution strongly recommended its adoption. It was highly desirable that the feeling of the county should be ascertained. They said:

We have previously expressed the opinion that the steadier we can make our trade, and the more certainty we can infuse into our industrial relationship with our employers, the better it will be for the workmen; and there is nothing more calculated to foster this desirable condition than the principle of conciliation. It was a mistake when we terminated the previous Board, and this has been revealed more fully in our negotiations with the owners in a rising market. We feel sure we would have done better, and it would have saved a great deal of friction, if we had had the Board. There are other questions of great importance besides the wage question which a Conciliation Board could deal with. We therefore advise that you carry this resolution.

Acting on that advice the Council adopted the ballot, and by a majority of 580 in a total vote of 39,713 the Board was re-established. The Bishop (Westcott), who had been anxiously watching the course of events, came forward to offer his congratulations and assistance if required. No time was lost. The four sections were called together, and they recommended that the old rules should be adopted, and that a circular be sent out urging the acceptance of the same as the constitution of the new Board. The objects may be inserted here.

"By conciliatory means to prevent disputes and to put an end to any that may arise, and with this view to consider and decide upon *all claims* that either party may, from time to time, make for a change in county wages or county practices, *and upon any other questions* not falling within the jurisdiction of the Joint Committee that it may be agreed between the parties to refer to the Board."

The following was the voting on the adoption of the old rules:—

	For the old Rules	Against	Majority
Miners	258	125	133
Enginemen	125	—	125
Cokemen	52	3	49
Mechanics	75	—	75

At the earliest moment after the result of the vote was known a meeting was arranged with the employers. At that meeting the employers wanted to alter the rules in one or two particulars, but the Federation Board informed them that their powers only extended to the adoption of the old rules, and if any alterations were made they would have to be referred to the members for sanction.

"It was agreed that the employers should take the statement to a full meeting of their members, and if they persisted in desiring amendments a further meeting should be held, but if not, then the two secretaries should get the rules signed by the Owners' Committee and the Federation Board."

The latter alternative was adopted. The old rules were signed as suggested. The first meeting of the Board was held on November 4th. The officers elected were Sir David Dale, Chairman; W. H. Lambton, Vice-Chairman; R. Guthrie and J. Wilson, Secretaries of their respective Associations; and Lord Davey, Umpire. It was further resolved:

"That with pays commencing 6th and 13th of November 1899, wages should be advanced by $3\frac{3}{4}$ per cent., making the wages of underground men, mechanics, enginemen, cokemen, and banksmen to be $33\frac{3}{4}$ per cent. above the basis of 1879, other classes of surface labour $30\frac{3}{4}$ per cent. above the basis."

THE AGED MINERS' HOMES

In October 1899 was initiated a movement of which Durham may justly claim to be the pioneers—viz. the provision (as far as it can possibly be done) of free houses and coal for the aged mine workers. For a few years the subject had been assuming shape. Vague in its inception, by the perseverance of the originators it was inaugurated in this year. The first to make mention of such a movement was Mr J. Hopper, who subsequently became Secretary and Clerk of the Works. To him was soon joined Mr H. Wallace, land steward to Earl Ravensworth; and then other three: the Rev. Canon Moore Ede, J. Johnson, and J. Wilson. Their first step was to secure a large hall and two acres of ground near Boldon which could be made into tenements. The building was the property of the Ecclesiastical Commissioners, but was rented at an easy rent. That was taken over by the Boldon workmen for their own old men. Then the Committee turned to the Ecclesiastical Commissioners again. Without entering into all the stages of the negotiations, the final result was the renting of nine acres of land in three plots situated in three different parts of the county. Just at this juncture there was an opportunity to purchase the colliery village known as Haswell Moor, consisting of 112 houses, to each of which was attached a garden. The whole of it was freehold. This fortunate bargain gave inspiration to the Committee, as it was very cheap, and an impetus to the effort, as it formed a very nice colony of old people, the cost per house being about £25.

The scheme rested on a voluntary basis. The Committee in initiating the movement resolved to keep it clear of all compulsion. Their proposition was 1s. per member from all in the Miners' Association per year, which would give £3000. The lodges responded very readily to the appeal, and were soon joined by the other three sections of the Federation Board and the deputies. In addition, the outside public sent large and generous help. One very striking letter was received, enclosing a cheque for £25, which we will record.

"Mrs Graham and I are very pleased to find that you are making such good progress with this most useful and laudable scheme. We are quite sure that the old folks would be more at *home* and more comfortable in cottages such as they have been used to all their lives instead of being placed in specially built almshouses or hospitals.

"We would like to feel that we have made one old couple happy by paying the cost of one of the Haswell Moor cottages, as intended to be made fit for habitation, and therefore propose to subscribe £25."

That encouraging letter and generous gift were from Coroner Graham of Findon Hill, near Durham, and was soon followed by other expressions of sympathy and substantial help. Bishop Westcott rendered great assistance, and opened his castle at Auckland for one of the sectional meetings the Committee called as a means of bringing the question before the lodges. His lordship allowed the use of his splendid drawing-room, and presided over the meeting, and on every hand the workmen were praised for their grand work. The best commendation, however, was the comfort of the old people, and when the opening day came there could not have been found prouder men anywhere than the Committee of Management.

The opening of the first batch of houses took place at Haswell Moor in October. The ceremony was performed by Mr J. Wilson, the chairman of the General Committee, and the inaugural address was delivered by the Bishop. A quotation from the *Monthly Circular* giving an account of the proceedings will be fitting here.

It was a great occasion, and the address was worthy of it. There was a very large company in the tent to listen to the eloquent remarks, but

there was a larger outside who were excluded from the privilege. To the men of mature years there was the rejoicing coming from the past, and an exhortation to act in unity, and not to be simply receivers, but givers of strength to the common cause. They were not alone, not isolated separate units, but members of the great body; strong with the strength of all, and glad with the service which they could render to their fellows. A man who received all and gave nothing was like the Dead Sea. However rich the floods might be that flowed into it, it retained no life-giving, no glad force—all was lost. In addition, there was the urging to avoid despair and have hope. Nothing could be more fatal than to declare that, because we were not moving with greater rapidity, the goal was unattainable. "Do not listen to such a vision of despair, cherish the full vigour of hope."

Let me finish with the words to the young men. I wish all could have heard the words of wisdom as they fell from the lips of our respected and honoured Bishop. As they could not, let me quote them, "they had received a splendid inheritance, splendid with noble achievements and noble traditions, and they—as men who had mastered themselves and realised their obligations—would use it well, guard it well, and hand it down to those who came after, enriched by the fulfilment of hopes cherished long ago, and illuminated by the brightness of hopes which those who came after them would perhaps be allowed to fulfil."

On that day, by the inauguration, the Durham miners took a long step in the path of benevolence, and raised themselves to a proud and prominent position amongst true reformers. It was a grand illustration of the truth that they who most practise self-help are best able and most eager to help others. A working man's income limits the possibility of giving large sums; but the many small rills make the large river. There is large philanthropy in a small gift. The volume and value of it lies in the spirit and intent which prompts it; and the ultimate success of a movement like the Aged Miners' Homes Scheme lies in the willingness of the thousands of workmen in and about the mines to assist. Based on that, the county can be studded with homes where the aged and worn-out miner and his partner can find home comfort and warmth when the sun of their life is nearing the setting and the shadows of life's evening are gathering thick around them. No young man can

measure the full meaning of such provision, but all can feel the rich mental luxury which will assuredly result from taking part in the providing.

DEPUTIES' WAGES

We will close this year by a reference to a settlement made during it. This was in respect to the fixing of a basis wage for deputies. Prior to the agreement there had been a fixed wage, which was altered by adding a penny or twopence, or more, to it, or reducing in that way if the wages were decreased. It was a very unsatisfactory mode of procedure, and always involved a meeting between the Owners' and the Deputies' Association after the Federation Board had dealt with the wages. For some time there had been a strong desire on the part of the deputies who were in the Miners' Association to have their wages regulated by a percentage, the same as the other classes of workmen. In July the following agreement was signed:—

It is hereby agreed that with pays commencing 24th and 31st of July 1899 the basis wage of deputies shall be fixed at 4s. 8½d. (four shillings and eightpence halfpenny) per shift for back-bye shifts, and that these basis rates shall be subject to the same percentage, advances, and reductions as may be from time to time arranged with regard to the wages of the miners.

1900

Death of Mr Forman—Election of Mr Galbraith—Agreements made during the Year

On the 2nd of September death made another inroad upon the original leaders of the organisation by carrying off the president, Mr J. Forman. For over twenty-seven years he had been in that position, and from first to last he carried out the obligations of the office in a manner equalled by few and excelled by none. He was fitted at all points for being president of an organisation of workers such as the Durham miners. The best estimate of his character will be found in quotations from the *Monthly Circular* and the Executive Committee's Minute.

DEATH OF OUR RESPECTED PRESIDENT

I am sorry to say Death has made one of its most serious inroads into our ranks, and taken from us one of the most prominent figures in our Association. Our much respected and gentlemanly President is no more, and his services, over more than the average length of a generation, are ended. We long for the sound of a voice that is for ever still, and the touch of a hand that had a friendly grasp. For nearly thirty years the name of Forman has been a household word amongst the miners of Durham. He was not ambitious of "spreading a sounding name abroad," but he had a deep desire to do his duty to his own people. His was a quiet nature; but among men, as in nature, the quiet forces are the most productive of good. In the movements that make for progress in men, as in our physical surroundings, the clamour of violent action and noise are not the most useful. In the history of our Association, from its very commencement, our departed friend has been one of the binding and consolidating influences. Wise in counsel, when a spirit of rashness and impatience seized some of us, he has many a time helped to steady the mind and temper, and tone the action. Prolific in suggestion he has oft pointed a way out of difficulty in the time of stress and strain; in fact, he was well and amply equipped and qualified for the important position he filled amongst us. He took upon himself the office when times were vastly different from what they are now; when capital and labour were in this county like two opposing forces, separated by a spirit of doubt and animosity; and he has done much to establish a better feeling between employers and employed. He knew by experience the position of inferiority and harsh conditions in which our lot was cast before the foundations of the Society were laid. He has assisted and rejoiced over every step towards equality and relationship, and he was very anxious lest anything should be done to mar our usefulness.

Mr Forman was more than an agent, he was a friend and an example. A man may be appointed to a position and do his work in a mechanical and perfunctory manner, like a hireling waiting for the shadow of the day, but that is not sufficient, and it did not satisfy him whose loss we mourn. He was an example in conduct and in mental cultivation worthy of imitation by all our young men. He looked upon the

workmen as something more than machines, and he was desirous that they should pay more attention to the improvement of their minds, and the formation of thrifty and studious habits. In that he was no theorist, for he was a man of very extensive reading, especially upon scientific subjects, and, as a consequence, he was able to approach and deal with our questions in a most intelligent manner.

He has gone, but his work is with us. It is our heritage, not merely for enjoyment, but for employment. We can best show our respect for his memory by our acceptance and proper use of that legacy. These men whose lives like his stretch back into the dark days are decreasing in number year by year. Let us do nothing to damage the Institution they helped to establish and consolidate, and let our effort be to strive for the goal they sought to attain.

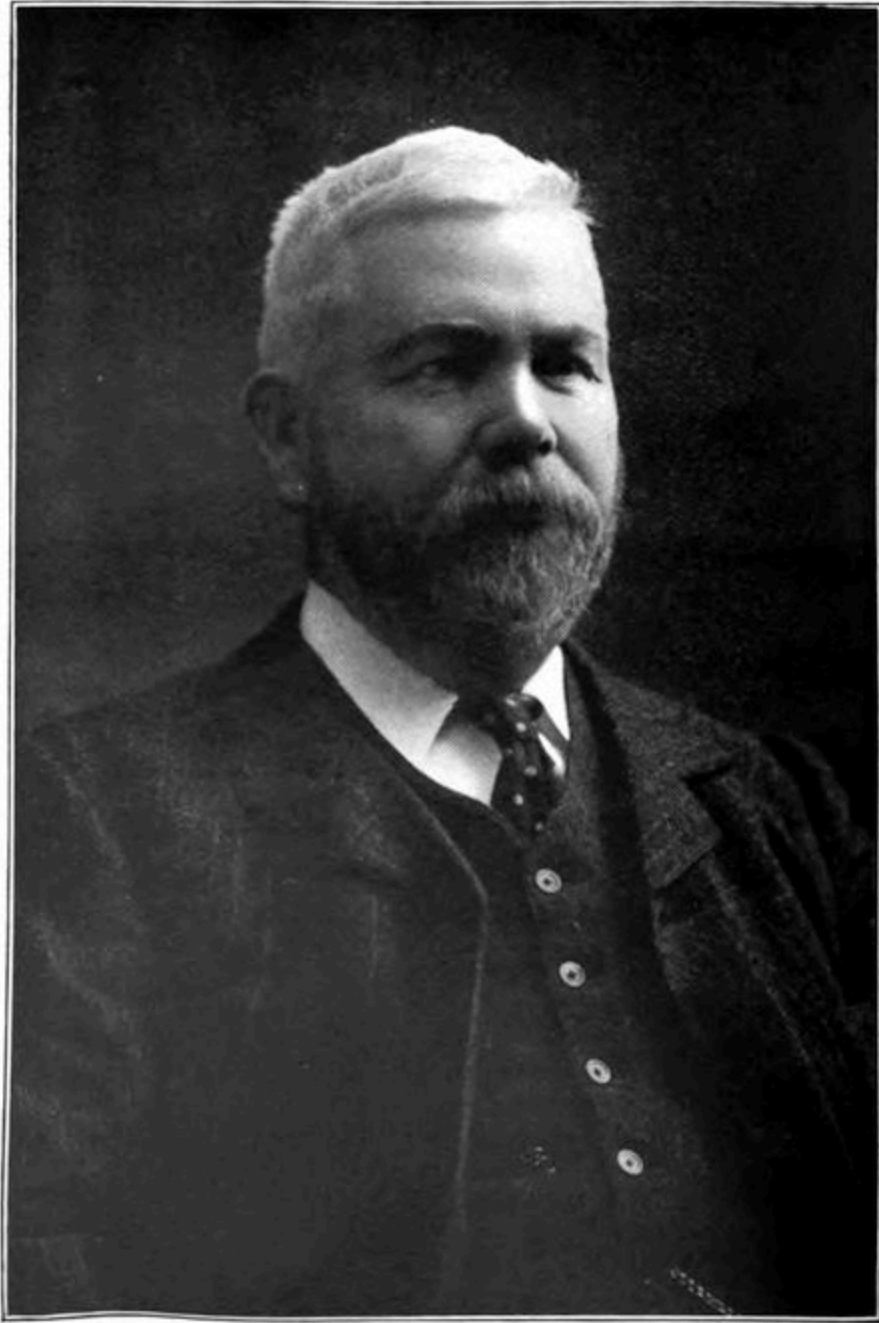
DEATH OF MR JOHN FORMAN

(Executive Committee's Notice)

September, 1900.

Our regrets on this occasion are not those of formality, but are prompted by a recognition of his worth as an official of our organisation and his character as a fellow-worker and a man. Never yet had any organisation a more earnest officer, any body of men a more willing colleague, nor any community a more upright, honest, and straightforward man than our friend who has been taken from us. He was privileged to live to the ripe old age of 77 years, and for more than a quarter of a century has devoted the whole of his time and the best of his energies to the upbuilding and consolidation of our Society, and the betterment of the working classes generally. We shall miss his genial presence and guiding counsel from all our business meetings. He was on all occasions a reliable guide and counsellor in our deliberations on complicated questions, and in the general matters pertaining to the work of the Association in the midst of dark times and difficult circumstances. We feel that by his death we have not only lost an able and efficient President and colleague, but the workers in and about the mines in Durham have been

deprived of a friend whose lifelong services have been devoted to the bettering of their conditions as wage earners.



ALDERMAN S. GALBRAITH

And further, we would tender to the family our sympathy in the great bereavement which has fallen upon them, and the hope that they may be strengthened by the assurance that, although dead, he

still lives in the grateful remembrance of the people amongst whom he lived, and for whom he laboured.

The vacancy caused by his death was filled by Mr House being transferred from the Joint Committee agency to the presidency, and the election of Mr S. Galbraith as his successor in the Joint Committee. In the election the county chose a well-trying and very trustworthy man. He had been checkweighman at the Browney Colliery for twenty-one and a half years. Those workmen placed absolute reliance in him, and without reserve allowed him to manage the affairs of the lodge. The condition of the colliery, the peace and harmony which obtained, and the fact that only one deputation visited them to make inquiry into a grievance during the whole time he was there, are clear proof that he had great care for the interests of the men, and that they were well repaid for their confidence in him. His tactful management of the local business specially fitted him for the wider sphere of labour. The members reasoned safely when they concluded that he who had been faithful in the local would be faithful in the general. Those who knew Mr Galbraith were in perfect agreement as to the opinion formed by the men who had been in such long and profitable business contact with him.

AGREEMENTS

Screenmen—Labourers—Datal Wage—Hewers' Datal—Houses and House Rent—Boys' Advance

The first of these was the raising of the basis wage of the screenmen and labourers. That wage was fixed by an arbitration at 2s. 7½d., but was never quite accepted by the county. Negotiations had been proceeding, and on 31st March 1900 it was agreed "that the basis wage of *bona fide* screenmen and labourers on and about the pit-heap and on the colliery branches should be 2s. 10d. per day." This was a clear advance of 2½d. per day, and meant nearly a day's wage increase in the fortnight.

The second was in reference to the hewers' datal wage. There was no settled or uniform principle of payment for the back-bye work. On

August 16th it was arranged that:

"When coal hewers are taken from hewing to do other work for a shift or shifts (or portions of a shift), during which they would otherwise have been employed at coal hewing, they shall, for not exceeding three consecutive shifts employed at such other work, be paid the hewers' county average wage."

The third settlement was the "Houses and House Rent." This had been on hand for six or seven years. It was placed on the agenda of the Conciliation Board in 1895. After that Board terminated the question lapsed, but was brought forward by the owners at the Board meeting on May 1st, 1900. It was at first part of a general application, but shortly before the meeting the mechanics introduced a house question, and therefore the request of the owners was made to apply solely to miners. The subject was adjourned to give the employers a chance to rearrange their claim.

Before the meeting held on August 3rd the Owners' and Miners' Committee held two meetings, and an agreement had been come to, subject to the approval of the miners' lodges. The Conciliation Board was informed of this; further, that a return was being taken, and that the agreement was being strongly recommended. It was adjourned on the understanding that the owners could put it on the next agenda, if not settled in the meantime, and could then ask the Board or umpire to decide. The request of the owners was as follows:—

That the general question of the supply of houses and coals be considered by the Board of Conciliation with a view to the points of difference between the Owners' and Miners' Associations being decided by the Board.

The return mentioned above resulted in a refusal of the agreement, although large material changes had been made in it to the advantage of the workmen. The return was most unsatisfactory, as fifty-two collieries, representing 112 votes, did not vote. The Executive Committee decided to call a special Council, and informed their

members of the position. The subject was sure to be settled at the next Conciliation Board meeting.

"We have pointed out to you on one or two occasions that if it is not settled by us it will come before the next Conciliation Board, who will be asked by the owners to deal with it or refer it to the umpire."

The special Council was held, and a discussion took place on the agreement, but no vote was taken. In due course the subject came before the Board. It was felt that the refusal was caused by the exclusion of the shifters and wastemen. The owners were willing to include these, and the Board agreed to the list of classes and conditions contained in the agreement of November 1900.

The agreement settled a long-standing dispute, and established for twelve classes the right to a free house, or rent if houses were not found. In respect to the other classes not specifically named in the list, their right would rest on the custom of the colliery obtaining on the 1st of June 1900. Under the circumstances the agreement was the best that could be got, and was a very long way ahead of the uncertain condition of things which existed prior to its signing. There was this to be considered: if the Board had not settled it then the umpire would have been called in, and there was no assurance that he would have gone so far. With respect to the rent, which was dependent upon the custom of the colliery, the right of the classes named to a rent (if not the amount) was guaranteed. Before the arrangement was made, if there were not sufficient houses, the men belonging to the colliery had to prove, at Joint Committee, it was the custom to pay rent at that colliery. If they failed to establish the custom, then they were non-suited, and without rent. That which was indefinite and uncertain was lifted out of the region of contention once and for all, and that in itself was no small advantage. In judging of the merits of the "Houses and House Rent Agreement" it must be remembered that the Executive Committee and Federation Board had to contend against time and precedent. These were no mean forces. Practices which in some cases had existed for thirty years were difficult to alter by the party seeking the alteration. If the effort had been made twenty-five years before it would have been

comparatively easy: "Customs would have admitted of easy proof, and the data would have been new and readily substantiated." Keeping those things in remembrance, the conclusion will be that the agreement was a good one.

On the 29th of December other two small agreements were signed. One of them had reference to boys whose wages were below 1s. and those having a basis wage of 1s. and 5d. or less. The former were raised to 1s., and the latter had to have 1d. increase. The other change was in relation to smart money for beat hands. It was agreed that, as the Compensation Act did not cover that injury, the smart money should be continued where it had been the custom to pay it before the Act was passed.

1901

The Coal Tax—The Death of Bishop Westcott—The Appointment of an Accountant

In the spring of the year the whole of the mining industry was startled by a proposal made by the Chancellor of the Exchequer to place an export duty of 1s. per ton upon all exported coal. It was done to enable him to meet the heavy expenditure which had been thrown upon the nation by the Boer War. The entire cost was over £250,000,000. The year or two previous the coal trade had been prosperous. The profits of the employers and the wages of the miners loomed up very large, and he being in a desperate position (having a deficit of £50,000,000 to meet) thought it safe to make an attack on the trade. His proposition was a very disastrous one. The arguments advanced in support were uneconomic and fallacious, but were forced upon the House of Commons by the sheer weight and force of a great and obedient majority—a majority whose party loyalty covered a large number of political sins.

His main arguments (upon which the changes were rung) were as follows:—Coals were a great national asset, and the exportation should be checked, and even if exported under the 1s. tax the foreigners would pay it. To say the least, the former of these arguments was too narrow to be considered at all seriously, because if the necessities of the nation demanded a

preservation of our coal supply, then it could only be done by a total prohibition of the export. Further, it lost sight of the large mining population, the amount of capital sunk in the mines, the ships and sailors employed in the carrying of coal, and the interchange of trade, which would be interfered with if the policy were effected. The argument as to the foreigners paying the 1s. was fallacious and selfish; fallacious because it assumed the foreign consumer would not seek the cheapest market, which would be opened out to him by the development of the Continental coal fields; and selfish because, if correct, it was an endeavour to throw upon him a part of the cost of a mad and wasteful war, when he took no part in the initiation of it.

His proposal was met by fierce opposition in all the mining districts, both exporting and non-exporting, but in none more than in Durham. Employer and employed united in opposing it. To such an extent was this joint action carried that the pits were all laid idle for the purpose of affording the workmen an opportunity to hold mass meetings. In a circular issued on April 22nd the Executive Committee informed the lodges that they intended to hold seven simultaneous meetings, and to join the Northumberland miners on the Town Moor, Newcastle. In the circular they said:

The occasion is important. Time is short. The question is urgent. A more injurious tax was never proposed. If carried, it will cripple our trade, but more especially that of Northumberland and South Wales. Our export trade is not so large as theirs, but we are so closely bound together that we are sure to suffer with them. Let our protest be as large and emphatic as the tax will be injurious, and then the pressure of public opinion will compel a withdrawal of the Chancellor's proposal.

In connection with the national protest large conferences were held. The first of these took place on April 25th and 26th, at which a deputation was appointed to meet the Chancellor on the 29th; but he held out no hope. The conference was resumed on the 30th, and on May 1st. There was a very strong feeling in favour of stopping all the mines in the country, and a resolution in that direction was adopted. The main obstacle to an immediate stoppage was the fact that certain districts had not considered it, and the conference was adjourned for a week to give them time to call Council meetings and consult their members. The adjourned meeting took place on

May 7th, but it was found that there was a more peaceful spirit abroad. Durham was in favour of the stoppage, and the delegates, acting on instruction from the Council, voted for that course of action. The conference was against it. An arrangement was come to in view of any district being asked to submit to a reduction in consequence of the coal tax. If that occurred, then "another conference should be called to consider and determine whether the whole of the mines of the country should be laid idle until such intimated reduction is withdrawn."

So far as any stoppage of work was concerned, the agitation was at an end, but the protest did not cease with it, for year after year it was brought forward, and at all the galas it was made part of the resolutions. Deputations met the Chancellor, and in Parliament the spokesmen of the miners brought forward the question on every opportunity. At the very outset they compelled him to exempt all coals sold for 6s. per ton and under. And (to anticipate a little) one of the first effects of the return of the Liberal party in 1906 was the removal of the tax, to take effect on the 1st of November that year.

THE DEATH OF THE BISHOP OF DURHAM

The history would be incomplete if we did not make a reference to the death of Bishop Westcott. He was known amongst us as "The Pitmen's Bishop," and well he deserved the designation, for from the time of his coming to the county he sought on all occasions to make himself acquainted with our conditions, and was ever ready to assist in the work of amelioration. In every effort in that direction he was ready to counsel. He was one of England's greatest scholars, but his learning did not blunt his sympathies nor check his desires to help the people in their struggles. He was highly religious, but it was not the religion of the visionary. It found expression in actions. He proved his faith by his works, and demonstrated it by that higher and truer exponent of a man's creed, his active participation in every movement which tended to purify the conditions of our working and home life.

His death was a unique circumstance. At the gala held on July 20th he delivered a masterly address in the cathedral. His closing words were

prophetic. He informed the large gathering, mainly miners, that it would be the last time he would address them. Whether this was the presentiment of the coming of the last messenger or not we cannot tell, but it is certain that the kindly heart and eloquent tongue were both stilled by death, and the miners were in sorrow longing for the sound of a voice that was gone, within a short week after he had thrilled the hearts of his hearers, and a great sorrow fell upon the county without regard to class, creed, or social status.

The following resolution passed by the Executive Committee will show the appreciation of his worth expressed by them in the name of the miners:—

That we, the Executive Committee of the Durham Miners' Association, in the name of our members, express our universal sorrow at the death of our respected Bishop and friend, the late Bishop Westcott. We recognise that we have lost a sympathiser, counsellor, and helper in all our efforts for better conditions both in our home surroundings and our working life. From the first day of his residence amongst us we felt that it was his desire to be the Bishop of the diocese in the truest and best sense of the term; and as the years have passed that feeling has been strengthened by the words of kindly counsel he has given us and by his generous and helpful actions. While, therefore, we share in the loss that has fallen upon the whole community we join in the expression of regret and sorrow which will be felt in every portion of the sphere in which he moved, and we tender our sympathy to the relations of the truly great and kindly Christian, who has been taken from a life in which he lived usefully and well to a reward which awaits all who try to correct the wrongs and brighten the darkness of this life.

APPOINTMENT OF THE ACCOUNTANT

Under the sliding scale there were joint ascertainties of prices by each side having a firm of accountants, who agreed to the average realised selling price of coals. When the scales terminated the services of the accountants on the miners' side were dispensed with, and the selling price was gathered by the Federation Board visiting various depôts, the ports

whence coal was exported, and the coal exchange in London. Now it was obvious that such a system was at its best very uncertain, and while the data gathered might be asserted it never could be put forward as accurate. Without the accountants, the mode adopted was necessary, but it was difficult, expensive, and unreliable. The Federation Board, upon whom the burden of seeking the prices fell, was never satisfied, and in the end the members came round to that way of thinking. On the Miners' Council programme for September 28th the following resolution appeared:—

Accountant be engaged for the purpose of ascertaining the price of coal, the mode of procedure to be arranged by the Executive Committee.

The resolution was carried, and was sent to the Federation, and by them placed before the other sections, and finally adopted. At the Board meeting held on November 28th it was decided "that Mr E. Sparks be appointed as the accountant for the Board in the ascertainment of coal prices on the terms which obtained under the sliding scale, and that he be asked to meet the Board at the next meeting."

Between the loose system which obtained prior to his appointment and that which resulted from it there was a very great contrast. Without the definite figures he was able to supply the workmen were always in an atmosphere of uncertainty on two points—first, the time when to apply for an advance; and second, as to the amount to ask for. Further, whatever demand the owners might make it was a matter of guesswork as to the accuracy of the change in the markets. With the quarterly ascertainment the state of the trade was given to the very smallest decimal, it gave reliability as to data, and guaranteed the stability of trade and the regularity of work, which is a great consideration to the workmen.

1902-1903

Hours of Datal Boys and Firemen—Bank Holiday—Mr Patterson's Statue
—Ballot on Eight Hours—Coal Drawing after Loose—Agreement of
15th August—Surface Firemen's Wages

On Monday, the 27th of January, the Executive Committee met the Employers' Committee on six requests. Three of them were the hours of timber leaders and others, putters at datal work, and the hours of firemen at the week-ends. Those three were settled by the allowing agreement:—

It is hereby agreed between the Durham Coal Owners' Association and the Durham Miners' Association as follows:—

Putters at Datal Work.—That the hours of putters when sent to datal work shall be those applicable to the particular class of work which they are required to perform.

Firemen's Week-end Shifts.—That the hours of firemen employed at boilers attached to stationary colliery engines which work continuously between 6 A.M. on Saturday and 6 A.M. on Monday shall be eight per shift between these hours.

Timber and Water Leaders.—That the hours of the following classes of boys shall be in future eight per day—namely, timber leaders, stone putters and water leaders, and those boys who for a full shifter's shift may be working with shifters whose hours are eight. Those whose hours are reduced to suffer a proportionate reduction of wage.

This agreement to take effect with pays commencing the 3rd and 10th February 1902.

For the Durham Coal Owners' Association,

REGINALD GUTHRIE,
Secretary.

For the Durham Miners' Association,
JOHN WILSON.

The result of the settlement so far as it affects the young men will be seen by the following table, and it must be remembered that the total number of days reduced was for any one day, and not for a fortnight:—

Timber leaders	80
Water leaders	234

Stone putters	76
Number of putters at datal work on any given day	220
Other boys so engaged	220
Total days reduced	830

These figures were taken from the Associated Collieries. There were a number of others, which would increase the total somewhat. It will be observed that the hours shortened did not in any way affect the coal-drawing time, and were indications of the willingness to meet the shortening of the hours if it were expedient to do so. It was in complete harmony with the general policy of the Association—self-effort even if the end were a little longer in being reached, and negotiation in preference to an appeal to the legislature. Further, the settlement proved that the inexpediency and difficulty of applying the eight hours a day was the only obstacle in the way of the Durham men, and not their unwillingness to shorten the working time, as was alleged by many outside the county.

THE BANK HOLIDAY

For some years there had been complaints from the employers in reference to the pits being laid idle on Bank Holidays, without any arrangement being made for the same. The logic of their position was incontrovertible. They stated it in the following manner:—

As Associations we have had business relations for over thirty years. We have in that time made many agreements, and have arranged tribunals for every class of difference, and yet you, one of the Associations, have deliberately set all that machinery to a side, have ruthlessly broken all precedents and procedure, and have for some years laid the pits idle, without even consulting the owners' side.

They then brought the subject before the Conciliation Board in August 1902, but while they were wishful to call in the umpire they agreed to defer it for three months. Their request was in the following form:—

The owners complain of the action of the workmen in laying collieries idle on August and December Bank Holidays, and ask that the Conciliation Board take this matter into consideration with a view of requiring the workmen to continue previously existing county arrangements until such are altered, either through negotiations between the Owners' and Workmen's Associations or by the Conciliation Board.

After being discussed it was decided that:

The claim of the owners, that this Board shall restrain the growing practice of laying pits idle on the August and December Bank Holidays, is to be considered and dealt with at the November meeting of the Board.

At that meeting the question was again brought forward; but it was thought desirable that the miners and the employers should have a chance of settling without a reference to the umpire, and for that purpose another adjournment took place, it being understood that if no arrangement were come to the reference should be made as soon as possible. The umpire was not called in until the 8th of July 1903. The hearing of the case took place in London in the Westminster Palace Hotel. On the 13th Lord Davey gave his award: "On the question referred to me at the meeting on July 8th I award that the workmen be allowed the August Bank Holiday, but go to work on the day after Christmas Day."

MR PATTERSON'S STATUE

The statue was unveiled on Saturday, 31st of January 1903, at two P.M. The ceremony consisted of a formal unveiling in front of the Hall, and a meeting in the Council Chamber immediately after. The Executive Committee, in a short circular sent out to inform the members of the event, said:

It will not be necessary to urge upon you to send a deputation to represent you, and thus show respect to a man who did as much as he could to establish our Association and to promote its usefulness. Don't let this be a mere ceremonial function, but let us show by our presence

as much as by the statue we are placing in front of the Hall how we appreciate the labours of men like our departed friend.

There was a great response to the circular, and both the unveiling and the meeting inside were well attended. The ceremony was performed by the corresponding secretary (J. Wilson), who gave the address. The proceedings were presided over by Mr W. House, the president of the Association, and a number of speeches were delivered by representative men, and many who had been with him during the greater part of his life, and throughout the highest testimony was given to the good qualities and disinterestedness of Mr Patterson.

His would be a narrow mind who could say anything else. If true virtue consists of desire to do good, and he is only great who loves his fellow-men, then Patterson was truly great. And that was the standard by which the county judged him, and on that he carried their appreciation. It will be fitting to quote in connection with the unveiling a portion of the *Monthly Circular* written by one who had lived and worked with Mr Patterson and knew him.

But the most cheering part of the unveiling to me does not lie in the appreciation as expressed by the marble, but in the numbers who attended the ceremony and the feeling manifested during the whole of it. If it showed our respect for a colleague and friend, it reflected honour upon us because there was nothing of the cold and formal about it. The gathering was truly representative, and from first to last friendship was in the air and in every heart. There were very few lodges (if any) that were not represented, and in addition there were gentlemen who, although outside our ranks as Trades Unionists, came uninvited to pay a last tribute to a man who in life they had known and learned to respect, and warm were their words in reference to him.

THE EIGHT HOURS—SECOND BALLOT

This question assumed a new and more prominent shape at the annual Council meeting in 1903. It was decided "to seek for a living wage for all workers in and about the mines and for no man or lad to be more than eight

hours from bank to bank in one day." It will be observed that the county had to seek, but it did not define by what means the object had to be sought. The Executive was in a strait between the legal eight hours and negotiation with the employers. They therefore resolved to take the opinion of the county by submitting the question to the ballot. On June 25th they issued the voting papers, accompanied by the following circular:—

Gentlemen,—It will be observed that the word "seek" is the word we invariably use when we send cases before the owners for negotiation. It would have been competent for the Executive Committee to have interpreted the new object in that light, and have looked upon it as being a point to aim at, rather than take it as absolute, and especially when you remember that, recognising the evils of a sudden introduction of a shortening of the hours from ten to eight hours, we have always been against the State regulation of hours, and by ballot before we have so decided. The Committee, however, think it will be best to submit the question to you to say whether we are to proceed by negotiation, or by an appeal to the State, and for that purpose the ballot papers have been drawn up, so that we may have a plain issue upon the two methods. There can be no mistake.

There are three things I would like to mention. First, let every full member (and no other) vote, as it affects all, and will affect all; second, I ask the lodge officials to let the ballot be such in nature more than name. Let it be as secret as possible; and third, let me urge upon you not to be led away by sentiment, but consider the effect it may have upon the position of every man, lest we may make things worse than they are. It will be too late to regret after. We had better weigh well the result before the step is taken.

J. WILSON.

June 25th, 1903.

The result of the ballot was as follows:—for Trades Union effort, 30,841; for State interference, 12,899; majority, 17,942.

There were 161 lodges voted. Some lodges refused to vote, expressing their opposition to any change in the hours, but some refused without assigning

any reason. The vote, however, was very decisive, and reaffirmed the opposition to legal enactment in respect to the eight hours.

COAL-DRAWING AGREEMENT

The question of drawing coals after loose had been for some time in dispute between the two Associations. A number of meetings were held. In the discussion the employers claimed the right to draw coals, if it suited their convenience, at any time. This could not be granted. Then they asked for an arrangement which would allow them to draw coals if it were the custom prior to 1890, and in case of a break up to draw coals to make up the loss. If this were granted they would concede four of the requests the workmen were making. The Executive Committee was not willing to retrospect so far as 1890, but was willing to date back to 1900, and to allow the employers the opportunity for proper preparation for the pit starting the day after an accident, if it were long. This concession formed the basis of settlement, and the following agreement was made:—

It is this day agreed between the Durham Coal Owners' and the Durham Miners' Association as follows:—

1. That at all collieries where at the end of December 1900 it was customary for coals to be drawn at other times than the ordinary coal-drawing hours, such customs shall continue to the same extent.
2. That at all collieries the owners shall have the right of drawing after the 10 or 20 hours' coal drawing time, as the case may be, such of the coals standing in the shaft sidings as owing to accident it may be necessary to send to bank for any of the following purposes:—
 - (a) To enable stones to be drawn;
 - (b) To enable pit timber or other material to be got down and clear of the shaft sidings.
3. That at all collieries, in case of an accident or breakdown which is not remedied one hour before loose, such coals shall be drawn as may be necessary to prepare the pit for working the next shift, such preparations to

mean drawing such a quantity of coal as will enable one empty set (or 45 tubs where endless rope haulage is employed) to be taken to each landing affected by the accident.

For the Durham Coal Owners' Association,
REGINALD GUTHRIE.

For the Durham Miners' Association,
JOHN WILSON.
JOHN JOHNSON.

Three of the concessions on the part of the employers are contained in the following agreement:—

It is hereby agreed between the Durham Coal Owners' Association and the Durham Miners' Association as follows:—

Hand Putters' Basis Wage.—That the basis wage for hand putters when employed on datal work shall be 3s. 4d. per day.

Stone Putters' Short Shifts.—That stone putters when working with stonemen and shifters shall be allowed the same short shifts as those granted to the men with whom they are working.

Boys' Minimum Wage.—That the minimum basis wage of boys employed at bank shall be one shilling per day.

For the Durham Coal Owners' Association,
REGINALD GUTHRIE.

For the Durham Miners' Association,
JOHN WILSON.

BROKEN PRICE

There was a fourth question which was not put in the agreement because it was so complicated—viz. the fixing of a relative price between the whole and broken prices. The custom at some collieries had been to fix a whole and broken price for the seam, the definite figure being named of, say, 2d. per ton difference. In every case where a future broken started it was at the

original price, no matter how much the whole prices might have increased. The effect was that there were men who might be working at 2s. or 2s. 6d. per ton on the Saturday, and through the area of goaf being taken out they would have a reduction of in some cases 1s. and 1s. 4d. per ton on Monday. It was always difficult to get a rectification at Joint Committee, and it was thought best to arrange a uniform or relative price between the whole and broken prices, so that, no matter how the prices in the former might alter, the relative difference would never vary. The arrangement removed a very great anomaly and grievance, it being left to the Joint Committee to decide.

SURFACE FIREMEN'S WAGES

This was a settlement made by the Conciliation Board. Some years prior, by an arbitration, it was decided "that the standard or basis average wage of firemen at bank working twelve hours per day is 3s. 3d. per day of twelve hours." The operation of that award was that before a man could claim the 3s. 3d. he must be working the full twelve hours per day; if not, the employer could claim a proportionate reduction. The arrangement made on November 6th, 1903, reduced the time to eleven hours for the 3s. 3d., those above that time receiving an advance of 3d. per day. By a return taken at the time the number of men and hours at the Associated Collieries was found to be as follows:—

12	hours per shift	506 men
11½	"	1 man
11	"	37 men
10½	"	78 "
10	"	38 "
8	"	3 "
		—
		563

Average hours per shift, 11.63; and the result, therefore, was an all-round increase of 3d. per day.

Labour Representation—Mr Johnson and Gateshead—Suspension of Joint Committee—Conciliation Board—The Fillers' Agreement

It will be necessary to retrace our steps a year or two to keep this question in consecutive order. The action taken in 1885 has been set forth, with the result thereof. The matter rested with one representative until the Council meeting held on June 7th, 1902, when the Executive Committee placed on the programme the following resolution:—

The time is now opportune for considering the question of increased Labour representation in Parliament for the county of Durham.

On the Council programme for September 12th, 1902, the Committee placed another resolution:

With a view of giving effect to Council resolution, with regard to further Labour representation, we ask that the whole matter be relegated to the sections comprising the Federation Board.

On November 1st that resolution came before the Federation Board, when it was resolved as follows:—

That we express our belief that the time has fully arrived when we ought to have increased Labour representation in Parliament, and that the other three sections be requested to consult their members on the subject, and as soon as they intimate their decision to the secretary a meeting of the Board be called.

The course of action indicated in that resolution was followed. The idea was accepted nearly universally. The Federation Board, therefore, resolved to place the matter before the four Committees on January 31st in the Miners' Hall, Durham. It was decided to call a special delegate meeting, to be held in the Town Hall, Durham, the following programme to be submitted:—

- (1) Shall there be an increase in the number of Labour representatives in the county?
- (2) If so, how many more shall be chosen?

(3) Who shall they be?

(4) That the selections of divisions be left to the four Committees.

(5) Ways and means.

The united Committees advised that there should be an increase of two. This was not done because they believed it to be a mathematically fair proportion of the county, but because it was best to move safely. They left the choice of candidates to the Council, but suggested that the selection of divisions should be remitted to them (the four Committees), and that as regards the ways and means the same system as obtained in the case of Mr Wilson should apply to those chosen.

Having regard to our space we need not enlarge upon the various steps in the procedure. It will be sufficient to say that the Council accepted the advice, leaving the carrying out of the details to the four Committees. The candidates selected were Mr J. Johnson and Mr J. W. Taylor. Shortly after the selection was made, and while the Committees were trying to arrange for the division, a communication was received from the South-East Durham Liberal Association asking that Mr J. Johnson should be sent there as a candidate. In the end the request was acceded to, but before much was done beyond the acceptance Sir W. Allan, M.P. for Gateshead, died suddenly, and within a day or two the Liberal Association made overtures, and invited Mr Johnson. A meeting was called, and in response he was transferred to Gateshead.

It would not serve any good purpose nor assist our history if notice were made of some objections and some objectors. It will be sufficient if we record that he was returned on January 20th, 1904, by a majority of 1205, and we make mention of two matters—first, a resolution of the Federation Board:

That we, the Federation Board, representing the whole of the workers in and about the mines in Durham, desire to tender our thanks to the electors of Gateshead for the splendid majority with which they have returned Mr Johnson as Member of Parliament for their borough, and all who worked to secure his return.

Second, a portion of the *Monthly Circular* for January:

There are many matters worthy of notice this month, but the one nearest your hearts and mine is *our* success at Gateshead. Mr Johnson is the M.P. for that borough, but the victory is *ours*. I have no envy for the state of mind of any man or men who can find room for carping or faddism in connection with the election. We are the last people among whom such should be found. The invitation to contest the seat was spontaneous. The workers were numerous, energetic, and of all classes, and the rejoicing when the result was known was of the most enthusiastic nature. It was encouraging to receive from a number of our lodges good wishes during the contest, and their congratulations since the victory was secured.

SUSPENSION OF JOINT COMMITTEE

Through a dispute which arose over a decision given by the chairman of Joint Committee the meetings were entirely suspended, the employers alleging that the decision was against the rules of the Joint Committee. This objection was not taken until after the decision was given. The Federation Board, as the authority dealing with the Joint Committee, considered the question, and decided:

That in the opinion of this Board the protest entered by the owners' side of the Joint Committee on January 15th, 1904, is entirely in opposition to the tenth rule of the Joint Committee constitution, and that whatever stoppage there may be in the proceedings of that Board the blame rests only with them. And further, we protest against the refusal of the owners to meet the other sections of the Board, as in our opinion it is in violation of all past procedure, and cannot conduce to the harmonious relation between the Employers' and Workmen's Associations; and we hope that, whether the difference between the miners and employers be settled or not, no objection will be raised to the business of the other sections being proceeded with.

In the opinion of the Federation Board there was something lying behind the objection to the decision. "If," said they, "that was the sole cause for the

suspension, why not go on with the other sections?" They felt (rightly or wrongly) that the main objection was against the chairman. It was time for the appointment or reappointment of the chairman, and by the refusal of the owners to reappoint Judge O'Connor the Board was strengthened in their opinion that it was the man—more than the single decision—the objection was taken to. The secretary received a letter from Mr Guthrie asking the Board to meet for the purpose of appointing a chairman, and he was instructed to say they were ready to meet at any time convenient to the owners. That reply was repeated again on April 6th. The business was suspended from January 15th until July 4th, when it was resumed, the chairman being appointed *pro tem.* until the appointment of Colonel Blake, who occupied the position for the first time on October 31st.

CONCILIATION BOARD

A mention of this is made here because of a unique circumstance which arose at the August meeting of the Board. The ascertainment showed a fall in price sufficient to warrant a reduction of one and a quarter per cent. The Federation Board objected to it. Then the employers asked for the umpire to be called in, and requested it should be done as speedily as possible. There was a difficulty in the way. Mr Wilson was arranging to go to America, and had paid an instalment of his passage money. Either he must forfeit the money he had paid or the meeting must be delayed. In their circular for November the Federation Board placed the following statement of the case:

Neither of these alternatives was acceptable, and in order to meet the situation the following resolution was submitted by the owners and accepted by us:—

In order to meet the convenience of Mr Wilson it is agreed that consideration of the claim for a reduction of wages be postponed until the meeting of the Board in November, when Lord Davey shall be invited to attend and, failing agreement, to decide on the claim after consideration of the information which may then be put before him as to the state of trade, a preliminary meeting of the Board to be held on

October 29th, in order if possible to effect a settlement without the intervention of the umpire.

In harmony with that resolution we met on the 29th of October. There were two courses open to us, as you will see: either we must consider the circumstances warranted the reduction asked for, or on the 5th of November—which is the date of the ordinary quarterly meeting—meet the umpire. One thing more let us point out: on the 24th of October we received the accountants' ascertainment for the quarter ending September, which showed a further fall in the realised selling price of coal. You will easily perceive the force of the situation which he had to meet. Let us enumerate the circumstances. In August the employers claimed a reduction on the result of the ascertainment then obtained. Although they were (as they said) convinced of the validity of their claim, we have kept the higher wage for three months, and you will know how much that means to us as a county, with our large wage fund and the thousands of men and boys employed. Furthermore, there had been another fall in price. If we had gone to the umpire these facts faced us. These facts were fully considered, and the probabilities of the case carefully investigated, and we were convinced that the course most conducive to the best interest of those we represent was the acceptance of the one and a quarter per cent. reduction, and we are as fully convinced that the action will carry your general approval.

As is seen by the circular, a settlement was made without the umpire. Lord Davey was informed, and replied as follows:—

86 Brook Street, W.,
October 30, 1904.

Dear Sirs,—I deplore the existence of the circumstances which have admittedly rendered some reduction of wages necessary. But I congratulate both parties on having been able to settle the question themselves by amicable discussion without the intervention of a third party. Nothing affords me greater pleasure than to hear that they have done so. I say this not from any desire to spare myself any trouble in your service, but because it is the best earnest for future harmony and

co-operation in which the joint claims both of capital and of labour will be recognised.—I am, dear sirs, yours very faithfully,

DAVEY.

The Joint Secretaries,
Durham Board of Conciliation.

THE FILLERS' AGREEMENT

With this notice we will conclude our history. For some time there had been a gradual introduction of "Mechanical Coal Cutters," and it was necessary that an arrangement should be made for a new class of workmen known as "Fillers," whose work consisted solely of filling the coals after they had been got down. One main feature had obtained from the commencement in the policy of the Association—viz. the permission to the employers to work the mines as they thought proper (consistent with the safety of the workmen), providing the workmen were paid a recognised wage; and second, no objection was ever raised to the introduction of new machinery, if regard were had to safety and wage. When these machines were brought in their utility was recognised. It was seen they were to ease the heaviest portion of the hewers' work, and the attention was turned to the two considerations named. After many meetings and much negotiation the following agreement was made:—

Agreement made this day, 26th day of November 1904, between the Durham Coal Owners' and Durham Miners' Association:—

1. That the standard basis piece rate of wages for "Fillers" who follow mechanical coal cutters shall be four shillings and sixpence per shift, and that the length of shift shall be eight hours from bank to bank, except on Saturdays, when it shall be less in proportion to the reduced coal-drawing hours on that day at the respective collieries.
2. That the above standard piece rate shall be the basis for Joint Committee purposes, or for the purpose of any adjustment of "filling" prices, either as to advance, reduction, or revision thereof as the case may be, provided that each one and a quarter per cent. advance or

reduction in the county percentage shall be held for Joint Committee purposes to vary the wages of "Fillers" by three farthings per shift.

3. That the duties of "Fillers" shall be held to embrace, according to the requirements of the management of the particular colliery concerned, breaking up, casting, and filling (into such receptacle as may be provided by the said management) coal kirved by mechanical coal cutters; the squaring of the coal face so as to leave it straight and perpendicular; the picking out and casting back under an agreed "laid-out" penalty of all material which the hewers are expected to pick out at the respective collieries; timbering in the absence of the deputy and according to the special and timbering rules; preparing the face and leaving it clean and free for the subsequent operations of the coal cutter.

4. That the "Fillers" shall be included among the classes of men entitled to free houses or the customary allowance for house rent under the conditions of the Conciliation Board resolution of November 5th, 1900, regarding "Houses and House Rent."

For the Durham Coal Owners' Association,
REGINALD GUTHRIE.

For the Durham Miners' Association,
JOHN WILSON.

The noticeable features in the agreement are—first, the wages, which are 4d. per day (as a basis wage) higher than those of the coal getter, the hours being eight from bank to bank; second, the percentage is regulated as it is for the hewers, five per cent. in price meaning 3d. per day in wages; third, the duties they are called upon to perform are plainly set forth; and fourth, they are entitled to free houses or the customary allowance for rent as the other acknowledged classes.

P.S.—Inadvertently the death of Mr Meynell, chairman of the Joint Committee, and the appointment of Judge O'Connor to that office has been

omitted and this *P.S.* supplies the omission. The last meeting at which Mr Meynell presided was held on December 14th, 1900. The first under the presidency of Mr O'Connor was on April 9th, 1901; the chair in the *interim* being filled *pro tem*.

AFTER WORDS

The Lawyers—The Changes

We leave the history of the organisation for the time being, but before closing the volume, it would leave a vacuum if there were not some mention (even if it were little) of the legal advisers who have been connected with the Association, and have helped it in the questions of law which from time to time are inevitable in such a large organisation. The first regular lawyer was Mr "Harry" Marshall, the leading solicitor in the city of Durham. He was well on in life when the Association was founded, but he was retained until the time of his death. His offices were in the Market Place, Durham. He was followed by Mr H. Forrest, who was heir to the business and offices of Mr Marshall, and by a natural sequence the legal matters of the organisation fell into his practice; but they did not remain there long. Gradually Mr I. Isaacs of Sunderland was called in, until finally he was appointed officially to the position. In Mr Isaacs the Association had a very skilful and painstaking adviser, and a gentleman who stood well with the magistrates in every district in the county. He died a young man, but he had attained to a position which was one of the envied positions by the whole of the legal gentlemen in the county. He was made clerk to the Castle Eden magistrates, but, unfortunately, died shortly after; in fact, before he had rightly taken over his duties. He was a man of the highest type, a Jew by religion, upright in all his dealings. The standard he lived up to was high enough for all to aim at.



H. F. HEATH

To keep the succession complete we may insert here a notice of his successor, Mr H. F. Heath. He was in Mr Isaacs' office until a very short time prior to the decease of the latter, and from the time of his appointment has proved himself a reliable guide. His advice is given for the good of the Association, and not on the low ground of personal profit. He is as skilful in the stating of a case, or detecting the weak places in the position of his

opponents, as he is versed in law. Having to deal with mining matters he has made himself thoroughly acquainted with the technicalities of the mine, and is most desirous for the success of the business which is placed in his hands. No member of the Durham Miners' Association has more regard to its welfare and prosperity than has the miners' solicitor and advocate.

CHANGES

Within the period of our associated life there have been many changes, a few of which we may with profit enumerate. The "Yearly Bond" has been dealt with as one of the first actions of the Associations. It was considered a species of slavery, and a remnant of the old feudal times when men were part of the estate. We need not dwell further upon it nor its abolition.

The change in the "First Caller" is no mean one, apart from its implied shortening of the hours. It uniformed the time for men commencing work in the foreshift, and it gave them two or three hours more time to rest when it was most natural and most needed. The writer of this (as all men who were hewers at that time would go) went to work, if in the whole, at one in the morning. The "caller" made his rounds then, but there were many men who never waited until he came. They were at the pit and down before the time. At some collieries the back shift men went in at six or six-thirty A.M. If they were out until the latter time they were the last to go in. It was not considered necessary to suspend the coal-drawing to send them down. The man and his picks were put into an empty tub, and went down against the full tubs coming up. The engineman was told there was a "man on," and the only difference in the running was the easing up a little at the bottom. When the back-shift hewer got to the face he had the company of his marrow for some two or three hours. In 1872 the calling time was changed, and the loosing in the face established.

Take the position of checkweighmen. Prior to the commencement of the Union (and at the time) the workmen's choice of their weighman was merely nominal. They selected, but the selection was subject to the approval of the employer or manager, and he was at all times liable to receive his notice, not from the men for whom he worked, but from the manager—and it could be given for anything which did not harmonise with the will of the

manager. A breach of the law was not considered except it was colliery-made law.

It will be obvious that his freedom of action (so far as the advocacy of the rights of workmen was concerned) would be very much restricted. In the generality of cases the policy was to "lie low." In this there has been a great and useful change. Now the checkweighman is employed by the workmen, and can only be removed by them, except he violates the conditions of the Mines' Regulation Act; and now he is (with rare exceptions) the mouthpiece of the men when meeting the manager, the leader in public movements, and the most prominent in matters relating to the Association.

No less important is the facility for meeting the employers, and the spirit of equality which obtains. What a contrast between 1869 and 1904! Then it was truly a meeting of the superior with his inferiors, and as a natural consequence there was an absence of free discussion, which is so essential to the proper settlement of the questions arising between employers and workmen. Happily, that feeling has died out. There is less of the dictator and dictated to, and more of the meeting of equals. Then it was thought to employ men was to confer a favour upon them, and that consequently they were to consider themselves under patronage, and be satisfied with the treatment meted out to the patronised. Now it is realised that if the employers employ a man's labour the workmen employ their capital, that reciprocity and mutuality form the platform upon which the two sides can meet, and that free, unrestrained, courteous expression is not merely the right, but the safest and most beneficial course.

There has not only been an economic benefit accruing to both sides alike, as a result of this equality, but there has been a mental stimulus given to the workmen. It is true that, concurrently with the life of the Association, the schoolmaster has been more abroad amongst the people. The boys commence work later in life, and with a larger mental capital, and that as a consequence there is more ability at command for the use of workmen, but it is a safe assertion that the fact of the organisation operating in our midst has been no mean factor in stimulating the use of the learning so acquired. The young men think it no small attainment to take part in the various offices which are held out to them in the Union, and they know as well that they must be prepared to fill those offices in an intelligent manner. It would

be a difficult, but yet a most interesting, calculation if it could be shown how many men have been incited to mental activity in the manner indicated. From the very inception the Association has demonstrated that the industrial relations in this county were passing out of the region of brute force into that of reason, and the play of mind against mind, and that the body of working men who desire to hold their own, and progress, must do so by the mental force they could command. The greater that force the safer the position, and the more assured the amelioration of their conditions. By that will they conquer. The contrast between the number of able men now and in 1869 is encouraging. It gives the young assurance, and rejoices the heart of the aged, who in their youth saw this day as in a vision, but desired it.

A natural corollary from the equality in meeting and the mental impetus is the amended mode of settling disputes and conducting our negotiations. We have come from a chronic state of open and avowed antagonism to (if not complete conciliation) at least a great approach to it. The history in describing the various stages in our path, will prove that the old era of contention was wearying and wasteful, as it was sure to be when the two parties considered themselves as two armies, and their strength of numbers and increase in capital were for purposes of crushing the other side. These ideas, like that of national superiority and large armaments, were hard to destroy on either side. Their presence made the attempts at compromise more difficult, and often helped those who were wishful to retrograde. They brought about the abolition of the sliding scales and the first Conciliation Board. It may be at some future stage they will effect the same with the second. This will not be, if the past teaches any lessons and the workmen of Durham recognise the tendency of the times. That is towards conciliation, and no step should be taken except to perfect it. If wisdom rules, that backward action will be avoided as a great danger.

A very pleasing change is the greater care for life manifest during the last thirty-six years. The county has had its share of explosions in the period indicated. The following table will give us a view as to the extent of the life-saving in the mines of the nation. The table deals with three decades, and 1905 singly, and gives the deaths per year, the numbers of persons employed, with the number of tons, the average of each ten years being taken.

Ten Years ending	Deaths per Year	Number of Persons Employed	Number of Tons
1882	1129	558,816	152,221,629
1892	1032	614,200	182,646,507
1902	1015	666,060	215,790,835
1905	1159	887,524	249,782,594

The table is very cheering. The full value of it will be realised if we take the decade ending 1882 and compare it with 1905. There we have thirty more deaths, but we have 300,000 more people employed, and an increase of over 97,000,000 tons in output. The proportionate reduction in the saving of life is great.

Three more changes remain to be noted. First, the political change. In 1869 the political power in the hands of the miners (as of all county dwellers) was a very small quantity. The logic of the situation was curious. Above a certain monetary position or size of a house, or possession of land, or living on one side of a line, men were allowed to vote; without those, and being over the line, they were prohibited. The law of England was an open declaration that houses, money, land, all insensate, could guarantee a man a qualification for doing that which alone can be done properly by the operation of mind, and living within an arbitrary area imparted to him full competency for the right of citizenship. He might have them to-day, and live on the borough side of the line, and be qualified; but the vicissitudes of life might strip him of his possessions—or the necessities of his occupation might compel him to move to-morrow—and he would be considered unfit to take part in the election of those who had to make the laws he was bound to obey, which is certainly a most sacred right. That anomaly was swept away. The Durham miners took their share of the work, and set the example as to the proper use of the power.

Another of the changes we note is the strong desire there is for an improved home life. It is not an extraneous feeling forced upon the miners by outsiders, but is within them. There is a great change in that respect. There has been much done in the direction of the much-needed reform. The present is a long way from being satisfactory, but it is far in advance of the state at the inception of the Association. That only existed because it was

born of use. The old-time houses are a standing witness of the opinion those who built them had of the workmen. How should we know that the merciful man regarded the life of his beast except by the manner of his feeding and *housing*? There is a change in that respect, but there is a more hopeful one, and that is the desire on the part of those who live in them for betterment. The man who is *content* with a hovel, or room in a slum, will never look higher. To be dissatisfied with them is healthy, and is the sure road to a better state. May the feeling grow until bad houses and insanitation are removed; but it should never be forgotten that a house itself does not make a home—the life in it alone can do that.

The last of the changes, but not the least, is the altered opinion about, and the more accurate knowledge of, the miner there is in the country. Forty years ago, to many of the people of London the northern miner was a dweller in remote regions, and a man of uncouth and rude speech and habits. Some believed he remained down in the mine, never coming to bank except for a holiday. The writer was once asked by a man not far from London how long he had been in the mines. He replied eight or nine years. Then said the querist: "Have you never been up till now?" He was informed that the miner came up every day. With surprise he exclaimed: "I thought you lived down in the mines altogether." That is only one of the numerous instances which could safely be quoted expressive of the ignorance about the miner and his life. They knew his product because it warmed them and cooked their food, but that was the extent of their correct information.

But the change in the geographical and domestic knowledge is not all, nor the most important; the altered opinion of the miner as a man is more. The common name was the "Geordies," and that was used as being indicative of something low rather than a class cognomen. It was the idea as seen in the attitude of many in Durham when the first gala was held—as stated above. That is all changed during the thirty-six years we have existed as an Association. The man who speaks lightly of the class does it in the face of the clearest light, and from malice. It is of the class we speak here. If we reason from the individual our logic will be unsound, and all classes stand condemned. Taken in the bulk, as compared with our start, the miner has been raised on to a pedestal of respect. That is a result of his own self-respect. Without the latter the former will never be attained. It is the compelling force. It is the philosophy of Shakespeare's "To thine own self

be true," which finds exemplification in every sphere and grade of life. The Durham miners have shown this in a marked degree. They may be void of some of the polish which is to be found amid the complaisances and conventionalities of the finer trades or higher walks of life—their battle for bread is a rough one—but he who wants honesty, uprightness, and bravery will not be disappointed if he turns to them. He need not seek far.

IN MEMORIAM

We have finished our history for the present, and traced it in rapid outline for thirty years. With the benefits we are enjoying from it, the enjoyment must not induce forgetfulness of the brave men who laid the foundations of our little kingdom, for such it is. We enter into their labours, but we will do so with gratitude, and not indifference. Their memory deserves more than a mere casual place with us. We should not be true men if we gave it only that. Let us remember that in reality the position we have realised and the solidity of our Association have been won and made possible by their spirit and foresight, and because we have kept ourselves close to the lines of their procedure. Ours is a great organisation, not because of its numbers (bulk may be weakness), but because of its principles. If it were not so, instead of standing out prominently as we do we should be in a dwarfed and stunted condition, and comparatively useless. The structure we now possess has risen by slow growth from very small beginnings and opposing forces. Every new idea, all the teaching of experience, were used as blocks by those patient builders laying the foundation for those who were to follow them. It is true there might be some mistake and bungling in the building. But in spite of these the structure has arisen with solidity, and from the rubble of that time we have reared up great walls and fair outlines, giving promise of future strength, durability, and usefulness. Truly the little one has become a great nation, and the weak one a strong force, and as long as we do not harm ourselves no power outside can.

How shall we show our respect for them? We have no possible way except by carrying on their work and seeking to give effect and volume to it. The end of their policy was reform, not revolution—not only in a political way, but in every direction where it was needed. Every hindrance in the whole round of working conditions was to them an evil, and as such should be removed. Where immediate abolition was not possible they tried to reduce its magnitude. They preached the ideal life, seized the possible, and made the best of circumstances. And is the wisdom of their action not evident? The spasmodic has been succeeded by the settled and the orderly. Where hate was endangering the general weal by its unreasoning action we now

have regular business relations. No doubt to many whose main feature is ardency and rush they were slow-paced. These would have gone faster, but there would have been slower progress. To the Israelites Moses was slow-paced, but the wilderness was their portion as a result of their grumbling. There were grumblers in our start from Egypt to a better position (some of them remain to this day), but these are not the spirits who would either lay foundations or rear structures. The live men before us now were not grumblers. They were too busy; the work before them was too imperative. They were discontented; but in essence there is a wide difference between that and a grumbler. Never since the world began has any grievance been removed by the latter class. They may have hindered, but never helped. They are the drags on the wheels, and complain because more speed is not made. The men of 1869 were men of different mettle, or the fear is we should never have had the Association we have, nor stood in the proud position we enjoy among the trades organisations of the nation. We are reaping where they sowed, and while we enjoy the harvest let us remember the sowers.

We have placed their statues in a prominent position; but what do they mean to us? They are reminders of a state of things in a large part passed away, and as suggesters of a hope of a larger life in the future they contain a recognition and a resolve—a recognition of their work and a resolve to carry it forward: a recognition of the debt we owe to them, which can only be paid by service rendered to others. It is a debt which no statue, no matter how costly or lifelike, can liquidate. It can only be paid in kind. That is a truth we should not forget, but on all occasions give expression to. It is that expression which stamps real dignity upon the life of any man. Position, rank, title, wealth are all useless, for the true index is manliness and useful service. The true reformers have been (and are) men who assisted the good and resisted the evil, not simply because it would pay or bring preferment or popularity, but because they felt in their hearts the impulses (and compulsions, if you will) of duty. The love of man constrained them, and the imperative *I must* forced them onward. The world's progress has not depended on the acts of the so-called great men, but on the endeavours and self-denials of men who were lost often amid the mists and struggles and poverty of life, and to whom its heavy burdens were not theoretical, but terribly near in their contact, and fearful in their weight and trial.

The deeds of the workers of the race are not recorded to decorate history, but for strengthening the generations to come. For such purpose has prominence been given here to our workers. "The measure of a nation's civilisation is the number of the brave men it has had, whose qualities have been harvested for children and youth." We have had our brave men. They did not live to themselves. In this we must be their imitators.

AU REVOIR

I have had many pleasant occupations in connection with our Association, and the writing of this outline of our history is not the least pleasing among them. It has taken much time, but the result has been (not to be burdensome, but) to impart a somewhat hurried and loose character to the writing, and perhaps some slight omissions of facts, not material to the general course of the history. It has been compiled in the rush of other matters, and in odd minutes as they offered themselves, but its purpose will be attained if a desire to form a closer acquaintance with our growth and transactions be provoked, especially in the minds of our young men, in the hope that they may be rooted and grounded in their faith in Trades Unionism. The dependence of the future is upon them. What is more important than for them to have a full knowledge of our policy and procedure?

The subject is to me of the most interesting nature. From start to finish it has been running the current of my own life, because in nearly all the incidents I have had some small share—as one in the ranks at first, and in these later years as one of the officials. I saw the start, have seen the growth, and feel proud of its position. With those who helped to form it I shared the evil speaking and unfair treatment when we made the attempt, and have never hesitated to be a partner in the blame and slanders which small-minded men have seen fit to bestow upon those who were doing their duty. The narrow mind always feels a pleasure in censuring others. I say nothing of the work which has been done except this: in all I have had any part in there has been pleasure, and none of the hireling waiting for the shadow of the day. I have shared the regrets of those who regretted the failures, and now I am thankful there is large room to rejoice over the progress made and the position attained. This feeling, you will permit me to say, is bound to be stronger in me than in most men. It is part of my life. Thirty-seven years is a long time. A man is a fool, or worse, if, living in contact with an institution (one in which he has lived and moved and had his being), it has not made more than a mechanical impression upon him. I have passed from youth to age in that contact. It commenced in the prime of manhood, and continues when life's day is declining, and the gathering

shades indicate the sun has dipped far to the west, and to find myself in active service, even with the limited powers resulting from the weight of threescore years and ten, is the crown of my rejoicing.

I have been a long time the colleague of some of you. In the battle we have been shoulder to shoulder, and our hair has turned grey in the fight. We have been together in good and evil, for the web of our life has been of mingled yarn. Good and evil together have been mixed, but the good has predominated—how much we alone can tell. I rejoice with you that we have lived to see this day, and that we are still fighting the good fight, with the hopeful spirit, if the physical energies are less than when we commenced. There is a great distance between the point we have attained and the valley whence we started—a distance not measured by time. The true standard is an experience such as our life alone can supply.

My final word is to my young brothers. It is that of exhortation to appreciate not merely the conditions you enjoy, but the possibilities opened out to you. The thought of these should stir you up to the enjoyment of one and the use of the other. Believe me, about this I am very anxious, and shall rejoice if something in this book, or suggested by it, tends to stir you to good and profitable use of the facilities and time the Association has opened out to you. The opening out of these devolves upon you a twofold duty: to yourselves first, and then devoting yourselves to the improvement, solidifying, strengthening, and perfecting of the organisation. Let me quote a few words I have written to you before:

To omit the duty you owe to yourselves; to neglect the opportunities which are open to you; to think all of pleasure and sport, and nothing of mental culture; to leave the institutes which are opening out to you, with their libraries, and which with their stores of knowledge bring you into living, thoughtful contact with the mental giants of the race; to live only for present enjoyment, with no preparation for to-morrow, which will need and make demands upon you, is surely a lack of forethought, which is condemnable for two reasons, because it stunts your own nature (for no uneducated man is complete), and hinders your usefulness when matured manhood calls upon you to take your place in the affairs of your class and nation, to assist in the progress of one and the rectification of the national evils. Put not your trust in

other people entirely; look not to some power outside yourselves to raise you higher in the social scale, whether it be parliamentary or otherwise. The most effective means for further progress lies in us. We want to be true to ourselves, resting not satisfied with foul conditions and surroundings nor ignorance. An educated people is a powerful people; for where is there a man who knows what is due to a man who will be satisfied with less than what a man requires and deserves?

These thoughts form the *raison-d'être* of this history. The aim is to make it a reliable record of facts and an inspiration to those who read. There has been no attempt at literary display. There has been a desire to give prominence to the principles of the founders, and to urge adherence to them, for by them we have come, and by them we shall progress. Our course has been gradual, but it has been safe. We have a record of which all may justly feel proud. It has not been rushing nor spasmodic. In these oft-times lies ruin, and this we have found when we as an Association have tried that method. Carefulness and caution are not cowardice. These feelings may not be heroic, but they have proved their fitness in the years that are gone. "Discretion is the better part of valour."

"More firm and sure the hand of courage strikes
When it obeys the watchful eye of caution."

This was the leading feature of those who made our present possible. No one would dare charge them with lack of true heroism. Let me urge upon you the same spirit. The road may seem longer, and the processes more painful and slow, but these need not damp your spirits. They should brace you for the struggle, strengthen your purpose, fix more firmly your hopes, give you larger faith in the future, induce you to realise your place in life and not be drifters with the current. There are too many who are satisfied to merely exist. They have no aspiration nor ideal nor hope. No man has a right to pass through life indifferent to the wrongs around him. Two things we must avoid: impetuosity in associated work and stagnation in the individual life. Each life should be a clear current, invigorating, not a mere moral miasmatic pool, but cleansing, elevating, ennobling. There are three voices calling upon this generation: the past with the work done for us; the present with its demands upon our help for rectification; and the future with its possibilities of a better and purer life. There are many powers opened out

to you, but there are three which stand out prominently: sobriety, education, association. These used, the darkness will disperse, the downtrodden be raised, and England made truly a home for her people. The continuous sunshine in which some dwell and the dark poverty in which thousands exist will be blended, every soul-enslaving fetter be bruised and broken and cast away, and the world be brighter for our living in it; and we, when called to our account, will feel cheered that we have done what we could to cast out the old and cruel conditions and ring in the Christ that is to be, when want and hunger shall be no more and that state which the rich provision in nature and the wonderful production around us provides for shall be realised.

APPENDIX I

THE GALAS, WITH THE DAY AND DATE UPON WHICH THEY
WERE HELD

1871	Saturday,	August 12th,	at Wharton Park,	Durham.
1872	"	June 15th,	on Race-course,	Durham.
1873	"	June 14th	"	"
1874	"	August 15th	"	"
1875	"	July 3rd	"	"
1876	Monday	July 3rd	"	"
1877	"	July 16th	"	"
1878	Saturday	July 6th	"	"
1879	"	July 5th	"	"
1880	"	July 31st	"	"
1881	"	July 30th	"	"
1882	"	July 1st	"	"
1883	"	July 14th	"	"
1884	"	July 5th	"	"
1885	"	July 25th	"	"
1886	"	July 31st	"	"
1887	"	July 23rd	"	"
1888	"	July 14th	"	"
1889	"	July 6th	"	"
1890	"	July 12th	"	"
1891	"	July 4th	"	"
1892	"	July 23rd	"	"
1893	"	July 29th	"	"
1894	"	July 21st	"	"
1895	"	July 27th	"	"
1896	"	July 18th	"	"
1897	"	July 24th	"	"
1898	"	July 16th	"	"
1899	"	July 22nd	"	"
1900	"	July 28th	"	"
1901	"	July 20th	"	"
1902	"	July 26th	"	"
1903	"	July 18th	"	"
1904	"	July 23rd	"	"

1905	"	July 29th	"	"
1906	"	July 21st	"	"

APPENDIX II

CHANGES IN WAGES FROM 1872

Date of change taking effect	Advance per cent.	Reduction per cent.
February 1872	20	—
July 1872	15	—
February 1873	15	—
April 1874	—	10
November 1874	—	9
April 1875	—	5
February 1876	—	7
September 1876	—	6
April 1877	—	7½
May 1879	—	8¾
July 1879	—	1¼
December 1880	2½	—
April 1882	3¾	—
August 1882	—	1¼
November 1882	1¼	—
February 1883	1¼	—
August 1884	—	1¼
May 1885	—	1¼
May 1886	—	1¼
February 1888	1¼	—
May 1888	—	1¼
August 1888	—	1¼
November 1888	1¼	—
February 1889	1¼	—
August 1889	10	—
December 1889	10	—

March 3-10, 1890	5	—
December 29, 1890	5	—
January 5, 1891	—	—
June 1, 1892	—	10
March 1893	—	5
¹ October 16, 1893	5	—
May 6-13, 1895	—	7½
October 7-14, 1895	—	2½
August 14-21, 1897	2½	—
² May 16-23, 1898	2½	—
May 16-23, 1898	2½	—
Oct. 31-Nov. 7, 1898	2½	—
³ April 17-24, 1899	2½	—
July 24-31, 1899	2½	—
November 6-13, 1899	3¾	—
February 12-19, 1900	5	—
May 14-21, 1900	7½	—
August 13-20, 1900	10	—
November 12-19, 1900	10	—
February 11-18, 1901	—	1¼
May 13-20, 1901	—	11¼
August 12-19, 1901	—	7½
November 12-19, 1901	—	5
February 17-24, 1902	—	1¼
May 12-19, 1902	—	2½
August 11-18, 1902	—	2½
February 9-16, 1903	1¼	—
May 11-18, 1903	—	1¼
August 10-17, 1903	—	1¼
February 8-15, 1904	—	1¼
May 16-23, 1904	—	2½
November 7-14, 1904	—	1¼
February 5-12, 1906	1¼	—
August 6-13, 1906	2½	—

November 12-19, 1906 1¼ —

[1](#) Originally given as a temporary advance for six pays, afterwards converted into an ordinary advance.

[2](#) Originally given for six pays, afterwards continued for further period of six pays, and again extended until pays ending 15th and 22nd April 1899; it was then continued as an ordinary advance.

[3](#) Of this advance one and a quarter per cent. was given for seven pays, and afterwards merged in the ordinary percentage.

APPENDIX III

Table showing the explosions and inundations, with the date and number of lives lost, since the beginning of 1869, in Durham, brought down to the end of 1906, with two statements on the dust theory by Mr J. Forman.

	Lives lost
1869—May 25, Monkwearmouth	7
1871—October 25, Seaham	30
1878—July 6, Craghead exploded	4
1880—September 8, Seaham Colliery exploded	168
1882—February 16, Trimdon Colliery exploded	74
1882—April 18, Tudhoe exploded	36
1882—April 13, West Stanley exploded	13
1885—March 2, Usworth exploded	41
1885—June 3, Houghton-le-Spring	12
1885—December 2, Elemore	28
1889—November 2, Hebburn	6
1895—December 13, Eppleton	3
1896—April 13, Brancepeth A Pit	20
1897—May 6, East Hetton, inundation	10
1899—August 15, Brandon C Pit	6
1902—May 20, Deaf Hill	1
1903—November 16, Sacriston, inundation	3
1906—October 14, Wingate, explosion	24
1906—December 17, Urpeth Busty, explosion	4

A THEORY SHOWING HOW COAL DUST IS IGNITED AND EXPLODED IN A COAL MINE, MORE ESPECIALLY ON IN-TAKE AIR ROADS

In the first place, there must be a considerable quantity of very fine and dry coal dust in the immediate proximity of a shot when fired; and if the shot is a strong one the concussion will be very great.

This force, acting on the air, throws the finest particles of coal dust into the circulating current, in a finely divided state, with orbid motion, thereby causing each particle of coal dust to be surrounded with air, and these particles of dust in this condition coming in contact with the flame of a shot, are easily ignited.

At the moment of ignition the temperature of the particles of dust is low, but as the ignition extends to other particles, and they become ignited in quantity, the temperature rises, so that the motion of the heated particles becomes more rapid by expanding and compressing the air, until their velocity is so great that the temperature of the burning dust is raised to the temperature of gas flame, exploding the coal dust in its course.

At this high temperature, the expansion of the air will develop great force, which acting on the dust at rest, will whirl it into the air current, and this will be continued so long as there is a sufficient quantity of coal dust and air to feed the flame.

JOHN FORMAN.

To J. Wilson, Esq.,
Secretary to the Royal Commission on
Explosions from Coal Dust in Mines.

Dear Sir,—In October 1871 an explosion occurred at Seaham Colliery, and my attention was called to it; and, after considering all the circumstances of the case, I eventually came to the conclusion that the shot fired by the two Simpsons ignited the coal dust and caused the explosion.

In September 1880 another explosion took place at Seaham Colliery. I went down the pit in the evening of the day of the explosion with Mr Stratton (the manager) and other Mining Engineers, and I remained at Seaham Colliery for 12 months, until the last body was found, and was, during that time, down the pit almost every day as an explorer. I also attended the inquest and gave evidence. I was satisfied from what I saw that the shot fired by Simpson and Brown ignited the coal dust and caused the explosion.

In February 1882 an explosion occurred at Trimdon Grange Colliery. I went down the pit and attended the inquest, and from what I saw and heard I concluded that the explosion was caused by a flushed kitty or straw at Maitland's shot firing a small quantity of fire-damp, which ignited the coal dust and caused the explosion.

In April 1882 an explosion occurred at West Stanley Colliery. I attended the inquest, and from what I could learn the shot fired by the two men (Douglas and Hutchinson) ignited a small portion of fire-damp, which fired the coal dust, and brought on an explosion.

In March 1885 an explosion happened at Usworth Colliery. I attended the inquest, and came to an opinion that the shot fired by the two men, named Brown, ignited the coal dust, which produced an explosion.

In December 1886 an explosion occurred at Elemore Colliery. I went down the pit and attended the inquest. I was satisfied, in my mind, that the shot fired by the three men (Johnson, Appleby and Luke) ignited the coal dust, thereby causing the explosion.—Yours, etc.

JOHN FORMAN.

December 1886.

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J. H. VEITCH AND SONS
DURHAM

Transcriber's Notes

Obvious typographical errors have been silently corrected.

Hyphenation has been rationalised.

Variations in spelling and punctuation have been retained.

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